

THE CODE OF THE TOWN OF SAN TAN VALLEY, ARIZONA

May 29, 2026

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Section 1-1 INCORPORATION.

The Town of San Tan Valley, Arizona, within its corporate limits as now established or as may hereafter be established or changed in the manner provided by law, is a municipal corporation and body politic under the name “Town of San Tan Valley, Arizona.”

Section 1-2 FORM OF GOVERNMENT.

The Town shall operate under a Council-Manager form of government. The Town Council shall serve as the governing body of the Town and shall exercise the Town’s legislative and policy-making authority, subject to state law and this Code. The Town Manager shall be responsible for the administration of Town affairs in accordance with state law, this Code, applicable ordinances and resolutions, and the direction of the Town Council.

Section 1-3 CODE DESIGNATION AND CITATION.

The ordinances codified in this Code, together with amendments and provisions adopted by reference, shall constitute and be designated the “Code of the Town of San Tan Valley, Arizona.” This Code may also be cited as the “San Tan Valley Code.”

Section 1-4 RULES OF CONSTRUCTION.

The following rules of construction shall apply to this Code and to all ordinances unless otherwise expressly provided or unless the context requires otherwise:

1-4-1. *General Rule Regarding Definitions.* Words and phrases shall be construed according to their common and approved usage, but technical words, technical phrases, and words and phrases that have acquired peculiar and appropriate meanings in law shall be construed according to such meanings. Unless the context indicates otherwise, references to Articles, Sections, Subsections, and paragraphs refer to the corresponding Articles, Sections, Subsections, and paragraphs in which such references exist.

1-4-2. *Acts by Agents.* When this Code or an ordinance requires an act to be done, and the act may lawfully be done by an agent, the act may be done by an authorized agent.

1-4-3. *Gender; Singular and Plural.* Words importing one gender include all genders. Words in the singular include the plural, and words in the plural include the singular.

1-4-4. *Departments; Officers; Employees; Boards; Commissions; Committees.* Whenever this Code or an ordinance refers to a department, division, board, commission, committee, office, officer, official, employee, or agent, the reference shall mean the corresponding department, division, board, commission, committee, office, officer, official, employee, or agent of the Town, unless the context clearly indicates otherwise.

1-4-5. *Conjunctions.* In a provision involving two (2) or more items, conditions, provisions, or events, which items, conditions, provisions, or events are connected by the conjunction “and,” “or,” or “either . . . or,” the conjunction shall be interpreted as follows:

“*And*” indicates that all the connected terms, conditions, provisions, or events apply.

“*Or*” indicates that the connected terms, conditions, provisions, or events apply singly or in any combination.

“*Either . . . or*” indicates that the connected terms, conditions, provisions, or events apply singly but not in combination.

1-4-6. *Tenses.* The present tense includes the past and future tenses, and the future includes the present.

1-4-7. *Time; Computation.* Unless otherwise expressly provided by state law, this Code, ordinance, or order issued pursuant to this Code, the time within which an act is required or permitted to be done shall be computed by excluding the first day and including the last day. If the last day is a Saturday, Sunday, or Town holiday, the period shall extend to the next day that is not a Saturday, Sunday, or Town holiday.

1-4-8. *Reasonable Time or Notice.* In all cases where any Article or Section of this Code requires any act to be done in a reasonable time or reasonable notice to be given, such reasonable time or notice shall be deemed to mean such time only as may be necessary for the prompt performance of such duty or compliance with such notice.

Section 1-5 DEFINITIONS.

The following definitions apply generally throughout this Code unless the context clearly requires otherwise or a more specific definition is provided in another Article, Section, ordinance, or provision adopted by reference:

“*A.R.S.*” means the Arizona Revised Statutes, as amended.

“*Code*” or “*Town Code*” means the Code of the Town of San Tan Valley, Arizona, as amended, including provisions codified in the Code and provisions adopted by reference as part of the Code, unless the context requires otherwise.

“Council” or *“Town Council”* means the common council and governing body of the Town of San Tan Valley, Arizona, consisting of the Mayor, Vice Mayor, and Councilmembers.

“County” means Pinal County, Arizona.

“Daytime” means the period between sunrise and sunset. *“Nighttime”* means the period between sunset and sunrise.

“Includes” and *“Including”* are terms of enlargement and not limitation and do not limit a term to the specific examples listed.

“May” is permissive and not mandatory.

“Month” means a calendar month.

“Oath” includes a solemn affirmation, and a person shall be deemed to have sworn an oath if such person makes such an affirmation.

“Owner” means the owner of record of real property as shown on the current records of the Pinal County Assessor or as otherwise known to the Town by virtue of more recent and reliable information. The term includes any part owner, joint owner, tenant in common, trustee, beneficiary, or other person having a legal or equitable ownership interest in the property.

“Person” means any human being, any governmental or political subdivision or public agency, any public or private corporation, any partnership, any firm, association or other organization, any receiver, trustee, assignee, agent, or other legal representative of any of the foregoing or any other legal entity that the law deems a “person”.

“Personal property” means any property other than real property.

“Preceding” means immediately before, and *“Following”* means immediately after.

“Premises”, as applied to real property means any building, lot, parcel, real estate, or land or portion of land whether improved or unimproved including adjacent sidewalks and parkway strips.

“Property” includes real property, personal property and mixed property.

“Real property” means lands, tenements, and hereditaments.

“Shall” is to be construed as being mandatory.

“Signature” includes a mark, electronic signature, or other legally recognized method of signing, to the extent authorized by law.

“State” means the State of Arizona, and *“State law”* means the Arizona Constitution, the Arizona Revised Statutes, applicable state administrative rules, and controlling decisions of Arizona appellate courts, as each may be amended or interpreted from time to time.

“Street” means any public way, road, highway, street, avenue, boulevard, bridge, viaduct, trestle and the approaches to any bridge, viaduct or trestle.

“Tenant” or *“Occupant”*, as applied to premises, means any person holding a written or oral lease, or who actually occupies the whole or any part of such premises, alone or with others.

“Town” means the Town of San Tan Valley, Pinal County, Arizona.

“*Week*” means a period of seven (7) consecutive days.

“*Writing*” includes any form of recorded message capable of comprehension by ordinary visual means. Whenever any notice, report, statement or record is required or authorized by this Code, it shall be made in writing in the English language unless it is expressly provided otherwise.

“*Year*” means a calendar year, unless otherwise provided.

Section 1-6 HEADINGS; HISTORY NOTES; REFERENCES.

1-6-1. *Headings.* Article, Section, Subsection, and paragraph headings are included for convenience only and do not affect the meaning, construction, or interpretation of this Code.

1-6-2. *History Notes; Cross References; State Law References.* History notes, cross references, and state law references that appear in this Code are provided for convenience only and have no legal effect.

1-6-3. *Internal References.* Unless specified otherwise, all references to Articles, Sections, Subsections, and paragraphs are references to the corresponding provisions of this Code.

Section 1-7 POWERS OF THE TOWN.

1-7-1. *General Powers.* The corporate powers of the Town shall be vested in the Town Council. The Town has all the powers, functions, rights, privileges, and immunities possible under state law as fully as though they were specifically enumerated in this Code, and all the powers, functions, rights, privileges, and immunities granted or to be granted, either expressly or by implication, to towns incorporated under state law, not in conflict with this Code. These powers include, but are not limited to, the power to:

1-7-1-1. Require all persons, firms, or corporations responsible for new physical development within the Town to provide for, furnish, or pay a fee for furnishing: (a) public utility easements; (b) water production, storage, and transmission; (c) sewage collection, treatment, and disposal; (d) park land and development; (e) school sites; (f) dedication and improvement of public rights-of-way; (g) trails and pathways; (h) drainage; (i) flood control; and (j) other public facilities necessary to maintain satisfactory levels of service for such new development, as provided by ordinance which shall include definite standards basing the foregoing requirements on the needs of the residents of said new development.

1-7-1-2. Have exclusive jurisdiction to control and regulate the use and enjoyment of its streets and alleys, public grounds, and rights-of-way.

1-7-1-3. Receive bequests, donations, and gifts of all kinds of property, in fee simple, or in trust for charitable and other purposes, and to do all acts necessary to carry out the purposes of such bequests, gifts, and donations, with power to manage, sell, lease, or otherwise dispose of the same in accordance with the terms of the bequest, gift, or donation of trust, or absolutely in case such bequest, gift, or trust be unconditional.

1-7-2. *Exercise of Council Powers.* All powers of the Council shall be exercised by ordinance, resolution, order, motion, or other lawful action.

1-7-3. *Construction of Powers.* In this Code, the mention of a particular power shall not be construed as exclusive or as limiting any other power of the Town. This Code shall be liberally construed so that the Town may exercise, to the fullest extent permitted by state law, all powers granted to incorporated towns by state law, together with all powers necessarily or fairly implied from, or incident to, those express grants of authority, and all powers necessary or proper for the conduct of municipal affairs and for the protection of the health, safety, and general welfare of the Town and its residents.

Section 1-8 EFFECT OF REPEAL OF ORDINANCES.

1-8-1. *No Revival of Repealed Ordinances.* Unless specifically provided otherwise, the repeal of an ordinance does not revive any previously repealed ordinance.

1-8-2. *Pending Rights, Penalties, and Proceedings.* Unless expressly provided otherwise in the repealing or amending ordinance, the repeal or amendment of an ordinance does not affect any punishment or penalty incurred before the repeal or amendment took effect, nor does such repeal or amendment affect any suit, prosecution, or proceeding pending at the time of the amendment or repeal.

Section 1-9 AMENDMENTS TO CODE; EFFECT OF NEW ORDINANCES; AMENDATORY LANGUAGE.

1-9-1. *Codification of Later Ordinances.* All ordinances adopted after this Code that amend, repeal, or otherwise affect this Code may be codified and published in accordance with the numbering system, structure, and style of this Code. As part of the codification process, non-substantive changes to numbering, headings, formatting, capitalization, punctuation, grammar, and internal cross-references may be made to conform the ordinance to the organization of this Code, provided that no substantive provision is altered. Portions of this Code repealed by later ordinance may be excluded from future publications of this Code.

1-9-2. *Amendatory Language.* Amendments to provisions of this Code may be made with language substantially in the following form: “Article ___, Section ___ is hereby amended to read as follows:” or, as applicable, “Article ___, Section ___, Subsection ___ of the San Tan Valley Code is hereby amended to read as follows:”

1-9-3. *Language for Additions.* Additions to this Code may be made with language substantially in the following form: “Article ___, Section ___ of the San Tan Valley Code is hereby added to read as follows:” or, as applicable, “Article ___, Section ___, Subsection ___ of the San Tan Valley Code is hereby added to read as follows:”

1-9-4. *Repeal of Code Provisions.* All provisions desired to be repealed should be repealed specifically by Article, Section, Subsection, paragraph, table, exhibit, appendix, or other Code designation, as appropriate, or by setting out the repealed provisions in full in the repealing ordinance.

Section 1-10 APPEAL PROCEDURES.

Except where alternative appeal procedures are expressly provided, whenever any provision of this Code authorizes a person to appeal a decision, the following procedures shall apply:

1-10-1. *Filing of Appeal.* The appeal must be in writing and received, together with any applicable appeal fee established by the Council, by the Town Clerk within the time specified in the appropriate Code Section. If the appellant does not deliver an appeal to the Town Clerk within the time specified, then the decision shall be final.

1-10-2. *Opportunity to Be Heard.* The appellant shall be given an opportunity to present testimony, documents, and other evidence.

1-10-3. *Informal Hearing; Evidence.* The hearing will be conducted informally, and technical rules of evidence shall not apply. Any evidence that the hearing body deems reliable, relevant, and not unduly repetitious may be considered.

1-10-4. *Appearance; Representation.* The appellant shall appear in person and may be represented by an authorized representative.

1-10-5. *Decision.* The hearing body shall provide an oral or written decision to the appellant sustaining, reversing, or modifying the initial decision following the close of the hearing. A reasonable time period may be provided to allow the decision to be reduced to writing and brought back for final adoption, if applicable.

Section 1-11 GENERAL PENALTY; CONTINUING VIOLATIONS.

1-11-1. "Violation of this Code" means any of the following:

1-11-1-1. Doing an act that is prohibited or made or declared unlawful, an offense, a violation, or a misdemeanor by ordinance or by rule or regulation authorized by ordinance.

1-11-1-2. Failure to perform an act that is required to be performed by ordinance or by rule or regulation authorized by ordinance.

1-11-1-3. Failure to perform an act if the failure is prohibited or is made or declared unlawful, an offense, a violation, or a misdemeanor by ordinance or by rule or regulation authorized by ordinance.

1-11-2. *Exclusion for Official Duties.* "Violation of this Code" does not include the failure of a Town Officer or Town Employee to perform an official duty unless it is specifically provided that the failure to perform the duty is to be punished as provided in this Section.

1-11-3. *General Criminal Penalty.* Except as otherwise provided by law or ordinance, a person convicted of a violation of this Code shall be guilty of a Class 1 misdemeanor. A Class 1 misdemeanor is punishable by a fine not exceeding two thousand five hundred dollars (\$2,500.00), by imprisonment for a term not exceeding six (6) months, by probation for a term not exceeding three (3) years, or by any combination thereof. Except as otherwise provided by law or ordinance, with respect to violations of this Code that are continuous with respect to time, each day that the violation continues is a separate offense. Notwithstanding the foregoing, in any prosecution for a violation of this Code, the Town Magistrate may, upon motion of the Town prosecutor, allow for the reduction of the classification and punishment of an offense to a petty offense if doing so would be in the interest of justice. A petty offense shall be punishable by a fine not to exceed three hundred dollars (\$300.00) (exclusive of any fees or surcharges as may be imposed by this Code or state law).

1-11-4. *Enterprise Fines.* The sentence to pay a fine, imposed on an enterprise convicted of a Class 1 misdemeanor shall be an amount not more than twenty thousand dollars (\$20,000.00), on an enterprise convicted of a Class 2 misdemeanor shall be an amount not more than ten thousand dollars (\$10,000.00), and on an enterprise convicted of a Class 3 misdemeanor shall be an amount not more than two thousand dollars (\$2,000.00).

1-11-5. *Administrative Sanctions Preserved.* The imposition of a penalty does not prevent suspension or revocation of a license, permit or franchise or other administrative sanctions.

1-11-6. *Civil Infractions.* If an ordinance or law of the Town designates a violation as a civil infraction, the civil infraction will be charged, filed, and prosecuted in accordance with this Section of the Code. Whenever this Code or any ordinance of the Town declares the doing of an act or the failure to act to be a civil violation, and no specific penalty is provided, each such violation shall be subject to a civil sanction of not less than fifty dollars (\$50.00) and not more than two thousand five hundred dollars (\$2,500.00).

1-11-7. *Habitual Offender.* Any person who commits a violation which has been designated a civil infraction after previously having been found responsible for committing two (2) or more civil infractions of the same Section or Subsection within any thirty-six (36) month period, whether by admission, by payment of the fine, by default, or by judgment after hearing, shall be guilty of a criminal misdemeanor punishable as set forth in Subsection 1-11-3 of this Code. The Town Prosecutor is authorized to file a criminal misdemeanor complaint in the Town Municipal Court against such habitual offenders who violate this Subsection. For purposes of calculating the thirty-six (36) month period under this paragraph, the dates of the commission of the offenses are the determining factor.

1-11-8. *Continuing Violations; Public Nuisance.* Violations of this Code that are continuous with respect to time are a public nuisance and may be abated through the civil infractions enforcement and abatement procedures of this Code or by injunctive or other equitable relief. The imposition of civil or criminal penalties does not preclude enforcement, abatement, injunctive relief, or other equitable relief.

1-11-9. *Enforcement of Town Code.* The Town Manager or designee and the Town Attorney are authorized to enforce the provisions of the Town Code and may exercise enforcement discretion in determining the appropriate remedy or combination of remedies. Enforcement may be pursued by any lawful means, including the following:

1-11-9-1. By criminal complaint (either by citation issued by a Police Officer pursuant to A.R.S. § 13-3903 or by a long form criminal complaint filed in the Town Municipal Court pursuant to Rule 2.3 Arizona Rules of Criminal Procedure);

1-11-9-2. By civil action in the Superior Court or another court of competent jurisdiction seeking an injunction and order for abatement;

1-11-9-3. By the procedures for civil infraction citations set forth in this Code;

1-11-9-4. By the abatement procedures authorized in A.R.S. § 9-499 and established in this Code;

1-11-9-5. By any other enforcement remedies provided by state law, including but not limited to the provisions relating to slum properties.

Section 1-12 SEVERABILITY.

The articles, sections, subsections, paragraphs, sentences, clauses and phrases of this Code and all provisions adopted by reference in this Code are severable. If any article, section, subsection, paragraph, sentence, clause, or phrase of this Code or of any provision adopted by reference in this Code is declared unconstitutional or invalid by the valid judgment of a court of competent jurisdiction, such judgment shall not affect the validity of any other article, section, subsection, paragraph, sentence, clause, or phrase of this Code or of any provision adopted by reference in this Code. The Council declares that it is its intent that it would have enacted this Code and all provisions adopted by reference in this Code without such invalid or unconstitutional provisions.

Section 1-13 PROVISIONS DEEMED CONTINUATION OF EXISTING ORDINANCES.

The provisions of this Code, insofar as they are substantially the same as legislation previously adopted by the Town relating to the same subject matter, shall be construed as restatements and continuations thereof and not as new enactments.

Section 1-14 CODE DOES NOT AFFECT PRIOR OFFENSES OR RIGHTS.

1-14-1. *Prior Town Offenses, Penalties, Contracts, and Rights.* Nothing in this Code or the ordinance adopting this Code affects any offense or act committed or done, any penalty or forfeiture incurred, or any contract, right, duty, or obligation of the Town established before the effective date of this Code.

1-14-2. *Existing Violations Not Authorized.* The adoption of this Code does not authorize any use or the continuation of any use of a structure or premises in violation of any Town ordinance on the effective date of this Code.

Section 1-15 CERTAIN ORDINANCES NOT AFFECTED BY CODE.

1-15-1. *Ordinances Preserved.* Nothing in this Code or the ordinance adopting this Code affects the validity of any ordinance or portion of an ordinance:

- (1) Annexing property into the Town.
- (2) De-annexing property or excluding property from the Town.
- (3) Describing the Town limits or boundaries of the Town.
- (4) Promising or guaranteeing the payment of money or authorizing the issuance of bonds or other instruments of indebtedness.
- (5) Authorizing or approving any contract, deed, or agreement.
- (6) Making or approving any appropriation or budget.
- (7) Granting any right or franchise.
- (8) Providing for salaries or other officer or employee benefits not codified in this Code.
- (9) Adopting or amending the general plan.
- (10) Levying or imposing any special assessment.
- (11) Establishing the grade or any street or sidewalk.
- (12) Dedicating, accepting or vacating any plat or subdivision.
- (13) Dedicating, establishing, naming, locating, relocating, opening, paving, widening, repairing or vacating any street.
- (14) Providing traffic or parking regulations for specific locations not in this Code.
- (15) Amending the zoning map or rezoning specific property.
- (16) That is temporary, although general in effect.
- (17) That is special, although permanent in effect.
- (18) The purpose of which has been accomplished.

1-15-2. *Continued Effect.* The ordinances designated in Subsection 1-15-1 of this Section continue in full force and effect to the same extent as if published at length in this Code.

ARTICLE 2 – TOWN COUNCIL

SECTIONS:

2-1: ELECTED OFFICERS

2-2: QUALIFICATIONS; VACANCIES

2-3: DUTIES OF MAYOR

2-4: VICE MAYOR

2-5: ACTING MAYOR

2-6: COUNCIL TO BE JUDGE OF COUNCILMEMBER QUALIFICATIONS

2-7: SALARIES OF COUNCILMEMBERS

2-8: REGULAR MEETINGS

2-9: SPECIAL MEETINGS

2-10: RULES OF PROCEDURE; MINUTES

2-11: QUORUM; AYES AND NAYS

2-12: CONSIDERATION OF PETITIONS

2-13: INTERFERENCE WITH ADMINISTRATION AND CONTRACTS

2-14: FINANCIAL DISCLOSURE STATEMENTS

2-15: ORDINANCES

Section 2-1 ELECTED OFFICERS.

2-1-1. *Composition of Council.* The Town Council shall consist of seven members elected from the Town at large, shall constitute the Common Council, and shall continue in office until their duly qualified successors assume the duties of office.

2-1-2. *Councilmember Terms.* Councilmembers shall serve two-year terms, unless four-year staggered terms are approved by the qualified electors of the Town as provided by state law, in which case Councilmember terms shall be governed by the voter-approved term structure and applicable state law.

2-1-3. *Selection and Term of Mayor and Vice Mayor.* Within twenty (20) days after newly elected Councilmembers assume office following each regular Town election, the Council shall choose from among its members a Mayor and Vice Mayor. The Mayor and Vice Mayor shall each serve for a term of two (2) years and thereafter until a successor is chosen, unless sooner removed by the Council or unless the Mayor or Vice Mayor ceases to be a Councilmember. The Mayor and Vice Mayor serve at the pleasure of the Council and may be removed during their term by the affirmative vote of at least four Councilmembers. A Councilmember may be chosen to serve successive terms as Mayor or Vice Mayor.

2-1-4. *Assumption of Office.* Newly elected Councilmembers shall assume the duties of office at the Town Council meeting at which the Town Council canvasses the general election returns and declares the election results, or as otherwise provided by state law.

Section 2-2 QUALIFICATIONS; VACANCIES.

2-2-1. *Qualifications.* Councilmembers shall satisfy the qualifications set forth in A.R.S. § 9-232 and shall be qualified electors of the Town at the time of the election and shall have resided in the Town for not less than one (1) year immediately preceding the election, except that a person living in an area annexed into the Town during that one (1) year period is qualified if the person resided in the annexed area for at least one (1) year immediately preceding the election.

2-2-2. *Residency; Incompatible Offices.* Primary residency must be within the Town limits as established by state law criteria. Councilmembers shall not hold any other elected public office, nor any incompatible appointed public office.

2-2-3. *Vacancy Upon Loss of Qualification.* If a Councilmember ceases to possess any of these qualifications, resigns, or another event occurs as defined in A.R.S. § 38-291, the office shall immediately become vacant.

2-2-4. *Council Vacancies.* Vacancies on the Council shall be filled by appointment as provided for in A.R.S. § 9-235, as amended.

2-2-5. *Town Employees.* Town employees are not eligible to stand for Town election or serve as Councilmembers.

Section 2-3 DUTIES OF MAYOR.

2-3-1. *Presiding Elected Official.* The Mayor shall be the presiding elected official of the Town and shall be chosen and serve as provided in Section 2-1-3.

2-3-2. *Presiding Officer; Voting.* The Mayor shall serve as chair of the Council and preside over its meetings. The Mayor may make or second motions and have a voice and vote in all Council proceedings.

2-3-3. *No Veto Power.* The Mayor has no veto power.

2-3-4. *Execution of Instruments.* The Mayor shall execute and authenticate by the Mayor's signature such instruments as the Council, state law, ordinance, or this Code may require.

2-3-5. *Official and Ceremonial Head.* The Mayor shall be recognized as head of the Town government for all official and ceremonial purposes.

2-3-6. *Administrative Coordination.* The Mayor has limited administrative duties, and shall, on behalf of the Council, confer and advise with the Town Manager to ensure that Council programs and policies are being fully implemented.

2-3-7. *Emergency Powers.* As authorized by A.R.S. § 26-311, the Mayor may, by proclamation, declare a local emergency to exist due to fire, conflagration, flood, earthquake, explosion, war, bombing or any other natural or man-made calamity or disaster or in the event of the threat or occurrence of riot, rout, or affray or other acts of civil disobedience which endanger life or property within the Town. After declaring an emergency or local emergency, the Mayor may issue proclamations and impose regulations as authorized by state law and as necessary to preserve the peace and order of the Town, including but not limited to:

2-3-7-1. Imposition of a curfew in all or any portion of the Town.

2-3-7-2. Closing to public access any public building, street or other public place.

2-3-7-3. Calling upon regular or auxiliary law enforcement agencies and organizations within or without the political subdivision for assistance.

2-3-8. *Other Duties.* The Mayor shall perform such other duties required by state law and this Code, as well as those duties required as presiding elected official of the Town.

Section 2-4 VICE MAYOR.

2-4-1. *Selection; Duties.* The Vice Mayor shall be chosen and serve as provided in Section 2-1-3 and shall perform the duties of the Mayor during the Mayor's absence or temporary disability, including other duties as may be delegated by the Council from time to time.

2-4-2. *Vacancy in Office of Mayor.* In case of a vacancy in the office of Mayor, the Vice Mayor shall perform the duties of Mayor until the Council selects a Mayor from among its members. During such vacancy, the powers and duties of the Mayor shall be exercised by the Vice Mayor.

Section 2-5 ACTING MAYOR.

If the Mayor and Vice Mayor are temporarily unable, unwilling, or unavailable to perform the duties of Mayor, the Council shall appoint one of its members to act as Mayor until the Mayor or Vice Mayor can resume the duties or until the Council selects a Mayor.

Section 2-6 COUNCIL TO BE JUDGE OF COUNCILMEMBER QUALIFICATIONS.

The Council is the judge of its members and shall judge the elections, qualifications and returns of its members pursuant to A.R.S. § 9-234. Councilmembers, candidates, and appointees for Town elected or appointed office shall comply with all applicable federal, state, and local laws, rules, and regulations, including laws governing standards of conduct for public officers, conflicts of interest, and open meetings, as applicable.

Section 2-7 SALARIES OF COUNCILMEMBERS.

The Council may set an annual salary, payable in equal monthly installments, as compensation for Councilmembers during their respective terms of office. The amount of any salary may be increased or decreased by resolution; provided, however, that no increase or decrease shall take effect in contravention of Article IV, Part 2, Section 17 of the Arizona Constitution.

Section 2-8 REGULAR MEETINGS.

The Council shall hold regular meetings on the first and third Wednesdays of each month at the hour of 6:00 p.m. Should a regular meeting date fall on a day designated by law as a legal holiday, the meeting shall be held at the same hour on the succeeding day that is not a holiday. The Council may, by motion, cancel or reschedule any meeting. Notice of a change of any meeting place, date or time shall be given as required by law.

(Adopted by Ordinance 2025-01, on October 1, 2025)

Section 2-9 SPECIAL MEETINGS.

Special meetings of the Council may be called by the Mayor or Town Manager, or upon the request of three Councilmembers submitted to the Town Manager. Notice of a special meeting shall be given to all Councilmembers and shall be posted as required by law. Except in the case of an actual emergency, a special meeting shall not be held earlier than twenty-four (24) hours after lawful notice is given and posted. In the case of an actual emergency, a meeting may be held upon such notice as is appropriate under the circumstances, and only business directly related to

the emergency may be considered or acted upon.

(Amends Ordinance 2025-01, adopted on October 1, 2025)

Section 2-10 RULES OF PROCEDURE; MINUTES.

The Council shall, by appropriate action, determine its own rules and order of business and agenda requirements subject to state law and this Code. The Town shall keep minutes of its public proceedings, which shall be open to public inspection.

Section 2-11 QUORUM; AYES AND NAYS.

A majority of the Council shall constitute a quorum. Unless a greater vote is required by state law, this Code, ordinance, or applicable rules of procedure, action of the Council requires the affirmative vote of a majority of the Councilmembers present at a meeting at which a quorum exists. The vote on any question shall be by ayes and nays or by roll call vote and shall be entered in the minutes as required by law. At the request of any Councilmember, a roll call vote shall be taken. The vote may be taken by electronic device.

Section 2-12 CONSIDERATION OF PETITIONS.

Any resident of the Town may appear before the Council at any regular meeting and present a written petition during the call to the public, if a call to the public is included on the agenda. The Council may refer the matter to the Town Manager for further consideration.

Section 2-13 INTERFERENCE WITH ADMINISTRATION AND CONTRACTS.

2-13-1. *Interference with Town Manager.* Except as otherwise provided in this Code, neither the Mayor, Vice Mayor, nor any Councilmember shall interfere with the execution of the Town Manager's powers and duties, or order, directly or indirectly, the employment, appointment, or removal of any person by the Town Manager. Except for the purposes of inquiry, the Council shall deal with the administrative service under the Town Manager solely through the Town Manager, and neither the Mayor, Vice Mayor, nor any Councilmember shall give orders to any subordinate of the Town Manager, either publicly or privately.

2-13-2. *Communications with Town Manager.* Nothing in this Section shall be construed to prohibit the Mayor, Vice Mayor, any Councilmember, or the Council from asking questions of, requesting information from, or expressing views or concerns to the Town Manager regarding Town affairs, provided that such communications do not direct or interfere with the appointment, employment, discipline, or removal of Town employees, direct the work of any subordinate of the Town Manager, interfere with the Town Manager's powers and duties, or violate state law.

2-13-3. *Improper Influence in Contracts, Rights, or Privileges.* No member of the Council, member of any board, commission, or committee, officer, or employee of the Town shall use or attempt to use the person's official position to improperly influence the award of any contract, or the granting of any right, privilege, license, permit, approval, franchise, or other benefit by the Town. This Subsection does not prohibit a person from providing general information regarding Town procedures, referring a person to appropriate Town staff, participating in a public meeting or public process, or performing duties authorized by state law, this Code, Town procurement rules, or direction of the Council or Town Manager.

Section 2-14 FINANCIAL DISCLOSURE STATEMENTS.

Each Councilmember and each candidate for Council shall file, by January 31 of each year, a financial disclosure statement on a form provided by the Town Clerk and setting forth the information required by resolution of the Council.

Section 2-15 ORDINANCES.

2-15-1. *Attorney Review.* All ordinances, resolutions and contract documents shall, before presentation to the Council, have been reviewed as to form by the Town Attorney.

2-15-2. *Introduction and Presentation.* Ordinances, resolutions, and other matters or subjects requiring action by the Council shall be introduced and sponsored by a member of the Council, except that the Town Attorney or the Town Manager may present ordinances, resolutions and other matters or subjects to the Council.

2-15-3. *Reading by Title.* All ordinances may be read by title only unless the Council, by majority vote, requires reading in full.

2-15-4. *Single Subject.* Each ordinance may have only one subject, the nature of which is expressed in the title.

2-15-5. *Effective Date; Emergency Measures.* Except as otherwise provided by state law or by the ordinance, the effective date of an ordinance shall be calculated in accordance with A.R.S. § 19-142. An emergency measure necessary for the immediate preservation of the peace, health, or safety of the Town may become effective sooner only if it states in a separate Section the reason for the emergency and is approved by the affirmative vote of three-fourths of all members of the Council.

2-15-6. *Signature; Attestation.* Every ordinance passed by the Council shall be signed by the Mayor or, in the Mayor's absence or inability to act, by the Vice Mayor, and attested by the Town Clerk.

ARTICLE 3 - BOARDS, COMMITTEES, AND COMMISSIONS

SECTIONS:

- 3-1: GENERAL PROVISIONS**
- 3-2: BOARD OF APPEALS**
- 3-3: PLANNING AND ZONING COMMISSION**
- 3-4: BOARD OF ADJUSTMENT**
- 3-5: PARKS AND RECREATION ADVISORY BOARD**
- 3-6: YOUTH ADVISORY BOARD**
- 3-7: CITIZEN BUDGET COMMITTEE**

Section 3-1 GENERAL PROVISIONS.

3-1-1. *Creation; Advisory Capacity.*

3-1-1-1. *Creation.* The Council may create the boards, commissions, and committees, standing or special, as it deems necessary. In addition, the Council may provide aid and assistance from the administrative staff of the Town to any board, commission, or committee as may be necessary.

3-1-1-2. *Advisory Capacity.* Any board, commission, or committee created by the Council shall be responsible to the Council and shall function in an advisory capacity to the Council, unless otherwise required by law to act in a quasi-judicial capacity.

3-1-1-3. *Service at Will; Dissolution.* Any board, commission, or committee created by the Council shall serve at the will of the Council and may be dissolved by the Council at any time that the Council determines that the board, commission, or committee has fulfilled the function for which it was created, or that its advice and service are no longer needed by the Council.

3-1-1-4. *Bodies Established or Authorized; Activation.* The boards, commissions, and committees established or authorized by this Article include the Board of Appeals, Planning and Zoning Commission, Board of Adjustment, Parks and Recreation Advisory Board, Youth Advisory Board, and the Citizen Budget Committee. Except where otherwise required by state law, this Code, ordinance, resolution, or other action of the Town Council, the inclusion of a board, commission, or committee in this Article does not require the immediate appointment of members, commencement of meetings, allocation of funding, or activation of the body. The Council may activate, defer activation of, modify, suspend, or dissolve any advisory board, commission, or committee as the Council determines appropriate, subject to applicable law.

3-1-2. *Applicability; Specific Provisions Control.* The provisions of Section 3-1 apply generally to boards, commissions, and committees of the Town. In the event of any inconsistency, the provisions of Section 3-1 shall be construed as general provisions and shall be subject to any more specific state law, ordinance, resolution, rule, or other provision governing the particular board, commission, or committee.

3-1-3. *Membership.*

3-1-3-1. *Number of Members.* All boards, commissions, and committees of the Town shall have seven members, unless a motion, resolution, or ordinance creating the board, commission, or committee specifies a different number of members.

3-1-3-2. *Appointment Considerations.* The Council shall, in making the appointment, take into consideration each person's knowledge, background, interest, experience, and availability to perform the work and duties of the board, commission, or committee.

3-1-3-3. *Concurrent Service.* No member of any board, commission, or committee may concurrently serve on any other board, commission, or committee of the Town, unless otherwise authorized by the Town Council.

3-1-3-4. *Residency; Compensation; Staff Support.* All members shall be residents of the Town and, if eighteen (18) years of age or older, registered voters, unless a motion, resolution or ordinance creating a board, commission, or committee specifies otherwise, and shall serve without pay or compensation, except that members shall be reimbursed for their actual and necessary expenses incurred in the performance of their official duties, provided that the expenses are approved by the Council prior to being incurred. Town employees or appointed officers shall not be eligible for appointment to any board, commission, or committee, but may be requested to provide staff support thereto.

3-1-3-5. *Councilmember Liaisons.* The Council may designate one or more Councilmembers to serve as a liaison to any board, commission, or committee. A Councilmember liaison shall not be a member of the board, commission, or committee, shall not count toward a quorum, and shall not vote unless the Councilmember has been separately appointed as a voting member of the body as authorized by law. A Councilmember liaison may attend meetings, facilitate communication between the body and the Council, and provide information regarding Council priorities, but shall not direct the body, Town staff, or the administrative work of the Town except as authorized by the Council, this Code, or state law.

3-1-4. *Appointments.*

3-1-4-1. *General Appointment Process.* Members shall be appointed by the Council unless otherwise provided by state law, this Code, or the action creating or governing the body. For a newly created board, commission, or committee consisting of seven regular voting members, each Councilmember may nominate one person for appointment, subject to approval by the Council. The Council shall determine the appointment process for bodies with fewer or more than seven regular voting members and for appointments of alternate, youth, liaison, or non-voting members.

3-1-4-2. *Vacancies.* Unless otherwise provided by state law, this Code, or the action creating or governing the body, a vacancy on a board, commission, or committee shall be filled by appointment of the Council in a manner determined by the Council. A person appointed to fill a vacancy shall serve for the remainder of the unexpired term.

3-1-4-3. *Alternates.* The Council may appoint alternates to serve on boards, commissions, and committees. An alternate does not sit as a member of the board, commission, or committee and may not deliberate or vote unless a vacancy has occurred and the alternate has filled that vacancy. For purposes of this Subsection, a vacancy occurs only when a member's office has become vacant and does not include a temporary absence, recusal, disqualification, or inability to attend a meeting. If the Council appoints more than one alternate for a particular board, commission, or committee, the Council shall designate the alternates as first alternate, second alternate, and so on. Unless otherwise provided by state law, this Code, or the action creating or governing the body, upon the occurrence of a vacancy, the first available alternate shall fill the vacancy for the remainder of the unexpired term without further Council action.

3-1-5. *Term of Office.*

3-1-5-1. *Terms.* Unless otherwise provided by state law, this Code, or the action creating or governing the body, an appointment shall be for a term of three (3) years. The term of office shall begin on the effective date of appointment or on such other date as the Council specifies in the appointing action.

3-1-5-2. *Initial Staggered Terms.* Notwithstanding Subsection 3-1-5-1, and unless otherwise provided by state law, this Code, or the action creating or governing the body, the Council may designate shorter initial terms as necessary to create staggered terms. For a seven-member board, commission, or committee, the Council may designate three members to serve initial one-year terms, two members to serve initial two-year terms, and two members to serve initial three-year terms. After the initial staggered terms, each appointment shall be for a three-year term.

3-1-5-3. *Holdover Service.* Each member shall serve until the member's successor is duly appointed and qualified.

3-1-6. *Removal.*

3-1-6-1. *Removal by Council.* Unless otherwise provided by state law, this Code, or the action creating or governing the body, any member of a board, commission, or committee may be removed before the expiration of the member's term by majority vote of the Town Council at a regular or special meeting at which a quorum is present, provided that the removal is listed on the agenda as a regular item for consideration and action.

3-1-6-2. *Vacancies; Grounds for Removal.* Unless otherwise provided by state law, this Code, or the action creating or governing the body, and without limiting the Council's authority under Subsection 3-1-6-1, any one of the following may constitute grounds for removal or, if applicable, create a vacancy to be filled as provided in Section 3-1-4-2:

- (1) Any unexcused absence from three consecutive regular meetings of the board, commission, or committee;
- (2) Ceasing to be a resident of the Town;
- (3) A judicial determination that the member is incapacitated or unable to perform the duties of office;
- (4) Conviction of a felony or of an offense involving a violation of the member's official duties;
- (5) A violation of the Town's Code of Ethics, as determined by the Council.

3-1-7. *Duties.*

3-1-7-1. *Powers and Duties.* Each board, commission, or committee shall have the powers and duties as prescribed by state law pertaining to the board, commission, or committee, this Section, and as prescribed by the Council.

3-1-7-2. *Reports and Recommendations.* When a public hearing is conducted by a board, commission, or committee, it shall make a written report and recommendation on the matters to the Council within fifteen (15) days after completing its hearing. If the Council requests an immediate report, the board, commission, or committee shall make its report as soon as practicable after the request.

3-1-7-3. *Advisory Recommendations.* The Council may request reports and recommendations from a board, commission, or committee before acting on matters within that body's advisory jurisdiction. Unless otherwise required by state law, this Code, the Zoning Ordinance, or the action creating or governing the body, recommendations are advisory only and are not binding on the Council.

3-1-7-4. *Referrals.* The Mayor, Council, or Town Manager shall have the right to refer matters within the jurisdiction of the board, commission, or committee for consideration, report and recommendation.

3-1-8. *Officers.* Each board, commission, or committee shall elect from among its members a Chairperson, Vice-Chairperson, and such other officers as it deems necessary at its first meeting after the initial appointment of members and at the first meeting of each calendar year thereafter, unless state law, this Code, or a Town ordinance establishes a different procedure for a specific board, commission, or committee.

3-1-9. *Temporary Presiding Officer.*

3-1-9-1. *Selection.* If both the Chairperson and Vice-Chairperson of a board, commission, or committee are absent or temporarily unable to preside, the staff liaison shall call the meeting to order and call for the selection of a temporary presiding officer. The members present shall select a temporary presiding officer by majority vote. While presiding, the temporary presiding officer has the powers and duties of the Chairperson.

3-1-9-2. *Relinquishment of Chair.* Upon the arrival of the Chairperson or Vice-Chairperson, the temporary presiding officer shall relinquish the chair upon the conclusion of the business then before the board, commission, or committee.

3-1-10. *Meetings.*

3-1-10-1. *Regular Meetings.* Each board, commission, or committee may establish a regular meeting schedule in consultation with Town staff and subject to state law, this Code, Council direction, and the availability of Town facilities, staffing, and other resources.

3-1-10-2. *Special Meetings.* Special meetings of a board, commission, or committee may be called by the Chairperson or, in the Chairperson's absence, by the Vice-Chairperson. A special meeting may also be called at the request of three members of the board, commission, or committee. A special meeting shall not be held earlier than twenty-four (24) hours after notice and agenda posting, unless otherwise permitted by state law.

3-1-10-3. *Notice and Agendas.* Notice of meetings shall be given, and agendas shall be posted, as required by state law and this Code.

3-1-11. *Voting.*

3-1-11-1. *Duty to Vote; Abstentions.* All members of boards, commissions, and committees in attendance at a duly called meeting shall vote on matters requiring formal action, unless the member declares a conflict of interest, the issue involves the conduct of that member, or abstention is otherwise required or permitted by state law, this Code, or the rules governing the body. A member who declares a conflict of interest shall take no part in the deliberations or vote on the matter. An abstention or failure to vote shall be recorded in the minutes.

3-1-11-2. *Chairperson; Motions; Voting.* The Chairperson shall preside over meetings. The Chairperson may make and second motions and shall have a voice and vote in all proceedings.

3-1-12. *Fees.* The Council may establish fees for services, applications, permits, or other matters within the jurisdiction of a board, commission, or committee. A board, commission, or committee may recommend fees to the Council, but no recommendation shall be required for the Council to establish, amend, or repeal any fee.

Section 3-2 BOARD OF APPEALS.

3-2-1. *Creation.* There is hereby established a Board of Appeals. The Board of Appeals shall be governed by state law, this Article, Article 16 of this Code, and any applicable building or technical Codes adopted by the Town. To the extent the general provisions of Section 3-1 conflict with the specific provisions of Article 16 of this Code or an applicable building or technical Code governing the Board of Appeals, the specific provisions shall control.

Section 3-3 PLANNING AND ZONING COMMISSION.

3-3-1. *Creation.* There is hereby established a Town Planning and Zoning Commission pursuant to A.R.S. § 9-461.02, consisting of seven members appointed by the Council. The Planning and Zoning Commission shall be governed by state law, this Article, and Article 17 of this Code. To the extent Section 3-1 conflicts with the Town of San Tan Valley Zoning Ordinance provisions governing the Planning and Zoning Commission, the Zoning Ordinance shall control.

Section 3-4 BOARD OF ADJUSTMENT.

3-4-1. *Creation.* There is hereby established a Town Board of Adjustment pursuant to A.R.S. § 9-462.06, consisting of five members. The Board of Adjustment shall be governed by state law, this Article, and Article 17 of this Code. To the extent Section 3-1 conflicts with the Town of San Tan Valley Zoning Ordinance provisions governing the Board of Adjustment, the Zoning Ordinance shall control.

Section 3-5 PARKS AND RECREATION ADVISORY BOARD.

3-5-1. *Creation.* There is hereby authorized a Parks and Recreation Advisory Board, subject to activation by the Town Council as provided in Section 3-1-1-4.

3-5-2. *Membership.*

3-5-2-1. *Composition.* The Parks and Recreation Advisory Board shall consist of seven members, two alternates, and one youth liaison appointed by the Town Council. In making appointments, the Council may seek to include, when practicable, one business owner, one resident involved in the arts, one resident involved in music, one resident involved in library services or the Friends of the Library, one resident involved in youth sports, and two residents of the Town at large. The youth liaison shall be selected by vote of the Youth Advisory Board, subject to appointment by the Town Council.

3-5-2-2. *Quorum; Action.* Four of seven members of the Board shall constitute a quorum for conducting business, and action may be taken upon a majority vote of the quorum.

3-5-2-3. *Officers.* The Board shall elect a Chairperson and Vice-Chairperson, who shall serve one-year terms unless otherwise determined by the Board.

3-5-2-4. *Committees; Rules.* The Board may organize committees and adopt rules and procedures as necessary to accomplish its purpose.

3-5-2-5. *Staff Support.* The Town Manager or designee and Town staff shall serve as information resources only and not as a voting member of the Board.

3-5-3. *Powers and Duties.* The Parks and Recreation Advisory Board shall have the following powers and duties.

3-5-3-1. *Parks, Recreation, Arts, Culture, and Library Facilities.* Advise the Council and the Town Manager or designee on the rules and regulations related to the operations, use, care and maintenance of areas and structures owned, leased or otherwise acquired by the Town for use as parks, recreation, arts, culture, and library facilities.

3-5-3-2. *Park System and Programming.* Advise the Council and assist the Town Manager or designee in the development and continued plan for the Town park system, programming for arts, culture, library and recreation.

3-5-3-3. *Budget Priorities.* Advise the Council and the Town Manager or designee in establishing general priorities at budget time for those items, other than administrative functions, relating to park development and programming for arts, culture, library and recreation.

3-5-3-4. *Gifts, Bequests, and Devises.* Recommend the receipt, acceptance, or acquisition of gifts, bequests, devises, and other real or personal property in the name of the Town for parks, arts, culture, library, and recreation purposes, subject to the terms of the gift and final action by the Council.

3-5-3-5. *Reading and Math Readiness Programs.* Advise the Town Manager or designee on programs to assist with reading and math readiness through library and youth programming.

3-5-3-6. *Public Relations.* Support and participate in public relations efforts to better inform the public of Town programs, services, and activities relating to parks, recreation, arts, culture, library services, and youth programming.

3-5-3-7. *Town Events and Programs.* Support and participate in planned events, programs, and festivals sponsored, organized, or supported by the Town.

3-5-3-8. *Arts and Culture Promotion.* Advance and promote art and culture at all public events, coordinate with the private and public sector to promote arts and cultural excellence as a tool for the encouragement of economic development, business relations and tourism.

3-5-3-9. *Public Art; Cultural and Historical Heritage.* Organize and promote public art that celebrates the Town and its unique cultural and historical heritage.

3-5-3-10. *Healthy Living Initiatives.* Organize and promote a healthy living initiative for adults and youth, including nutritious diets and appropriate exercise habits.

Section 3-6 YOUTH ADVISORY BOARD.

3-6-1. *Creation.* There is hereby authorized a Youth Advisory Board, subject to activation by the Town Council as provided in Section 3-1-1-4.

3-6-2. *Membership.*

3-6-2-1. *Composition.* The Youth Advisory Board shall consist of seven voting members, two alternates, and a citizen liaison.

3-6-2-2. *Terms; Vacancies.* Members of the Youth Advisory Board shall serve two-year terms. For the initial appointments, the Council shall designate three voting members to serve initial one-year terms, with the remaining voting members serving initial two-year terms. Terms shall expire on October 1. A vacancy in a voting member position shall be filled by the first alternate member, followed by the second alternate member if the first alternate is unavailable or has already filled a vacancy. An alternate who fills a vacancy shall serve for the remainder of the unexpired term. Members shall serve until their successors are appointed.

3-6-2-3. *Eligibility.* All members must attend high school within the Town limits, be between fourteen (14) and eighteen (18) years of age, or be in the ninth (9th) through twelfth (12th) grade. Members may serve until their nineteenth (19th) birthday.

3-6-2-4. *Employment Eligibility.* Youth Advisory Board members may be eligible for employment with the Town.

3-6-2-5. *Citizen Liaison Background Check.* A person appointed to serve as citizen liaison to the Youth Advisory Board shall be required to successfully complete background screening in a form approved by the Town Manager or designee and consistent with applicable law before serving in that capacity. The required screening may include criminal history screening, sex offender registry review, reference checks, fingerprinting, or other screening measures determined appropriate by the Town, to the extent authorized by law. Unless otherwise provided by Town policy or direction of the Town Council, the Town shall be responsible for any Town-required background screening costs.

3-6-3. *Powers and Duties.* The Youth Advisory Board shall have the following powers and duties.

3-6-3-1. *Advisory Role.* The Youth Advisory Board shall act as an advisory body to the Town Council and, as appropriate, Town boards, commissions, and committees on matters affecting youth in the Town.

3-6-3-2. *Youth Activities and Leadership.* The Youth Advisory Board shall make recommendations regarding policies, priorities, and plans for promoting, advancing, and maintaining youth activities and encouraging youth leadership.

3-6-3-3. *Annual Goals and Projects.* The Youth Advisory Board shall establish annual goals and identify Youth Advisory Board projects, subject to approval by the Town Council when required.

3-6-3-4. *Minutes.* The Youth Advisory Board shall review and approve the official minutes of Youth Advisory Board meetings.

3-6-3-5. *Public Relations and Outreach.* The Youth Advisory Board shall establish, support, and participate in public relations and outreach activities to better inform the public of youth programs, services, and views.

3-6-3-6. *Meetings.* The Youth Advisory Board shall hold regular meetings as determined by the Youth Advisory Board or as otherwise required by the Council.

Section 3-7 CITIZEN BUDGET COMMITTEE.

3-7-1. *Creation.* There is hereby authorized a Citizen Budget Committee, subject to activation by the Town Council as provided in Section 3-1-1-4.

3-7-2. *Review of Proposed Annual Budget.* If activated, the Citizen Budget Committee may review the proposed annual budget and provide advisory recommendations to the Town Council prior to adoption of the annual budget.

3-7-3. *Membership; Procedures; Advisory Capacity.* The membership, selection process, term, scope of review, meeting schedule, and other operating procedures of the Committee shall be established by resolution of the Town Council at the time of activation. The Committee shall serve in an advisory capacity only and shall have no authority to approve, amend, delay, or reject the Town budget.

ARTICLE 4 – ADMINISTRATION

SECTIONS:

- 4-1: OFFICERS
- 4-2: TOWN MANAGER
- 4-3: TOWN CLERK
- 4-4: TOWN ATTORNEY
- 4-5: FINANCE DIRECTOR
- 4-6: TOWN ENGINEER
- 4-7: CHIEF OF POLICE
- 4-8: TOWN MAGISTRATE

Section 4-1 OFFICERS.

4-1-1. *Offices Created.* There are hereby created the offices of Town Manager, Town Clerk, Town Attorney, Finance Director, Town Engineer, Chief of Police, Town Marshal, and Town Magistrate. Unless otherwise required by state law, including A.R.S. § 9-237, as amended, the creation of an office under this Article does not require the Town to fill the office at all times.

4-1-1-1. *Council-Appointed Officers.* The Town Manager, Town Clerk, and Town Attorney shall be appointed by the Town Council and shall serve at the pleasure of the Council. If the Office of Town Magistrate is filled, the Town Magistrate shall be appointed by the Town Council and shall serve for a term of not less than two (2) years, unless a longer term is provided by appointment, agreement, or contract.

4-1-2. *Additional Officers; Appointment and Removal.* The Town Manager may appoint and remove such additional administrative officers, department heads, employees, consultants, or service providers as the Town Manager deems necessary for the efficient administration of the Town, except where appointment or removal is expressly reserved to the Town Council.

4-1-3. *Bond.* The Town Council may require each officer of the Town to give bond for the due discharge of the officer's duties in such amount and with such security as the Town Council may approve by resolution. The Town shall pay the costs of such bond.

4-1-4. *Additional Powers and Duties.* In addition to any powers and duties prescribed in this Code, each officer shall have such further powers and perform such further duties as may be provided by state law, this Code, ordinance, resolution, contract, appointment, job description, or other lawful action. Officers appointed by the Town Manager shall also perform such duties as may be assigned by the Town Manager, consistent with state law, this Code, and any applicable ordinance, resolution, contract, or Council-approved policy.

Section 4-2 TOWN MANAGER.

4-2-1. *Appointment; Removal.* The Town Manager shall be appointed by a majority vote of the Town Council. The Town Manager serves at the pleasure of the Council and may be removed for any reason, with or without cause, by a majority vote of the Town Council.

4-2-2. *Qualifications.* The Town Manager shall be chosen on the basis of executive and administrative qualifications and knowledge of accepted practice with respect to the duties of the office as set forth in this Code.

4-2-3. *Powers and Duties.* The Town Manager shall:

4-2-3-1. Execute, on behalf of the Town Council, general administrative supervision and control of the affairs of the Town.

4-2-3-2. Attend meetings of the Town Council and report on any matter concerning the affairs of the departments, boards, committees, commissions, services, or activities under the Town Manager's supervision that, in the judgment of the Town Manager, should be brought to the Council's attention.

4-2-3-3. Appoint and, when necessary, suspend, discipline, or remove all employees and administrative officers of the Town, except those officers whose appointment or removal is expressly reserved to the Town Council. All appointments, suspensions, discipline, and removals shall be made in accordance with state law, this Code, the Town's personnel rules and regulations, and other applicable Town ordinances, resolutions, policies, and procedures.

4-2-3-4. Coordinate, on behalf of the Town, the administrative functions and operations of the Town's departments, boards, divisions, and services, and carry out the policies, rules, regulations, ordinances, and other lawful directives adopted by the Council relating to the administration of Town affairs.

4-2-3-5. Cause to be prepared and submitted by each department, board, division or service of the Town, itemized annual estimates of expenditures required for capital outlay, salaries, wages and miscellaneous operating costs; to tabulate the same into a preliminary consolidated municipal budget and submit the same to the Town Council annually, with recommendations as to any increases, decreases, cancellations, transfers, or changes in any of the items included in the Manager's budget.

4-2-3-6. Supervise the expenditures of all departments, divisions, or services of the Town government in accordance with state law, this Code, the adopted budget, and other ordinances, resolutions, policies, and procedures of the Town. The Town Manager may approve administrative budget adjustments within the limits of the adopted budget and applicable Town policies, but any transfer between budget items requiring governing body approval under state law shall be submitted to the Town Council for consideration and action.

4-2-3-7. Authorize, approve, and execute grants and all documentation required to implement the grant with a gross value of Town resources not to exceed seventy-five thousand dollars (\$75,000.00) unless the law otherwise requires Town Council approval.

4-2-3-8. Investigate the affairs of the Town and any department or division thereof. Investigate all complaints in relation to matters concerning the administration of the Town.

4-2-3-9. See that this Code, Town ordinances, and applicable laws are faithfully administered and enforced through the appropriate Town officers, employees, departments, contractors, or service providers.

4-2-3-10. Devote such time to the discharge of official duties as directed by the Town Council.

4-2-3-11. Make or cause to be made and keep a current inventory of all personal and real property owned by the Town. The Town Manager may authorize or recommend the purchase of machinery, equipment, supplies, or other property in accordance with state law, this Code, the adopted budget, and applicable Town procurement policies and procedures.

4-2-3-12. Exercise general oversight over all public buildings, public parks, and other public property which are under the control and jurisdiction of the Town.

4-2-3-13. Attend meetings of boards, commissions, committees, or task forces created by the Town Council, at the Town Manager's discretion or as directed by the Town Council. The Town Manager may address any such body on matters within the Town Manager's authority or relating to the administration of Town affairs.

4-2-3-14. Perform such other duties as may be required by the Town Council, consistent with state law, this Code, and Town ordinances.

4-2-4. *Employment Agreements.* Nothing in this Section limits the authority of the Town Council to enter into an employment agreement with the Town Manager establishing additional terms and conditions of employment, provided that the agreement is consistent with state law and this Code.

4-2-5. *Councilmember Ineligibility.* No member of the Council shall be eligible to be appointed to the office of Town Manager until one (1) year has elapsed after such member has ceased to be a member of the Council.

4-2-6. *Appointment and Removal Authority.* Neither the Town Council nor any Councilmember shall direct or attempt to influence the Town Manager or any subordinate of the Town Manager regarding the appointment, discipline, suspension, or removal of any officer or employee whose appointment, discipline, suspension, or removal is within the Town Manager's authority. This Subsection does not limit the authority of the Town Council to adopt personnel rules, approve budgets, establish positions, evaluate the Town Manager, or exercise any appointment or removal authority expressly reserved to the Town Council.

4-2-7. *Town Council-Employee Relations.* Except for the purpose of inquiry, the Town Council and its members shall deal with the administration solely through the Town Manager and neither the Town Council nor any member thereof shall give orders to any subordinates of the Town Manager, either publicly or privately.

4-2-8. *Other Officers and Departments.* The Town Manager may create, consolidate, or eliminate such employees, offices, divisions, and departments as the Town Manager deems necessary for the efficient operation of the Town, provided that such action is within the annual budget approved by the Town Council.

4-2-8-1. *Organizational Chart.* The Town Manager shall maintain an organizational chart that accurately reflects the organizational structure under which Town services are performed. The Town Manager shall present the organizational chart to the Town Council annually as part of the budget process. If the Town Manager makes changes to the organizational structure during the year, the Town Manager shall update the organizational chart accordingly.

4-2-9. *Contracted Officers.* The Town may, when it is deemed to be in the best interest of the Town, contract with qualified individuals or firms, in lieu of employing individuals, for the provision of services required by this Code, state law, or other authority.

4-2-10. *Contracting Authority.* The Town Manager is authorized to negotiate and execute contracts, applications, and agreements for the purchase of goods and services or to secure intergovernmental funding on behalf of the Town without prior Town Council approval in amounts of seventy-five thousand dollars (\$75,000) or less, provided the costs of such agreements are authorized in the current budget, and subject to the following conditions:

4-2-10-1. All contracts, applications, and agreements shall be reviewed and approved as to form by the Town Attorney prior to execution.

4-2-10-2. All goods and services that are the subject of such contracts, applications, and agreements shall be procured in compliance with the Town Code.

4-2-10-3. No contract, application, or agreement may be executed under the authority of this Section which would require Town Council to appropriate budgetary funds in any subsequent fiscal year.

4-2-10-4. The Town Manager may delegate to an Assistant Town Manager, Deputy Town Manager, and department directors portions of these responsibilities as they relate to purchasing as set forth above.

4-2-10-5. The Town Manager may delegate contracting authority to the Assistant Town Manager or Deputy Town Manager for contracts within the departments for which the Assistant Town Manager or Deputy Town Manager is responsible, provided the costs of such contracts are authorized in the current budget and are within the Town Manager's spending authority.

Section 4-3 TOWN CLERK.

4-3-1. *Appointment; Removal.* The Town Clerk shall be appointed by a majority vote of the Town Council. The Town Clerk serves at the pleasure of the Council and may be removed for any reason, with or without cause, by a majority vote of the Town Council.

4-3-2. *Qualifications.* The Town Clerk shall be chosen on the basis of executive, professional, and administrative qualifications and knowledge of accepted practice with respect to the duties of the office as set forth in this Code.

4-3-3. *Powers and Duties.* The Town Clerk shall:

4-3-3-1. Keep a true and correct record of all business transacted by the Council and any other records that either pertain to the business of the Town or that the Town Council directs. The Town Clerk shall number, plainly label, and file separately in a suitable physical or electronic format, all resolutions, ordinances, notices, deeds, surveys, leases, paid and unpaid vouchers, inventories, letters, orders, and other documents of whatever nature.

4-3-3-2. Keep convenient for public inspection all public records and public documents under the Town Clerk's control, as provided by state law.

4-3-3-3. Prepare, or cause to be prepared, all minutes of official Town Council, boards, commissions, and committee proceedings and ensure their correctness and accuracy.

4-3-3-4. Process, record, file, publish, and, if required by state law, post all ordinances, resolutions, budgets, and notices that may be adopted or approved by the Town Council.

4-3-3-5. Serve as the Town election official and perform those duties required by state law.

4-3-3-6. Issue, or cause to be issued, all licenses that may be prescribed by state law or this Code.

4-3-3-7. Serve as the custodian of the Town seal and affix its impression on documents whenever required.

4-3-3-8. Perform such other duties and functions as may be conferred upon the Town Clerk by the Town Council and as may be required by state law or ordinance.

4-3-4. *Scrivener's Errors.* The Town Clerk is hereby authorized to correct non-substantive scrivener's errors in the Town Code and in ordinances and resolutions adopted by the Town Council without the need for readoption of the Town Code provision, ordinance, or resolution. For purposes of this Section, a scrivener's error includes one or more of the following:

- 4-3-4-1. Misspelling.
- 4-3-4-2. Grammatical error.
- 4-3-4-3. Numbering errors or adjustments.
- 4-3-4-4. Cross-referencing error.
- 4-3-4-5. Inconsistency with the rules of style adopted for the Town Code.

4-3-5. *Documentation of Corrections.* A scrivener's error correction made under the authority granted by this Section shall be documented as follows:

- 4-3-5-1. A correction to the Town Code shall be noted in a dated explanatory note or history note compiled as necessary for each Article and Section of the Town Code.
- 4-3-5-2. A correction to an ordinance or resolution shall be accompanied by a scrivener's note on or attached to the corrected ordinance or resolution.

Section 4-4 TOWN ATTORNEY.

4-4-1. *Appointment; Removal.* The Town Attorney shall be appointed by a majority vote of the Town Council for an indefinite term. The Town Attorney serves at the pleasure of the Council and may be removed or terminated for any reason, with or without cause, by a majority vote of the Town Council.

4-4-2. *Qualifications; Contract Services.* The Town Council may appoint an individual attorney or retain a law firm to provide Town Attorney services. The individual attorney, or attorneys designated by the retained law firm to provide legal services on behalf of the Town, shall be licensed to practice law in the State of Arizona and shall be chosen on the basis of professional qualifications and experience with municipal law or other legal matters relevant to the duties of the office. For purposes of this Code, references to the "Town Attorney" include an individual attorney appointed by the Town Council, a law firm retained by the Town Council to provide Town Attorney services, and attorneys designated by such law firm to provide legal services on behalf of the Town, subject to the terms of the applicable appointment, contract, or authorization.

4-4-3. *Powers and Duties.* The Town Attorney shall serve as the chief legal advisor to the Town and, either directly or through assistant attorneys, deputy attorneys, special counsel, prosecutors, contract attorneys, or other authorized designees, perform or coordinate the following legal services:

- 4-4-3-1. Attend meetings of the Town Council as requested by the Town Council, the Town Manager, or as otherwise necessary to provide legal advice.
- 4-4-3-2. Prepare or review all ordinances, resolutions, contracts, and similar documents before consideration by the Town Council.
- 4-4-3-3. Provide written or oral legal opinions when requested by the Town Council, the Town Manager, or authorized Town officials acting on behalf of the Town.
- 4-4-3-4. Attend to all suits and proceedings in which the Town is a party or has a legal interest; provided that the Town Council shall have control of all litigation involving the Town and may employ other attorneys to take charge of any litigation or to assist the Town Attorney.
- 4-4-3-5. Prosecute, or arrange for the prosecution of, criminal cases arising from violations of this Code and state law over which the Town's municipal court has jurisdiction.
- 4-4-3-6. Perform such other legal services and duties as may be assigned by the Town Council, required by law, or provided by contract.

4-4-4. *Authority to Settle Claims.* The Town Attorney is authorized to negotiate and settle on behalf of the Town claims and disputes brought against the Town, its officers, officials, and employees, subject to the following conditions:

4-4-4-1. The Town Attorney has investigated questions of liability and damages raised by the claim and has determined a reasonable dollar value of the claim.

4-4-4-2. The settlement is conditioned upon an appropriate written release by the claimant.

4-4-4-3. The settlement authority of the Town Attorney is limited as follows:

4-4-4-3-1. For claims against the Town that are covered by the Town's insurance or risk-pool coverage, the Town Attorney is authorized to pay any deductible or self-insured retention assessed by the insurance carrier, if such amount does not exceed twenty-five thousand dollars (\$25,000).

4-4-4-3-2. For claims presented to the Town or disputes involving the Town, the Town Attorney shall have authority to settle such claims and disputes for an amount not to exceed twenty-five thousand dollars (\$25,000). For easement and property acquisitions and condemnation actions initiated by the Town, the Town Attorney shall coordinate with the Town Engineer regarding the legal description, engineering purpose, and technical sufficiency of the acquisition or settlement.

4-4-4-4. Any settlement under this authority is subject to available budget appropriation and applicable insurance or risk-pool requirements.

4-4-4-5. Settlement of all other claims that cannot be resolved within the parameters set forth above shall be submitted to the Town Council for review and approval or denial.

4-4-4-6. The Town Attorney shall submit to the Town Council a quarterly report of all claims settled under this authority.

Section 4-5 FINANCE DIRECTOR.

4-5-1. *Appointment; Removal.* The Finance Director shall be appointed by the Town Manager and may be removed by the Town Manager with or without cause.

4-5-2. *Qualifications.* The Finance Director shall be chosen on the basis of executive, professional, and administrative qualifications and knowledge of accepted practice with respect to the duties of the office as set forth in this Code.

4-5-3. *Powers and Duties.* The Finance Director shall serve as the Chief Financial Officer of the Town and head of the Finance Department and shall:

4-5-3-1. Have charge of the administration of the financial affairs of the Town under the direction of the Town Manager.

4-5-3-2. Compile budget expense and revenue estimates for the Town Manager.

4-5-3-3. Maintain a general accounting system for the Town government and its offices, departments, and agencies.

4-5-3-4. Supervise and be responsible for the disbursement of Town monies; review and approve, before payment, bills, invoices, payrolls, demands, and other charges against the Town; and, with the advice of the Town Attorney when necessary, determine the regularity, legality, and correctness of such claims, demands, or charges to ensure that budget appropriations are not exceeded.

4-5-3-5. Administer or supervise the receipt, safekeeping, accounting, investment, and disbursement of Town monies in accordance with state law, this Code, the adopted budget, applicable Town financial policies and procedures, and authorization of the Town Council or Town Manager.

4-5-3-6. Coordinate the preparation of financial reports, audits, and other financial records as required by state law, this Code, or the Town Manager.

4-5-3-7. Perform such other functions and responsibilities as may be assigned by the Town Manager or prescribed by action of the Town Council.

Section 4-6 TOWN ENGINEER.

4-6-1. *Appointment; Removal.* The Town Engineer shall be appointed by the Town Manager and may be removed by the Town Manager with or without cause.

4-6-2. *Qualifications.* The Town Engineer shall be a professional engineer registered in the State of Arizona or engineering services shall be provided through a qualified firm or individual authorized to provide professional engineering services in the State of Arizona. The Town Engineer shall be chosen on the basis of professional, technical, executive, and administrative qualifications and knowledge of accepted engineering practices relating to the duties of the office as set forth in this Code.

4-6-3. *Powers and Duties.* The Town Engineer shall have charge of the Town streets, rights-of-way, sewers, water works, public improvements, drainage facilities, and other public infrastructure under the jurisdiction or control of the Town, and shall perform such duties as may be required by state law, this Code, Town ordinance, or the Town Manager.

Section 4-7 CHIEF OF POLICE.

4-7-1. *Appointment; Removal.* If the Town establishes or directly operates a police department, the Chief of Police shall be appointed by the Town Manager and may be removed by the Town Manager with or without cause, unless otherwise provided by state law, this Code, contract, or action of the Town Council.

4-7-2. *Qualifications.* The Chief of Police shall be chosen on the basis of professional, executive, administrative, and law enforcement qualifications and experience relevant to the duties of the office. If the Chief of Police exercises peace officer authority, the Chief of Police shall possess and maintain all certifications, qualifications, and authority required by state law.

4-7-3. *Powers and Duties.* If the Town establishes or directly operates a police department, the Chief of Police shall, under the direction of the Town Manager, direct and supervise the Police Department.

4-7-4. *Contracted Law Enforcement Services.* Nothing in this Section requires the Town to establish or directly operate a police department. The Town may provide law enforcement, public safety, detention, dispatch, animal control, Code enforcement support, or related services by intergovernmental agreement, contract, mutual aid arrangement, or other lawful arrangement approved by the Town Council. During any period in which law enforcement services are provided by another public agency or contractor, the duties described in this Section shall apply only to the extent consistent with the applicable agreement and state law.

4-7-5. *Town Marshal.* The Town Manager shall appoint the Town Marshal. The Town Marshal may be the Chief of Police, the Town Manager, another Town officer or employee, or another person designated by the Town Manager. The offices of Chief of Police and Town Marshal may be held by the same person or by separate persons, as determined by the Town Manager. If the Town establishes or directly operates a Police Department, the Chief of Police shall direct and supervise the Police Department as provided in this Section, and the appointment of a separate Town Marshal shall not limit or supersede the authority of the Chief of

Police unless expressly provided by Town Council action or written administrative assignment approved by the Town Manager. Appointment as Town Marshal does not authorize the appointee to exercise peace officer authority unless the appointee is properly certified or otherwise authorized to exercise such authority under state law. The Town Marshal shall perform only those duties assigned by state law, this Code, the Town Manager, or other lawful action.

Section 4-8 TOWN MAGISTRATE.

4-8-1. *Appointment; Duties.* If the Town appoints a Town Magistrate, the Town Magistrate shall be selected by the Town Council and shall perform the duties required by state law, this Code, and any applicable appointment, agreement, or contract.

4-8-2. *Court Services.* Nothing in this Section requires the Town to appoint a separate Town Magistrate if municipal court services are provided by intergovernmental agreement or other lawful arrangement approved by the Town Council.

ARTICLE 5 – FINANCE, PROCUREMENT, AND TAXATION

SECTIONS:

- 5-1: BUDGET PROCEDURES AND FISCAL MANAGEMENT**
- 5-2: PURCHASING AND PROCUREMENT**
- 5-3: ACCOUNTING AND AUDITS**
- 5-4: FEES AND CHARGES**
- 5-5: LOCAL TRANSACTION AND PRIVILEGE TAX/TAX CODE**
- 5-6: LEGAL CLAIMS AND PAYMENTS**

Section 5-1 BUDGET PROCEDURES AND FISCAL MANAGEMENT.

5-1-1. *Fiscal Authority.* The powers of the Town concerning budget, taxation, finance, and fiscal matters shall be exercised in accordance with the Arizona Constitution, state law, this Code, and applicable ordinances, resolutions, policies, and procedures of the Town.

5-1-2. *Fiscal Year.* The fiscal year of the Town shall commence on July 1 of each year and end on June 30 of the following year.

5-1-3. *Preparation of Budget Estimates.* The Town Manager shall prepare, or cause to be prepared, proposed budget estimates of the amounts required for the business and conduct of the affairs of the Town during the next fiscal year in connection with the Town's annual budget process and in a manner that allows the Town Council to comply with applicable state budget requirements.

5-1-4. *Submission of Proposed Budget.* The Town Manager shall submit to the Town Council the proposed budget estimates, together with the Town Manager's report and recommendations, in connection with the Town's annual budget process and in a manner that allows the Town Council to comply with applicable state budget requirements. The proposed budget may include, without limitation, estimates of probable expenditures for Town purposes, amounts required for debt service or outstanding indebtedness, expected revenues from all sources, and the probable amount, if any, required to be raised by taxation.

5-1-5. *Budget Adoption; Tax Levy.* The Town Council shall meet annually before fixing any tax levy and shall adopt a budget of the estimated amounts required to pay the expenses of conducting the business of the Town government for the ensuing fiscal year. The budget shall be prepared, considered, published, heard, adopted, and amended in the manner required by state law and in such detail as the Town Council deems advisable.

5-1-6. *Financial Policies.* The Town Council may adopt financial policies by resolution. The Town's financial policies shall govern the administration of Town finances to the extent consistent with state law, this Code, and the adopted budget.

Section 5-2 PURCHASING AND PROCUREMENT.

5-2-1. *Definitions.* The following words, terms, and phrases, when used in this Section, shall have the meanings ascribed to them in this Section, except where the context clearly indicates a different meaning.

Bid Mistake. A mistake contained in a bid that is clerical or mathematical in nature.

Construction. The process of building, altering, improving, or demolishing any public structure,

building, or other public improvement on public real property. It does not include the operation, maintenance, or repair of existing structures, buildings, or real property.

Contract. A written agreement with the Town for the procurement of supplies or services. The term includes, but is not limited to, fixed-price contracts, cost-reimbursement contracts, cost-plus-fixed-fee contracts, incentive contracts, contracts providing for the issuance of job orders or task orders, leases excluding real estate, rentals, maintenance agreements, letter contracts, purchase orders, and supplemental agreements relating to any of the foregoing.

Contractor. Any person having a contract with the Town.

Debarment. The disqualification of a provider of supplies or services from receiving invitations for bids or from receiving the award of a contract by the Town for a specified period of time, not to exceed two (2) years.

Purchasing Agent. The Town Manager or any officer or employee designated by the Town Manager to perform purchasing duties under this Section.

Quote. An informal oral or written offer to provide commodities or services to the Town.

Responsible Bidder or Vendor. A bidder or vendor that has the ability, capacity, experience, integrity, reliability, resources, and qualifications necessary to perform the contract or provide the supplies or services required.

Responsive Bid or Quote. A bid or quote that conforms in all material respects to the requirements of the solicitation or request.

5-2-2. *Purchasing Compliance.* No purchase or contract for services, payment for which is to be made from Town funds, shall be made except as provided in this Section and in accordance with the adopted Town budget.

5-2-3. *Standard Procurement Procedures.* Except as otherwise provided in this Section, purchases of commodities and contracts for services shall comply with the standard procurement thresholds set forth below. Proposed purchases shall not be divided, split, or otherwise structured for the purpose of avoiding the requirements of this Section.

5-2-3-1. *Purchases Under \$5,000.* Whenever any contemplated purchase of commodities or contract for services is for the sum of less than five thousand dollars (\$5,000), the purchasing agent may purchase the item as needed without further formality.

5-2-3-2. *Informal Quotes; \$5,000 to \$29,999.* Whenever any contemplated purchase of commodities or contract for services is for the sum of at least five thousand dollars (\$5,000) but not more than twenty-nine thousand nine hundred ninety-nine dollars (\$29,999), the purchasing agent shall solicit at least three (3) quotes for the item or service, which may be obtained orally or in writing. If fewer than three quotes are received after reasonable solicitation, the purchasing agent may proceed based on the quotes received. The purchasing agent may award the purchase or contract to the responsible vendor whose quote is determined to be most advantageous to the Town, considering price, responsiveness, availability, delivery, qualifications, experience, past performance, quality, compatibility, warranty, maintenance, life-cycle cost, and other factors relevant to the Town's needs.

5-2-3-3. *Written Quotes; \$30,000 to \$74,999.* Whenever any contemplated purchase of commodities or contract for services is for the sum of at least thirty thousand dollars (\$30,000) but not more than seventy-four thousand nine hundred ninety-nine dollars (\$74,999), the purchasing agent shall solicit at least three (3) written quotes for the item or service. If fewer than three written quotes are received after reasonable solicitation, the purchasing agent may proceed based on the

quotes received. The purchasing agent may award the purchase or contract to the responsible vendor submitting the lowest responsive quote.

5-2-3-4. Formal Published Bids; \$75,000 and More. Whenever any contemplated purchase of commodities or contract for services is for the sum of seventy-five thousand dollars (\$75,000) or more, the Town Clerk shall cause to be published at least once pursuant to A.R.S. § 39-204 a notice inviting bids, which notice shall be published at least fourteen (14) days before the date set for receipt of bids. The notice shall include a general description of the Sections to be purchased or services to be performed and the time and place for opening bids. In addition, the Town Clerk shall post the notice inviting bids at Town Hall and on the Town's website. Bids shall be submitted as designated in the notice or solicitation for bids. Any bid not received within the time allowed shall be rejected. The purchasing agent may award the purchase or contract to the lowest responsible bidder submitting a responsive bid, unless Town Council approval is required under this Code.

5-2-4. Special Procurement Rules and Transactions.

5-2-4-1. Grant-Funded Procurements. When applicable, procurements funded in whole or in part by federal or state grants shall comply with all applicable federal or state grant procurement requirements. The procurement requirements of this Section shall apply to grant-funded procurements except to the extent they conflict with applicable federal or state grant requirements, in which case the federal or state grant requirements shall control.

5-2-4-2. Sale of Personal Property. All sales of personal property valued at fifty thousand dollars (\$50,000) or more must be made to the highest bidder under terms that best serve the Town's interests.

5-2-4-3. Construction Projects. All contracts or agreements for planning, design, and construction of public works shall comply with Title 34, Arizona Revised Statutes. Contracts or agreements for construction of public improvements shall be procured and awarded in accordance with Title 34, Arizona Revised Statutes, including any applicable procedures for alternative project delivery methods. For job-order-contracting construction services, the maximum dollar amount of an individual job order is prescribed by the Town as four million dollars (\$4,000,000) pursuant to A.R.S. § 34-605(F)(1). Requirements shall not be artificially divided or fragmented to constitute a job order that satisfies this limitation.

5-2-5. Exceptions and Alternative Procurement Methods. The procurements and transactions listed in this Section are exempt from, or may be conducted through an alternative to, the standard procurement procedures in Section 5-2-3, to the extent set forth below. Unless otherwise provided in this Section, such procurements remain subject to applicable state law, the adopted Town budget, any required Town Council approval, and applicable Town policies and procedures.

5-2-5-1. Cooperative Purchasing. Cooperative purchases are exempt from the standard procurement procedures in Section 5-2-3 whenever the supply or service to be purchased has been either solicited through a competitive bidding process by another governmental unit or by a purchasing cooperative using a competitive bidding process consistent with public procurement, and if, in the opinion of the purchasing agent, a separate bidding process is not likely to result in a lower price for such items or services.

5-2-5-2. Sole Source Providers. Purchases from sole source providers are exempt from the standard procurement procedures in Section 5-2-3 if the purchasing agent makes a written determination that competition is not available and there is only one reasonable and practicable source for the goods or services.

5-2-5-3. Professional Services. The procurement of professional services, without regard to dollar amount of contract, is exempt from the standard competitive bidding procedures in Section 5-2-3 but will be selected based on qualifications (except as procured pursuant to Title 34 of Arizona

Revised Statutes). Professional services are those provided by members of professions that require specialized knowledge or expertise acquired by advanced training or experience (predominantly involving mental or intellectual, rather than physical or manual, skills). Such professional services may include, but are not limited to: engineers, management services for construction projects, architects, land-use planners, geologists, hydrologists, land surveyors, landscape architects, and assayers; real estate professionals, information technology, accounting, actuaries, personnel and insurance consultants; psychologists, medical doctors, and attorneys.

5-2-5-4. *Intergovernmental Agreements.* Intergovernmental agreements are exempt from the standard competitive bidding procedures in Section 5-2-3.

5-2-5-5. *Emergency Purchases.* Emergency procurement means the procurement of services, supplies, materials, equipment, or construction required to preserve or protect the health, safety, or welfare of residents or property from an immediate threat of harm or injury. Notwithstanding any other provision of this Section, the Town Manager may make or authorize others to make emergency procurements without prior Council approval when circumstances make compliance with the established procurement processes in Section 5-2-3 impracticable, unnecessary, or contrary to the public interest. Emergency procurements shall be made with such competition as is practicable under the circumstances and shall be limited to the services, supplies, materials, equipment, or construction necessary to satisfy the emergency need. The basis for the emergency procurement shall be documented in writing as soon as practicable.

5-2-5-6. *Competition Impracticable.* Notwithstanding any other provision of this Section, the Town Manager may waive or authorize the waiver of competitive procurement requirements when circumstances make competition impracticable, unnecessary, or contrary to the public interest. Any procurement under this Subsection shall be limited to the services, supplies, materials, equipment, or construction necessary to satisfy the Town's need, shall be made with sound fiscal discretion, and shall not be used for the purpose of avoiding competition. The basis for the waiver shall be documented in writing before award, unless circumstances make prior documentation impracticable, in which case the basis shall be documented as soon as practicable.

5-2-5-7. *Other Exemptions.* Competitive procurement may be waived or modified when authorized by another provision of this Code or by state law.

5-2-6. *Town Council Approval.*

5-2-6-1. *General Approval Requirements.* Subject to compliance with the procurement procedures, exceptions, and alternative procurement methods in this Section, the adopted Town budget, and applicable Town policies, the Town Manager may approve purchases and contracts that do not exceed seventy-five thousand dollars (\$75,000). The Town Manager may approve purchases or contracts exceeding seventy-five thousand dollars (\$75,000) only if the purchase or contract has been specifically authorized by the Town Council as part of the annual budget or as a separate agenda item, or if approval by the Town Manager is otherwise authorized by this Code. In all other instances, prior Town Council approval must be obtained before the purchase is made or the contract is executed.

5-2-6-2. *Real Property Transactions.* All agreements or contracts for the sale, purchase, lease, license, exchange, conveyance, acceptance, or acquisition of any interest in real property require prior Town Council approval.

5-2-6-3. *Amendments and Change Orders.* Any amendment or change order to an agreement or contract requires prior Town Council approval if the amendment or change order causes the total amount of the agreement or contract to exceed seventy-five thousand dollars (\$75,000), or if the cumulative amount of all amendments or change orders increases the amount originally approved by the Town Council by seventy-five thousand dollars (\$75,000) or more.

5-2-6-4. *Urgent Change Orders.* If the Town Manager determines that a change order that would otherwise require Town Council approval under Subsection 5-2-6-3 requires immediate approval to prevent an undue financial burden to the Town or an unreasonable delay in performance, the Town Manager may approve the change order. A report of any such urgent change order shall be provided to the Town Council within thirty (30) calendar days and placed on a Council agenda within sixty (60) calendar days.

5-2-6-5. *Non-Routine Matters of Public Interest or Policy.* The Town Manager may submit any contract or agreement to the Town Council for approval when, in the Town Manager's judgment, the contract or agreement involves a significant matter of public interest, policy direction, community impact, or operational significance, regardless of amount.

5-2-7. *Debarment.* The purchasing agent may debar a person or entity from contracting with the Town for a period not to exceed two (2) years from the effective date of the debarment. The purchasing agent may establish rules, policies, and procedures to carry out this Section, including procedures for notice of intent to debar, an opportunity to appeal, the effect of debarment, revocation, and reinstatement.

5-2-8. *Bid Protest Procedure.*

5-2-8-1. *Filing of Protest.* Any interested party may protest a solicitation issued by the Town, the proposed award of a Town contract, or the award of a Town contract. For purposes of this Subsection, an "interested party" means an offeror or bidder whose economic interest is affected substantially and directly by the issuance of a solicitation, the proposed award of a contract, the award of a contract, or the failure to receive an award of a Town contract. Whether an offeror or bidder is an interested party depends on the circumstances of each case.

5-2-8-2. *Content of Protest.* The protest shall be in writing and shall include the following information:

1. The name, address, and telephone number of the protester;
2. The signature of the protester or the protester's representative;
3. Identification of the solicitation or contract;
4. A detailed statement of the legal and factual grounds of the protest including copies of relevant documents; and,
5. The form of relief requested.

The protester shall promptly supply any other information requested by the Town.

5-2-8-3. *Time for Filing Protests.*

5-2-8-3-1. *Solicitation Defects.* Protests concerning improprieties in a solicitation that are apparent before bid opening shall be filed before the closing date or bid opening. Protests based on other alleged improprieties that occur during the solicitation process shall be filed as soon as possible and before the closing or bid opening date.

5-2-8-3-2. *Contract Award.* Protests concerning alleged improprieties in the award of a contract shall be filed within five (5) calendar days of contract award.

5-2-8-3-3. *Other Protest Grounds.* In cases other than those covered by Subsections 5-2-8-3-1 and 5-2-8-3-2, protests shall be filed within five (5) calendar days after the protester knows or should have known the basis of the protest, whichever is earlier, but in no event shall a protest be filed more than ten (10) calendar days after the award of a contract.

5-2-8-3-4. *Waiver.* Protests that are not filed within the time period required shall be deemed to be waived and no further action shall be taken on any such protest.

5-2-8-4. *Filing with Town Clerk; Notice.* Protests shall be filed with the Town Clerk. The Town Clerk shall, within a reasonable time, give notice of the protest to the successful contractor if an award has been made or, if no award has been made, to all persons submitting bids or proposals.

5-2-8-5. *Effect of Protest on Award.* If a protest is filed before the award of a contract, the Town may proceed with the award unless the Town Manager determines, in the Town Manager's sole discretion, that proceeding with the award is contrary to the best interests of the Town.

5-2-8-6. *Decision by Town Manager.*

5-2-8-6-1. *Written Decision.* The Town Manager shall issue a written decision within fifteen (15) calendar days after a protest has been filed. The decision shall include a statement of the decision with supporting rationale and a notice of the right to appeal.

5-2-8-6-2. *Delivery of Decision.* The Town Manager shall furnish a copy of the decision to the protester by any method that provides evidence of receipt.

5-2-8-6-3. *Extension of Time.* The time limit for decision may be extended for good cause for a reasonable time not to exceed thirty (30) calendar days. The Town Manager shall notify the protester in writing that the time for the issuance of a decision has been extended and the date by which a decision will be issued.

5-2-8-6-4. *Failure to Issue a Decision.* If the Town Manager fails to issue a decision within the time limits set forth herein, the protester may proceed as if the Town Manager had issued an adverse decision.

5-2-8-6-5. *Sustained Protest.* If the Town Manager sustains the protest in whole or in part and determines that a solicitation, proposed contract award, or contract award does not comply with applicable law and regulations, the Town shall implement an appropriate remedy.

5-2-8-6-6. *Remedies.* In determining an appropriate remedy, the Town Manager shall consider all circumstances surrounding the procurement, including the seriousness of the procurement deficiency, the degree of prejudice to the parties or to the integrity of the procurement process, the good faith of the parties, the extent of performance, costs to the Town, the urgency of the procurement, and the impact of the relief on the functioning of the Town. The Town Manager may implement any of the following remedies:

1. Decline to exercise an option to renew the contract;
2. Recommend that the Town Council terminate the contract;
3. Amend the solicitation;
4. Issue a new solicitation;
5. Recommend the award of a contract consistent with this Code; or,
6. Grant such other relief as the Town Manager deems necessary to ensure compliance with this Code.

5-2-8-7. *Appeal of Town Manager's Decision.* An appeal from a decision entered or deemed to be entered by the Town Manager shall be filed with the Town Clerk within five (5) calendar days from the receipt of the Town Manager's decision.

5-2-8-7-1. *Content of Appeal.* The appeal shall contain the information set forth in Subsection 5-2-8-2, including the precise factual or legal error in the decision of the Town Manager from which the appeal is taken.

5-2-8-7-2. *Hearing by Town Council.* The Town Council shall hear and consider the appeal within two (2) regular meetings. The protester and the Town Manager shall be given a reasonable opportunity to be heard in the matter.

5-2-8-7-3. *Council Decision; Remedy.* If the Town Council sustains the protest in whole or in part and determines that a solicitation, proposed contract award, or contract award does not comply with applicable law and regulations, the Town shall implement an appropriate remedy.

5-2-8-7-4. *Final Administrative Action.* The decision of the Town Council is the final administrative action.

Section 5-3 ACCOUNTING AND AUDITS.

The Town shall cause audits to be conducted as required by A.R.S. § 9-481 and other applicable state law. Audits shall be conducted to promote accountability in the Town's financial operations and under generally accepted government auditing standards issued by the United States Government Accountability Office, or other applicable professional standards issued by the American Institute of Certified Public Accountants or the Institute of Internal Auditors.

Section 5-4 FEES AND CHARGES.

5-4-1. *Fee Schedule.* The Town Council may, by resolution, establish a schedule of fees and charges for Town services, permits, applications, facilities, programs, and other Town functions. The fee schedule may be reviewed and updated from time to time as determined by the Town Council.

5-4-2. *Collections.* The Town shall make reasonable efforts to collect amounts owed to the Town in accordance with Town policies and procedures. The Town may assess a late fee if payment is not received by the specified due date. If collection efforts are unsuccessful and at least sixty (60) days have passed since the original due date, the receivable may be referred to a collection agency or attorney for collection. The Town may assess a collection fee not to exceed fifteen percent (15%) of the outstanding balance and may recover all costs of collection and litigation, including reasonable attorneys' fees, as permitted by law.

Section 5-5 LOCAL TRANSACTION AND PRIVILEGE TAX/TAX CODE.

5-5-1. *Authority.* The Town Council may levy transaction privilege and use taxes as authorized by state law.

5-5-2. *Tax Code.* The Town's transaction privilege and use tax Code may be adopted by separate ordinance and, upon adoption, shall be maintained by the Town Clerk as required by state law.

Section 5-6 LEGAL CLAIMS AND PAYMENTS.

5-6-1. *Payment of Legal Demands or Claims.* No legal demand or claim against the Town shall be paid unless it is evidenced by a legal judgment or settlement. Claims and legal demands shall be processed, reviewed, settled, reported, and paid in accordance with this Code, applicable Town policies and procedures, and any applicable insurance or risk-pool requirements.

5-6-2. *Claims Involving Town Property or Public Facilities.* Claims for damages or injuries alleged to arise from the condition of any Town street, highway, bridge, culvert, sidewalk, crosswalk, grading, opening, drain, sewer, park, playground, public building, public facility, or other Town-owned or Town-controlled property shall be processed in accordance with A.R.S. §§ 12-821 and 12-821.01, this Code, and applicable Town policies and procedures. Nothing in this Section waives any defense, immunity, notice requirement, or limitation available to the Town or its officers, officials, employees, agents, or insurers under state law.

5-6-3. *Claims Administration.*

5-6-3-1. *Filing and Service of Claims.* Claims for damages against the Town shall be filed and served in writing in accordance with A.R.S. §§ 12-821 and 12-821.01 and other applicable state law.

5-6-3-2. *Notice of Claim Requirements.* Claims shall be presented within one hundred eighty (180) days after the claim accrues, or within such shorter time as may be required by law. The claim requirements contained in this Section are intended to incorporate the requirements of A.R.S. § 12-821.01 and do not constitute a “binding or nonbinding dispute resolution process,” “administrative claims process,” or “review process” referred to in A.R.S. § 12-821.01(C).

5-6-3-3. *Agent for Service.* The Town Clerk is designated as the agent upon whom claims against the Town and service of process in litigation may be served, as authorized by state law and the Arizona Rules of Civil Procedure.

5-6-3-4. *Claims Processing.* The Town Attorney shall establish or coordinate procedures to process, evaluate, investigate, and report claims filed against the Town. Claims shall be administered in coordination with the Town Manager, applicable Town staff, and the Town’s insurers or risk-pool providers, as appropriate. The liability of the Town for claims and claim costs shall be as established by law.

5-6-3-5. *Settlement.* The Town Attorney shall review and evaluate claims received by the Town and may settle claims as authorized by this Code, applicable Town policy, Town Council action, or other lawful authority.

5-6-3-6. *Reports.* The Town Attorney shall periodically, but no less than annually, prepare and submit to the Town Council a report regarding claims made against the Town, subject to applicable confidentiality, privilege, insurance, risk-pool, and legal restrictions.

5-6-4. *Risk Management and Loss Prevention.* The Town Manager, or designee, shall coordinate the Town’s risk management, loss prevention, claims management, and risk analysis efforts, in consultation with the Town Attorney and the Town’s insurers or risk-pool providers. The Town may institute risk management and loss prevention programs based on applicable legal requirements, insurance or risk-pool requirements, experience, and industry-recognized standards. All Town officers, employees, agents, and volunteers shall cooperate with such efforts and with the prosecution or defense of any legal action involving the Town.

5-6-5. *Emergency Management Immunity.* The Town shall not be liable for any claim based upon the exercise or performance, or the failure to exercise or perform, a discretionary function or duty by the Town or any Town employee in carrying out A.R.S. Title 26, Chapter 2, except in cases of willful misconduct, gross negligence, or bad faith by such employee.

5-6-6. *Defense and Indemnification of Town Employees.* Except as provided in Section 5-6-5, the Town shall, upon request, defend and indemnify without charge any present or former Town employee against any civil claim, suit for damages, or other action asserted by any person or entity that arises, or is alleged to arise, from an act or omission of the employee, if at the time of the act or omission the employee was acting within the scope of employment or position and in good faith. The employee may retain separate counsel to assist in the defense at the employee’s sole expense. The Town retains the right to participate in the defense and to determine whether to advance defense expenses. As a condition of defense or indemnification, the employee or former employee must reasonably cooperate in good faith in the defense of the claim or action.

5-6-6-1. *Definition of Employee.* For purposes of this Section, “employee” means any current or former elected or appointed official, officer, employee, or supervised volunteer, whether compensated or uncompensated, who is authorized to perform any act or service on behalf of the Town. “Employee” does not include an independent contractor or independent professional advisor to the Town Council, Town staff, or any board, commission, committee, or other Town body. “Employee” includes members of Town boards, commissions, committees, or authorities when acting in their official capacity and under the supervision or control of the Town.

5-6-6-2. *Indemnification for Judgments and Settlements.* A Town employee who is held liable for the payment of any claim or damages by judgment or settlement shall be entitled to indemnification by the Town for the amount of the judgment or settlement if the act or omission giving rise to the liability was performed in good faith, without malice, and within the scope of the employee's Town employment or position. Indemnification is conditioned upon the employee's reasonable good-faith cooperation in the defense of the claim or action. The Town shall not be required to pay any judgment, compromise, settlement, claim, or action unless the Town has agreed to the payment and it is established that the injury, loss, or damages arose from an act or omission occurring within the scope of the employee's Town employment or position.

5-6-6-3. *Exclusions from Defense and Indemnification.* The Town shall not defend, indemnify, or make any payment in connection with any claim or suit made against an elected or appointed official, officer, employee, or volunteer under the following circumstances:

5-6-6-3-1. *Willful or Wanton Misconduct.* The claim arises out of willful or wanton misconduct.

5-6-6-3-2. *Bad Faith or Fraud.* The claim arises out of bad faith, fraud, affirmative dishonesty, or an actual intent to deceive or defraud.

5-6-6-3-3. *Criminal Charges.* The employee is charged in a criminal complaint or indictment, unless the act or omission giving rise to the complaint or indictment was required or authorized by the employee's official duties or responsibilities.

5-6-6-3-4. *Claims by or on Behalf of the Town.* The claim is filed by or on behalf of the Town, except for claims filed by the Town to recover money or other expenses for the Town's loss fund or other applicable risk-management fund.

5-6-6-3-5. *Unauthorized Use of Town Vehicle.* The claim arises from the operation of a Town vehicle without authority.

5-6-6-3-6. *Sexual Abuse, Harassment, or Misconduct.* The claim arises from sexual abuse, sexual harassment, or other sexual misconduct caused by, instigated by, or directed by the employee.

5-6-6-3-7. *Defense of Unsubstantiated Allegations.* Nothing in this Section prevents the Town from defending against any claim or lawsuit alleging conduct described in this Subsection when the Town determines that the allegations are not substantiated.

5-6-6-4. *Defenses and Immunities Preserved.* Nothing in this Section shall be construed to waive any defense or immunity available to the Town or its employees in any action brought against the Town or its employees.

5-6-6-5. *Notice to Town; Request for Indemnification.* Any Town employee against whom a claim or action for damages is brought shall provide written notice to the employee's immediate supervisor, the Town Manager, and the Town Attorney within seven (7) calendar days after the employee becomes aware of the claim or action. The notice shall include the employee's request for defense or indemnification under this Section.

5-6-6-6. *Determination of Applicability.* The Town Attorney shall determine whether the provisions of this Section apply to claims involving employees.

5-6-6-7. *Joint Representation.* If the Town is, or may be, joined with one or more Town employees as defendants in a lawsuit, the Town and the employee may be represented by the same legal counsel. Separate legal counsel may be provided to the employee at the Town's expense if the Town

Attorney determines that joint representation would violate the Rules of Professional Conduct, or if the Town determines that separate representation is otherwise appropriate and in the best interests of the Town.

5-6-6-8. *Conflicts of Interest.* Nothing in this Section or any provision of this Code shall be construed to require the Town Attorney to provide legal services in a manner that would violate the Rules of Professional Conduct. If the Town Attorney determines that representation of a Town employee would violate the Rules of Professional Conduct or would not be in the best interests of the Town, the Town Attorney shall notify the employee and the Town Manager.

5-6-6-9. *Reimbursement by Employee.* If the Town incurs costs or expenses on behalf of an employee pursuant to this Section, and it is later determined that the employee was not entitled to the benefits of this Section, the Town may seek reimbursement from the employee for all such costs and expenses, including attorneys' fees.

5-6-6-10. *Claims by Town Against Professional Employees.* The Town shall bring no legal action against an employee or former employee, who is or was employed to provide professional services to the Town, for any loss, damage or injury to the Town resulting from any act or omission by the employee in the scope of employment, unless the act or omission resulted from willful or wanton misconduct. "Professional services" are those services which are customarily provided by persons with specialized education and training, whose actions in the private sector are commonly protected by errors and omissions insurance (e.g. architects, accountants, attorneys, and engineers).

ARTICLE 6 – PUBLIC SAFETY

SECTIONS:

6-1: LAW ENFORCEMENT SERVICES

6-2: FIRE DEPARTMENT AND EMERGENCY SERVICES

6-3: EMERGENCY MANAGEMENT

Section 6-1 LAW ENFORCEMENT SERVICES.

6-1-1. *Provision of Law Enforcement Services.* The Town may provide for law enforcement, police protection, public safety, detention, dispatch, Code-enforcement support, animal-control support, and related services by intergovernmental agreement, contract, mutual aid agreement, direct operation of a Town Police Department, or any other lawful arrangement approved by the Town Council.

6-1-2. *Contracted Law Enforcement Services.* If law enforcement services are provided by intergovernmental agreement, contract, or other lawful arrangement with another public agency or service provider, the duties, authority, supervision, staffing, reporting, and service obligations of the provider shall be governed by the applicable agreement and state law. Nothing in this Section shall be construed to make employees, deputies, officers, agents, or contractors of another agency employees of the Town unless expressly provided by the applicable agreement.

6-1-3. *Town Police Department.* The Town may establish, maintain, or directly operate a Town Police Department if approved by the Town Council. If the Town directly operates a Police Department, the Department shall be under the direction and supervision of the Chief of Police appointed as provided in Article 4, Section 4-7 of this Code and shall operate in accordance with state law, this Code, Town personnel policies, departmental rules and procedures, and lawful directives of the Town Manager.

6-1-4. *Mutual Aid and Outside Assistance.* Town law enforcement personnel, if any, may provide or receive aid and assistance beyond the corporate limits of the Town as authorized by state law, intergovernmental agreement, mutual aid agreement, or other lawful arrangement.

Section 6-2 FIRE DEPARTMENT AND EMERGENCY SERVICES.

[RESERVED]

Section 6-3 EMERGENCY MANAGEMENT.

6-3-1. *Emergency Management Program.* There is hereby established an emergency management program for the Town of San Tan Valley. The purpose of the emergency management program is to reduce the vulnerability of persons, property, and the community to damage, injury, loss of life, and loss of property resulting from natural or human-caused disasters, emergencies, civil unrest, hostile action, or other catastrophic events.

6-3-2. *Authority and Scope.* The Town Council shall have the powers and authority provided by A.R.S. Title 26, Chapter 2, and other applicable law. The emergency management program may include planning, coordination, and response measures intended to address the following matters:

6-3-2-1. *Rescue, Care, and Treatment.* The prompt and efficient rescue, care, and treatment of persons victimized or threatened by disaster.

6-3-2-2. *Restoration and Rehabilitation.* The rapid and orderly restoration and rehabilitation of persons and property affected by disasters.

6-3-2-3. *Roles and Responsibilities.* The roles of the Mayor, Town Council, Town Manager, Town officers, and Town departments in the prevention of, preparation for, response to, and recovery from disasters.

6-3-2-4. *Cooperation.* Cooperation in disaster prevention, preparedness, response, and recovery.

6-3-2-5. *Coordination.* Coordination of disaster-related activities among Town officers and departments, private-sector entities, the federal government, the State, other political subdivisions, and other participating agencies.

6-3-2-6. *Disaster Management System.* A disaster management system addressing pre-disaster preparedness, emergency response, and post-disaster recovery.

6-3-3. *Emergency Management Director.*

6-3-3-1. *Appointment.* The Town Manager is appointed as the Emergency Management Director as provided in A.R.S. Title 26, Chapter 2.

6-3-3-2. *Designees.* The Emergency Management Director may designate one or more Town officers, employees, contractors, consultants, or service providers to assist in carrying out the duties of the Emergency Management Director.

6-3-3-3. *Line of Succession.* If the Town Manager is unable to act, the duties and authority of the Emergency Management Director shall be exercised in accordance with the line of succession set forth in the emergency operations plan adopted by the Town.

6-3-3-4. *Powers and Duties.* The Emergency Management Director, or designee, shall coordinate the development, maintenance, and implementation of the Town's emergency management program and emergency operations plan. The Emergency Management Director, or designee, may:

- (1) Prepare or coordinate a comprehensive emergency management program and emergency operations plan for adoption and maintenance by resolution of the Town Council. In preparing the plan as it pertains to Town organization, the services, equipment, facilities, and personnel of existing Town departments and participating agencies should be used to the fullest extent practicable.

- (2) Coordinate community emergency preparedness, assist in developing and maintaining plans, manage or coordinate emergency resources, and assist in responding to federal, state, local, and regional emergencies.

- (3) During emergencies, assist the Mayor, Town Council, Town Manager, Town departments, and other participating agencies in coordinating emergency operations, plans, procedures, resources, communications, emergency forces, and emergency operations center activities as required by the emergency.

- (5) Assist with coordination among federal, state, local, regional, adjacent, and participating governments and agencies.

- (6) Perform such duties as may be required by state law, this Code, the emergency operations plan, the Town Council, the Mayor during a declared emergency, or the Town Manager.

6-3-4. *Emergency Proclamations.* In addition to the powers granted by state law, and in accordance with A.R.S. Title 26, Chapter 2, the Mayor may declare, by proclamation, that an emergency or local emergency exists and may exercise the powers and authority provided by law. The proclamation shall expire without further action ninety (90) days after issuance or at the next regularly scheduled Council meeting, whichever occurs later, unless extended or modified by a majority vote of the Town Council. The need for the emergency proclamation shall be reviewed at a regularly scheduled Council meeting each month after issuance until the proclamation expires or is repealed. Nothing in this Section prevents the Mayor or Town Council from placing the emergency proclamation on a Council agenda for discussion or action.

6-3-5. *Emergency Operations Plan.* The emergency management program and emergency operations plan shall be considered supplementary to this Section and have the effect of law whenever emergencies have been proclaimed.

6-3-6. *Mutual Aid.* During a declared local emergency, the Mayor, Emergency Management Director, or other authorized Town official may request, provide, or coordinate mutual aid as authorized by state law, intergovernmental agreement, mutual aid agreement, emergency plan, or other lawful arrangement. The Mayor, Emergency Management Director, or other authorized Town official may request mutual aid from State agencies, including personnel, equipment, and other available resources, to assist the Town during a local emergency in accordance with emergency plans or at the direction of the Governor.

6-3-7. *Penalty.* Any person who violates any provision of this Section 6-3 or who refuses or willfully neglects to obey any lawful regulation or order issued as provided in this Section shall be guilty of a class 1 misdemeanor punishable as set forth in the general penalties provision of this Code.

ARTICLE 7 – MUNICIPAL COURT SERVICES

SECTIONS:

- 7-1: PROVISION OF COURT SERVICES**
- 7-2: JURISDICTION AND CASES**
- 7-3: TOWN MAGISTRATE AND JUDICIAL OFFICERS**
- 7-4: PROCEEDINGS**
- 7-5: COURT ADMINISTRATION; RECORDS; FINES AND FEES**
- 7-6: HEARING OFFICERS**
- 7-7: TRANSITION; SAVINGS CLAUSE**

Section 7-1 PROVISION OF COURT SERVICES.

7-1-1. *Service Model.* The Town may establish or maintain a Town Municipal Court or, in lieu of establishing or maintaining a municipal court, may provide municipal court services by intergovernmental agreement or other lawful court-services arrangement authorized by A.R.S. § 22-402 and A.R.S. §§ 11-951 *et seq.*

7-1-2. *Implementation.* The Town Council may approve intergovernmental agreements, contracts, leases, staffing arrangements, facility arrangements, technology arrangements, records arrangements, case-transfer procedures, effective dates, and other measures necessary or appropriate to implement municipal court services.

7-1-3. *No Required Standalone Court.* Nothing in this Section requires the Town to use a particular court facility, appoint a separate Town Magistrate, employ separate court personnel, or operate a standalone municipal court if municipal court services are lawfully provided through an approved intergovernmental agreement or other lawful court-services arrangement.

Section 7-2 JURISDICTION AND CASES.

7-2-1. *Jurisdiction.* The court or judicial officer providing municipal court services for the Town shall have jurisdiction over cases arising under the ordinances of the Town and concurrent jurisdiction with justices of the peace over violations of state law committed within the limits of the Town, to the extent provided by state law and any approved court-services arrangement.

7-2-2. *Scope and Phased Implementation.* Town cases may include Town Code violations, civil traffic matters, criminal misdemeanors, civil Code enforcement matters, zoning violations, administrative enforcement matters, and other matters authorized by state law, this Code, ordinance, or an approved court-services arrangement. The Town Council may determine, consistent with state law and any approved court-services arrangement, the location, staffing, facilities, technology, records arrangements, filing processes, effective dates, case categories, case-transfer procedures, and phased implementation of municipal court services.

7-2-3. *Enforcement and Prosecutorial Discretion.* Nothing in this Section limits the lawful exercise of enforcement discretion by the Town, prosecutorial discretion by the Town Attorney or prosecutor, or judicial discretion by the court or judicial officer providing municipal court services for the Town.

Section 7-3 TOWN MAGISTRATE AND JUDICIAL OFFICERS.

7-3-1. *Town Magistrate.* If the Town appoints a Town Magistrate, the Town Magistrate shall be appointed as provided in Article 4, Section 4-8 of this Code and shall perform the judicial functions assigned by state law, this Code, court rule, administrative order, appointment, contract, intergovernmental agreement, or other lawful court-services arrangement.

7-3-2. *Presiding Officer.* If the Town establishes or maintains a Town Municipal Court, the Town Magistrate shall serve as the presiding officer of the Town Municipal Court, unless otherwise provided by state law or an approved court-services arrangement.

7-3-3. *Additional Judicial Officers.* The Town Council may appoint, or authorize the use of, additional magistrates, associate magistrates, special magistrates, hearing officers, judges pro tempore, to the extent authorized by law, or other judicial officers as necessary or appropriate, consistent with state law, applicable court rules, administrative orders, this Code, and any approved court-services arrangement.

7-3-4. *No Separate Magistrate Required.* Nothing in this Section requires the Town to appoint a separate Town Magistrate if municipal court services are provided through an intergovernmental agreement, use of a justice of the peace as magistrate where authorized by law, or other lawful court-services arrangement.

Section 7-4 PROCEEDINGS.

7-4-1. *Applicable Law and Procedures.* Proceedings involving Town cases shall be commenced, processed, heard, adjudicated, transferred, appealed, and otherwise handled in accordance with state law, applicable court rules, applicable administrative orders, this Code, and the procedures of the court providing municipal court services for the Town.

7-4-2. *Charging and Filing Instruments.* Town cases may be commenced by citation, complaint, long-form complaint, civil complaint, notice of violation, or other lawful charging or filing instrument applicable to the type of proceeding.

Section 7-5 COURT ADMINISTRATION; RECORDS; FINES AND FEES.

7-5-1. *Court Administration.* Court administration, staffing, records, financial controls, technology, case management, reporting, and related operational matters shall be handled in accordance with state law, applicable court rules, applicable administrative orders, applicable accounting standards, this Code, judicial-branch requirements, and any approved court-services arrangement.

7-5-2. *Court Records and Monies.* Court records, fines, fees, penalties, surcharges, assessments, bonds, restitution, and other court monies shall be maintained, imposed, collected, distributed, accounted for, reported, accessed, disclosed, sealed, destroyed, transferred, or otherwise handled as required by state law, applicable court rules, applicable administrative orders, this Code, and any approved court-services arrangement.

7-5-3. *Court Fees and Cost Recovery.* The Town Council may establish, amend, or repeal court-related fees, program fees, administrative fees, cost-recovery charges, and other court charges by resolution, fee schedule, ordinance, or other lawful action, as authorized by A.R.S. § 22-404(E) and other applicable law. Such fees and charges may include, without limitation, fees for court programs and services, case processing, warrants, court-appointed counsel, license reinstatement processing, default processing, jail-cost recovery, deferred prosecution, probation, diversion, monitoring, court enhancement, and other court-related costs or services. Court-related fees and charges shall be assessed, waived, deferred, reduced, collected, distributed, accounted for, and reported as required by state law, applicable court rules, applicable administrative orders, the adopted fee schedule, this Code, and any approved court-services arrangement.

Section 7-6 HEARING OFFICERS.

7-6-1. *Use of Hearing Officers.* The Town may use hearing officers for civil Code enforcement, zoning, administrative enforcement, and other non-criminal matters as authorized by state law, this Code, ordinance, contract, or other lawful arrangement. For court matters, hearing officers may be appointed or used only as authorized by state law, court rule, administrative order, or an approved court-services arrangement.

7-6-2. *Authority.* Hearing officers may hear and decide civil traffic matters, civil Code enforcement matters, zoning violations, administrative enforcement matters, and other matters authorized by state law, court rule, this Code, ordinance, contract, intergovernmental agreement, or other lawful arrangement.

7-6-3. *Procedures and Appeals.* Proceedings before hearing officers shall be conducted in accordance with the procedures applicable to the matter being heard. Decisions of hearing officers shall be subject to review or appeal as provided by state law, court rule, this Code, ordinance, or the applicable court-services arrangement.

Section 7-7 TRANSITION; SAVINGS CLAUSE.

7-7-1. *Transition Authority.* The Town Council may approve transitional, temporary, phased, or permanent court-services arrangements to provide for the orderly implementation of municipal court services.

7-7-2. *Approved Court-Services Arrangements.* Any intergovernmental agreement, contract, lease, services agreement, staffing arrangement, technology arrangement, records arrangement, or implementation plan approved by the Town Council for municipal court services is incorporated into the Town's court-services structure to the extent consistent with state law and this Code.

7-7-3. *Savings Clause.* Nothing in this Section is intended to limit the jurisdiction of any court, judicial officer, or hearing officer conferred by state law; impair the independence of the judicial branch; alter any requirement imposed by the Arizona Supreme Court, applicable court rules, administrative orders, or the Arizona Code of Judicial Administration; or prevent the Town from modifying its municipal court-services model by future ordinance, resolution, intergovernmental agreement, contract, or other lawful action.

ARTICLE 8 – ELECTIONS

SECTIONS:

- 8-1: QUALIFICATIONS OF CANDIDATES**
- 8-2: NOMINATION PETITIONS FOR TOWN OFFICES**
- 8-3: CONDUCT OF ELECTIONS**
- 8-4: ELECTION DATES**
- 8-5: NONPARTISAN BALLOT**
- 8-6: CANDIDATE FINANCIAL DISCLOSURE**
- 8-7: PRIMARY ELECTION**
- 8-8: GENERAL ELECTION**
- 8-9: WRITE IN CANDIDATE**
- 8-10: TIE VOTE**
- 8-11: CANVASS; ELECTION TO OFFICE**
- 8-12: TIME OF SEATING**
- 8-13: INITIATIVE AND REFERENDUM**

Section 8-1 QUALIFICATIONS OF CANDIDATES.

8-1-1. All candidates for elected office in the Town shall be qualified electors of the town. Candidates shall have resided in the town for at least one year preceding the election in which the candidate is running, except that a person living in an area that has been annexed into the Town during the year preceding the election shall be qualified if the candidate has resided in that annexed area at least one year prior to the election.

Section 8-2 NOMINATION PETITIONS FOR TOWN OFFICES.

8-2-1. The Town establishes the number of signatures required on a candidate nomination petition as follows:

8-2-1-1. Nomination petitions for a candidate for office in the Town shall be in the form prescribed by law and shall contain the signatures of:

- (1) Not less than one thousand (1,000) or five percent (5%) of the highest vote cast for an elected official of the Town at the last preceding election at which an official of the Town was elected, whichever is less; and
- (2) Not more than ten percent (10%) of the highest vote cast for an elected official of the Town at the last preceding election at which an official of the Town was elected.

8-2-1-2. A candidate for a Town office must present nomination petitions to the Town Clerk during the filing period as prescribed in A.R.S. § 16-311(B).

8-2-2. The Town Clerk is directed to provide candidates with the minimum and maximum signature requirements and establish said requirements in E-Qual (electronic petition portal).

(Adopted by Ordinance 2025-04, on November 5, 2025)

Section 8-3 CONDUCT OF ELECTIONS.

8-3-1. State law governs the elections of the Town of San Tan Valley. The Town's officials shall exercise the powers and perform the duties conferred on or imposed by such laws.

(Adopted by Ordinance 2025-02, on October 15, 2025)

Section 8-4 ELECTION DATES.

8-4-1. The primary and general elections will be held on the dates prescribed in A.R.S. § 16-204.

(Adopted by Ordinance 2025-02, on October 15, 2025)

Section 8-5 NONPARTISAN BALLOT.

8-5-1. Nothing on the ballot in any election shall be indicative of the support of the candidate.

(Adopted by Ordinance 2025-02, on October 15, 2025)

Section 8-6 CANDIDATE FINANCIAL DISCLOSURE.

8-6-1. Each candidate for the office of councilmember shall file a financial disclosure statement on a form prescribed by the Town Clerk when such candidate files a nomination paper. The statement shall contain such information required by state law and any applicable resolution of the Council.

Section 8-7 PRIMARY ELECTION.

8-7-1. Subject to the calculations, terms, conditions and processes set forth in A.R.S. § 9-821.01, any candidate for office who receives a majority of all votes cast at the primary election for that office shall be declared elected to the office for which the person is a candidate, effective as of the date of the general election, and a further election may not be held as to such candidate. If more candidates receive a majority of votes cast than there are seats to be filled for the office pursuant to this Section, from among those candidates who receive a majority of votes cast, the candidates who receive the highest number of votes equal to the number of seats to be filled for the office shall be declared elected to that office.

(Adopted by Ordinance 2025-02, on October 15, 2025)

Section 8-8 GENERAL ELECTION.

8-8-1. If an office is not decided at the primary election in accordance with Section 8-7, then as to the office or offices, a general municipal election shall be held. The only candidates to be placed on the ballot at the general municipal election, shall be those who did not receive a majority of votes cast at the primary election equal in number to twice the number to be elected to any given office or less than that number if there be less than that number named on the primary election ballot, and who receive the highest number of votes for the respective offices at the primary election; provided that if there be any person who, under the provisions of this Section, would have been entitled to become a candidate for any office because of receiving the highest number of votes for the office except for the fact that some other candidate received an equal number of votes therefore, then all such persons receiving an equal number of votes shall likewise become candidates for such office. The candidate who receives the highest number of votes at the general election for an office shall be declared elected to the office.

(Adopted by Ordinance 2025-02, on October 15, 2025)

Section 8-9 WRITE-IN CANDIDATE.

8-9-1. A write-in candidate may not advance to the general or runoff election or be issued a certificate of election if the write-in candidate did not receive a number of votes equivalent to at least the same number of signatures required by A.R.S. § 16-322 for nominating petitions for the same office.

(Adopted by Ordinance 2025-02, on October 15, 2025)

Section 8-10. TIE VOTE.

8-10-1. If two or more candidates receive an equal number of votes cast for the same office, and a higher number than any other candidate, the candidate who shall be declared elected shall be determined by lot in the presence of the candidates following notification to the candidates as required by A.R.S. § 16-649.

(Adopted by Ordinance 2025-02, on October 15, 2025)

Section 8-11. CANVASS; ELECTION TO OFFICE.

8-11-1. The Council shall canvass the results of primary, general, and special elections at a meeting held not less than six days nor more than twenty days after the election pursuant to A.R.S. § 16-642.

(Adopted by Ordinance 2025-02, on October 15, 2025)

Section 8-12. TIME OF SEATING.

8-12-1. A candidate who is declared elected under A.R.S. § 9-821.01 for an office held by appointment at the time of the primary election as prescribed by A.R.S. § 9-235 shall be seated as follows:

8-12-1-1. For an appointee holding the seat for the remainder of a term, after the canvass and certification of the results of that primary election and on taking the oath of office. If more than one candidate receives a majority of all votes cast at the primary election for an appointed seat, the order of seating the candidates shall be determined by the highest number of votes.

8-12-1-2. For an appointee holding the seat for a new term, as of the general election date.

(Adopted by Ordinance 2025-02, on October 15, 2025)

Section 8-13. INITIATIVE AND REFERENDUM.

8-13-1. *Reserved Powers.* There is reserved to the qualified electors of the Town the power of the initiative and the referendum as prescribed by the State Constitution.

8-13-2. *Number of Signatures.* The basis upon which the number of qualified electors of the Town required to file an initiative or referendum shall be as determined by state law.

8-13-3. *Time of Filing.* Initiative petitions shall be filed at least 120 days prior to the date of the election at which the proposed measures are to be voted upon. Referendum petitions shall be filed within 30 days of the adoption of the ordinance or resolution to be referred. If the Town Clerk is unable to provide petitioners with a copy of the ordinance or resolution signed by the mayor at the time of application for an official number or on the same business day the application is submitted, the 30-day period shall be calculated from the date such ordinance or resolution is available.

8-13-4. *Procedures.* State law governs the procedures relating to the conduct of elections for an initiative or referendum.

ARTICLE 9 – BUSINESS REGULATIONS

SECTIONS:

9-1: BUSINESS LICENSING

9-2: PEDDLING, SOLICITING, AND CANVASSING

9-3: YARD SALES

9-4: TELECOMMUNICATIONS

Section 9-1 BUSINESS LICENSING.

9-1-1. *License Required.* It is unlawful for any person to carry on any trade, calling, profession, occupation, or business in the Town without first obtaining a valid business license from the Town as set forth in this Section and without complying with all regulations applicable to such business under federal, state, and local laws and regulations.

9-1-2. *Exemptions.* The following are exempt from the requirement to obtain a business license under this Section:

9-1-2-1. *Residential Rental Property.* A property owner or property management company engaged solely in the rental of residential real property to a person for residential use only.

9-1-2-2. *Special Events.* A person or entity conducting business only as part of a special event authorized pursuant to this Code, to the extent the special event authorization applies to such activity.

9-1-2-3. *Food Product Producers.* A producer selling food products as provided in A.R.S. §§ 3-561 through 3-563, for the sale of those products only. The Town may require the producer to file an affidavit or other form approved by the Town establishing the facts entitling the producer to the exemption.

9-1-3. *Application, Review, and Issuance.* Applications for business licenses shall be submitted to the Town Clerk, or other official designated by the Town Manager. Upon compliance with this Section, it shall be the duty of the Town Clerk, or other official designated by the Town Manager, to issue business licenses within sixty (60) calendar days after submittal of a complete application and to state in each license the amount charged, the period of time covered, and the name of the person, the firm or corporation for whom issued, and the business address associated with the business license application.

9-1-4. *Information Required.* The application for a license shall include the following information:

- (1) Name;
- (2) Permanent and local address;
- (3) Business address;
- (4) A brief description of the nature of business conducted and goods or services provided;
- (5) State privilege license number;
- (6) Proof of compliance with the Town privilege license tax Code; and
- (7) Signature of applicant.

9-1-5. *Authorized Presence Documentation.* A.R.S. § 41-1080 restricts the Town's authority to issue business licenses to individuals who have not demonstrated authorized presence in the United States. Unless the applicant is exempt as provided in this Section, the Town may not issue a business license to an individual

unless the individual presents one of the following documents:

- (1) Arizona driver's license issued after 1996 or an Arizona nonoperating identification license;
- (2) Driver's license issued by any state that verifies lawful presence in the United States;
- (3) Birth certificate or delayed birth certificate issued in any state, territory, or possession of the United States;
- (4) United States certificate of birth abroad;
- (5) United States passport;
- (6) Foreign passport with a United States visa;
- (7) Form I-94 with a photograph;
- (8) United States Citizenship and Immigration Services employment authorization document or refugee travel document;
- (9) United States certificate of naturalization;
- (10) United States certificate of citizenship;
- (11) Tribal certificate of Indian blood;
- (12) Tribal or Bureau of Indian Affairs affidavit of birth; or
- (13) Any other license that is issued by the federal government, or other state government, an agency of this state, or a political subdivision of this state that requires proof of citizenship or lawful alien status before issuing the license.

9-1-6. *Exemption from Authorized Presence Documentation.* If all of the following apply, an individual is exempt from the requirement to present one of the documents listed in Subsection 9-1-5 of this Section, prior to being issued a business license:

- (1) The individual is a citizen of a foreign country, or, if at the time of application, the individual resides in a foreign country; and
- (2) The benefits that are related to the license do not require the individual to be present in the United States in order to receive those benefits.

9-1-7. *Term; Renewal; Non-transferability.* Business licenses shall be issued on a calendar-year basis and shall expire on December 31 of each year, unless otherwise provided by the Town. The Town may prorate license fees for licenses issued after the beginning of a calendar year. No license shall be renewed unless the licensee complies with this Code. Licenses issued under this Section shall not be transferable.

9-1-8. *Fees and Payment.* All persons required to obtain a business license under this Section shall pay a license fee in the amount established by Town Council resolution. Business license fees shall be paid to the Town Clerk, or other official designated by the Town Manager, in the manner specified by the Town. License fees are due on or before issuance or renewal of the license.

9-1-9. *Error in License Amount.* In no case shall any mistake in stating the amount of a license prevent or prejudice the collection by the Town of what shall be actually due from anyone required to obtain a business license pursuant to this Section.

9-1-10. *Separate Locations; Scope of License.* A separate license shall be obtained for each branch establishment or separate place of business in which any trade, calling, profession, occupation or business is carried on. Each license shall authorize the person obtaining such license to carry on, pursue or conduct only that trade, calling, profession, occupation or business described in such license and only at the location or place of business that is indicated.

9-1-11. *Effect of License; Compliance Not Excused.* Nothing in this Section, and no payment for or issuance of any license under this Section, shall be deemed to legalize any act that otherwise may be in violation of law or to exempt any person from any penalty for such violation.

9-1-12. *Display and Exhibition of License.* Every person having a license required by this Section and carrying on a trade, calling, profession, occupation, or business at a fixed place of business shall keep the

license posted and exhibited in a conspicuous place at the place of business. Every person having such a license and not having a fixed place of business shall carry the license at all times while carrying on the trade, calling, profession, occupation, or business for which the license was granted. Every person having a business license required by this Section shall produce and exhibit the license when applying for renewal and whenever requested by a law enforcement officer or other authorized representative of the Town. Authorized representatives of the Town may enter, free of charge, any place of business during regular business hours for which a license is required by this Section and may demand exhibition of the license for the current term from any person engaged or employed in the transaction of such business. It is unlawful for any such person to fail to exhibit the license when requested to do so.

9-1-13. *Zoning Regulation and Fire Safety Inspection.* It shall be the responsibility of the licensee to ensure that the Town's zoning regulations are complied with before applying for a business license and during the term of the license. Except as otherwise determined by the Town Clerk, or other official designated by the Town Manager, based on the nature, location, or operation of the business, every applicant for a Town business license shall pass an annual Fire Safety Inspection performed by Rural Metro Fire before a Town business license will be issued. The Town may require the applicant to provide information reasonably necessary to determine whether a Fire Safety Inspection is required. The payment of a license fee, issuance of a license, passage of a Fire Safety Inspection, or determination that a Fire Safety Inspection is not required shall not be deemed to validate the conduct of any business, activity, calling, vocation, profession, or trade at the said address or to excuse compliance with this Code, the Town's zoning ordinance, the Town's adopted Fire Code, or other applicable law.

9-1-14. *Denial and Revocation of Licenses; Hearing.* Business licenses may be denied, modified, suspended, or revoked by the Town Clerk, or other official designated by the Town Manager, after notice and a hearing before the Town Manager for any of the following causes:

- (1) Fraud, misrepresentation, or false statement contained in the application for license.
- (2) Any violation of this Section or failure to meet any licensing requirements, including timely payment of fees.
- (3) Conducting a business in violation of any federal, state, county or local law.
- (4) The licensee is convicted of untrue, fraudulent, misleading or deceptive advertising.
- (5) The licensee is a corporation and is no longer qualified to transact business in the state.
- (6) Failure to provide the information required by this Section.

9-1-15. *Notice of Hearing.* Notice of a hearing shall be mailed to the licensee by the Town Manager at least ten (10) calendar days prior to the hearing and shall set forth specifically the grounds of complaint and the time and place of hearing.

9-1-16. *Decision by Town Manager.* The Town Manager shall issue a written decision and mail notice thereof within ten (10) calendar days after the hearing, setting forth the findings and grounds for the decision, to the licensee.

9-1-17. *Appeal to Town Council.* Any person aggrieved by the denial, modification, suspension, or revocation of a license shall have the right to appeal to the Town Council. The appeal must be filed with the Town Clerk no later than fourteen (14) calendar days after the Town Manager's decision has been mailed to the person, and must consist of a written statement fully describing the grounds for appeal.

9-1-17-1. *Hearing on Appeal.* The Town Clerk shall set a time and place for a hearing before the Council on such appeal, to be held within thirty (30) calendar days from the filing date of the appeal. Notice of such hearing shall be mailed by the Town Clerk to the appellant setting forth specifically the time and place of the hearing.

9-1-17-2. *Final Decision; Judicial Review.* The decision of the Town Council on appeal shall be final, except any person aggrieved may appeal the decision to superior court within twenty (20) calendar days after the ruling appealed from.

9-1-17-3. *Surrender of License.* Any non-renewed or revoked license shall be surrendered to the Town Clerk on demand at the expiration of the appeals process.

9-1-18. *Interim Licenses.* A licensee may obtain an interim license to conduct business operations pending its appeal of the Town's decision to deny renewal, modify, suspend, or revoke a license under this Section. The licensee shall apply for an interim license by submitting to the Town Clerk, or other official designated by the Town Manager, a written request for an interim license, along with a copy of the notice of appeal (filed for Town Council or judicial review), and any materials required for a license but not previously provided. The Town Clerk, or other official designated by the Town Manager, will issue an interim license within one (1) business day of receipt of the foregoing materials. No fee will be charged for an interim license.

9-1-18-1. *Limitations on Interim License.* An interim license does not constitute permission to violate laws or create a public nuisance. A business may be immediately closed if it constitutes an immediate threat or danger to public health and safety or property, pursuant to applicable building, fire, health and safety regulations or as determined by the court.

9-1-18-2. *Expiration of Interim License.* An interim license automatically expires upon the earliest of the following:

- (1) If the licensee does not timely file an appeal to the Town Council, upon expiration of the time to file that appeal;
- (2) If the licensee appeals to the Town Council and does not timely seek judicial review after the Town Council's decision, upon expiration of the time to seek judicial review;
- (3) Upon withdrawal, abandonment, or dismissal of the appeal or action for judicial review; or
- (4) Upon entry of final judgment by a court of competent jurisdiction, unless the court orders otherwise.

9-1-19. *Re-application for License.* No person may apply for a business license under this Section within one (1) year from the date of the denial or revocation of any such license; provided, however, that the Town Clerk, or other official designated by the Town Manager, may accept and process a new application before the expiration of that period if the grounds for the denial, revocation, or nonrenewal have been cured to the satisfaction of the Town.

Section 9-2 PEDDLING, SOLICITING, AND CANVASSING.

9-2-1. *Permit Required.* It is unlawful for any person to take part in the act of soliciting, peddling, hawking, selling, or vending goods, wares, merchandise, newspapers, magazines, or services from house to house, or to only one house, in the Town without first obtaining any business license required by Section 9-1 and registering with the Town for a permit under this Section. Persons regulated by this Section may be referred to collectively as "peddlers," "solicitors," or "canvassers," as applicable.

9-2-2. *Vending from Streets and Sidewalks.* Except as part of an event sponsored or approved by the Town Council, or as otherwise authorized by this Code, the Town's zoning ordinance, permit, license, agreement, or other lawful authorization, it is unlawful for any person to erect or maintain any booth, stand, cart, or counter on any street or sidewalk in the Town for the purpose of barter, sale, or trade, or to keep or maintain upon any street, alley, or sidewalk any wagon, cart, vehicle, movable booth, or stand for the purpose of barter, sale, or trade.

9-2-3. *Hours of Operation.* It is unlawful for any peddler, solicitor, or canvasser regulated by this Section to conduct such business before 8:00 a.m. or after sunset.

9-2-4. *No Solicitation Signs.* It is unlawful for any peddler, solicitor, or canvasser, in the course of business,

to ring the doorbell or knock at any building where a sign prohibiting peddlers, solicitors, or canvassers is exposed to public view.

9-2-5. *Exemptions.* This Section does not apply to the following:

9-2-5-1. *Noncommercial Activities.* Charitable, religious, educational, patriotic, political, and philanthropic organizations or persons engaged in such activities, if they are not soliciting money, donations of money or property, financial assistance, selling any service, or selling or distributing any item of literature or merchandise for which a fee is charged.

9-2-5-2. *Wholesale Sales.* Persons selling personal property at wholesale to dealers in such articles.

9-2-5-3. *Newspaper Delivery and School Projects.* Newspaper deliverers and students participating in school class projects.

9-2-5-4. *Deliveries in the Regular Course of Business.* Merchants or their employees delivering goods in the regular course of business.

9-2-5-5. *Court-Ordered, Statutory, and Auction Sales.* Any sale required by statute or by order of a court, or any bona fide auction sale conducted pursuant to law.

9-2-5-6. *Mobile Merchants and Mobile Food Vendors.* Mobile merchants, mobile food vendors, and mobile food units regulated by the Town's zoning ordinance are exempt from this Section. Nothing in this Section authorizes any regulation prohibited by state law.

9-2-6. *Undue Noise Prohibited.* No person regulated by this Section, nor any person acting on behalf of such person, shall shout, make any outcry, blow a horn, ring a bell, or use any sound device, including any loud-speaking radio or sound-amplifying system, upon any street, alley, park, or other public place of the Town, or upon any private premises in the Town where sound of sufficient volume is emitted or produced to be plainly heard upon public thoroughfares, for the purpose of attracting attention to any goods, wares, or merchandise offered for sale.

Section 9-3 YARD SALES.

9-3-1. *Definitions.* In this Section, unless the context otherwise requires:

“*Miscellaneous merchandise*” means personal property offered for retail sale at a yard sale that has not been acquired or purchased for the purpose of resale.

“*Yard sale*” means a garage sale, carport sale, patio sale, rummage sale, moving sale, or similar temporary sale of miscellaneous merchandise by the owner or resident of a specific residential address. A yard sale does not include a home occupation, swap meet, flea market, commercial sale, consignment sale, or any recurring retail sales activity.

9-3-2. *Applicability; No Permit Required.* A yard sale may be conducted without a Town permit if the yard sale complies with this Section and all other applicable provisions of this Code. Nothing in this Section authorizes a yard sale to operate as a business, home occupation, swap meet, flea market, commercial sale, consignment sale, or other recurring retail sales activity.

9-3-3. *Persons Authorized to Conduct Yard Sales.* Yard sales may be conducted only by the owner or resident of a specific residential address and only for the purpose of selling miscellaneous merchandise at retail.

9-3-4. *Number and Duration of Yard Sales.* Yard sales are limited to no more than four (4) times per calendar year per address. Each yard sale shall not exceed forty-eight (48) consecutive hours in total length.

9-3-5. *Hours of Operation.* Yard sales may be conducted only during daytime hours.

9-3-6. *Removal of Merchandise and Display Items.* All miscellaneous merchandise, tables, stands, racks, displays, signs, and other items associated with a yard sale shall be removed from outdoor display at the conclusion of each permitted yard sale period.

9-3-7. *Public Rights-of-Way.* No merchandise, tables, stands, racks, displays, signs, vehicles, or other items associated with a yard sale may be placed, displayed, stored, parked, or maintained within the public right-of-way.

9-3-8. *Public Health, Safety, and Welfare.* No yard sale may be conducted or continued in a manner that creates a traffic hazard, obstructs pedestrian or vehicular access, obstructs streets or sidewalks, creates excessive noise, creates a nuisance, or otherwise endangers the public health, safety, or welfare of surrounding neighbors or the community. The Town Manager or designee may require a yard sale to cease operation if the Town Manager or designee determines that the yard sale violates this Section.

Section 9-4 TELECOMMUNICATIONS.

9-4-1. *Purpose.* The purpose of this Section is to establish a competitively neutral and nondiscriminatory policy governing the management of the Town's public highways for the provision of telecommunications services, communications services, and related facilities, to the extent authorized by state and federal law.

9-4-2. *Findings.* The Town Council finds that the Town's public highways are valuable public assets that:

- (1) Have been acquired, dedicated, accepted, constructed, maintained, or regulated for public purposes;
- (2) Provide limited physical capacity for public and private facilities serving the Town and its residents;
- (3) May be used by telecommunications and communications providers for commercial purposes;
- (4) Require reasonable management to protect public health, safety, welfare, convenience, traffic flow, public infrastructure, and future public uses; and
- (5) Should be managed so that persons occupying or using the public rights-of-way bear the lawful and reasonable costs associated with such occupation or use.

9-4-3. *Policy and Intent.* In adopting this Section, the Town Council intends to:

- (1) Authorize nondiscriminatory and competitively neutral access to and use of the public highways by providers of telecommunications services and communications services, subject to this Section and applicable law;
- (2) Manage the public rights-of-way to minimize congestion, inconvenience, construction impacts, visual impacts, and other adverse effects on the Town and its residents;
- (3) Promote the efficient use of the limited physical capacity of the public rights-of-way and minimize the foreclosure of future public or private uses;
- (4) Promote competition among telecommunications and communications providers and encourage the availability of advanced services to residents and businesses of the Town;
- (5) Ensure compliance with lawful public health, safety, and welfare requirements applicable to facilities located in the public rights-of-way;
- (6) Provide for the recovery of lawful fees, costs, and compensation associated with the granting, administration, regulation, and use of public rights-of-way; and
- (7) Preserve the Town's police powers and other lawful authority over the public rights-of-way to the fullest extent permitted by state and federal law.

9-4-4. *Definitions.* For purposes of this Section, the following definitions apply unless the context clearly requires otherwise. Words not defined in this Section, the Arizona Public Service Law, A.R.S. §§ 40-201 *et seq.*, or the Federal Communications Act of 1934, as amended, 47 U.S.C. Chapter 5, shall be given their generally accepted meaning in the telecommunications industry.

"Cable Services and Cable System" shall have the same meaning as defined in state statute.

“Commercial Mobile Radio Service” means two-way voice commercial mobile radio service as defined by the Federal Communications Commission in 47 Code of Federal Regulations Section 20.3, as amended.

“Communications” means the transmission, between or among points specified by the user of information of the user's choosing, without change in the form or content of the information as sent and received, and includes but is not limited to telecommunications services and interstate communications services, but excludes cable and open video services. The operator of a fiber optics communication system shall be deemed to be a provider of communications services over facilities for the purposes of this Section, except as otherwise specifically provided for or excepted.

“Facilities” means the plant, equipment, and property, including but not limited to poles, wires, pipe, conduits, pedestals, antenna, and other appurtenances placed in, on, or under highways and not owned by the Town and used in the provision of communications services.

“Fiber Optics Communication System” means an interstate network of fiber optic cables and all related property including conduit, carrier pipe, cable fibers, repeaters, power sources, and other attachments and appurtenances necessary for the fiber optics communication.

“Non-Facilities Based Reseller” means any person that provides telecommunications service over a facility located in whole or in part in the public highways but who does not own, lease, or have an indefeasible right to use the underlying facility used for the transmission, does not place any facilities in the public highway itself, and is not responsible for the operation, installation or maintenance of facilities in the public highways under any arrangement; and resells a transmission service provided by the owner of the facility.

“Person” means any individual, partnership, association, corporation, legal entity or organization of any kind. Whenever used in any clause prescribing a penalty, the term *person* as applied to partnerships or associations includes partners or members thereof, and if applied to corporations, the officers thereof. *Person* does not include the Town of San Tan Valley.

“Provider” means all persons required to obtain a franchise or license under this Section, all telecommunications corporations, and all communications service providers.

“Public Highway or Highway” means all roads, streets, and alleys and all other dedicated public rights-of-way and public utility easements of the Town.

“Telecommunications” means the transmission, between or among points specified by the user, of information of the user's choosing, without change in the form or content of the information as sent and received. The term does not include commercial mobile radio services, pay phone services, or cable services.

“Telecommunications Corporation” means any public service corporation to the extent that it provides telecommunications services in this state.

“Telecommunications Services” means the offering of telecommunications for a fee directly to the public, or to such users as to be effectively available directly to the public, regardless of the facilities used.

“Wireless Services” means any services that are provided to the public and that use licensed or unlicensed spectrum, whether at a fixed or mobile location using wireless facilities.

9-4-5. *Rights Reserved to Town.* Without limiting the rights that the Town might otherwise have, the Town does hereby expressly reserve the following rights, powers, and authorities:

- (1) To exercise its governmental powers now or hereafter to the full extent that such powers may be

vested in or granted to the Town.

- (2) To determine any question of fact relating to the meaning, terms, obligations, or other aspects of this Section and the instruments issued under this Section.
- (3) To grant multiple, nonexclusive licenses, franchises, or permits within the Town to other persons.

9-4-6. *Police Power; Administration and Continuing Jurisdiction.* The provider shall at all times be subject to all lawful exercise of the police power by the Town, including any and all Articles, Sections, Subsections, rules, or regulations which the Town has adopted or may adopt, and all laws, rules, regulations, orders, and policies of the state and the United States Government. In the event of a conflict between this Section and other provisions of the Town Code, the stricter requirement shall apply. The Town shall have continuing jurisdiction and supervision over any facilities located within or on Town public highways. However, it is recognized that the daily administrative, supervisory, and enforcement responsibilities of the provisions of this Section shall be delegated and entrusted to the Town Manager or designee to interpret, administer, and enforce the provisions of this Section, and to promulgate standards regarding the construction, reconstruction, relocation, maintenance, dismantling, abandonment, or use of the facilities within the Town public highways.

9-4-7. *Compliance Required; Violations and Remedies.* From and after the effective date of this Section, it shall be unlawful for any provider to occupy the public highways unless the provider is in compliance with the provisions of this Section. The Town may pursue any remedy at law, including but not limited to, injunctive relief, civil or criminal trespass, criminal misdemeanor, and withholding other Town permits and authorizations until the provider complies with this Section. These remedies are cumulative and may be pursued in the alternative.

9-4-8. *License or Franchise Required.* No telecommunications corporation shall install, maintain, construct or operate telecommunication facilities in any public highway in the Town, unless a license to provide telecommunication services has first been granted by the Town Council under this Section.

9-4-9. *Existing State Grants Preserved.* Notwithstanding the foregoing, any telecommunications corporation that was providing telecommunications service within this state on November 1, 1997, pursuant to a grant made to it or its lawful predecessors prior to the effective date of the Arizona Constitution, may continue to provide telecommunications services, pursuant to that state grant, until the state grant is lawfully repealed, revoked, or amended, and need not obtain any further authorization from the Town to provide telecommunication services; provided, however, that such entity must in all other respects comply with the requirements applicable to telecommunications corporations, as provided in Title 9, Chapter 5, Section 7, Arizona Revised Statutes.

9-4-10. *Existing Franchises, Licenses, and Permits Preserved.* Nothing in this Section shall be deemed to affect the terms or conditions of any franchise, license, or permit issued by the Town prior to November 1, 1997, or to release any party from its obligations thereunder. Those franchises, licenses, or permits shall remain fully enforceable in accordance with their terms. The Town Manager with the consent of the Town Council may enter into agreements with franchise holders, licensees or permittees to modify or terminate an existing franchise, license or agreement.

9-4-11. *Scope of Telecommunications License.* A license to any telecommunications corporation to use the highways to install, maintain, construct or operate telecommunications facilities under this Section shall not authorize the use of the highways to provide any other service; nor shall the issuance of the same invalidate any franchise, license or permit that authorizes the use of the highways for such other service; nor shall the fact that an entity holds a franchise, license or permit to make any other use of the highway or to provide any other service authorize installation, maintenance, construction or operation of telecommunications facilities in any highway in the Town, without obtaining a license hereunder.

9-4-12. *Nonexclusive Nature of License.* Any license granted shall not be exclusive.

9-4-13. *Use of Licensed Facilities by Other Providers.* A telecommunications licensee may enter into contracts for use of its facilities within the public highways to provide telecommunication services. Persons

using such licensee's facilities must themselves obtain a telecommunication license if such person constructs, installs, operates or maintains telecommunication facilities within the public highway of the Town. If the persons using such licensee's facilities do not construct, install, operate or maintain telecommunication facilities within the public highway of the Town, such persons need not obtain a separate license but the telecommunications licensee must disclose the identity of such persons to the Town.

9-4-14. *Telecommunications Corporation License Application.* A telecommunications corporation desiring a license to construct, install, operate and maintain telecommunication facilities in streets and other highways of the Town shall file a proposal with the Town Manager, in the form prescribed by the Town, and shall pay an application fee determined by the Town Engineer. The amount of the application fee shall be reasonably related to the cost directly incurred by the Town relating to the granting or administration of the license and can be appealed to the Town Manager.

9-4-15. *Minimum Application Requirements.* Each application shall, at a minimum:

- (1) Show where the facilities the applicant will use will be located, or contain such other information as the Town may deem necessary in order to ensure that the applicant will comply with the requirements for use of the highways;
- (2) Identify the applicant, its name, address and telephone number;
- (3) Contain a description of the services to be provided; and
- (4) Set out a description of any agreement with any other entity that would permit such entity to use the facilities.

9-4-16. *Review and Issuance of License.* Upon receiving an application for a license that satisfies the conditions of Subsection 9-4-15, the Town shall promptly proffer a telecommunications license to the applicant for its review, and may inquire into matters relevant to the issuance of the license. If the applicant agrees to the terms and conditions of the license, the request shall be approved. Notwithstanding the foregoing, the Town need not issue or renew a license if the applicant has previously had a license or permit revoked, or for any other reason permitted under Arizona law.

9-4-17. *License or Franchise Terms.*

9-4-17-1. *Franchise election.* If the franchise is the type of agreement that requires voter approval based on state law, the Town Engineer shall forward the matter to the Town Clerk, who will place the item on a Town Council agenda for referral to the voters. If the matter is referred to the voters by the Town Council, the Town Clerk will advise franchise proposers to pay a franchise election fee to the Town Clerk within a specified number of days in an amount to be determined by the Town Clerk that recovers all Town costs. Upon the Town Clerk's receipt of the fee, the Town Clerk shall schedule a franchise election at the next date determined by the Town Council.

9-4-17-2. *Length of license or franchise.* Any license or franchise granted by the Town pursuant to this Section shall commence upon adoption of the license or franchise and acceptance of the license or franchise by the provider. The license or franchise shall be effective for a period determined by the Town Council, or such term as approved by the voters for franchises requiring voter approval, but in the case of a license to a telecommunications corporation to construct, install, operate or maintain telecommunications facilities, the period shall be five (5) years. Each license or franchise is subject to the conditions and restrictions provided in the instrument and this Section. The Town may terminate a license or franchise in accord with its terms and conditions if the licensee or franchisee is in default thereunder.

9-4-17-3. *License or franchise agreement.* The Town reserves the right, at its discretion, to require providers seeking a license or franchise under this Section to execute a binding agreement setting forth all terms and provisions of the contractual relationship between the Town and the provider regarding the presence of communications facilities within Town public highways. Such agreements may be amended only in writing subject to the mutual consent of the parties, and in the case of agreements relating to franchises, with the concurrence of the electorate at an election.

9-4-17-4. *No warranty.* Providers may choose between requesting a license or franchise under this Section. The issuance of a license by the Town is neither a representation nor a warranty that such license is a legally sufficient substitute for a franchise and is neither a representation nor a warranty that a franchise is not required.

9-4-18. *Conditions for Issuance or Renewal.* As a condition of issuing or renewing a license or franchise pursuant to this Section, applicant must:

9-4-18-1. Show, in the case of a telecommunications corporation seeking a telecommunications license or franchise, that the applicant has and maintains a valid certificate of convenience and necessity from the Arizona Corporation Commission or the Federal Communications Commission or the successor of either, as the case may be and in other cases, an applicant must demonstrate that it is qualified to hold a license or franchise; except that this requirement shall not apply to a telecommunication corporation that provides solely interstate telecommunication services within Arizona;

9-4-18-2. Agree to conform to public highway use requirements that the Town may establish from time to time;

9-4-18-3. Agree to provide and maintain accurate locational maps and drawings of all of applicant's facilities as proposed and as built in the public highway, and to comply with such other mapping requirements as the Town may establish from time to time;

9-4-18-4. Satisfy insurance, bonding, and security fund requirements established by the Town; fully indemnify the Town, its Mayor and Councilmembers, employees, officers, agents, boards and commissions, in a form satisfactory to the Town; and agree that applicant shall have no recourse against the Town for monetary damages as a result of any damage that may result from the Town's exercise of its rights under the license, or applicable provisions of law; and

9-4-18-5. Agree to comply with and be bound by the administrative and enforcement provisions set forth in this Section and as may be prescribed from time to time by the Town consistent with state law, which may include:

- (1) Provisions covering assignments;
- (2) The right to inspect records to determine compliance by the licensee;
- (3) Provisions for renewal; and
- (4) Fees and charges contemplated by A.R.S. § 9-582(C), as amended, may be charged by the Town pursuant to the Town Code.

9-4-19. *Additional Conditions; Police Power Preserved.* Nothing herein shall be read to prevent the Town from considering other matters or establishing additional conditions. Except as prohibited by state law, nothing herein shall be read to require the Town to issue or renew a license if the applicant has previously had a license or permit revoked, or for any other reason permitted under Arizona law. Every licensee shall be subject to the Town's exercise of such police, regulatory and other powers as the Town now has or may later obtain, and a license may not waive the application of the same, and must be exercised in strict conformity therewith.

9-4-20. *Cable and Open Video System Authorizations.* A cable franchise or license issued under other provisions of this Code shall not constitute for any purpose the license or franchise required under this Section. Nothing in this Section shall be read to relieve the operator of an open video system of the obligation to obtain a license or franchise before installing, constructing, operating or maintaining an open video system, and before providing open video system services.

9-4-21. *Transfers.* A license or franchise issued pursuant to this Section may not be transferred without the prior, written consent of the Town. A "transfer" is any transaction, however nominated, that results in a

change in the franchisee or licensee, or a change in the control of the communications facility, in whole or part, or a change in the control of franchisee, licensee or its parents, or that purports to transfer or subdivide any of the rights granted pursuant to the license or franchise.

9-4-22. *Limited Licenses for Communications Providers; Fees.* The license and proposal requirements set forth herein shall also apply, with necessary changes, to communications providers that are not telecommunications corporations. The Town Council may issue limited, non-exclusive licenses under the following circumstances:

9-4-22-1. *De minimis license.* The Town Council may issue a limited license to authorize placement of interstate fiber-optic telecommunications facilities within Town public highways in the event the facilities do not exceed ten lineal miles in total length of installation and connect only to interstate telecommunication carrier points of presence, and to no other connection within the Town. Said license shall provide for quarterly payments to the Town of a public highway occupancy fee for each lineal foot of installation on the basis of fair market value and cost, as determined by the Town Council at the time of the granting of the license and adjusted periodically thereafter at the Town's discretion. The license may also contain such additional terms and conditions as the Town Council may approve consistent with the purposes and findings in this Section and applicable law.

9-4-22-2. *Transmitting traffic license.* The Town Council may issue a limited license to authorize use of the Town's public highways solely for the purpose of providing telecommunications service where no sale or exchange of service originates or terminates in the Town. Said license shall provide for quarterly payments to the Town of a public highway occupancy fee for each lineal foot of installation on the basis of fair market value and cost, as determined by the Town Council at the time of the granting of the license and adjusted periodically thereafter at the discretion of the Town. The license may also contain such other terms and conditions as the Town Council may approve consistent with the purposes and findings in this Section and applicable law.

9-4-22-3. *Wireless services facilities license.* The Town Council may issue a limited license to authorize the installation, operation, maintenance, or use of wireless services facilities, such as antennas, within the Town's public highways. Unless no fee is allowed by law, said license shall provide for quarterly payments to the Town of a public highway occupancy fee for each site or installation on the basis of fair market value and cost, as determined by the Town Council at the time of the granting of the license and adjusted periodically thereafter at the discretion of the Town. The license may contain such other terms and conditions as the Town Council may approve consistent with the purposes and findings in this Section and applicable law.

9-4-23. *Right-of-Way Permit.* The Town Engineer shall not issue an encroachment permit or other authorization for a provider to construct or install communications facilities, or facilities for which a license or franchise is required under this Section, unless the provider has first obtained all licenses or franchises required to occupy the Town's public highways under this Section. No permit issued shall be valid if the required license or franchise has not been obtained, unless a temporary exemption is granted in accordance with the following provisions:

9-4-23-1. *License Seekers.* For a provider actively negotiating a license agreement with the Town, the Town Engineer may grant a temporary exemption for a period not to exceed six (6) months.

9-4-23-2. *Franchise Seekers.* For a provider actively negotiating a franchise agreement, and to allow for the election process, the Town Engineer may grant a temporary exemption for a period not to exceed twelve (12) months.

9-4-23-3. *Written Determination.* To issue a temporary exemption, the Town Engineer must receive written confirmation from the Town Manager that the provider is in active, good-faith negotiations with the Town and that such an exemption serves the public interest.

9-4-23-4. *Compliance Required.* Any provider operating under a temporary exemption remains

fully subject to all other provisions of this Section, including police power regulations, insurance and bonding requirements, and the Town's engineering design and construction standards.

9-4-23-5. *Revocation.* The Town Engineer may revoke a temporary exemption at any time if negotiations cease or if the provider fails to comply with the material terms of the Town Code.

9-4-24. *Revocation; Refusal to Renew.* The Town may revoke or refuse to renew any license or franchise issued or granted under this Section for failure to comply with the material terms and conditions of the license or franchise or applicable law. A license or franchise may be revoked only if the licensee or franchisee has been given written notice of the defect or defects in performance and the defect is not or the defects are not cured within sixty (60) days of the notice, unless the Town finds that the defect is due to intentional misconduct, is a violation of criminal law, or is part of a pattern of violations if the licensee or franchisee has already had notice and opportunity to cure. If the licensee requests a hearing, a hearing shall be held before a license is revoked or not renewed.

9-4-25. *Fees and Costs.* A telecommunication corporation, including a telecommunications corporation not required to obtain a license pursuant to an exemption, shall pay an encroachment permit fee for the issuance of an encroachment permit to place telecommunication facilities in the public highway. A telecommunication corporation that has placed facilities in public highways that carry interstate traffic between and among the telecommunication corporation's points of presence exclusive of facilities used by the local network and the portion of the interstate network that carries intrastate calls, shall pay an annual fee based on the number of linear feet of conduit in the public highways. The rate per linear foot shall be set by Town Council resolution and shall not exceed the highest rate per linear foot a political subdivision charged a licensee or franchisee on or before December 31, 1999. The rate per linear foot shall not be increased in any year by more than the increase in the average consumer price index as published by the United States Department of Labor, Bureau of Labor Statistics. Telecommunication corporations shall bear all of the reasonable costs associated with construction, maintenance, and operations of its facilities in the public highways used to provide telecommunications services including reasonable costs associated with damage to the public highways.

9-4-25-1. *Alternative Fee Structures; Gross Revenues.* As an alternative to the linear foot fees described in Section 9-4-25, depending on the type of facility proposed in the right-of-way, the type of service that is provided, and to the maximum extent permitted by applicable state and federal law, the Town Council may require a licensee or franchisee to pay a fee based on a percentage of the provider's gross revenues or an upfront, annual or one-time fee for a term set forth in the individual license and franchise agreement. "Gross Revenues" shall mean all cash, credits, property of any kind or nature, or other consideration derived directly or indirectly by the provider from the operation of its facilities or the provision of telecommunications services within the Town. The specific percentage and payment schedule shall be set forth in the individual license or franchise agreement.

9-4-26. *Non-Facilities-Based Resellers.* A telecommunications licensee or franchisee may enter into contracts for the use of its telecommunications facilities within the public highways to provide telecommunications services. Any person using such licensee's or franchisee's facilities must obtain a separate telecommunications license or franchise for such person, if such person constructs, installs, operates or maintains telecommunications facilities within the public highway of the Town. If a person using such licensee's or franchisee's facilities does not construct, operate, or maintain telecommunications facilities within the public highway of the Town, such person need not obtain a separate license or franchise but the telecommunications licensee or franchisee must disclose the identity of such persons to the Town. Each telecommunications licensee or franchisee shall report to the Town on a current basis all other providers with whom it contracts to use its lines in the public highways within the Town to provide telecommunications services.

9-4-27. *Registration.* Providers using or planning to use the Town's public highways must register with the Town on a form prescribed by the Town and must include the following information: the provider's name, address and telephone number; a description of the services provided and to be provided; a description of the

facilities used or to be provided by the provider; and a description of the location of the facilities. A provider shall file a proposed amendment to the registration before it makes any change that would render the registration information incomplete or inaccurate. A change of the provider's name or address must be filed at least sixty (60) days prior to the date the change becomes effective; a change in the telephone number must be filed ten (10) days before the change becomes effective; in the case of change in facilities (by addition, subtraction or modification or movement) the change in facilities must be filed at least sixty (60) days before work commences on the facilities unless the relocation was ordered by the Town. In the case of a change in services, the change must be noticed thirty (30) days before the earlier of the date the service commences, or the provider begins marketing the service.

9-4-28. *Location and Relocation of Facilities in Public Highway.* Each provider is responsible for ensuring that its facilities are installed, constructed and maintained in strict accordance with the Town Code and Town Design and Engineering Standards; that all required licenses, franchises and permits are applied for and obtained before any work commences; and that the terms and conditions thereof are strictly followed. Where a facility has more than one provider, each provider is fully responsible for ensuring that all requirements are satisfied. Facilities shall be installed, constructed and maintained so that no additional costs are imposed upon the Town, and so that the facility does not interfere with other uses or users of the public highways. Without limiting the requirement of any other provision of the Town Code, or the provisions of any license, permit, or franchise issued by the Town, this shall require, at a minimum, compliance with the provisions of this Section.

9-4-29. *Design, Construction, and Location of Facilities.* The facilities to be constructed, installed, operated, and maintained by the provider shall be designed and constructed with the Town Engineering Design Standards and shall be so located or relocated as to interfere as little as possible with traffic or other authorized uses over, under, or through the public highways. Those phases of construction relating to traffic control, backfilling, compaction, and paving, as well as the location or relocation of said facilities shall be subject to regulation by the Town Council.

9-4-29-1. *Installation Records and As-Built Mapping.* The provider shall keep accurate installation records of the location of all facilities in the public highways and furnish the installation records to the Town upon request or at such periodic intervals as the Town may require. Upon completion of new or relocation construction of underground facilities in the public highways, the provider shall provide the Town, if requested or as required, with installation records in a format compatible with the then-current Town mapping format showing the location of the underground and above ground facilities.

9-4-29-2. *Completion of Work.* Whenever the provider shall cause any opening or alteration whatsoever to be made for any purpose in any public highways, the work shall be completed within the time specified in the license, permit, or franchise, or if no time is specified then within a reasonable time.

9-4-29-3. *Interference with Town Facilities; Relocation.* The installation, use, and maintenance of the provider's facilities within the public highways authorized herein shall be in such a manner as not to interfere with the Town's placement, construction, use, and maintenance of its public highways, street lighting, water pipes, drains, sewers, traffic signal systems, or other Town systems that have been, or may be, installed, maintained, used or authorized by the Town. Upon the Town's request, provider's facilities will be relocated at provider's expense, unless state law expressly requires otherwise. Upon the Town's request, by a time specified by the Town, if the provider fails to move its facilities, the Town may do so and will bill the provider for the costs of doing so and the provider shall pay those costs within 30 days after its receipt of the invoice. Further, the provider shall reimburse the Town for any additional cost the Town incurs due to the location or relocation of the provider's facilities, including all design and construction costs.

9-4-29-4. *Interference with Other Providers' Facilities.* The provider shall not install, maintain, or use any of its facilities in such a manner as to damage or interfere with facilities of another provider located within the public highways of the Town.

9-4-29-5. *Approved Plans; Existing Poles and Conduits.* All facilities shall be installed per plans approved by the Town. Provider may install facilities on existing utility poles or in existing conduit where permission is granted by owner of the utility pole or conduit, except where those same poles are scheduled to be replaced with buried facilities. The Town may require the provider to prove that it has such permission from the owner to use the owner's facilities. No new poles, or taller poles, will be permitted in the public highways for any new facilities, without the express written permission of the Town. If provider installs facilities on existing poles as provided herein, the provider shall bury its facilities when such poles are removed and not replaced in kind for any reason. If the provider makes use of existing conduit of another provider, the provider shall be subject to the provisions of this Section in the use of such conduit in the public highways.

9-4-29-6. *Insurance, Bonding, and Security Requirements.* Each provider must obtain and maintain such insurance, bonding, and security fund requirements as specified by the Town, or if no specific requirements are designated, as are required by the Town for similar facilities. No work shall commence unless these requirements have been satisfied, and the Town may require the provider to remove or stop work on facilities, or require a provider to cease using the facility, when any insurance, bonding, or security fund requirements are not satisfied.

9-4-29-7. *Permits for Removal, Abandonment, Relocation, Reconstruction, and Emergency Repairs.* A permit shall be obtained from the Town Engineer prior to a provider removing, abandoning, relocating, or reconstructing, if necessary, any portion of a provider's facilities. Notwithstanding the foregoing, the Town understands and acknowledges there may be instances when a provider is required to make repairs, in compliance with federal or state laws, that are of an emergency nature. The provider will notify the Town prior to such repairs, if practicable, and will obtain the necessary permits in a reasonable time after notification.

9-4-30. *Conflicts with Town Projects.* If, during the design process for public improvements, the Town discovers a potential conflict with proposed construction, the provider shall either: (1) Locate and, if necessary, expose its facilities in conflict; or (2) Use a location service under contract with the Town to locate or expose its facilities. The provider shall reimburse the Town for the cost resulting from the use of such location service.

9-4-30-1. *Design Coordination; Provider Location Information.* The Town shall make reasonable efforts to design and construct projects pursuant to this Section so as to avoid relocation expense to the provider. Provider shall furnish location information to the Town in a timely manner, but in no case longer than ten (10) calendar days from the date of the Town's request.

9-4-30-2. *Town's Prior and Superior Rights.* The Town reserves the prior and superior right to lay, construct, erect, install, use, operate, repair, replace, remove, relocate, regrade, widen, realign, or maintain any public highways, aerial, surface, or subsurface improvements, including, but not limited to, water mains, traffic control conduits, cable and devices, sanitary or storm sewers, subways, tunnels, bridges, viaducts, or any other public construction within the public highways of the Town.

9-4-30-3. *Provider Relocation Obligation.* When the Town invokes its prior superior right to the public highways, the provider shall move its facilities located in the public highways, at its own cost, to such a location as the Town directs.

9-4-30-4. *Conflicts During Town Projects.* If, during the course of a project, the Town determines provider's facilities are in conflict, the following shall apply:

9-4-30-5. *Conflicts Identified Before Notice to Proceed.* Prior to Town notice to proceed to contractor: the provider shall, within a reasonable time, but in no event exceeding one month, remove or relocate the conflicting facility. This time period shall begin running upon receipt by the provider of written notice from the Town. However, if both the Town and the provider agree, the

time frame may be extended based on the requirements of the project.

9-4-30-6. *Conflicts Identified After Notice to Proceed.* Subsequent to Town notice to proceed to contractor: the Town and the provider will immediately begin the coordination necessary to remove or relocate the facility. Actual construction of such removal or relocation is to begin no later than 72 hours, if practicable, after written notification from the Town of the conflict.

9-4-31. *Damage to Town Public Highways and Facilities.* If, in the installation, use, relocation, repair, or maintenance of its facilities, the provider damages, alters, or disturbs the surface or subsurface of any public highways or adjoining public property, or the public improvement located thereon, therein, or thereunder, the provider shall promptly, at its own expense, and in a manner acceptable to the Town, restore the surface or subsurface of the public highways or public property, or repair or replace the public improvement thereon, therein, or thereunder, in as good a condition as before such damage or disturbance in a manner consistent with the Town's duly adopted standards, or as required by its permits, licenses, or franchises. If such restoration, repair, or replacement of the surface, subsurface, or any structure located thereon, therein, or thereunder is not completed within a reasonable time, or such repair or replacement does not meet duly adopted standards or requirements of its permits, licenses, or franchises, the Town shall have the right to perform the necessary restoration, repair, or replacement, either through its own forces, or through a hired contractor, and the provider shall pay the Town for its expenses in so doing within 30 days after its receipt of the invoice. The provider shall reimburse the Town for all costs arising from the reduction in the service life of any public highway or pavement damage, to the extent required by any other provision of this Code, resulting from pavement cuts of the provider. The provider shall pay such costs within 30 days from the date of issuance of an invoice from the Town.

9-4-32. *Damage to Private and Third-Party Facilities.* If, in the installation, use, relocation, repair, or maintenance of its facilities, a provider damages the facilities of another provider, public utility, or private property owner located within the public highway or public utility easement, the following shall apply:

9-4-32-1. *Immediate Notification.* The damaging provider shall immediately notify the owner of the damaged facility and the Town Engineer.

9-4-32-2. *Repair Responsibility.* The damaging provider shall be responsible for the prompt repair or replacement of the damaged facility at their own expense, to the satisfaction of the facility owner and in accordance with industry standards.

9-4-32-3. *Town Indemnification.* The damaging provider shall hold the Town harmless from any and all claims, self-insured or otherwise, and all costs and expenses, including attorney fees, arising from damage to third-party facilities or private property.

9-4-32-4. *Failure to Repair.* If the damaging provider fails to repair or replace the damaged facility within a reasonable time, the Town reserves the right, but not the obligation, to facilitate the repair through a third party or the facility owner, with all costs billed directly to the damaging provider.

9-4-32-5. *Coordination.* All repairs must be coordinated through the Town's permit process to ensure that the restoration does not create new conflicts with existing Town or third-party infrastructure.

9-4-33. *Relocation of Facilities.* The Town shall not bear any cost of relocating existing facilities, irrespective of the function served, where Town facilities or other facilities occupying the public highways under authority of a Town permit, license, or franchise which must be relocated, are already located in the public highways and the conflict between the provider's potential facilities and the existing facilities can only be resolved expeditiously as determined by the Town by the movement of the existing Town or other approved facilities.

9-4-33-1. *Provider Delay Damages; Dispute Resolution Board.* If provider's relocation effort so delays construction of a public project causing the Town to be liable for delay damages, the provider

shall reimburse the Town for those damages attributable to the delay created by the provider. If the provider should dispute the amount of damages attributable to the provider, the matter shall be referred to the dispute resolution board. The dispute resolution board shall consist of one member selected by the Town, one member selected by the provider, and a third person agreed upon by both parties. The person agreed upon by both parties shall be chairperson of the dispute resolution board. Expenses for the dispute resolution board shall be shared equally by the Town and the provider. The board will hear the dispute promptly, and render an opinion as soon as possible, but in no case later than sixty (60) days after notification by the Town of provider's allocated share of damages suffered by the Town. All decisions of the dispute resolution board are non-binding on either the Town or the provider, however, the findings of the dispute resolution board shall be admissible in any legal action.

9-4-33-2. *Acceptance or Rejection of Dispute Resolution Findings; Payment.* The Town and the provider shall accept or reject findings of the dispute resolution board within thirty (30) days after receipt of the findings. If both the Town and the provider accept the findings of the dispute resolution board in writing and damages are assessed by the dispute resolution board, the provider shall pay the Town within thirty (30) days of receipt of an invoice. Late charges of five percent and interest charges of one and one-half percent per month shall be added for late payment.

9-4-33-3. *Prior Private Easement Rights; Town-Paid Relocation Exception.* Except as otherwise provided in a license, franchise, or permit, or by other provision of law, the entire cost of relocation shall be borne by the Town if the provider is required by the Town to relocate facilities which are located in private easements obtained by the provider prior to the dedication of the public street or easement from which the facilities must be relocated. These prior rights of the provider would also be unaffected by any subsequent relocation. Prior rights, as used in this Subsection, means private easement rights obtained by the provider prior to the dedication of the streets or public ways from which the facilities are requested by the Town to be relocated. In the case of a facility that serves multiple purposes, the prior rights must extend to all uses for this exception to apply.

9-4-34. *Penalty.* Among other penalties that may apply, any person, firm or corporation that violates any provision of this Section shall be guilty of a class 1 misdemeanor. Upon conviction persons shall be punished by a fine not to exceed two thousand five hundred dollars (\$2,500), or by imprisonment for a period not to exceed six (6) months, or by both such fine and imprisonment. Upon conviction, firms or corporations shall be punished by a fine not to exceed twenty thousand dollars (\$20,000). Each day of violation continued shall be a separate offense, punishable as described above.

ARTICLE 10 – OFFENSES

SECTIONS:

10-1: TRESPASS

10-2: GRAFFITI

10-3: NOISE

10-4: FIREWORKS

10-5: SMOKING

10-6: CURFEW

10-7: CAMPING

Section 10-1 TRESPASS.

It is unlawful for any person to knowingly enter onto or remain in or on any public property designated and posted with no trespassing signs.

Section 10-2 GRAFFITI.

10-2-1. *Purpose.* The purpose of this Section is to provide for the prevention, prohibition, removal, and abatement of graffiti from walls, structures, surfaces, and property within the Town in order to reduce blight and deterioration and to protect the public health, safety, and welfare. The Town Council finds that graffiti is obnoxious, contributes to neighborhood deterioration, may provide a communication system for gangs and other vandals, damages property, and constitutes a public nuisance. The Town Council further finds that graffiti should be removed promptly to avoid the detrimental impact that graffiti has on the Town and its residents, to discourage vandalism, and to prevent the further spread of graffiti.

10-2-2. *Definitions.* In this Section, unless the context otherwise requires:

“*Broad-tipped indelible marker*” means any felt-tip, fiber-tip, or similar marker that contains ink or another pigmented substance that is not water-soluble and that has a marking surface greater than one-fourth (1/4) inch at its broadest point.

“*Graffiti*” means any unauthorized inscription, word, figure, mark, design, label, drawing, painting, etching, sticker, or other defacement that is written, painted, drawn, etched, scratched, sprayed, placed, or otherwise applied to any building, structure, fixture, wall, fence, sidewalk, sign, surface, or other real or personal property.

“*Graffiti implement*” means an aerosol spray paint container, broad-tipped indelible marker, etching implement, etching solution, or other instrument, substance, or device possessed or used with the intent to apply graffiti.

10-2-3. *Graffiti Prohibited; Property to Be Kept Free from Graffiti.* All sidewalks, walls, buildings, fences, signs, structures, and other surfaces shall be kept free from graffiti when the graffiti is visible from a street or other public or private property.

10-2-4. *Unauthorized Application of Graffiti.* Except as authorized by A.R.S. § 40-360.22 or other applicable law, no person shall apply graffiti or any inscription, figure, mark, or defacement of any type on any building,

structure, fixture, wall, fence, sidewalk, sign, surface, or other real or personal property within the Town without the express permission of the owner of the property.

10-2-5. *Possession of Graffiti Implements.*

10-2-5-1. *Possession with Intent to Apply Graffiti.* No person shall possess a graffiti implement with the intent to violate this Section.

10-2-5-2. *Possession on Private Property Without Consent.* No person shall possess a graffiti implement on private property without the consent of the owner.

10-2-5-3. *Possession by Minors on Public Property.* No person under eighteen (18) years of age shall possess a graffiti implement on any public property unless accompanied by a parent, guardian, employer, teacher, or other adult in a similar relationship and such possession is for a lawful purpose.

10-2-6. *Sale or Transfer of Graffiti Implements to Minors.* No person or firm shall sell, deliver, give, or cause to be sold, delivered, or given, any graffiti implement to any person under eighteen (18) years of age. No person under eighteen (18) years of age shall buy any graffiti implement. Evidence that a person, or the person's employee or agent, demanded and was shown acceptable evidence of majority and acted upon such evidence in a transaction or sale shall be a defense to prosecution under this Subsection. This Subsection does not apply to the transfer of a graffiti implement from a parent to child, guardian to ward, employer to employee, teacher to student, or in any other similar relationship when such transfer is for a lawful purpose.

10-2-7. *Storage and Display of Graffiti Implements by Retailers.*

10-2-7-1. *Restricted Access Required.* It is unlawful for any person who owns, conducts, operates, or manages a business where graffiti implements are sold, or any person who sells or offers for sale graffiti implements, to store or display, or cause to be stored or displayed, such graffiti implements in an area that is accessible to the public without employee assistance in the regular course of business pending lawful sale or other disposition.

10-2-7-2. *Public Viewing Permitted.* Nothing in this Section prohibits the storage or display of graffiti implements in an area viewable by the public, provided that such items are not accessible to the public without employee assistance.

10-2-8. *Graffiti Declared Public Nuisance; Abatement.* Graffiti visible from a street or other public or private property is declared to be a public nuisance. Any violation of this Section may be abated in accordance with the nuisance abatement procedures of this Code or by any other lawful means available to the Town.

10-2-9. *Entry and Abatement Authority.* The Town or its authorized agent may enter upon property to inspect, remove, or abate graffiti only as authorized by consent, warrant, court order, emergency authority, the nuisance abatement procedures of this Code, or other applicable law.

10-2-10. *Penalties; Community Service; Restitution.*

10-2-10-1. *General Penalties.* A person who violates this Section is subject to the penalties provided in Article 1, Section 1-11 of this Code and any additional penalties, community service, restitution, or other remedies authorized by state law or this Code.

10-2-10-2. *Community Service.* In addition to any other penalty authorized by law, a person found responsible for or convicted of a violation of this Section may be required by the court to complete community service involving participation in the removal of graffiti.

10-2-10-3. *Restitution.* In addition to any sentence, fine, civil sanction, or community service, the court may order restitution to the victim for damage or loss caused directly or indirectly by the

violation, or to any person or entity, including the Town or another political subdivision, that incurred expense to repair, remove, or abate graffiti or related damage.

10-2-10-4. *Remedies Cumulative.* The remedies provided in this Section are cumulative and do not limit the Town's authority to pursue criminal enforcement, civil enforcement, nuisance abatement, injunctive relief, restitution, cost recovery, or any other remedy authorized by law.

Section 10-3 NOISE.

10-3-1. *Authority and Purpose.* It is hereby declared to be the policy of the Town of San Tan Valley to prohibit any noise which exceeds the decibel level set forth in this Section. At and above certain levels, such noises are unreasonable, excessive, and detrimental to the health and welfare of the citizens of the Town, and it is in the best interest of the citizens of the Town that such excessive noises be systematically eliminated.

10-3-2. *Excessive Noise Violation.* It shall be unlawful and a violation of this Section for any person to knowingly or intentionally make, continue, or cause to be made or continued, or to allow or permit any excessive noise as defined or regulated by this Section, which disturbs the peace or quiet of any neighborhood or which causes discomfort or annoyance to any reasonable person of normal sensitivity residing in the area.

Some factors that will be considered in determining whether a violation exists will include, but are not limited to, the following:

- (1) The volume of the noise;
- (2) The intensity of the noise;
- (3) The volume and intensity of the background noise, if any;
- (4) The proximity of the noise to residential sleeping facilities;
- (5) The nature and zoning of the area within which the noise emanates;
- (6) The density of the inhabitation of the area within which the noise emanates;
- (7) The time of the day or night the noise occurs;
- (8) The duration of the noise; and
- (9) Whether the noise is recurrent, intermittent, or constant.

10-3-3. *Definitions.* In this Section, unless the context otherwise requires:

“Area” means the region or space near, or surrounding, a particular place or object.

“A-Weighted Sound Pressure Level” means the sound pressure level as measured with a sound level meter using the A-weighting network. A-weighting is the standard for determining hearing damage and noise pollution. The standard notation is dB(A) or dBA.

“Commercial Property” means any property occupied by a business, store, or shop which shall be a retail establishment where all products shall be sold on the premises.

“Decibel (dB)” means a unit for measuring the volume of a sound equal to twenty (20) times the logarithm to the base ten (10) of the ratio of the pressure of the sound measured to the reference pressure, which is twenty (20) micropascals (20 micronewtons per square meter), denoted as dB.

“Emergency Vehicle” means vehicles of the fire, police, and public service departments and legally authorized ambulances and emergency vehicles of state departments or any political subdivisions thereof and vehicles of public service corporations.

“Emergency Work” means any work performed to prevent or alleviate physical trauma or property damage threatened or caused by an emergency which has or may result in a disruption of service and which is necessary to protect the health, safety, and welfare of persons or property.

“Excessive Noise” means any sound that exceeds the applicable sound level limits established in this Section or otherwise violates this Section.

“Gross Vehicle Weight Rating (GVWR)” means the value specified by the manufacturer as the recommended maximum loaded weight of a single-motor vehicle. In cases where trailers and tractors are separable, the gross combination weight rating (GCWR), which is the value specified by the manufacturer as the recommended maximum loaded weight of the combination vehicle, shall be used.

“Industrial Property” means any property occupied by land uses whose primary operation involves manufacturing, assembling, processing or otherwise treating raw materials, semi-finished products, or finished products for packaging and distribution to either wholesale or retail markets.

“LEQ” (Equivalent Sound Level) means the constant level that over a given period transmits to the receiver the same amount of acoustic energy as the actual time-elapsed sound.

“Legal Holiday” means those holidays so designated by Town of San Tan Valley.

“Motorized Sporting Event” means a pre-scheduled, periodic, or special event held at a speedway, racetrack, or other paved or unpaved course that is designed and intended for either professional or amateur motor vehicle competitions, exhibitions of speed, or other ancillary activities involving the use of motor vehicles.

“Motor Vehicle” means every self-propelled land vehicle not operated upon rails, except bicycles, mopeds, self-propelled chairs used by persons who are disabled, and electric personal assistive mobility devices.

“Muffler” means a device for abating the sound of escaping gases from an internal combustion engine.

“Noise” means the same meaning as “sound pressure level” as hereinafter defined.

“Property Line” means the line which represents the legal limits of real property (including an apartment, condominium, room or other dwelling unit) owned, leased or otherwise occupied by a person, business, corporation or institution. In cases involving sound from an activity on a public street or other public right-of-way, the property line shall be the nearest boundary of the public right-of-way.

“Residential Property” means any property, the dominant use of which is non-transient occupancy of residential dwelling units.

“Site-Specific Source of Noise” means any source of sound which is found on a specific site or tract of land and which originates from that site even though the specific source of the sound generation may be mobile.

“*Sound*” means temporal and spatial oscillation in pressure, section displacement, section velocity, or other physical parameter in a medium with internal forces that causes particle displacement, particle velocity, alternating compression, and rarefaction of that medium and which propagates at finite speed to distant points and can evoke an auditory sensation.

“*Sound Level Meter*” means an instrument which includes a microphone, amplifier, RMS (root mean square) detector, integrator or time averager, output meter, and weighting networks used to measure sound pressure levels.

“*Sound Pressure*” means the instantaneous difference between the actual pressure and the average or barometric pressure at a given point in space as produced by sound energy.

“*Sound Pressure Level*” means twenty (20) times the logarithm to the base ten (10) of the ratio of RMS sound pressure to the reference pressure of twenty (20) micropascals (20×10^{-6} N/m²). The sound pressure level is denoted L_p or SPL and is expressed in decibels (dB).

“*Street*” means a way, existing or proposed, for vehicular traffic whether designated as a street, highway, thoroughfare, parkway, throughway, freeway, road, roadway, boulevard, avenue, lane, place, or however otherwise designated.

“*Street, Collector*” means a street, existing or proposed, collecting traffic from local streets, and connecting the same with a major street, or another collector street.

“*Street, Local, or Minor*” means a street, existing or proposed, exclusively or primarily providing access and utilities to abutting properties.

“*Street, Major*” means such major street, highway, thoroughfare, parkway or boulevard and all section lines so designated by the Town.

10-3-4. *Sound Level Measurement Criteria.* For the purpose of enforcement of the provisions of this Section, noise levels shall be measured on the A-weighted scale with a sound level meter satisfying at least the applicable requirement for Type 2 sound level meters as defined in American National Standard SI.4-1971 or the most recent revisions thereof. Prior to measurement, the meter shall be set for slow response speed, except that for rapidly varying sound levels, fast response speed may be used. Prior to measurement, the meter shall be verified and calibrated according to the manufacturer’s specifications.

10-3-5. *Enumeration of Excessive Noises.* The following enumerated acts or conditions may produce excessive and unreasonable noise which violates the provisions of this Section.

10-3-5-1. *Land Use Noise.*

(1) *Classification of Use Districts (Residential, Rural, Commercial, Industrial).* Zoning district classifications shall be as set out in Section 2 of the Town of San Tan Valley Zoning Ordinance and shall for purposes of this Code be distinguishable as Residential, Commercial, Rural, and Industrial land use classifications, within which sound levels of Table 1 below shall be locally measurable and applied by the use of LEQ levels as defined in Section 10-3-3 and measured in accordance with the methods set forth in Section 10-3-4 for purposes of evaluating an alleged violation of this Section.

(2) *Violations.* It is unlawful and a violation of this Section for any person to operate, or permit to be operated, any site-specific source of sound that, when measured at or beyond the property line of the property from which the sound is generated:

(i) Creates a sound level in excess of its ambient sound pressure level (Leq) limit, indicated on Table 1 below:

TABLE 1 - LIMITING SOUND LEVELS FOR LAND USE DISTRICTS	
Zoning District Classifications	Leq Limits, dBA
(<u>Agricultural and Rural</u>) Section 2.2 of the Town of San Tan Valley Zoning Ordinance	60dBA {7 am-8pm} 55dBA {8pm-7am}
(<u>Commercial</u>) Section 2.3 of the Town of San Tan Valley Zoning Ordinance	65dBA {7am-10pm} 60dBA {10pm-7am}
(<u>Business and Industrial</u>) Section 2.4 of the Town of San Tan Valley Zoning Ordinance	70dBA {7am-10pm} 65dBA {10pm-7am}

** The LEQ limits specified in Table 1 are LEQ for a ten (10) minute time interval. Partial LEQ levels may be obtained as necessary to assure an accurate indication of the representative sound environment for the site. These sound levels are not for construction activities being performed pursuant to a validly issued building permit issued by the Town.*

(ii) Projects sound from property located in one zoning district into property located in another zoning district with a lower applicable sound level limit, in which case the sound shall not exceed the lower applicable sound level limit.

10-3-5-2. *Vehicle Noise.*

(1) *Vehicle Noise Limits.* No person shall operate either a motor vehicle or combination of vehicles at any time upon any street or paved surface or under any condition of grade, load, acceleration, or deceleration in such a manner as to exceed the following noise limit for the category of motor vehicle, based on a distance of fifty feet (50') or fifteen (15) meters from the center of the street, paved surface, or from the actual motor vehicle or combination of vehicles:

TABLE 2 - SOUND PRESSURE LEVEL LIMITS FOR MOTOR VEHICLES (Measured at 50 Feet or 15 meters)		
Vehicle Class	Operated on a Local Street	Operated on a Paved Surface or Major Street
Motor vehicles with a manufacturer's gross vehicle weight rating (GVWR) or gross combination weight rating (GCWR) of 10,000 pounds or more or any combination of vehicles towed by such motor vehicle.	86 dBA	90 dBA
Any other motor vehicle or any combination of vehicles towed by any such motor vehicle.	76 dBA	82 dBA
Motorcycles operated upon the public streets, roads, or highways.	82 dBA	86 dBA

(2) *Vehicle Repairs.* It shall be unlawful for any person within any residential area of the Town to repair, rebuild, or test any motor vehicle between the hours of 10:00 P.M. of one day and 7:00 A.M. of the next day in such a manner as to create an excessive noise pursuant to Table 1 of this Section.

(3) *Mufflers.* No person shall operate or cause to operate any motor vehicle unless the exhaust system of such vehicle is:

- (i) Free from defects which may cause sound level magnification;
- (ii) Equipped with a muffler; and
- (iii) Not modified in a manner, which will amplify or increase the sound level emitted by the motor of such vehicle above the sound levels provided for in Table 2 of Section 10-3-5-2.

10-3-6. *Loud Radios and Sound Sets.* It shall be unlawful for any person, including the owner or manager of any business, to operate, or permit to be operated, a radio, speaker, amplifier, or other sound producing mechanism, at any time in such a manner as to permit the sound to be heard at a level exceeding 60 dBA between 7:00 a.m. and 10:00 p.m. and 55 dBA between 10:00 p.m. and 7:00 a.m. at any point on the property line of the property where the radio, speaker, amplifier, or other sound-producing mechanism is located. A violation occurs when these limits are exceeded for five (5) or more minutes.

10-3-7. *Construction of Buildings and Other Projects.*

10-3-7-1. *Noise limitation.* Subject to the provisions of this Section, it shall be unlawful for any person to operate equipment or perform any outside construction or repair work on buildings, structures or projects, or to operate any pile driver, power shovel, pneumatic hammer, derrick, power

hoist or any other construction type device except within the time periods specified below unless an appropriate permit has been obtained beforehand from the Town.

10-3-7-2. *Construction Start/Stop Times*: The following are summertime construction hours governed by A.R.S. § 9-500.52.

(1) *Concrete Work*. From May 1 to October 15, inclusive, concrete may be poured each day between the hours of 4:00 a.m. and 7:00 p.m. or at such other times as authorized by a valid permit. From October 16 to April 30, inclusive, concrete may be poured each day between the hours of 6:00 a.m. to 7:00 p.m. or at such times as authorized by a valid permit.

(2) *Other Type Construction (Residential Property/Zoning Districts)*. From May 1 to October 15, inclusive, all other construction or repair work shall not begin prior to 5:00 a.m. and must stop by 7:00 p.m. each day, or at such other times as authorized by a valid permit. From October 16 to April 30, inclusive, all other construction or repair work shall not begin prior to 7:00 a.m. and must be concluded by 7:00 p.m. each day, or at such other times as authorized by a valid permit.

(3) *Other Type Construction (Non-Residential Property)*. From May 1 to October 15, inclusive, all other construction or repair work shall not begin prior to 5:00 a.m. and must stop by 7:00 p.m. each day or at such other times as authorized by a valid permit. From October 16 to April 30, inclusive, all other construction or repair work shall not begin prior to 7:00 a.m. and must be concluded by 7:00 p.m. each day, or at such other times as authorized by a valid permit.

(4) *Weekends and Holidays*. Notwithstanding anything to the contrary herein, construction or repair work shall not begin prior to 7:00 a.m. and must stop by 7:00 p.m., and concrete pouring shall not begin prior to 6:00 a.m. and must stop by 7:00 p.m., on any Saturday, Sunday or legal holiday observed by the Town, unless such other times are authorized by a valid permit.

10-3-8. *Permits for Construction or Repair Work Outside Allowed Hours or Noise Limits*.

10-3-8-1. *Permit Required*. Construction or repair work may be conducted outside the hours or noise limits otherwise allowed by this Section only if a permit is obtained in advance from the Public Works Director or designee.

10-3-8-2. *Application*. A person requesting a permit under this Section shall submit a written application in the form required by the Public Works Director. The application shall describe the work to be performed, the location of the work, the requested dates and hours of work, the equipment to be used, the anticipated noise impacts, and the reasons the work cannot reasonably be performed within the hours or noise limits otherwise allowed by this Section.

10-3-8-3. *Permit to be Kept on Site*. A permit issued under this Section shall be kept at the work site and shall be shown to Town officials upon request.

10-3-8-4. *Review Criteria*. In determining whether to issue a permit, the Public Works Director or designee may consider:

- (1) Whether the proposed work would be less objectionable during the requested hours because of traffic conditions, public safety concerns, population levels, surrounding land uses, or neighboring activities;
- (2) Whether obstruction of or interference with traffic, particularly on streets of major importance, would be reduced by allowing the work during the requested hours;
- (3) Whether the type of work or equipment proposed is expected to generate noise at a level that will not cause significant disturbance in the vicinity of the work site;
- (4) Whether the surrounding neighborhood includes residential uses or other sensitive uses where sleep or quiet enjoyment could be disturbed;
- (5) Whether denial of the permit would cause substantial practical or economic hardship because the work would need to be spread over a longer period of time;
- (6) Whether the work will abate or prevent hazards to life, health, safety, or property; and
- (7) Whether the requested work is in the general public interest.

10-3-8-5. *Permit Conditions.* The Public Works Director or designee may impose reasonable conditions on the permit, including conditions related to permitted dates and hours of work, types of equipment, traffic control, public notice, site operations, and permissible noise levels, as necessary to protect the public health, safety, and welfare.

10-3-8-6. *Emergency Work.* No permit shall be required to perform emergency work as defined in this Section.

10-3-9. *Revocation of Permits.* The Public Works Director or their designee may revoke any permit granted hereunder upon complaint based upon substantial evidence that the construction activity caused significant disturbance in the vicinity of the work site.

10-3-10. *Exemptions.* The following uses and activities shall be exempt from the provisions contained in this Section:

- (1) Heating and cooling equipment when functioning in accordance with the manufacturer's specifications and is in proper operating condition provided that no unit may create an excessive noise pursuant to Table 1 of this Section;
- (2) Landscape maintenance equipment when functioning in accordance with the manufacturer's specifications and with all mufflers and noise-reducing equipment in use and in proper operating condition (between 5:00 a.m. and 7:00 p.m. only);
- (3) Non-amplified crowd noises resulting from activities such as those planned by school, governmental or community groups, or organized sports, except for such noises generated at restaurants, bars, inns, clubs, or resorts of any kind;
- (4) Noises of safety signals, warning devices and emergency pressure relief valves;
- (5) Noises resulting from any authorized emergency vehicle when responding to an emergency call or acting in time of emergency;
- (6) Noises resulting from emergency work as defined in this Section;
- (7) Noises from the normal operation of railroad trains;
- (8) Noises from a religious institution's percussion instruments;
- (9) Power plant equipment during normal operation;
- (10) Noise created by any Town vehicle, equipment or facility while being operated for official use;
- (11) Operation of agricultural equipment in connection with farming operations;
- (12) Any aircraft operated in conformity with, or pursuant to, federal law, federal air regulations or air traffic control instructions issued pursuant to or within duly adopted federal air regulations,

together with any noise created by aircraft operated under, or pursuant to, declaration of an emergency under federal air regulations;

- (13) Any special event as approved by the Town; and
- (14) Motorized sporting events which have successfully completed either the site plan or the commercial site plan review process. Uses approved shall not exceed 80 dBA level at the property line of the event.

10-3-11. *Penalty.* A violation of any provision of this Section shall be deemed and is declared to be a public nuisance and any person who violates any of the provisions of this Section is subject to being prosecuted for the class 1 misdemeanor offense of disorderly conduct pursuant to A.R.S. § 13-2904 and the general penalty provisions of Article 1, Section 1-11 of this Code. Each day a violation continues or exists shall be considered a separate offense subject to punishment as a separate class 1 misdemeanor. In addition, a violation of this ordinance that is deemed to be a public nuisance may be pursued as a civil infraction with fines consistent with the general penalty provisions in Section 1-11-6 of this Code. Each day of a continuing violation is a separate violation for the purpose of imposing a separate penalty. The Town Council, Town Attorney, or the Town Manager, or the Town Manager's designee, or any adjacent or neighboring property owner who shall be especially damaged by the violation of any provision of this Ordinance, in addition to other remedies provided by law, may institute injunction, abatement or any other appropriate action or proceedings to prevent or abate this type of public nuisance.

10-3-12. *Severability.* If any provision of this Section, or the application thereof to any person or circumstance, is invalid, that invalidity shall not affect other provisions or applications of this ordinance which can be given effect without the invalid provisions or applications, and to this end the provisions of this ordinance are severable.

Section 10-4 FIREWORKS.

10-4-1. *Definitions.* In addition to the definitions set forth in A.R.S. § 36-1601, the following words, terms and phrases, when used in this Section, have the meanings ascribed to them in this Subsection, except where the context clearly indicates a different meaning:

"Supervised Public Display" means a monitored performance of display fireworks open to the public and authorized by permit by the Chief of the Fire Department, Town Fire Marshal, or designee.

"Public Facilities" means any building or real property, other than public right-of-way, which is owned, leased or otherwise operated by a governmental entity.

10-4-2. *Fireworks Prohibited; Supervised Public Display; Exceptions.*

10-4-2-1. *Permissible Consumer Fireworks; Authorized Dates.* It is unlawful for any person to use, discharge or ignite fireworks within the Town as provided in A.R.S. § 36-1606. The use, discharge or ignition of permissible consumer fireworks is limited to May 4 through May 6, June 24 through July 6 and December 26 through January 4 each year and the second and third days of Diwali of each year.

10-4-2-2. *Fireworks Prohibited on Public Property.* It is unlawful for any person to discharge or ignite fireworks on all public property including in all public parks, public retention areas, public rights-of-way and Public Facilities.

10-4-2-3. *Compliance with Town Permit Requirements.* It is unlawful to fail to comply with permit requirements and conditions issued by the Town pursuant to this Code.

10-4-2-4. *Novelty Items and Supervised Public Displays.* Nothing in this Section shall be construed to prohibit the use, discharge or ignition of Novelty Items or the occurrence of a Supervised Public Display. However, it is unlawful for any person to fail to comply with any permit requirements and conditions issued by the Chief of the Fire Department, the Fire Marshal, or designee, pursuant to this Code.

10-4-3. *Sale and Posting of Signs by Persons Engaged in the Sale of Fireworks.*

10-4-3-1. *Authorized Sale Dates.* It is unlawful for any person to sell fireworks within the Town on days other than April 25 through May 6, May 20 through July 6 and December 10 through January 3 of each year and two (2) days before the first day of Diwali through the third day of Diwali each year;

10-4-3-2. *"Fireworks – No Smoking" Signs.* In letters at least two inches high on contrasting background shall be posted at each entrance or within ten feet of every aisle directly serving the consumer fireworks retail sales area signs indicating the following: "Fireworks – No Smoking";

10-4-3-3. *Fireworks Tent Signage.* For those operating fireworks tents, signs with letters at least four (4) inches high on contrasting background shall be conspicuously posted on the exterior of each side of the consumer fireworks retail sales facility indicating the following: "No Fireworks Discharged Within 300 Feet"; and

10-4-3-4. *Compliance with Fire Department Regulations.* The sale fireworks and the posting of signs must comply with the regulations adopted by the Chief of the Fire Department, the Fire Marshal, or designee pursuant to this Code.

10-4-4. *Civil Offense; Penalty.* Except as otherwise provided by state law, violation of this Section is a Civil Offense.

Section 10-5 SMOKING.

10-5-1. *Purpose.* Since the smoking or use of tobacco products or any plant is a positive danger to the health and a material annoyance, inconvenience, discomfort and a health hazard to those who are present or nearby such use, tobacco litter is the most common form of litter, cigarette butts can take up to ten (10) years to decompose, the chemicals from discarded cigarette butts pollute the land, lakes and waterways and can be ingested by children, animals, fish and birds, and in order to serve the public health, safety and welfare, the declared purpose of this Section is to restrict the smoking and use of tobacco products or any plant within enclosed places, public places, places of employment and Town property, including Town parks and park systems. Where not made more restrictive by this Section, the Arizona Smoke-Free Arizona Act (A.R.S. §36-601.01) applies to smoking in public places, places of employment, and health care facilities.

10-5-2. *Definitions.* The following definitions shall apply in the interpretation and enforcement of this Section:

“Designated Smoking Area” means any area outdoors, which is outside of any enclosed public place and removed from building entrances and exits. Any designated smoking area must be so situated as to allow nonsmoking individuals to conduct normal activity in a smoke free environment.

“Enclosed Public Place” means any area closed in by a roof and walls with openings for ingress and egress that is available to and customarily used by the public. Enclosed public places governed by this Section shall include, but not be limited to, public areas of grocery stores, waiting rooms, public and private schools, doctors’ office buildings, community centers, childcare centers, public restrooms, all indoor facilities, restaurants, cafeterias, bars, sports bars, bowling alleys, billiard halls and other places currently used by the public. A private residence is not a “public place”.

“Smoke, Smoking, or Use of Tobacco” means

- (1) Carrying or placing of a lighted tobacco product in one’s mouth for the purpose of inhaling and exhaling smoke or blowing smoke rings;
- (2) Placing of a lighted tobacco product or any other lighted tobacco product smoking equipment in an ashtray or other receptacle, and allowing tobacco product smoke to diffuse in the air;
- (3) Carrying or placing of a lighted tobacco product in one’s hands or any appendage or devices and allowing smoke to diffuse in the air; or
- (4) Inhaling or exhaling of smoke or vapor from an electronic device that can be used to deliver nicotine or other substances to a person, including, but not limited to, an electronic or vaping cigarette, equipment, cigar, cigarillo, or pipe.

“Tobacco Product”: Any product made or derived from tobacco that is intended for human consumption, including any component, part, or accessory of a tobacco product.

10-5-3. *Prohibition and Regulation of Smoking in Town Owned Facilities.*

10-5-3-1. *Applicability.* All enclosed public places, places of employment and employee work areas owned, leased or operated by the Town shall be subject to this Section.

10-5-3-2. *Town Facilities and Vehicles.* Smoking is prohibited in all shared vehicles and enclosed public places, places of employment and employee work areas owned, leased, or operated by the Town.

10-5-3-3. *Town Parks and Park Systems.* Smoking or other use of tobacco is prohibited in all Town parks and park systems, except in designated and signed smoking areas. The Town Manager or designee is hereby delegated the authority to designate such smoking areas in Town parks and park systems. Notwithstanding the foregoing, the Fire Chief or designee may close any park’s or park system’s designated smoking areas during time periods of high fire danger warnings.

10-5-4. *Smoking in Enclosed Public Places and Places of Employment.* No person shall smoke in any enclosed public place or place of employment except as permitted by A.R.S. § 36-601.01 or other applicable law.

10-5-5. *Places Where Smoking Is Not Regulated.* Notwithstanding any other provision of this Section, the smoking restrictions of this Section do not apply to the following, except to the extent otherwise provided by state law or this Code:

- (1) Private residences.
- (2) Hotel and motel rooms rented to guests, which are on a separately partitioned ventilation system.
- (3) Retail stores that deal primarily in the sale of tobacco products and smoking paraphernalia.

- (4) On stage smoking as part of stage production, ballet or similar exhibition.
- (5) Private clubs and recreation facilities that do not serve the public or charge the public for services.

10-5-6. *Posting Requirements.* A “smoking” symbol shall be clearly and conspicuously posted by the owner, operator, manager, employer or other person in control in every workplace or designated outdoor area where smoking is allowed under this Section.

10-5-7. *Enforcement and Penalties.*

10-5-7-1. *Citations.* Citations may be issued for violation of this Section.

10-5-7-2. *Civil Sanctions for Individual Violations.* Any person violating any of the provisions of this Section shall be liable for the imposition of a civil sanction not to exceed twenty five dollars (\$25.00) for the first offense and not to exceed fifty dollars (\$50.00) for each successive offense. Each day a violation of this Section continues after a citation for the violation has been issued constitutes a separate violation.

10-5-7-3. *Payment by Mail.* The Town shall provide for payment by mail of civil sanctions under this Section.

10-5-7-4. *Duties of Persons in Control.* Any owner, manager, operator or employer of any establishment controlled by this Section shall, upon either observing or being advised of a violation of this Section, have the obligation to inform the violator of the appropriate requirements of this law and then request immediate compliance.

10-5-7-5. *Responsibility for Identification, Posting, and Compliance.* Any person or employer who owns, manages, operates or otherwise controls the use of any premises subject to this Section has the responsibility to:

- (1) Properly identify all indoor and designated outdoor smoking areas; and
- (2) Properly post signs required hereunder; and
- (3) Take the action required by this Subsection when observing or being advised of a violation.

10-5-7-6. *Civil Penalty for Employer Violations.* Any employer who knowingly and intentionally violates this Section may be liable for a civil penalty not to exceed five hundred dollars (\$500.00). Each day such violation is committed or permitted to continue shall constitute and be punished as a separate offense.

10-5-7-7. *No Private Right of Action; No Town Liability.* By enforcing this Section, the Town undertakes only to promote the general welfare and health of the community. It does not assume, nor does it impose on its officers and employees, an obligation for breach of which the Town or its officers, employees, or agents may be liable in money damages to any person claiming injury from such breach.

Section 10-6 CURFEW.

10-6-1 *Definitions.* The following definitions shall apply in the interpretation and enforcement of this Section:

“*Emergency*” means an unforeseen combination of circumstances or the resulting state that calls for immediate action.

“*Guardian*” means a person who, under court order, is the guardian of the person of a minor or a public or private agency with whom a minor has been placed by an authorized agency or court; or at least twenty-one (21) years of age and authorized by a parent or guardian to have the care and custody of a minor.

“*Insufficient control*” means failure to exercise reasonable care and diligence in the supervision of the juvenile.

“*Minor*” means any person under eighteen (18) years of age.

“*Parent*” means a person who is a natural parent, adoptive parent or step-parent of another person.

10-6-2. *Curfew Offenses by Minors.*

10-6-2-1. *Minors Under Sixteen Years of Age.* It is unlawful for any minor under sixteen (16) years of age to be in, about, or upon any place in the Town away from the property where the minor resides between 10:00 p.m. and 5:00 a.m. of the following day.

10-6-2-2. *Minors Sixteen Years of Age or Older.* It is unlawful for any minor sixteen (16) years of age or older and under eighteen (18) years of age to be in, about, or upon any place in the Town away from the property where the minor resides between 12:00 a.m. and 5:00 a.m.

10-6-3. *Parent, Guardian, and Custodian Offenses.*

10-6-3-1. *Permitting Curfew Violation.* It is unlawful for a parent or guardian of a minor to knowingly permit, or by insufficient control allow, a minor to violate Section 10-6-2.

10-6-3-2. *Failure to Take Custody.* It is unlawful for a parent, guardian, or other person having the care, custody, or supervision of a minor to fail or refuse to take custody of the minor after a law enforcement officer who has taken the minor into custody for a violation of Section 10-6-2 demands that the parent, guardian, or other responsible person take custody of the minor.

10-6-4. *Defenses and Exceptions.* It is a defense to prosecution under Section 10-6-2 or Section 10-6-3-1 that the minor was:

10-6-4-1. *Accompanied by Parent or Guardian.* Accompanied by the minor’s parent or guardian.

10-6-4-2. *Interstate Travel.* With prior permission of the parent or guardian, in a motor vehicle involved in interstate travel.

10-6-4-3. *Employment.* With prior permission of the parent or guardian, engaged in employment activity or going to or returning home from employment activity without any detour or stop by the most direct route.

10-6-4-4. *Emergency.* Involved in an emergency.

10-6-4-5. *Authorized Activities.* With prior permission of the parent or guardian, engaged in a reasonable, legitimate, and specific business or activity, including attending an official school, religious, recreational, or other activity supervised by adults who take responsibility for the minor, or going to or returning home from such activity without any detour or stop by the most direct route.

10-6-4-6. *First Amendment Activity.* With prior permission of the parent or guardian, engaged in a reasonable and legitimate exercise of rights protected by the First Amendment to the United States Constitution.

10-6-4-7. *Married or Military.* Married and sixteen (16) years of age or older, or in the military.

10-6-4-8. *Adjacent Property.* On the sidewalk abutting the minor's residence or on a next-door neighbor's property with the consent of the neighbor.

10-6-5. *Enforcement.*

10-6-5-1. *Officer Inquiry Before Enforcement.* Before taking enforcement action under this Section, a law enforcement officer shall attempt to ascertain the apparent offender's age and reason for being in the place. The officer shall not issue a citation or take the minor into custody under this Section unless the officer reasonably believes that an offense has occurred and that, based upon the circumstances, the minor's responses, and the minor's conduct, no defense under Section 10-6-4 is probably present.

10-6-5-2. *Parent or Guardian Custody.* In addition to any other lawful authority, a law enforcement officer who takes a minor into custody for violating Section 10-6-2 may demand that the parent, guardian, or other person having the care, custody, or supervision of the minor come and take the minor into custody. The law enforcement officer may take the minor to a designated location where arrangements can be made for a parent, guardian, or other appropriate person to take the minor into custody. If the parent, guardian, or other responsible person fails to take custody of the minor, the officer may take the minor home or take any other action authorized by law.

10-6-6. *Separate Offenses.* Each violation of Section 10-6-2 or Section 10-6-3 constitutes a separate offense.

10-6-7. *Penalty.* Any adult convicted of a violation of this Section is guilty of a Class 1 misdemeanor. A violation of this Section by a minor is designated as an incorrigible offense for minors under the jurisdiction of the juvenile court.

Section 10-7 CAMPING.

10-7-1. *Purpose.* The purpose of this Section is to protect public health, safety, welfare, access, and use of public property by regulating camping and campsites on public property and in certain sensitive areas, while preserving the Town's ability to authorize camping or overnight parking by permit, reservation, Town-sponsored activity, or emergency response.

10-7-2. *Definitions.* In this Section, unless the context otherwise requires:

"*Camp*" or "*camping*" means to utilize a campsite and/or camp paraphernalia for the purpose of temporarily or permanently sleeping or living at that location, including but not limited to, activities such as laying down of bedding, erecting tents or any other structure providing shelter, digging or breaking earth, using camp paraphernalia, storing personal belongings, starting a fire, cooking or preparing meals, or living in a parked vehicle. Any activity shall constitute camping when it reasonably appears, in light of all the circumstances, the participants in conducting the activity are in fact using the area for the purpose of temporarily or permanently sleeping or living at the location regardless of the intent of the participants or the nature of any other activities in which they may also be engaging.

"*Campsite*" means any place where camping occurs or where bedding, sleeping bags, tents, shelters, cardboard boxes or structures, vehicles, campers, trailers, personal belongings, cooking equipment, fire materials, or other items are arranged, stored, or used in a manner indicating that the place is being used for camping or temporary shelter.

"*Camp Paraphernalia*" includes, but is not limited to, materials intended to be used as beds or bedding, blankets, bedrolls, tarpaulins, cots, beds, sleeping bags, hammocks or cooking facilities and similar equipment.

“*Childcare facility*” has the meaning provided in A.R.S. § 36-881.

“*Personal belonging*” means tangible items greater than one cubic foot in size, other than signs, which are reasonably recognizable as belonging to individual persons and which have apparent utility and value.

“*Public property*” means any property owned, leased, operated, or controlled by the Town, including by way of example and not limitation any playground, splash pad, restroom, street, sidewalk, right-of-way, highway, alley, bike path, transit stop, transit facility, preserve, open space, park, wash, land whether improved or unimproved, attraction, structure, facility, or parking lot.

“*Reasonable notice*” means actual or constructive notice that certain conduct is prohibited, which may be accomplished by conspicuous posting or verbal notice provided by a law enforcement officer or other authorized representative of the Town.

“*School*” means any public, charter, or private school where children attend classes in kindergarten programs or grades one through twelve.

“*Shelter*” means a facility operated to provide temporary overnight shelter or emergency housing to persons experiencing homelessness, displacement, domestic violence, or similar circumstances.

10-7-3. *Camping on Public Property Prohibited.* It is unlawful for any person to camp in or on any public street, alley, sidewalk, right-of-way, park, preserve, parking lot, structure, building, or other public property owned, leased, operated, or controlled by the Town, except when specifically authorized by a special use permit, reservation, agreement, Town-sponsored activity, or other written authorization issued or approved by the Town Manager or designee. It is also unlawful to camp in any pedestrian or vehicular entrance to public or private property abutting a public sidewalk.

10-7-4. *Camping Near Sensitive Uses Prohibited.* It is unlawful for any person to camp on property within five hundred (500) feet of any property boundary of a school, childcare facility, shelter, or park, unless specifically authorized by the Town Manager or designee.

10-7-5. *Authorized Camping and Overnight Parking.* The Parks and Recreation Department, or other department designated by the Town Manager, may issue special use permits, reservations, or other written authorizations allowing youth organizations, schools, governmental entities, nonprofit organizations, or similar entities to camp or park vehicles overnight in a park, preserve, or other public property. The determination shall be based on public health and safety, availability of facilities, sanitation, traffic and pedestrian access, protection of public property, duration of the proposed use, compatibility with other scheduled uses, and compliance with applicable Town rules and permit conditions. It is a defense to a charge pursuant to this Section that the person has received authorization from the Town. Nothing in this Section shall be interpreted to prohibit camping or overnight parking sponsored, authorized, or conducted by the Town.

10-7-6. *Emergency and Disaster Response Exemption.* This Section does not apply to temporary structures, temporary shelters, emergency camps, staging areas, or similar uses established, authorized, or used by a governmental agency, emergency responder, relief organization, or relief worker during a disaster, emergency, or emergency response activity.

10-7-7. *Public Nuisance; Removal of Campsite.* Any campsite established in violation of this Section is declared to be a public nuisance. Upon a determination that a campsite constitutes an immediate threat to the health, safety, or welfare of persons in the Town, including persons using the campsite, the Police Department or other authorized Town representative may remove or cause the removal of the campsite. If persons are occupying the campsite at the time, the Town shall provide reasonable notice to the person or persons occupying the campsite that the campsite violates this Section and shall give them an opportunity to remove the campsite within a reasonable time before the Town removes or causes removal of the campsite, unless immediate removal is otherwise authorized by law. To the extent practicable, the Town shall make reasonable

efforts to identify, inventory, and preserve personal belongings removed from a campsite and store such property for a reasonable period of time, but may immediately dispose of trash, hazardous materials, contraband, perishable items, or items that pose an immediate threat to public health, safety, or welfare.

10-7-8. *Notice Before Citation.* Except where immediate enforcement is necessary to protect public health, safety, or welfare, no person shall be issued a citation for a violation of this Section unless the person has first received reasonable notice of the violation and an opportunity to cease the violation. A prior warning issued to the same person within the previous twelve (12) months for substantially similar conduct constitutes reasonable notice.

10-7-9. *Penalty; Community Restitution; Education or Treatment.*

10-7-9-1. *Class 3 Misdemeanor.* Any person found guilty of violating this Section is guilty of a Class 3 misdemeanor, subject to a fine not to exceed five hundred dollars (\$500.00) or by imprisonment for a period not to exceed thirty (30) days, or both such fine and imprisonment, and the court can order payment for the town's actual costs of transporting and storing property of the violator.

10-7-9-2. *Temporary Exclusion from Town Park Properties.* A law enforcement officer may issue a written exclusion order barring an individual from a specific public park for up to thirty (30) days if the individual receives two (2) or more citations for violating park regulations within that same park during a twelve (12) month period. The exclusion order applies only to the park where the violations occurred.

10-7-9-3. *Alternative Sentencing.* Consistent with A.R.S. § 13-717, in addition to or in lieu of any sentence imposed pursuant to this Section, the court may sentence a person to perform community restitution or may order a term of education or treatment.

10-7-9-4. *Separate Violations.* Each violation of this Section constitutes a separate offense.

10-7-9-5. *Mitigation.* Upon conviction for a violation of this Section, in addition to any other factors deemed appropriate by the court, the court shall consider in mitigation whether or not the person immediately removed all personal belongings and litter, including but not limited to bottles, cans, and garbage from the campsite after being informed they were in violation of the law.

ARTICLE 11 - TRAFFIC AND VEHICLES

SECTIONS:

11-1: APPLICABILITY OF STATE LAW

11-2: ADMINISTRATION

11-3: TRAFFIC CONTROL

11-4: PARKING

11-5: SPEED LIMITS

11-6: INOPERABLE, UNREGISTERED, OR ABANDONED VEHICLES ON RIGHT-OF-WAY

11-7: BICYCLES, ELECTRIC BICYCLES, AND MICROMOBILITY DEVICES

11-8: MOTORIZED PLAY VEHICLES AND MOTORIZED SKATEBOARDS

11-9: TRAFFIC CALMING AND NEIGHBORHOOD TRAFFIC MANAGEMENT

Section 11-1 APPLICABILITY OF STATE LAW.

All of the provisions and requirements of the Uniform Act Regulating Traffic on Highways, codified as Arizona Revised Statutes, Title 28, Chapter 6 and in particular Sections 28-601 to 28-1062, inclusive, in regard to the regulation of traffic and the use and operation of vehicles and amendments or additions thereto hereinafter enacted, insofar as such provisions have application within the Town, are hereby adopted and made a part of this Section as though fully set out herein. Copies of such Sections shall be on file in the office of the Town Clerk and the office of the magistrate court, if any, of the Town.

Section 11-2 ADMINISTRATION.

11-2-1. *Administration; Designation of Town Officials; Intergovernmental Agreements.* The Town Manager shall designate a Town Official, or Town Employees with authority to administer Article 11. The Town Council may enter into Intergovernmental Agreements that it deems necessary and proper for the administration of Article 11.

11-2-2. *Severability.* If any Section, Subsection, sentence, clause, or phrase of this Section is for any reason held to be invalid, such decision shall not affect the validity of the remaining portions.

Section 11-3 TRAFFIC CONTROL.

11-3-1. *Adoption.* That certain document entitled “Manual on Uniform Traffic Control Devices (MUTCD) along with the Arizona Supplement”, latest edition, as adopted by in this Code is hereby adopted as the official standard for traffic control devices within the Town of San Tan Valley, and made part of this Section, the same as though said were specifically set forth herein.

11-3-2. *Removal of Signs.* The Town reserves the right to remove any sign that is deemed a nuisance or public hazard, and may, at the discretion of the Town Engineer, impose a reasonable charge to the property owner for the cost of removals from private property.

11-3-3. *Placement of Signs by Private Parties in Town Rights-of-Way.* All permanently installed signing within Town right-of-way by private parties (i.e. business, developers, etc.) shall comply with the MUTCD handbook (most recently adopted version by the Arizona Department of Transportation) published by the

Federal Highway Administration, and the Arizona Department of Transportation Supplement to the MUTCD handbook, as well as the Town's relevant engineering standards, details, and specifications.

11-3-4. *Restitution and Damages for Damaged Signs.* The Town reserves the right to charge monetary damages to any individual, party or organization that is found responsible for damage to any Town owned traffic control device.

11-3-5. *Over-Dimensional Loads.*

11-3-5-1. *Originating Jurisdiction Permit Required.* Loads that are considered over-dimensional in nature are required to possess a valid permit issued from the jurisdiction at the point of origin.

11-3-5-2. *Town Oversized Load Permit; Route Review.* The responsible party will be required to file an oversized load permit with the Town of San Tan Valley at least fifteen (15) calendar days prior to the anticipated move date. The Town will review the request, the proposed route, as well as the proposed time and schedule to ensure that the load can safely operate. Town staff will approve the route, make recommendations, or deny the load access to the Town's right-of-way

11-3-5-3. *Escort Requirements.* Dimensional loads traveling through, originating or terminating within the Town may be required to have a Police Department escort or other escort authorized by the Town Engineer, Chief of Police, or designee.

11-3-6. *One-Way Streets and Alleys.* Proper signing shall be installed at appropriate locations to indicate the one-way condition. Signs indicating the direction of lawful traffic movement shall be placed at every intersection where movement of traffic in the opposite direction is prohibited.

11-3-7. *Processions.* No procession or parade, except funeral processions, shall be held without first securing a permit from the Town, and all such requests for permits shall state the time, place of formation, proposed line of march, destination and such other regulations as the Town may set forth therein.

11-3-8. *Permission to Access Right-of-Way.*

11-3-8-1. *Responsibility for Compliance.* Every person, firm, or agency conducting work in the public right-of-way or roadway easement is responsible for assuring that all related activities comply with the provisions of this Section.

11-3-8-2. *Encroachment Permit and Traffic Control Plan Required.* Any contractor, agency, utility, or any other person that is performing work within the right-of-way shall obtain an Encroachment Permit from the Town of San Tan Valley prior to entering the right-of-way. The permit will not be valid without a Traffic Control Plan being submitted to and approved by the Town prior to entering the right-of-way.

11-3-8-3. *On-Site Permit and Traffic Control Plan.* The Traffic Control Plan shall be on-site and attached to the permit whenever activities are taking place in the right-of-way, and shall be produced upon request by Town staff or law enforcement.

11-3-9. *Street Closures.*

11-3-9-1. *Request Deadline; Traffic Control Plan Required.* Requests for street closures (excluding special events as determined by the Town) shall be made a minimum of thirty (30) days prior to the date needed or as approved by the Town Engineer. Requests shall be made in writing

and shall include a Traffic Control Plan that meets the requirements of Section 11-3-10. Requests will be reviewed and approved based upon need and potential life/safety issues.

11-3-9-2. *Compliance with Approved Closure Dates.* If a road closure request is granted, the contractor will be held to the dates requested and approved by the Town.

11-3-9-3. *Closure Bond Required.* Upon approval, the contractor shall provide the Town with a Cashier's Check (bond) in the amount of ten thousand dollars (\$10,000) made payable to the Town of San Tan Valley.

11-3-9-4. *Failure to Complete Work; Forfeiture and Daily Fine.* Should the contractor not complete their work in the agreed upon time limits, the bond shall be subject to forfeiture, and a two thousand dollars (\$2,000) per day fine may be levied for each day the work is not completed.

11-3-9-5. *Extension Requests; Reopening Direction.* The contractor may seek additional time for unforeseen circumstances prior to the Traffic Control Plan expiration date. The contractor may be directed on the last day of authorized work to begin work to open the road.

11-3-9-6. *Town Authority to Reopen Road.* The Town reserves the option of taking the necessary steps to open the road should the need arise.

11-3-10. *Temporary Traffic Control Plans.*

11-3-10-1. *Traffic Control Plan Required.* A Traffic Control Plan in complexity that matches the work being performed and proximity to traffic will be required whenever construction, maintenance or other activities are taking place within the Town's right-of-way.

11-3-10-2. *Traffic Control Plan Preparation and Submittal.* A Traffic Control Plan that is computer generated and that is designed and drawn by a person that is currently certified as a Traffic Control Supervisor by the American Traffic Safety Services Association (ATSSA) will be required along with a Right-of-way Encroachment Permit Application (provided by the Town) at least ten (10) business days prior to the start of work. Traffic Control Plans shall be submitted directly to the Town, using the established procedure, by the individual or company providing the temporary traffic control services.

11-3-10-3. *Traffic Control Technician Required.* Any temporary traffic control that is placed within the right-of-way on an arterial street, or as required by the Town shall be completed under the direct, on-site supervision of a person that is currently certified as a Traffic Control Technician by the American Traffic Safety Services Association (ATSSA). The Technician shall carry ATSSA-issued proof of certification on Technician's person at all times when working within the right-of-way, and shall produce the certification, as well as state-issued photo identification, upon demand by a member of the Town Police Department, Traffic Engineer or designee, or other Authorized Enforcement Agent.

11-3-10-4. *Temporary Signage Standards.* All temporary signing in place due to the requirements of a Traffic Control Plan shall be a minimum of ASTM Type IV sheeting, a minimum of 36"x36" (for Warning Series signs), and shall be mounted on spring type stands. All signing for projects considered to be Long-Term Stationary in nature by the MUTCD shall be post mounted.

11-3-10-5. *Flagger Certification; Law Enforcement Officers.* Any civilian flagger working within the Town's right-of-way shall hold current certification as a flagger by the American Traffic Safety Services Association (ATSSA), or a pre-approved equivalent, and shall carry proof of certification at all times when working within the right-of-way. Certified flaggers may be required to provide proof of certification prior to working within the Town's right-of-way. Off-duty law enforcement officers may be used in lieu of certified flaggers.

11-3-10-6. *Uniformed Law Enforcement Officer Required When Directed.* A uniformed law enforcement officer shall be present as required as a part of an approved traffic control plan or as directed by the Town Traffic Engineer or designee.

11-3-11. *Directing Traffic.* Members of the Town Police Department and/or Fire Department or their designees are authorized to direct all traffic by voice, hand, or signal.

11-3-12. *Obstruction of View.* It shall be unlawful for any person to maintain or allow any tree, hedge, billboard or other obstructions which prevent persons driving vehicles on public streets, alleys or highways from obtaining a clear view of traffic when approaching an intersection or pedestrian crosswalk.

Section 11-4 PARKING.

11-4-1. *Purpose.* The Town Council or Town Engineer, upon finding that parking on certain public streets, roads, and highways within the Town creates a hazard, public nuisance, or menace to public safety and convenience, may prohibit, regulate, restrict, and otherwise provide for public safety and convenience through a system of parking and traffic regulations.

11-4-2. *Definitions.* All words used in this Section shall, where applicable and unless otherwise defined in this Section, have the meanings provided in A.R.S. §§ 28-101 and 28-601, as amended.

"*Heavy truck*" means any commercial vehicle with a gross vehicle weight rating of nineteen thousand five hundred (19,500) pounds or more, including but not limited to trucks, truck tractors, road tractors, trailers, semi-trailers, vehicle transporters, or any combination of such vehicles, attended or otherwise, occupied or unoccupied, including the power unit by itself, the combination of the power unit and trailer, or the trailer separately.

"*Recreational vehicle*" or "*RV*" and "*travel trailer*" mean a vehicular-type unit, not exceeding eight (8) feet in width or forty (40) feet in length, primarily designed as temporary living quarters for recreational, camping, or travel use. The unit may have its own motive power or may be mounted on or drawn by another vehicle upon a highway.

11-4-3. *Town Engineer Review and Recommendation.*

11-4-3-1. *Engineering Study.* The Town Engineer is authorized to make an engineering study of the traffic conditions and physical roadway characteristics of public streets, roads, and highways within the Town to determine whether a parking restriction is reasonably necessary for the protection and convenience of the traveling public.

11-4-3-2. *Recommendation to Town Council.* Upon findings based on an engineering study and generally accepted traffic engineering principles or standards, the Town Engineer may recommend to the Town Council that parking be completely restricted, restricted only during certain hours or times, restricted during certain times of the year, restricted only on one side of the street, or restricted only along certain designated areas adjacent to the street. The Town Council may approve, reject, or modify the proposed restrictions, and shall note its action by ordinance or resolution.

11-4-3-3. *Immediate Safety Restrictions.* Upon findings based on an engineering study and generally accepted traffic engineering principles or standards that parking on streets, roads, or highways presents a danger to public safety, the Town Engineer may immediately implement the recommended restrictions and present such restrictions or regulations retroactively for approval by the Town Council within ninety (90) days after implementation.

11-4-3-4. *Administrative Implementation of Parking Prohibition Criteria.* The Town Engineer is authorized to implement the parking restrictions set forth in Section 11-4-4 on any Town road where such restrictions are justified based on an engineering study and generally accepted traffic engineering principles or standards.

11-4-4. *Parking Prohibition Criteria.*

11-4-4-1. *Criteria for Parking Prohibitions.* Parking of vehicles is prohibited on any Town street, road, or highway, paved or unpaved, where any of the following conditions exist upon recommendation by the Town Engineer based on an engineering study and where the road segment has been posted, marked, or designated in accordance with Section 11-4-5:

- (1) Parking would obstruct a traffic lane;
- (2) Parking would obstruct access to a driveway or roadway;
- (3) Parking would obstruct a bike lane;
- (4) Parking would be within thirty (30) feet on the approach to any flashing beacon, stop sign, yield sign, or traffic control signal located at the side of a roadway;
- (5) Parking would block a crosswalk;
- (6) Parking would be within fifteen (15) feet of a fire hydrant;
- (7) Parking would block or inhibit access to a designated bus or transit stop;
- (8) Parking would block access to community mailboxes as required by the United States Postal Service;
- (9) Parking would block a designated fire lane where the curb is painted red;
- (10) Parking on narrow streets would limit the safe and unfettered ingress or egress of public safety and emergency response vehicles on any public street; or
- (11) Parking would create unsafe conditions by blocking sight visibility at or near any intersection or adjacent to any horizontal or vertical curve, based on an engineering study performed in accordance with the sight visibility criteria set forth in "A Policy on Geometric Design of Highways and Streets" by the American Association of State Highway and Transportation Officials (AASHTO), or would otherwise make parking a vehicle unsafe as determined by the Town Engineer based on a traffic study.

11-4-5. *Signage and Pavement Marking.*

11-4-5-1. *Notice Required.* No prohibition of parking on public roads shall be effective unless or until one or more of the following occurs:

- (1) Signs giving notice of the prohibition are posted on the roadway. Unless otherwise noted on the signs, each sign shall designate a no-parking area that extends fifty (50) feet in each direction, covering a total length of one hundred (100) feet, parallel to the roadway or to the next intersecting roadway, whichever is shorter;
- (2) The roadway is striped or marked designating bike lanes along the roadway's outside edge, which prohibits parking in accordance with A.R.S. § 28-815(D); or
- (3) Under direction and written request of a fire district or fire department, the curb is painted red to designate a fire lane where standing, stopping, or parking is prohibited.

11-4-6. *Residential No-Parking Zones.*

11-4-6-1. *Establishment or Removal.* The Town Engineer may establish or remove a Residential No-Parking Zone and install or remove no-parking signs on any public street owned and maintained by the Town within a residential neighborhood upon written request from a homeowners' association or citizen, provided that all of the following conditions are met:

- (1) A petition with signatures supporting the establishment of a Residential No-Parking Zone from ninety percent (90%) of residents residing on the street segment under consideration is provided to the Town Engineer;
- (2) Written support from an authorized representative of the homeowners' association, if applicable, is provided to the Town Engineer;
- (3) A map showing the specific street segment under consideration is provided to the Town Engineer;
- (4) The street segment under consideration is classified as a local or minor collector street; and
- (5) The street segment under consideration is a continuous Section of roadway beginning at a street corner or intersection and ending mid-block or at the next street corner or intersection. Discontinuous street segments that "skip" properties will not be considered.

11-4-7. *Recreational Vehicles, Heavy Trucks, Buses, Boats, and Trailers.*

11-4-7-1. *Heavy Trucks.* It is a violation of this Section to park a heavy truck on any public road within a residentially zoned area having a density greater than two (2) dwelling units per acre. A heavy truck may temporarily park on dedicated Town right-of-way to perform the following activities, provided that upon completion of such activity the vehicle must be promptly removed:

- (1) Deliver, pick up, load, or unload merchandise, materials, or equipment, including furniture and other household goods;
- (2) Repair a disabled heavy truck, provided the repair is completed within forty-eight (48) consecutive hours; or
- (3) Provide construction, repair, or similar services to a property or utility.

11-4-7-2. *Recreational Vehicles, Buses, Boats, and Trailers.* It is a violation of this Section to park a recreational vehicle, travel trailer, bus, boat, or utility trailer on any public road within a residentially zoned area having a density greater than two (2) dwelling units per acre for more than forty-eight (48) consecutive hours. Under no circumstances may a person inhabit any such vehicle while it is parked on a street.

11-4-8. *Emergency or Construction No-Parking Areas.*

11-4-8-1. *Parking Prohibited.* No person shall park a vehicle upon any public highway, street, or parking lot in violation of an emergency or construction no-parking sign that has been conspicuously posted.

11-4-8-2. *Posting Authority.* The Chief of Police or Town Engineer is authorized to post emergency or construction no-parking signs on public highways, streets, or parking lots for street maintenance, construction, emergency situations, street fairs, parades, or community-related events.

11-4-8-3. *Duration; Removal of Vehicles.* The duration of emergency no-parking shall be no longer than seventy-two (72) hours. After a reasonable attempt has been made to contact the owner, any vehicle parked in violation may be removed at the owner's expense.

11-4-9. *Violations; Towing; Immobilization; Fines.*

11-4-9-1. *Enforcement Remedies.* Any vehicle parked in violation of this Section may be towed and stored at the vehicle owner's expense, immobilized with a traffic boot, barnacle, or similar vehicle immobilization device, and/or be subject to a civil fine of not less than one hundred dollars (\$100.00) per vehicle per occurrence per day.

11-4-9-2. *Registered Owner Responsibility.* In any prosecution or civil proceeding charging a violation of any provision of this Code governing the stopping, standing, or parking of a vehicle, the person in whose name the vehicle is registered is prima facie responsible for the violation and subject to the penalty. If the vehicle is jointly registered, the persons in whose names the vehicle is jointly registered are jointly and severally prima facie responsible for the violation and subject to the penalty.

11-4-9-3. *Civil Traffic Violation.* Any violation of this Section is a civil traffic violation.

11-4-10. *Enforcement Authority.* The San Tan Valley Police Department and the San Tan Valley Code Enforcement Office are authorized to enforce this Section and may, in their discretion, issue warnings or otherwise determine the appropriate method of enforcement for any given situation. The Town Council may enter into intergovernmental agreements with other public agencies to assist with enforcement of the Traffic Code.

11-4-11. *State Traffic Laws Preserved.* State traffic laws regulating stopping, standing, and parking apply upon all streets, highways, and alleys within the Town. This Section is in addition to, and shall not be read to conflict with, the restrictions in A.R.S. § 28-873 or A.R.S. § 28-815(D).

Section 11-5 SPEED LIMITS.

11-5-1. *Authority to Establish and Post Speed Limits.* The Town Traffic Engineer, Town Engineer, or Town Council may determine and post the appropriate speed limit for street segments within the Town based upon accepted engineering standards, practices, and judgment, and as otherwise authorized by state law.

11-5-2. *Local Residential Streets.* Unless otherwise posted, local residential streets shall have a prima facie speed limit of twenty-five (25) miles per hour. Local residential streets may, but are not required to, be posted with speed limit signs.

11-5-3. *School Zone Speed Limits.* Reduced speed limits for school zones, whenever a school fronts onto an arterial street with a posted speed limit of forty-five (45) miles per hour or greater, shall be posted at either thirty (30) miles per hour or thirty-five (35) miles per hour, as determined by the Town Traffic Engineer, Town Engineer, or Town Council. School zone speed limits shall be in effect between 7:30 a.m. and 3:30 p.m. on weekdays, or during the time period posted on the applicable speed limit sign, which may include one (1) hour before school begins and up to one (1) hour after school ends.

11-5-4. *Temporary Reduced Speed Limits.* Temporary reduced speed limits for construction and maintenance work zones, special events, or other activities within or adjacent to the right-of-way that require a reduced regulatory speed limit shall be determined at the time of approval of the Traffic Control Plan. All temporary speed limit installations shall conform to the requirements of the Manual on Uniform Traffic Control Devices and the Arizona Department of Transportation Supplement to the Manual on Uniform Traffic Control Devices.

Section 11-6 INOPERABLE, UNREGISTERED, OR ABANDONED VEHICLES ON RIGHT-OF-WAY.

11-6-1. *Prohibition.* No person shall park any vehicle which is inoperable on any street or public right-of-way. It is an affirmative defense to a violation of this Subsection that the vehicle was removed from the street or public right-of-way within twenty-four (24) hours of becoming inoperable.

11-6-2. *Vehicles Without Current Registration.* No person shall park any vehicle which does not display current registration on any street or public right-of-way.

11-6-3. *Civil Traffic Violation; Penalty.* Violation of this Section shall constitute a civil traffic violation, and the violator shall be subject to a civil sanction of not less than one hundred dollars (\$100) nor more than three hundred dollars (\$300).

Section 11-7 BICYCLES, ELECTRIC BICYCLES, AND MICROMOBILITY DEVICES.

11-7-1. *Definitions.* The following words, terms and phrases, when used in this Section, shall have the meanings ascribed to them in this Section, except where the context clearly indicates a different meaning. Should any definition conflict with A.R.S. Title 28, the definition under state law shall apply:

“Bicycle” means a device, including a racing wheelchair, that is propelled by human power and on which a person may ride and that has either:

- (1) Two tandem wheels, either of which is more than 16 inches in diameter, or
- (2) Three wheels in contact with the ground, any of which is more than 16 inches in diameter.

For the purpose of this Section, a bicycle is not a micromobility device.

“Bicycle lane” means a path or lane specifically designated for the preferential or exclusive use of bicycles.

“Bus zone” means an area specifically reserved for the loading and unloading of bus passengers.

“Crosswalk” means:

- (1) That part of a roadway at an intersection included within the connections of the lateral lines of the sidewalks on opposite sides of the highway measured from the curbs or in the absence of curbs from the edges of the traversable roadway, or
- (2) Any portion of a roadway at an intersection or elsewhere distinctly indicated for pedestrian crossing by lines or other markings on the surface.

“Electric bicycle” means a bicycle or tricycle that is equipped with fully operable pedals and an electric motor of less than 750 watts, which meets the requirements of a class 1, class 2 or class 3 electric bicycle. Except as otherwise provided in this Section and state law, an electric bicycle is subject to the same provisions of this Section as a bicycle.

(1) *“Class 1 electric bicycle”* means a bicycle or tricycle that is equipped with an electric motor, which provides assistance only when the rider is pedaling and ceases to provide assistance when the bicycle or tricycle reaches the speed of 20 miles per hour.

(2) *“Class 2 electric bicycle”* means a bicycle or tricycle that is equipped with an electric motor, which may be used exclusively to propel the bicycle or tricycle and is not capable of providing assistance when the bicycle or tricycle reaches the speed of 20 miles per hour.

(3) *“Class 3 electric bicycle”* means a bicycle or tricycle that is equipped with an electric motor, which provides assistance only when the rider is pedaling and ceases to provide assistance when the bicycle or tricycle reaches the speed of 28 miles per hour.

“Electric personal assistive mobility device” means a self-balancing device with one wheel or two non-tandem wheels and an electric propulsion system that limits the maximum speed of the device to 15 miles per hour or less and is designed to transport only one person.

“Electric scooter” means a device with no more than four wheels that has handlebars, is designed to be stood upon or seated by the operator, and is powered by an electric motor that is capable of propelling the device with or without human propulsion at a maximum speed of less than 20 miles per hour. This does not include a motorized wheelchair, power chair, or other electric devices that are designed primarily to assist with mobility.

“Electric standup scooter” means a device with no more than two wheels that has handlebars, is designed to be stood upon by the operator, and is powered by an electric motor that is capable of propelling the device with or without human propulsion at a maximum speed of less than 20 miles per hour.

“Intersection” means the area embraced within the prolongation or connection of the lateral curb lines, or if none, the lateral boundary lines of the roadways of two highways that join one another at, or approximately at, right angles, or the area within which vehicles traveling on different highways joining at any other angle may come in conflict. If a highway includes two roadways 30 or more feet apart, each crossing of each roadway of the divided highway by an intersecting highway is a separate intersection. If the intersecting highway also includes two roadways 30 or more feet apart, each crossing of two roadways of the highways is a separate intersection.

“Median” means an area in the approximate center of a street that is used to separate the directional flow of traffic.

“Micromobility device” means, for the purpose of this Section, an electric bicycle, an electric personal assistive mobility device, an electric scooter, and an electric standup scooter. The Town Manager or a Town Engineer shall have the authority to designate additional types of devices as micromobility devices consistent with the law, so long as such designation is posted on the town's website. Micromobility device excludes non-electric bicycles, mopeds, motor driven cycles, motorcycles, motorized play vehicles, motorized skateboards, motorized quadricycles, and personal delivery devices.

“Owner” means the person or company who owns the bicycle or micromobility device or any person who is a lessee, conditional vendee or mortgagor of a bicycle or micromobility device with a right to immediate possession.

“Park”, if prohibited, means to leave unattended.

“Pedestrian” means any person afoot. A person who uses an electric personal assistive mobility device or a manual or motorized wheelchair is considered a pedestrian unless the manual wheelchair qualifies as a bicycle.

“Person” means an individual, firm, association, partnership, joint venture or corporation.

“Multi-use path” means a paved or unpaved shared-use path or trail that is specifically designated for non-motorized traffic and recreation, such as the shared-use paths and trails shown in the San Tan Valley Parks, Recreation, and Trails Master Plan.

“Sidewalk” means any area or way owned or controlled by the town and used for purposes of pedestrian traffic, whether or not it is paved.

“Street”, as used in this Section, means any portion of roadway, highway, alley, thoroughfare, or other property that is open to the public for purposes of vehicular travel. Street includes the

associated right-of-way, berm or shoulder, parkway, crosswalk, median, bicycle lane, and any associated roadway or access easement of the town.

“Town property” means any property, facility or improvement that is owned, leased, operated, maintained or managed by the town.

11-7-2. *Rental Agencies, Display of Section provisions.* Every person and entity engaged in the business of being a rental agency of new or used bicycles or micromobility devices, shall take proactive measures to inform its customers about applicable rules and regulations and shall provide a copy of this Section to its customers, either in paper format or by means of a website or mobile application. No company shall engage in the business of renting micromobility devices on property or rights-of-way of the town without express permission of the town.

11-7-3. *Operation of Micromobility Devices.*

11-7-3-1. *Permissible areas of operation.* Subject to the restrictions in this Section, a person may operate a micromobility device in the following locations unless prohibited by signage:

- (1) Within a street with posted speed limits of 25 miles per hour;
- (2) Within a multi-use path except that class 3 electric bicycles are prohibited on multi-use paths; and
- (3) On a sidewalk except that class 3 electric bicycles are prohibited on sidewalks.

11-7-3-2. *Prohibited areas of operation.* Except as otherwise stated in this Section, a person shall not operate a micromobility device in the following locations:

- (1) Within any area where signage prohibits such operation;
- (2) Within any designated bicycle lane, except that electric bicycles shall be permitted in designated bicycle lanes; and
- (3) Within any public street where the speed limit is greater than 25 miles per hour.

11-7-3-3. *Rules of Operation.*

(1) *Compliance with Traffic Laws and Traffic-Control Devices.* When operating on public roadways, all operators of micromobility devices shall comply with all traffic rules and regulations, including but not limited to the rules of the road under Title 28 of Arizona Revised Statutes. It is unlawful for any person operating a micromobility device to fail to obey the instructions of official traffic-control signals, signs, and other traffic direction devices applicable to vehicles, unless otherwise directed by a police officer.

(2) *Yielding to Pedestrians and Other Users.* The operator of a micromobility device shall yield the right-of-way to pedestrians and other users by slowing down, stopping, or moving to the opposite side of the path, sidewalk, or street. A pedestrian or other user shall not suddenly traverse into the path of a micromobility device that is so close that it is impractical or impossible for the operator to yield.

(3) *Following Too Closely Prohibited.* The operator of a micromobility device shall remain at a safe distance behind pedestrians and vehicles and shall not follow too closely.

(4) *Prohibited Areas of Operation; Dismount Required.* It is unlawful to operate a micromobility device across any prohibited areas of operation. The operator shall dismount the micromobility device and walk said device across all prohibited areas of operation.

(5) *Speed Limits; Reasonable and Prudent Speed.* No person shall operate a micromobility device at a speed greater than the posted speed limit or at a speed greater than is reasonable and prudent under then-existing circumstances.

(6) *Braking System Required.* No person shall operate an electric assisted micromobility device in the Town unless it is equipped with a braking system in sufficient working order to control and stop the movement of the device.

(7) *Attaching to Vehicles or Devices Prohibited.* No person operating or riding upon a micromobility device shall attach themselves or the micromobility device to any other vehicle or device.

(8) *Carrying Packages or Items That Interfere with Operation.* No person shall operate a micromobility device while carrying any package, bundle or other item that prevents the operator from safely steering the device.

(9) *Owner Responsibility for Damage to Public Property.* The owner of a micromobility device shall be responsible for all damage to public property caused by the micromobility device.

(10) *Operator Responsibility; Manufacturer Guidelines; Alterations; Passengers.* Nothing in this Section shall be interpreted to mean that, by designating permissible areas of operation, the town is deeming such areas as suitable or safe for any particular micromobility device. Each person operating a micromobility device shall be responsible for complying with the manufacturer's safety guidelines and recommendations. No operator of a micromobility device shall operate a micromobility device that has been structurally altered from the original manufacturer's design. No operator of a micromobility device shall allow passengers unless the device was designed by the manufacturer to allow for passengers.

(11) *Nighttime Lighting and Reflector Requirements.* An electric standup scooter or electric scooter that is used at nighttime must be equipped with: (a) a lamp on the front that emits a white light visible from a distance of at least 500 feet to the front; and (b) a red reflector on the rear that is visible from all distances from 50 feet to 300 feet to the rear when the reflector is directly in front of lawful upper beams of head lamps on a motor vehicle. In addition to the red reflector, an electric standup scooter or electric scooter may also be equipped with a lamp that emits a red light visible from a distance of 500 feet to the rear.

(12) *Sirens and Whistles Prohibited; Anti-Theft Alarms.* A person shall not operate an electric standup scooter or electric scooter that is equipped with a siren or whistle, except that an electric standup scooter or electric scooter may be equipped with an anti-theft alarm.

(13) *Electric Scooter Brake Requirements.* An electric standup scooter or electric scooter shall be equipped with a brake that enables the operator to make the braked wheels skid on dry, level, clean pavement.

11-7-3-4. *Violations.* The Town shall have the authority to issue a civil citation to any person deemed in violation of this Section pursuant to Section 11-7-6 of this Article 11.

11-7-4. *Parking of Bicycles and Micromobility Devices.* No person shall park a bicycle or micromobility device in a manner that violates Section 11-4 of this Article. The Town Manager or Town Engineer shall have the authority to designate or limit areas available for parking bicycles and micromobility devices

11-7-5. *Operation of Bicycles.*

11-7-5-1. *Bicycles Prohibited on Posted Sidewalks.* It shall be unlawful to ride a bicycle on sidewalks where signs have been erected that prohibit said bicycling.

11-7-5-2. *Yielding to Pedestrians and Other Users.* While riding on sidewalks in locations where bicycling is permitted, bicyclists shall yield the right-of-way to pedestrians and other users by slowing down, stopping, or moving to the opposite side of the path, sidewalk, or other applicable travel way.

11-7-5-3. *Authority to Post Bicycle Restrictions.* The Town Engineer or Town Traffic Engineer is authorized to erect signs along any roadway or sidewalk prohibiting the riding of bicycles thereon by any person, and, when such signs are in place, no person shall disobey the same.

11-7-5-4. *Nighttime Lighting and Reflector Requirements.* Any bicycle, electric bicycle, motorized bicycle, or moped that is used at nighttime within San Tan Valley shall have a lamp on the front that emits a white light visible from a distance of at least 500 feet to the front and a red reflector on the rear of a type that is approved by the Arizona Department of Transportation and that is visible from all distances from 50 feet to 300 feet to the rear when the reflector is directly in front of lawful upper beams of head lamps on a motor vehicle. A bicycle, electric bicycle, motorized bicycle, or moped may have a lamp that emits a red light visible from a distance of 500 feet to the rear in addition to the red reflector.

11-7-5-5. *Civil Violation.* Any person found to be in violation of this Section is responsible for a civil violation in accordance with Section 11-7-6.

11-7-5-6. *Definition of Bicycle for This Section.* For the purpose of this Section only, "bicycle" shall not refer to an electric bicycle, motorized bicycle or micromobility device.

11-7-6. *Violations and Penalties.*

11-7-6-1. *Acts Constituting a Violation.* In this Section "violation of this Code" means any of the following:

- (1) Doing an act that is prohibited or made or declared unlawful, an offense or a misdemeanor by ordinance or by rule or regulation authorized by ordinance;
- (2) Failure to perform an act that is required to be performed by ordinance or by rule or regulation authorized by ordinance;
- (3) Failure to perform an act if the failure is declared a misdemeanor or an offense or unlawful by ordinance or by rule or regulation authorized by ordinance.

11-7-6-2. *Exclusion for Town Officers and Employees.* In this Section "violation of this Code" does not include the failure of a Town officer or Town employee to perform an official duty unless it is provided that failure to perform the duty is to be punished as provided in this Section.

11-7-6-3. *General Criminal Penalty.* Except as otherwise provided, a person convicted of a violation of this Section shall be guilty of a class one misdemeanor, punishable by a fine not to exceed two thousand five hundred dollars (\$2,500) or incarceration for a term not to exceed six (6) months, or both such fine and incarceration. With respect to violations of this Section that are continuous with respect to time, each day the violation continues is a separate offense.

11-7-6-4. *Civil Offenses; Repeat Violations.* Violations of this Code for which a civil sanction is imposed shall be treated as a civil offense and hearings and appeals shall be conducted in accordance with the rules of procedure in civil traffic violation cases as set forth in the Arizona Revised Statutes, Rules of Procedure in Civil Traffic Cases. A person who commits a violation of this Code after previously having been found responsible for committing three or more civil violations of this Code within an eighteen (18) month period, whether by admission, by payment of the sanction, by default or by judgment after hearing, shall be guilty of a class one misdemeanor. For purposes of calculating the eighteen (18) month period under this Subsection, the dates of the commission of the offenses are the determining factor.

11-7-6-5. *Civil Sanctions; Failure to Pay.* Any person violating any of the provisions of this Code which are designated as subject to civil sanction or penalty shall be punished by imposition of a civil sanction not to exceed five hundred dollars (\$500), unless another penalty is specified.

(1) Any person who fails to comply with payment of a civil sanction shall be guilty of violating A.R.S. § 13-2810, interference with judicial proceedings. Such conviction shall not preclude the imposition of the assessment of a default fee and/or other fees as set forth below.

(2) In addition to any civil sanction imposed, the municipal court shall assess a default fee of not less than seventy-five dollars (\$75) for a failure to pay any civil sanction imposed by the court.

(3) A judge or hearing officer may waive all or part of the default fee if the payment of the fee would cause a financial hardship to the defendant.

(4) If the court refers any delinquent fines, fees, sanctions, penalties or restitution for collection, any collection or attorney costs are recoverable from the defendant and may be added to any balance due from the defendant to the court.

11-7-6-6. *Administrative Sanctions Preserved.* The imposition of a penalty does not prevent revocation or suspension of a license, permit or franchise.

11-7-6-7. *Continuing Violations; Equitable Relief.* Violations of this Code that are continuous with respect to time may be abated by injunctive or other equitable relief. The imposition of a penalty does not prevent equitable relief.

Section 11-8 **MOTORIZED PLAY VEHICLES AND MOTORIZED SKATEBOARDS.**

11-8-1. *Definitions.* The following words, terms and phrases, when used in this Section, shall have the meanings ascribed to them in this Section, except where the context clearly indicates a different meaning. Should any word, term or phrase conflict with a definition in A.R.S. Title 28, the definitions in Title 28 shall apply.

“*Moped*” means as defined under A.R.S., Title 28.

“*Motor driven cycle*” means as defined under A.R.S., Title 28.

“*Motorcycle*” means as defined under A.R.S., Title 28.

“*Motorized play vehicle,*” for the purpose of this Section, means a coaster or any other alternatively-fueled device (excluding battery-operated toy carts designed for children under the age of eight (8) years to ride in or on), or other motorized vehicle that is self-propelled by a motor or engine and that is not otherwise defined in Arizona Revised Statutes, Title 28 (as amended), as a “motor vehicle,” “motor-driven cycle,” “motorized wheelchair,” or “electric personal assistive mobility device.”

“*Motorized quadricycle*” means as defined under A.R.S., Title 28.

“*Motorized skateboard*” means a self-propelled device which has a motor or engine, a deck on which a person may ride and at least two wheels in contact with the ground and which is not otherwise defined in Arizona Revised Statutes Title 28(as amended), as a “motor vehicle,” “motor-driven cycle,” “motorized wheelchair,” or “electric personal assistive mobility device.” A motorized skateboard is not considered to be a micromobility device (as defined in 11-7-1 of this Section).

“*Operator*” means a person who operates or is in actual physical control of a device governed by this Section.

“Owner” means a person who holds the legal title to a device governed by this Section, or any person who is a lessee, conditional vendee or mortgagor of said device with a right to immediate possession.

11-8-2. *Applicability of Traffic Laws; Registration; Licenses.*

11-8-2-1. *Applicability of Traffic Laws.* All traffic laws shall apply to persons riding motorized play vehicles and motorized skateboards. Every person operating a motorized play vehicle or motorized skateboard upon a roadway shall be granted all of the rights and shall be subject to all of the rules applicable to vehicles, including, but not limited to, the laws under A.R.S., Title 28, and the traffic regulations of the town, unless otherwise stated in said rules and laws and except as to those provisions which by their nature can have no application.

11-8-2-2. *Registration Not Required.* Subject to Subsection 11-8-2-1, this Section shall not be construed to require the registration of motorized play vehicles or motorized skateboards.

11-8-2-3. *Compliance with Traffic-Control Devices.* It is unlawful for any person operating a motorized play vehicle or motorized skateboard to fail to obey the instructions of official traffic-control signals, signs, and other traffic direction devices applicable to vehicles, unless otherwise directed by a police officer.

11-8-2-4. *Civil Citations; Separate Violations.* The town shall have the authority to issue a civil citation to any person deemed in violation of this Section. For the purpose of Subsection 11-8-2-4, each unauthorized motorized play vehicle or motorized skateboard shall be treated as a separate violation and each day of violation shall be a separate violation upon failure to remove or diligently pursue the removal of the motorized play vehicle or motorized skateboard.

11-8-3. *Responsibility of Parents, Guardians, and Custodians.* No person shall, if a parent, guardian, or custodian of a child, authorize or knowingly permit any child to violate this Section.

11-8-4. *Prohibited Operation.* No person shall operate a motorized play vehicle or motorized skateboard:

11-8-4-1. *Sidewalks.* On any sidewalk, except for use in crossing such sidewalk by the most direct route to gain access to any public or private road or driveway.

11-8-4-2. *Town Parking Structures and Town Parks.* In any town parking structure or town park, except for use on public roadways within such park.

11-8-4-3. *Posted or Designated No-Skateboard Areas.* On any public property that has been posted or designated by the owner of such property as an area prohibiting "skateboards."

11-8-4-4. *Certain Public Roadways.* On any public roadway consisting of a total of four or more marked traffic lanes, or having an established speed limit of greater than 25 miles per hour.

11-8-4-5. *Private Property and Public Property Not Open to Vehicle Use.* On any private property of another, or any public property which is not held open to the public for vehicle use, without the written permission of the owner, the person entitled to immediate possession of the property, or the authorized agent of either.

11-8-4-6. *Bicycle Lanes and Paths.* Within any path or lane that is designated as a bicycle lane or path by state or local authorities.

11-8-5. *General Operating Restrictions.*

11-8-5-1. *Speed Limits; Reasonable and Prudent Speed.* No person shall operate a motorized play vehicle or motorized skateboard in excess of the posted speed limit or at a speed greater than is reasonable and prudent under the circumstances then existing.

11-8-5-2. *Yielding When Crossing Sidewalks, Bicycle Facilities, and Multiuse Paths.* The operator of a motorized play vehicle or motorized skateboard, approaching a sidewalk, bicycle path, bicycle lane, or multiuse path in order to cross such, shall yield the right-of-way to all other users.

11-8-5-3. *Passengers Prohibited.* No operator of a motorized play vehicle or motorized skateboard shall allow passengers when the motorized play vehicle or motorized skateboard is in operation or motion.

11-8-5-4. *Attaching to Vehicles Prohibited.* No person operating or riding upon a motorized play vehicle or motorized skateboard shall attach themselves or the motorized play vehicle or motorized skateboard in any manner to any other vehicle.

11-8-5-5. *Carrying Packages or Articles That Interfere with Operation.* No person shall operate a motorized play vehicle or motorized skateboard while carrying any package, bundle or article that prevents the operator from keeping both hands upon the steering mechanism at all times.

11-8-5-6. *Structural Alterations Prohibited.* No person shall operate a motorized play vehicle or motorized skateboard that has been structurally altered from the original manufacturer's design, unless such structural alteration reduces the noise level emitted from the motorized play vehicle or motorized skateboard below the noise level emitted by the original manufacturer's design.

11-8-5-7. *Operation in Crosswalks Prohibited.* No person shall operate a motorized play vehicle or motorized skateboard in a crosswalk.

11-8-5-8. *Noise Limit.* No person shall operate a motorized play vehicle or motorized skateboard in such a manner that it emits any noise that exceeds eighty decibels, using the measurement criteria set forth in Article 10 of the San Tan Valley Town Code and measured at a distance of 35 feet from the motorized play vehicle or motorized skateboard.

11-8-6. *Operating Restrictions on Roadway.*

11-8-6-1. *Operation Near Right-Hand Curb or Edge of Roadway.* A person operating a motorized play vehicle or motorized skateboard on a roadway at less than the normal speed of traffic, at the time and place and under the then existing conditions, shall ride as close as practicable to the right hand curb, edge of the roadway or edge of a designated bicycle path or lane except under the following conditions and when the movement can be made in safety:

- (1) If overtaking and passing a vehicle proceeding in the same direction.
- (2) If preparing for a left turn at an intersection or into a private road or driveway.
- (3) If reasonably necessary to avoid hazardous conditions ahead in the roadway.
- (4) If the lane in which the person is operating the motorized play vehicle or motorized skateboard is too narrow for a motorized play vehicle or motorized skateboard and a bicycle or another vehicle to travel safely side by side within the lane.

11-8-6-2. *Extra Fuel and Fuel Reservoir Alterations Prohibited.* No operator of a motorized play vehicle or motorized skateboard shall transport extra fuel in a separate container or alter the fuel reservoir from the original manufacturer's design. This includes the prohibition of physically attaching fuel packs or containers to the operator's person.

11-8-6-3. *Riding More Than Two Abreast Prohibited.* Persons operating motorized play vehicles or motorized skateboards on the roadway shall not ride more than two abreast.

11-8-6-4. *Nighttime Operation Prohibited.* No motorized play vehicle or motorized skateboard shall be operated on a roadway between sunset or 8:00 p.m., whichever is earliest, and 8:00 a.m.

11-8-7. *Required Safety Equipment.* No person shall operate a motorized play vehicle or motorized skateboard unless it is equipped with a brake which enables the operator to make a braked wheel(s) skid on pavement.

11-8-8. *Violations.* Violations of this Section are civil traffic violations and shall be prosecuted as provided in Section 11-7-6 of Article 11.

Section 11-9 TRAFFIC CALMING AND NEIGHBORHOOD TRAFFIC MANAGEMENT.

11-9-1. *Purpose and Intent.* The purpose of this Section is to establish a Neighborhood Traffic Management Program (NTMP). Traffic calming is considered a quality-of-life measure intended to foster safe, walkable, and peaceful neighborhoods by reducing speeding and non-local traffic on residential streets, while ensuring adequate access for emergency vehicles. The NTMP aims to balance the need for efficient vehicle circulation with the safety and tranquility of residential areas, ensuring that rapid municipal growth does not erode neighborhood character.

11-9-2. *Establishment of NTMP and Authority of the Town Engineer.* The Town Engineer is authorized and directed to administer the NTMP, which includes the authority to:

- (1) Perform technical traffic, speed, and volume studies on Town streets.
- (2) Promulgate administrative guidelines, application processes, and technical criteria for traffic calming devices.
- (3) Prioritize projects based on documented data, safety metrics, and available budget.
- (4) Include projects in the Town's Capital Improvement Plan, Safety Action Plan, or other planning document for roadway improvements or enhancements.

11-9-3. *Initiation of Traffic Calming Studies.*

11-9-3-1. *Preliminary Petition Required.* To initiate a formal traffic calming study under the NTMP, residents shall submit a preliminary petition to the Town.

11-9-3-2. *Petition Signature Threshold.* The preliminary petition must contain the signatures of registered voters or property owners representing at least seventy percent (70%) of the households within the defined study area or street segment.

11-9-3-3. *Town Engineer Review; Traffic Study.* Upon receipt of a valid petition, and subject to budget availability, the Town Engineer may perform a traffic study to evaluate vehicle speeds, traffic volumes, crash history, and other relevant conditions to determine whether traffic calming measures are warranted based on established engineering criteria.

11-9-3-4. *Town-Initiated Study for Safety Concerns.* The Town Engineer may initiate a traffic calming study without the required petition signatures if, in the Town Engineer's opinion, the study is necessary to address an identified safety concern.

11-9-4. *Non-Physical Traffic Calming Measures.*

11-9-4-1. *Definition:* Non-physical measures include, but are not limited to, targeted police enforcement, pavement markings, educational campaigns, and temporary or permanent electronic radar speed feedback signs.

11-9-4-2. *Discretionary Authority:* The installation, deployment, and removal of non-physical traffic calming measures shall be at the discretion of the Town Engineer based on traffic study results and engineering judgment.

11-9-4-3. *No Approval Required:* No resident vote, petition, or formal neighborhood approval shall be required for the Town Engineer to implement non-physical measures.

11-9-5. *Physical Traffic Calming Measures.*

11-9-5-1. *Authorized Physical Measures.* Physical traffic calming measures may include, but are not limited to, speed cushions, speed humps, mini-traffic circles, chicanes, bulb-outs, and median islands.

11-9-5-2. *Neighborhood Support Required.* Before any permanent physical traffic calming measure may be approved for installation, the neighborhood must demonstrate substantial support by satisfying both of the following criteria:

11-9-5-2-1. *Traffic Impact Zone Petition.* A petition must be signed by property owners representing at least seventy percent (70%) of the households within the designated traffic impact zone, as defined by the Town Engineer's administrative guidelines.

11-9-5-2-2. *Adjacent Property Owner Support.* The final petition must include support and signatures from all property owners whose lot lines are within fifty (50) feet of the proposed physical traffic calming measure.

11-9-5-3. *Eligible Roadways.* Physical traffic calming measures are permitted only on local residential streets and neighborhood collector roadways having an average daily traffic volume of fewer than five thousand (5,000) vehicles per day and a posted speed limit of thirty (30) miles per hour or less.

11-9-5-4. *Coordination with Public Safety.* The Town Engineer shall coordinate the installation of physical traffic calming measures with local law enforcement, fire service providers, emergency medical service providers, and other emergency responders as applicable.

11-9-6. *Budgetary Contingency, Funding, and Obligations.*

11-9-6-1. *Subject to Budget Availability and Council Funding.* Notwithstanding any other provision of this Section, the initiation of traffic studies, the design of traffic calming plans, and the installation of any physical or non-physical traffic calming measures are strictly subject to budget availability and the allocation of funds by the Town Council.

11-9-6-2. *No Entitlement or Obligation Created.* Verification of a traffic problem, safety concern, or the procurement of required resident petition signatures does not create a property right or entitlement, nor does it obligate the Town to fund or construct any project.

11-9-7. *Severability*. If any section, subsection, sentence, clause, or phrase of this Section is for any reason held to be invalid or unconstitutional by the decision of any court of competent jurisdiction, such decision shall not affect the validity of the remaining portions of this Section.

ARTICLE 12 - ANIMALS

SECTIONS:

12-1 : ANIMALS

Section 12-1 ANIMALS.

12-1-1. *County Animal Control Ordinance Adopted by Reference.* The Pinal County Animal Control Ordinance, dated October 18, 2017 (Pinal County Ordinance No. 101817-PCACO), is hereby adopted by reference and incorporated herein as if set out in full.

12-1-2. *Conflicts; Construction.* This Section shall be construed to maintain consistency with the Pinal County Animal Care and Control Ordinance adopted by reference in Section 12-1-1 and with any intergovernmental agreement approved by the Town Council for animal care and control services. In the event of a direct conflict between the Pinal County Animal Care and Control Ordinance and a supplemental Town regulation in this Section, the Pinal County Animal Care and Control Ordinance shall govern to the extent necessary for Pinal County Animal Care and Control to provide services under the applicable intergovernmental agreement. Nothing in this Section shall be construed to limit the Town's authority to adopt, administer, or enforce supplemental animal regulations that are not inconsistent with state law, the adopted County ordinance, or an applicable intergovernmental agreement.

12-1-3. *Definitions.* The following words, terms and phrases, when used in this Section, shall have the meanings ascribed to them in this Section, except where the context clearly indicates a different meaning.

"Animal" means any animal of a species that is susceptible to rabies, except man.

"At Large" means being neither confined by an enclosure nor physically restrained by a leash, lead, harness or a rider. The requirement to secure or control a dog with a leash shall not apply within private, gated communities; in such cases, dogs shall only be required to be under the owner's or custodian's control.

"County" means Pinal County Animal Care and Control.

"Custodian" means the person whom an owner has entrusted with keeping, maintaining and controlling his or her animal, or a person who keeps, harbors or maintains an animal.

"Disturbance" means a disturbance caused by an animal that is distressing, loud or unusual, and disturbs the peace or quiet of any place, neighborhood, family or persons in the Town for an unreasonable amount of time, and is documented by an enforcement agent.

"Enclosure" means a fence or structure of at least six feet in height, suitable to prevent the entry of young children, and suitable to confine a vicious animal. Such enclosures shall be securely locked and designed with secure side, top and bottom, and shall be designed to prevent the animal from escaping.

"Enforcement Agent" means that person, whether employed by the Town or otherwise provided for, who is responsible for the enforcement of this Section, and may include an officer of the Police Department, or a person authorized through an Intergovernmental Agreement with another public agency.

"Impound" means the enforcement agent's act of taking or receiving into custody any animal for the purpose of confinement in an authorized pound in accordance with the provisions of this Section.

“Kennel” means an enclosed, controlled area, inaccessible to other animals, in which a person keeps, harbors or maintains five or more dogs under controlled conditions.

“Leash” means a chain, rope or strap, made of leather, fabric or other material that is:

- (1) Not more than six feet in length;
- (2) Capable of being fastened to a collar or harness of a dog and used to lead, restrain and control the dog; and
- (3) Of sufficient strength for those purposes.

“Livestock” means any equine, cattle, sheep, goat, asses, bovine, pig, hog or swine. *“Equine”* shall have the same definition as contained in A.R.S. § 12-553(E).

“Owner” means the person who most recently purchased, adopted or otherwise legally acquired an animal.

“Pound” means any establishment authorized for the confinement, maintenance, safekeeping and control of animals that come into the custody of the enforcement agent in the performance of his or her official duties.

“Private Property” means any residential, commercial, industrial, mining or agricultural property that is not owned by the owner of the livestock or animal.

“Rabies Quarantine Area” means any area in which a state of emergency has been declared to exist due to the occurrence of rabies in animals in or adjacent to this area.

“Repetitious Disturbance” means a disturbance, as defined herein, that occurs on more than two occasions over a period of thirty (30) days or less.

“Vaccination” means the administration of an anti-rabies vaccine to animals by a veterinarian or in authorized pounds by employees trained by a veterinarian.

“Veterinarian” means any veterinarian licensed to practice in this state, or any veterinarian employed in this state by a governmental agency.

“Veterinary Hospital” means any establishment operated by a veterinarian licensed to practice in this state that provides clinical facilities and houses animals or birds for dental, medical or surgical treatment. A *“veterinary hospital”* may have adjacent to it, in conjunction with it, or as an integral part of it, pens, stalls, cages or kennels for quarantine, observation or boarding.

“Vicious” means any animal having a propensity to bite, attack, chase or otherwise endanger the safety of any human being or other animal without provocation, either on public or private property, and is declared *“vicious”* after a hearing before a Justice of the Peace or Town Magistrate. The following shall be prima facie evidence of an animal’s *“vicious”* nature:

- (1) Has, without provocation, attacked or bitten a person engaged in a lawful activity; or
- (2) Has, while off the property of the owner and without provocation, killed or seriously injured another animal; or
- (3) Has, without provocation, chased, confronted or approached a person on a street, sidewalk or other public property in a menacing fashion such as would put an average person in fear of attack; or
- (4) Has, without provocation, exhibited a propensity, tendency or disposition to attack, cause injury or threaten the safety of a person or other animal; or
- (5) Has attacked in a manner that causes or should cause its owner to know that it is potentially vicious; or
- (6) Has been trained for dog fights or is owned or kept for dog fighting.

12-1-4. *Restrictions on Places Where Kept.*

12-1-4-1. No corral, barn, enclosure or other structures for the purpose of housing, keeping or caring for any animal shall be allowed within 50 feet of the boundary between the owner's lot or lots and any adjacent, occupied residential lot or lots, unless it is a fly-tight enclosure approved by the County Health Department.

12-1-4-2. It shall be unlawful for any person to cause or allow any stable or place where any animal is, or may be kept, to become unclean or unwholesome.

12-1-5. *Swine, Fowl or Bees.*

12-1-5-1. Notwithstanding any other provision of the County Sanitary Code and the County Animal Control Ordinance to the contrary, it shall be unlawful to keep, maintain and hold any swine, adult male poultry or bees within the Town, except that adult male poultry or fowl and miniature potbellied pigs may be kept, provided they are so kept to be in accordance with all of the provisions of all ordinances.

12-1-5-2. Adult male poultry or fowl and miniature potbellied pigs shall be at all times penned or confined and not allowed to run-at-large, and no more than three potbellied pigs shall be allowed per household.

12-1-5-3. "Potbellied Pig" shall mean only miniature Vietnamese potbellied pigs or other similar miniature potbellied pigs that do not exceed 100 pounds in weight. Further, any person owning, keeping, possessing, harboring or maintaining any potbellied pig in excess of four months of age shall be required to register and pay the license fees as prescribed by the Town or the county for the keeping of dogs and cats.

12-1-6. *Roaming Livestock.*

12-1-6-1. *Purpose and Intent.* The purpose of this Section is to regulate roaming livestock in order to protect the health, safety, and welfare of motor vehicle drivers and property owners. The Town Council finds that the increasing prevalence of roaming livestock within the Town requires local regulation to protect public safety. The Town Council further finds that the State has granted municipalities authority to prohibit the roaming of animals within the Town and that it is in the public interest to prohibit roaming livestock within the Town.

12-1-6-2. *Roaming at Large of Livestock Prohibited.* It is unlawful for any person to keep, or cause to be kept, any horses, mules, cattle, burros, goats, sheep, or other livestock or fowl within the Town unless the person keeps the livestock or fowl in a pen or similar enclosure to prevent roaming at large.

12-1-6-3. *Separation from Occupied Residential Dwellings.* No horse, cow, sheep, goat, burro, mule, or other livestock so kept shall be allowed within one hundred (100) feet of any occupied residential dwelling other than that of the owner.

12-1-7. *Enforcement Agent.*

12-1-7-1. Duties. The enforcement agent shall:

- (1) Enforce this Section and the regulations promulgated under this Section;
- (2) Issue citations for violations of this Section and the regulations promulgated under this Section; and

(3) Contact the County Animal Control Unit to confirm or declare a rabies quarantine area within the area of jurisdiction. When a quarantine area has been declared, County Animal Control Officers shall meet with the State Veterinarian and representatives from the Department of Health Services and the Game and Fish Department to implement an emergency program for the control of rabies within the area. Any regulations restricting or involving movement of livestock within the area shall be subject to approval by the State Veterinarian.

12-1-7-2. *Animals Confined in Vehicles or Enclosed Spaces.* The enforcement agent is authorized to use whatever force is reasonably necessary to remove animals confined within a motor vehicle or enclosed space when it appears that the animal's life or health is endangered by extreme heat or lack of ventilation within the vehicle or enclosed space. The enforcement agent or the enforcement agent's employer shall not be liable for damages to property caused by such removal.

12-1-7-3. *Entry onto Private Property; Impoundment.* The enforcement agent is authorized to go on private property to enforce this Section, to take up any animal found at large, to take up any animal considered a disturbance or repetitious disturbance, or to take up any dog found without required vaccination, licensing, or identification tags. The enforcement agent may not enter a private structure for this purpose without a valid warrant or the consent of an occupant. The enforcement agent, in the enforcement agent's discretion, may remove the animal for placement at the pound.

12-1-7-4. *Dangerous Animals That Cannot Be Safely Impounded.* In the judgment of the enforcement agent, any dog at large or other animal that is dangerous or fierce and a threat to public safety, and that cannot be safely impounded, may be humanely destroyed.

12-1-8. *Interference with Enforcement Agent Prohibited.* No person shall interfere with the enforcement agent in the performance of the enforcement agent's duties.

12-1-9. *Animals Causing a Disturbance.* It is unlawful to allow any animal to create a disturbance or repetitious disturbance by barking, howling, baying, or making any other distressing, loud, or unusual sound as defined in this Section.

12-1-10. *Vaccinations.* Any person keeping, harboring, or maintaining a dog over the age of three (3) months within the Town for a period in excess of thirty (30) consecutive days shall have the dog vaccinated pursuant to County procedures.

12-1-11. *Dog Licensing; Dogs at Large.*

12-1-11-1. *Dog License Required.* Any person keeping, harboring, or maintaining a dog over the age of three (3) months within the Town for a period in excess of thirty (30) consecutive days shall license the dog with the County.

12-1-11-2. *License Tag Required.* Dogs over the age of three (3) months shall wear a collar or harness to which is attached a valid license tag. Dogs used for control of livestock, dogs used or trained for hunting, dogs exhibited or trained at a kennel club event, or dogs engaged in races approved by the state racing commission, while being transported to and from such events, need not wear a collar or harness with a valid license attached, provided that they are properly vaccinated, licensed, and controlled.

12-1-11-3. *Dogs at Large Prohibited.* If any dog is at large on public streets, public parks, public property, or the private property of a person other than the owner, then its owner or custodian is in violation of this Section. Any custodian of a dog or person whose dog is at large is in violation of this Section.

12-1-11-4. *Exceptions to Dogs at Large.* A dog is not at large if:

(1) It is restrained by a leash, chain, rope, or cord not more than six (6) feet in length and of sufficient strength to control its action;

(2) It is used for control of livestock, while being used or trained for hunting, while being exhibited or trained at a kennel club event, or while engaged in races approved by the Arizona Racing Commission;

(3) It is actively engaged in dog obedience training, accompanied by and under the control of its owner or trainer, provided that the person training it has in the person's possession a dog leash not more than six (6) feet in length and of sufficient strength to control it, and provided further that the dog is actually enrolled in or has graduated from a dog obedience training school; or

(4) Whether on or off the premises of the owner or custodian, it is controlled as provided in Subsection 12-1-11-4(1), or is within a suitable enclosure that actually confines the dog.

12-1-11-5. *Apprehension and Impoundment.* Any dog at large shall be apprehended and impounded by an enforcement agent and turned over to County Animal Control.

12-1-11-6. *Entry onto Private Property to Apprehend Dog at Large.* The enforcement agent has the right to enter upon private property when necessary to apprehend any dog that has been found at large. Such entrance upon private property shall be in reasonable pursuit of such dog and shall not include entry into a domicile unless at the invitation of the occupant.

12-1-11-7. *Citation Authority.* The enforcement agent may issue a citation to the dog owner or person acting for the owner when the dog is at large. The procedure for issuance of a notice to appear shall be as provided for peace officers in A.R.S. § 13-3903, except the enforcement agent shall not make an arrest before issuing the notice. The issuance of citations pursuant to this Section is subject to A.R.S. § 13-3899.

12-1-11-8. *Dangerous Dogs or Animals That Cannot Be Safely Impounded.* In the judgment of the enforcement agent, any dog at large or other animal that is dangerous, vicious, or fierce and a threat to human safety, and that cannot be safely impounded, may be humanely destroyed.

12-1-12. *Kennel Permit Requirements.*

12-1-12-1. *Kennel Permit Required.* A person operating a kennel shall obtain a permit issued by the County, unless each individual dog is licensed.

12-1-12-2. *Dogs Remaining in Kennel.* A dog remaining with the kennel is not required to be licensed individually by the County. A dog leaving the controlled kennel conditions shall be licensed by the County, unless the dog is only being transported to another kennel that has a permit issued by the applicable governmental entity.

12-1-13. *Penalties; Hearings; Appeals.*

12-1-13-1. *Civil Penalty.* Any person found responsible for violating any provision of this Section, except as otherwise provided in this Section, shall be assessed a civil penalty not to exceed two hundred fifty dollars (\$250.00) per offense for a first offense, and a fine not to exceed five hundred dollars (\$500.00) per offense for a second or subsequent offense committed within thirty-six (36) months.

12-1-13-2. *Hearing; Burden of Proof; Appeals.* A person issued a civil citation for violating this Section may request a hearing in the same manner as a dispute arising from a civil traffic violation, which shall be adjudicated by the Town Magistrate. The State's burden of proof shall be by a

preponderance of the evidence. Appeals shall be taken pursuant to A.R.S. § 22-425(B) and the Arizona Superior Court Rules of Appellate Procedure—Civil.

12-1-13-3. *Roaming Livestock Misdemeanors*. Any person who allows livestock to roam at large in violation of Section 12-1-6 is guilty of the following misdemeanors:

- (1) Any person who allows livestock to roam at large within the Town is guilty of a Class 3 misdemeanor;
- (2) Any person who allows livestock to roam at large upon the private property of another within the Town is guilty of a Class 2 misdemeanor; and
- (3) Any person who allows livestock to roam at large within or upon any public right-of-way within the Town is guilty of a Class 1 misdemeanor.

ARTICLE 13 - PARKS, RECREATION, AND PUBLIC PROPERTY

SECTIONS:

13-1: PARKS, RECREATION, AND PUBLIC PROPERTY

Section 13-1 PARKS, RECREATION, AND PUBLIC PROPERTY.

13-1-1. *Definitions.* In this Section, unless the context otherwise requires:

“*Active play area*” means any area with active play equipment, including but not limited to playgrounds, splash pads, fitness pods, sand dig zones, sport courts, and skate parks.

“*Intoxicating liquor*” means any alcoholic beverage made by fermentation or distillation which, when used in sufficient quantities, ordinarily or commonly produces entire or partial intoxication. Intoxicating liquor includes any liquor intended for use as a beverage, or capable of being so used, that contains more than one-half of one percent (0.5%) of alcohol by volume.

“*Park*” means a playground, recreation center, public open space, or any other area in the Town owned, leased, operated, maintained, managed, or used by the Town and devoted to active or passive recreation, including all internal roadways, internal and adjacent parking lots, and internal and adjacent sidewalks or pathways established or maintained by the Town. Park includes retention basin areas and washes within the boundary of a park, but excludes drainage retention basins not identified by the Town as parks through on-site signage.

“*Reserved use area*” means any area or facility within Town property that has been reserved through the Town Parks and Recreation Department pursuant to Town policies, procedures, or duly adopted Town public park regulations.

“*Retention basin*” means an open space with turf and landscaping set aside for retention of runoff from adjacent lands and not located inside the boundary of a park owned by the Town.

“*Town property*” means that portion of any property, facility, structure, street, alley, path, lane, multiuse trail, sidewalk, park, retention basin, wash, active play area, improvement, or other area that is owned, leased, operated, maintained, or managed by the Town, or is otherwise used or available for the provision of Town services.

“*Wash*” or “*washes*” means any natural watercourse, including the immediately adjacent banks of such watercourse.

13-1-2. *Authority.*

13-1-2-1. *Rules and Regulations.* The Town Manager or designee is authorized to adopt, amend, administer, and enforce rules and regulations related to the regulation, use, operation, and maintenance of Town property, consistent with this Code and applicable law.

13-1-2-2. *Hours of Operation.* The Town Manager or designee may establish opening and closing hours for Town property and provide for the posting of such hours.

13-1-2-3. *Passes, Permits, and Reservations.* The Town Manager or designee may issue passes, permits, reservations, and other authorizations for use of Town property and may establish related requirements, rules, procedures, and forms.

13-1-2-4. *Temporary Closures and Use Restrictions.* The Town Manager or designee may declare

any section or part of Town property closed to the public, either entirely or for certain uses, for any period of time reasonably necessary to protect Town property or the public health, safety, or welfare.

13-1-2-5. *Fees.* The Town Manager or designee may administer, implement, adjust, and collect fees for programs, passes, permits, reservations, rentals, and other uses of Town property consistent with Town Council-adopted fee policies, the Town's adopted fee schedule, and applicable law.

13-1-2-6. *Protection of Town Property and Public Safety.* The Town Manager or designee may take actions reasonably necessary to protect Town property and the health, safety, and welfare of the public, users of Town property, and Town officers, employees, agents, contractors, and representatives.

13-1-2-7. *Community Partnerships.* The Town Manager or designee may collaborate with nonprofit organizations, faith-based organizations, educational institutions, businesses, civic groups, neighborhood organizations, and other community partners for programs, events, services, volunteer activities, and public purposes related to Town property, parks, recreation, arts, culture, library services, youth programming, and community well-being.

13-1-3. *Public Park Regulations.* Pursuant to the authority granted in Section 13-1-2, the Town Manager or designee may adopt, amend, administer, and enforce reasonable public park regulations governing the use, operation, maintenance, protection, reservation, and management of Town property, consistent with this Code and applicable law.

13-1-4. *Fees.*

13-1-4-1. *Administration.* Pursuant to the authority granted in Section 13-1-2, the Town Manager or designee shall administer, implement, adjust, and collect fees consistent with Town Council-adopted fee policies, the Town's adopted fee schedule, and applicable law.

13-1-4-2. *Fee Authority.* Subject to applicable law, Town Council-adopted fee policies, and the Town's adopted fee schedule, fees may be established, adjusted, collected, or administered for programs, passes, permits, reservations, rentals, and other parks and recreation services or uses of Town property.

13-1-4-3. *Promotional Rates; Discounts; Temporary Fee Reductions.* The Town Manager or designee may implement promotional rates, discounted fees, and temporary fee reductions for the purpose of increasing community engagement, promoting specific programs, or facilitating access to parks and recreation services, if authorized by Town Council-adopted fee policies, the Town's adopted fee schedule, or other applicable law.

13-1-4-4. *Fee Collection.* The Town Manager or designee may collect fees from program participants, pass holders, permit holders, reservation holders, rental users, and other users of Town property or Town parks and recreation services.

13-1-4-5. *Fee Collection Procedures.* The Town Manager or designee may establish procedures for fee collection and enforcement, including without limitation:

- (1) Payment methods, including acceptable forms of payment;
- (2) Late fees or penalties for late payment or nonpayment, if authorized by the Town's adopted fee schedule or applicable law; and
- (3) Refund and cancellation policies.

13-1-4-6. *Fee Considerations.* In establishing, adjusting, or recommending fees, the Town Manager or designee shall follow Town Council-adopted fee policies and consider the following factors as they relate to the adopted fee structure and as permitted by law:

- (1) Cost of service, including the actual costs associated with providing the program, permit, reservation, rental, service, or use;
- (2) Community needs, including demand for the service and affordability for various income levels;
- (3) Comparable rates charged by similar organizations or jurisdictions; and
- (4) Economic conditions and the overall economic health of the community.

ARTICLE 14 - HEALTH, SANITATION, AND WELFARE

SECTIONS:

14-1: HEALTH, SANITATION, AND WELFARE

14-2: PROPERTY MAINTENANCE

14-3: REFUSE COLLECTION AND SERVICE REGULATION

14-4: NUISANCES

Section 14-1 HEALTH, SANITATION, AND WELFARE.

14-1-1. *Definitions.*

“Blight or blighted” means unsightly conditions including accumulation of debris; fences characterized by holes, breaks, rot, crumbling, cracking, peeling or rusting; landscaping that is dead, characterized by bare dirt areas, uncontrolled growth or lack of maintenance, or is damaged; any other similar conditions of disrepair and deterioration; and the exterior visible use or display of tarps, plastic sheeting, or other similar materials as flexible or inflexible screening, fencing, or wall covering upon a residential lot; regardless of the condition of other properties in the neighborhood.

“Business establishment” means any structure or premises not used as a private premises, including retail, wholesale, warehouse, store, factory, production, processing, manufacturing, restaurant, construction, service, hospitals, governmental entities, public authorities (schools), or office uses.

“Commercial or industrial refuse” means any refuse generated by a business establishment.

“Commercial or industrial solid waste management services” means the collection, storage, processing, transportation, treatment, reclamation, or disposal of commercial or industrial refuse.

“Container” means 60-, 90-, 300- and 440-gallon plastic barrels; 2-, 3-, 4-, 6-, and 8-cubic-yard metal bins; 20-, 30-, and 40-cubic-yard roll-off containers (approximate sizes); and compactors and other containers approved by the Town.

“Dangerous or hazardous waste” means any solid waste that can cause damage or injury to property or persons and is hazardous by reason of its pathological, explosive, flammable, radiological, or toxic nature, including, but not limited to, all wastes defined by the provisions of A.R.S. 49-921 and A.A.C. Title 18, Chapter 8, Section 2.

“Disposal” means the physical transfer of refuse for purposes of recovery, other processing, or for placement at a site approved by the Arizona Department of Environmental Quality or other agency having jurisdiction.

“Garbage, refuse or trash” means all putrescible wastes, except sewage and body wastes, including all organic wastes that have been prepared for, or intended to be used as, food or have resulted from the preparation of food, including all such substances from all public and private establishments and private premises.

“Litter” means any rubbish, trash, weeds, filth or debris which constitute a hazard to public health and safety and shall include all putrescible and nonputrescible solid wastes including garbage, trash, ashes, street cleanings, dead animals, abandoned automobiles and solid market and industrial waste; any deposit, accumulation, pile or heap of brush, grass, debris, weeds, cans, cloth, paper, wood, rubbish or other unsightly or unsanitary matter of any kind whatsoever; and any growth of weeds, brush, grass or other vegetable growth to an unreasonable height or in unreasonable amount. Any debris created during any construction shall be considered litter for purposes of this Section, as will

any handbills, posters or other similar advertising material posted within the Town and not removed within 72 hours after the time of event.

“*Permittee*” means a person who engages in, owns, or operates a service to collect, transport, dispose, or recycle commercial or industrial refuse or residential refuse generated within the Town and has obtained a valid permit pursuant to the provisions of this Section.

“*Person*” means a corporation, company, partnership, firm, association, or society, as well as a natural person.

“*Private premises*” means any dwelling, house, building or other structure, designed or used either wholly or in part for private residential purposes, whether inhabited or temporarily or continuously uninhabited or vacant, and shall include any yard, grounds, walk, driveway, porch, steps or vestibules belonging or appurtenant to such dwelling, house, building or other structures.

“*Public place*” means any and all streets, sidewalks, boulevards, alleys or other public ways, and any and all public parks, squares, spaces, grounds and buildings.

“*Public Works Director*” means the director of the public works department or their representative.

“*Recycle*” means any manual or mechanical process which involves the collection or transportation of one or more of the various components of recoverable refuse which have been or will be separated, concentrated, or sold.

“*Residential, commercial or industrial solid waste recycling services*” means the recycling of any residential refuse or commercial or industrial refuse.

“*Residential refuse*” means any refuse generated by a private premises.

“*Residential solid waste management services*” means the collection, storage, processing, transportation, treatment, reclamation, or disposal of residential refuse.

14-1-2. *Garbage and Trash Removal.*

14-1-2-1. *Requirements for Hauling Garbage.* It is unlawful for any person to haul or cause to be hauled on or along any public street in the Town any garbage, unless such garbage is contained in strong, watertight vehicles or vehicles with watertight receptacles, constructed to prevent any such garbage from falling, leaking or spilling and any odor from escaping.

14-1-2-2. *Spilled Refuse.* Any person hauling any refuse along the streets of the Town shall immediately replace in the conveyance used for such hauling any refuse which may fall upon any street.

14-1-2-3. *Dumping Refuse.* It is unlawful for any person to place or cause to be placed any refuse upon any public or private property within the Town, except as specifically permitted elsewhere in this Code.

14-1-2-4. *Residential Property.* Unless otherwise provided in this Section, all residential properties within the Town limits, which are occupied, shall have refuse services through a contracted waste collection permittee. In the event the Town determines that a legitimate governmental purpose would be advanced by having the Town, or a contracted waste collection permittee as selected by the Town in its sole and absolute discretion, exclusively provide residential refuse or recycling services, solid waste collection service shall be provided by the Town or by the person, firm, or corporation identified by the Town. Payment for such service shall be made to the permittee.

14-1-2-5. *Prohibition Against Nonuse of Town Collection Service.* If the Town Council separately implements mandatory or exclusive residential refuse or recycling service, no person in possession of a residence subject to that implementation may avoid or refuse the service required by the Town,

and such avoidance or refusal shall not exempt the premises from payment of any charges lawfully imposed for such service. For residential customers, homeowners' associations, or other responsible parties using a private contractor at the time of implementation, any transition to Town-provided service, a Town-selected provider, or a Town-approved collection company shall occur as provided in the implementing action approved by the Town Council and applicable law.

14-1-3. *Exemptions to Mandatory Collection.* If the Town Council implements a municipal refuse collection program, exclusive service arrangement, or mandatory residential refuse collection requirement pursuant to Section 14-3, the Town Manager, or designee, may issue an exemption to a property owner if the property owner establishes that an exception applies under this Section or under the implementing action approved by the Town Council. The Town Manager, or designee, may revoke an exemption issued to a property if the basis for the exemption no longer exists or if the exemption is inconsistent with this Section, the implementing action, or applicable law.

14-1-4. *Shared Service.* The property owner or occupant otherwise has arranged for shared solid waste disposal with the owner or occupant of another structure receiving solid waste collection service in accordance with the Town Code, and such shared service does not involve an undue accumulation or improper storage of solid waste. Shared service shall be limited to the following circumstances:

14-1-4-1. One service account shared by no more than two adjacent parcels owned by the same person or entity;

14-1-4-2. One service account shared by property owners or occupants of no more than two separate structures with a common driveway; or

14-1-4-3. One service account shared by the primary and secondary units on a single parcel.

14-1-5. *Exceptions to Mandatory Collection.* Nothing in this Section shall prevent the following:

14-1-5-1. *Sale of Recyclable Materials.* The disposition of recyclable materials for which there are established commercial values, and for which the generator, accumulator or producer actually receives compensation, provided such materials are accumulated in a sanitary manner and disposed of through regular commercial channels.

14-1-5-2. *Donation of Recyclable Materials.* The donation of recyclable material for which there are established commercial values by the generator, accumulator or producer of such recyclable material to any approved drop-off center. Further, recyclable materials may be provided free of charge to any charitable, youth, civic, religious or similar person, group or organization, and the collection, transport and/or disposal of such recyclable material may be provided free of charge by such person, group or organization.

14-1-5-3. *Recycling Not Provided by Contractor.* The collection, disposal or transportation of any recyclable materials for which the contractor does not provide recycling to or at any recycling drop-off center or facility which is appropriately permitted or authorized under applicable health and safety laws and regulations.

14-1-5-4. *Limited Construction and Demolition Debris.* The disposition, collection, transport or disposal by any person of construction and demolition debris and wastes as long as the quantity is less than ten (10) cubic yards.

14-1-5-5. *Lawn, Tree, and Garden Trimmings.* The collection, transportation, or disposal of lawn, tree, and garden trimmings by any person as an incidental part of a landscaping or gardening service performed by that person, provided the quantity is less than ten (10) cubic yards.

14-1-6. *Unauthorized Use of Refuse Containers.* It is unlawful for any person to deposit, or cause to be deposited, any refuse in any nonpublic container that the person does not own or is not otherwise entitled to use as a tenant or by permission of the owner or lessee of the container.

14-1-7. *Unattended Containers for Recyclable Materials or Donated Items.*

14-1-7-1. *General Prohibition; Compliance Required.* No person shall place, display, or maintain any unattended container for soliciting the deposit of recyclable materials or donated items in any exterior location within the Town limits, except in conformance with this Section.

14-1-7-2. *Permitted Locations.* Unattended containers may be located only within the parking lot of private property lawfully zoned, developed, and used for commercial or industrial purposes, or at schools, churches, or charitable organizations that have similar parking facilities.

14-1-7-3. *Property Owner Permission; Contact Information.* Unattended containers may be located only with the permission of the property owner, the property owner's agent, or the person in possession of the property. The container owner's name and current telephone number shall be displayed on the container in a conspicuous location.

14-1-7-4. *Maintenance Responsibility.* The owner of the unattended container and the property owner shall be jointly and severally responsible for maintaining all exterior areas within twenty-five (25) feet of the container and shall keep such area free from litter at all times.

14-1-8. *Inspections.* The Town of San Tan Valley may annually inspect single-family residential containers. Inspections will determine resident compliance with applicable laws and regulations, and ensure that refuse haulers are providing fly-tight containers in good condition. The Town shall maintain an inspection log.

14-1-9. *Authority to Enforce.* The Public Works Director shall enforce the provisions of this Section. In addition, the Director is authorized to abate conditions, which in the opinion of the Director are an incipient or imminent threat to the health or safety of any person or persons or constitute a public nuisance.

14-1-10. *Rules and Regulations.* The Public Works Director is authorized to make reasonable and necessary rules and regulations to carry out provisions of this Section.

14-1-11. *Enforcement and Cooperation of Other Departments.* Upon request from the Director, the applicable law enforcement agency for the Town, the Town Attorney or the San Tan Valley Code Enforcement Officer have the authority to assist and cooperate in the enforcement of this Section.

14-1-12. *Penalties.*

14-1-12-1. *Criminal Penalty.* A person convicted of a violation of this Section is guilty of a Class 1 misdemeanor, punishable by a fine of not less than two hundred fifty dollars (\$250) nor more than two thousand five hundred dollars (\$2,500), and, in the discretion of the court, by imprisonment for a term of not more than six (6) months. In no case shall a person convicted of a violation of this Section be eligible for suspension or commutation of a sentence unless the person is placed on probation with the condition that the minimum mandatory fines be paid.

14-1-12-2. *Responsible Party Liability.* Any responsible party who commits, permits, facilitates or aids and abets any violation of this Section, or who fails to perform any act or duty required by this Section, is guilty of a Class 1 misdemeanor.

14-1-12-3. *Continuing Violations.* Each day that any violation of this Section, or the failure to perform any act or duty required by this Section exists shall constitute a separate violation or offense.

14-1-12-4. *Property Owner Presumption.* The owner of record of a property at which a violation of this Section exists shall be presumed to be the person having lawful control over any such building, structure or parcel of land. If more than one person is determined to be an owner of the property, such persons shall be jointly and severally liable for the violation. Any presumption arising from this Subsection shall be rebuttable.

14-1-12-5. *Cost Recovery for Correction or Abatement.* If a responsible party served with a notice of violation or citation by the Town fails to correct the violation within the period specified, the Town may correct or abate the condition as described in the notice and, in addition to any fine which may be imposed for a violation of any provision of this Section, the responsible party shall be liable for all costs which may be assessed pursuant to this Section for the correction or abatement of the condition.

14-1-12-6. *Immediate Abatement of Imminent Hazards or Nuisances.* If in the opinion of the Public Works Director any condition which is in violation of this Section constitutes an imminent health or safety hazard or a public nuisance, the Public Works Director may immediately abate the hazard without notice. The abatement of an imminent health or safety hazard or nuisance shall be limited to the minimum work necessary to remove or abate the hazard or the nuisance.

Section 14-2 PROPERTY MAINTENANCE.

14-2-1. *Owner to Maintain Premises.* It is unlawful for a person to fail to maintain residential or commercial real property under the person's control, in a clean manner, free from garbage, trash and waste, including but not limited to solid waste, contamination, garbage, remodeling and demolition debris, hazardous materials and recyclables as well as anything that creates a blighting problem or adversely affects the public health or safety.

14-2-2. *Owner to Maintain Adjacent Sidewalks and Alleys.*

14-2-2-1. The owner and any responsible party in control of any land abutting a sidewalk or alley must maintain the sidewalk or alley free from conditions that restrict pedestrian or vehicular travel, including:

- (1) The accumulation of solid waste;
- (2) Trees, shrubs, or brush impeding pedestrian or vehicular traffic; and
- (3) Other conditions that present a health, fire, or safety hazard.

14-2-2-2. Furthermore, it is unlawful for any owner or occupier of property to permit any tree, shrub, hedge or other vegetation located on the property, or installed on the property, to interfere with the function of any traffic sign, signal or lighting.

14-2-2-3. The areas required to be maintained pursuant to this Section are:

- (1) Any portion of the public right-of-way, between the curb line or street edge and the abutting property line including sidewalks.
- (2) One-half the width of abutting alleys from the property line to the centerline of the alley.
- (3) Structural maintenance and repair is the responsibility of the physical property owner.

14-2-3. *Litter on Private Property.* No person shall throw or deposit litter on any occupied or unoccupied private property within the Town, whether owned by such person or not, except that the owner or person in control of private property may maintain authorized private receptacles for collection in such a manner that litter will be prevented from being carried or deposited by the elements upon any public place.

14-2-4. *Placement of Debris.* It is unlawful for any person, firm or corporation to place any rubbish, trash, filth or debris upon any private or public property not owned or under the control of said person, firm or corporation and, in addition to any fine which may be imposed for a violation of any provision of this Section, shall be liable for all costs which may be assessed pursuant to this Section for the removal of said rubbish, trash, filth or debris.

14-2-5. *Water-Flow on Public Areas Prohibited.*

14-2-5-1. It is unlawful for any person to willfully or negligently permit or cause the escape or flow of water in such quantity as to cause flooding, to impede vehicular or pedestrian traffic, to create a hazardous condition to such traffic, or to cause damage to the public streets of the Town, public utility easements, alleyways or any other publicly owned property.

14-2-5-2. It is unlawful for any person to willfully or negligently permit or cause the escape or flow of water in such quantity as to cause flooding, to impede vehicular traffic or to cause damage to the public streets of the Town, public utility easements, alleyways or any other publicly owned property through failure or neglect to properly operate or maintain any structure, delivery ditch, or waste ditch in which said person has a vested right or interest or through the willful or negligent failure of said person to accept water after it has been ordered by him.

14-2-5-3. Swimming pools should be drained on the property to irrigate the landscape on the property whenever possible as long as the water is sufficiently de-chlorinated as required by the 2024 International Swimming Pool and Spa Code adopted in Article 16 of this Code. If it is not possible to contain all the water from the swimming pool on the property, the water from the swimming pool should be drained into the sanitary sewer cleanout on the property after obtaining approval from the sewer provider and assuring that the pool water is sufficiently de-chlorinated as required by the local amendments to the 2024 International Swimming Pool and Spa Code of 2024, as adopted in Article 16 of this Code.

14-2-5-4. Any person found responsible for a civil violation of this Section, whether by admission, default, or after a hearing, shall pay a civil penalty between two hundred fifty dollars (\$250.00) and two thousand five hundred dollars (\$2,500.00) for the first violation. A second finding of responsibility shall result in a civil penalty of five hundred dollars (\$500.00) and two thousand five hundred dollars (\$2,500.00). Any subsequent finding of responsibility shall result in a civil penalty of one thousand dollars (\$1,000.00) and two thousand five hundred dollars (\$2,500.00).

Section 14-3 REFUSE COLLECTION AND SERVICE REGULATION.

14-3-1. *Purpose; Applicability; No Municipal Service Obligation.*

14-3-1-1. *Purpose.* The purpose of this Section is to preserve the Town's authority to regulate refuse collection, transportation, recycling, and disposal within the Town as necessary to protect the public health, safety, and welfare.

14-3-1-2. *No Current Municipal Refuse Collection Program Established.* Nothing in this Section establishes, commences, or requires a Town-provided refuse collection, recycling, or disposal program. Nothing in this Section requires the Town to provide refuse collection, recycling, or disposal services, select a Townwide provider, establish an exclusive service area, or require residents or businesses to use a particular provider unless and until the Town Council takes separate action as authorized by law.

14-3-1-3. *Implementation by Separate Council Action.* The permit requirements, fees, reporting requirements, bonding requirements, and other operational requirements in this Section shall apply only on and after an implementation date established by the Town Council by ordinance, resolution,

contract, franchise, license, permit program, or other lawful action. Until such implementation date, persons lawfully providing refuse collection, recycling, transportation, or disposal services within the Town may continue to do so, subject to applicable federal, state, county, and Town health, safety, nuisance, traffic, right-of-way, and environmental regulations.

14-3-1-4. *Reservation of Authority.* The Town reserves the authority to establish, modify, suspend, or terminate refuse collection, recycling, transportation, or disposal regulations, permit requirements, service areas, franchises, contracts, fees, or other service arrangements in the future as authorized by law. No permit application, permit, approval, or continued operation under this Section creates a vested right, property right, franchise, exclusive privilege, or entitlement to continue providing service except as expressly provided by a written agreement approved by the Town Council.

14-3-2. *Permit Required for Refuse Service.*

14-3-2-1. *Permit Required After Implementation.* On and after the implementation date established by the Town Council pursuant to Section 14-3-1-3, and except as otherwise provided in this Section, no person shall engage in, operate as, or represent themselves to the public as one who is in the business of collecting, transporting, disposing, or recycling residential, commercial, or industrial refuse, including construction debris, generated within the Town unless that person has obtained a valid permit from the Town pursuant to this Section. Any person found guilty of violating this provision after the applicable implementation date shall be guilty of a Class 3 misdemeanor.

14-3-2-2. *Required Qualifications and Equipment.* The Town must have satisfactory evidence that the permit applicant possesses the necessary equipment and qualifications to collect, transport and dispose of residential refuse or commercial or industrial refuse in a manner satisfactory to the Town and in conformity with the state or county department of health laws, rules and regulations.

14-3-2-3. *Community and Charitable Organization Exception.* Any community, charitable, philanthropic, or similar organization may collect, transport, dispose of, or recycle residential refuse or commercial or industrial refuse without a permit upon approval of the Public Works Director; provided, that no part of the earnings or receipts from such activities inure to the benefit of any private shareholder, individual, or corporation and provided that the organization was not established to circumvent the requirements of this Section.

14-3-2-4. *Application, Fee, and Bond.* The permit applicant desiring an annual permit to collect residential refuse or commercial or industrial refuse shall submit to the Public Works Director:

- (1) An application as set forth in this Section;
- (2) A nonrefundable application fee in an amount to be determined by Town Council; and
- (3) A license bond in an amount to be determined by Town Council.

14-3-2-5. *Fees, Reporting, Records, and Audit.* Upon implementation of a permit program under this Section, a permittee shall pay any application, permit, vehicle, inspection, administrative, franchise, license, or other fees established by the Town Council by ordinance, resolution, fee schedule, contract, franchise, license, or other lawful action. The Town may require reports and records reasonably necessary to administer such fees and may audit records to verify compliance with applicable fee, reporting, and permit requirements.

14-3-2-6. *Governmental Agency Exemption.* Governmental agencies engaged in the collection, transportation, disposal, or recycling of residential refuse or commercial or industrial refuse within the Town shall be exempt from the provisions of this Section.

14-3-2-7. *Self-Hauling by Property Owners.* This Section shall not be construed to prevent individual property owners from hauling their own refuse from their own premises to a legal point of disposal or recycling.

14-3-2-8. *Special Waste and Limited Waste Stream Exemption.* All persons who primarily collect and dispose of or recycle scrap metal, scrap plastic, waste motor oil, human excreta, animal excreta or remains, yard wastes, medical wastes, infectious wastes, hazardous wastes, toxic wastes, or any other similar category of solid waste that either requires a special state, county, or federal permit to handle or constitutes a limited category of waste that the private hauler specializes in collecting shall be exempt from the permit provisions of this Section.

14-3-3. *Permit Application.*

14-3-3-1. *Application Required; Required Information.* Every applicant for a permit under this Section or for renewal thereof shall file an application with the Public Works Director on the form provided by that officer and shall provide the following information and declarations:

(1) *Applicant and Organization Information.* The name, local address, permanent home and business address, and local telephone number of the individual applying and of the organization or persons on whose behalf the application is made.

(2) *Ownership and Participation Information.* If the organization on whose behalf the application is made is a joint venture, partnership, or limited partnership, the names, local and permanent street addresses, and local telephone numbers of all partners and their percentage of participation. If the organization is a corporation, the names, local and permanent street addresses, and local telephone numbers of all officers and the names, local and permanent street addresses, and telephone numbers of all shareholders owning an interest of five percent or more of the outstanding shares and their percentage of participation.

(3) *Officers.* The names, local and permanent street addresses, and local telephone numbers of all officers of the organization on whose behalf the application is made.

(4) *Disposal or Recycling Arrangements.* Facts demonstrating that the applicant has arranged for the disposal or recycling of all residential refuse or commercial or industrial refuse collected and the location of such disposal or recycling site.

(5) *Vehicles and Equipment.* A description of all vehicles and equipment that the applicant owns or has under the applicant's control that will be used for the collection, transportation, disposal, or recycling of residential refuse or commercial or industrial refuse; the address(es) where all such vehicles will be kept and the land use classification under the San Tan Valley Zoning Ordinance of such location(s); a declaration that the applicant has sufficient equipment in good mechanical condition to adequately conduct the business of residential refuse or commercial or industrial refuse management or residential refuse or commercial or industrial refuse recycling services if granted a permit; and facts demonstrating that said vehicles and equipment conform to all applicable provisions of A.R.S. Title 28 as amended.

(6) *Recycling Plan.* If applicable, a plan for the recycling of the residential refuse or commercial or industrial refuse that indicates, at a minimum: How such refuse shall be sorted and separated for recycling purposes and who shall do the sorting and separating; How such refuse shall be collected and transported for recycling purposes; Where such refuse shall be disposed of and processed for recycling purposes and who shall do the processing; Whether the applicant proposes to offer any incentives to encourage recycling

and if so, the nature of such incentives; and, Any other information demonstrating what the applicant will do to promote the availability of residential refuse or commercial or industrial refuse management or residential refuse or commercial or industrial refuse recycling services and to stimulate competition in rendering such services.

(7) *Supplemental Information and Identification.* Other information and identification as the Public Works Director may require in order to discover the truth of the matters set forth in the application or to determine whether a permit should be granted. This may include submission to fingerprinting and photographing by the applicable law enforcement agency for the Town for the purpose of law enforcement investigation in cases where there is reason to doubt the truthfulness of the application or reason to require further information regarding the qualifications and capabilities of the applicant.

(8) *Ability to Provide Service.* Other information as the Public Works Director may require which demonstrates that the applicant is able to render efficient and effective residential refuse or commercial or industrial refuse management or residential refuse or commercial or industrial refuse recycling services and that the public health, safety, and welfare would be served by the granting of the permit to the applicant.

(9) *Prior Permit Denials, Revocations, Suspensions, or Cancellations.* Whether the applicant has ever had any application for a like permit denied, revoked, suspended, or canceled by any public entity and the reason given therefor.

(10) *Insurance.* Proof that the applicant has obtained all insurance as required by law.

(11) *Emergency Contact.* An emergency notification number with twenty-four (24) hour availability. In the event of an emergency, the applicable law enforcement agency or fire/medical department may need to contact a representative of the company.

14-3-3-2. *Duty to Update Application Information.* Every permittee, as a condition to retention of such status, shall immediately file with the Public Works Director any changes in the information and declarations under Subsection 14-3-3-1 of this Section.

14-3-3-3. *Application Fee.* A nonrefundable application fee shall be paid to the Town with each initial and each renewal application for purposes of paying for the cost of processing such application and ensuring compliance with the permit in an amount to be determined by Town Council.

14-3-3-4. *License Bond.* A license bond shall be paid to the Town with each initial and each renewal application in an amount to be determined by Town Council.

14-3-4. *Evaluation and Disposition of Permit Applications; Terms and Conditions.*

14-3-4-1. *Findings Required for Issuance or Renewal.* The Public Works Director shall issue or reissue a permit only after the applicant/permittee demonstrates that it is capable and qualified to render reliable residential refuse or commercial or industrial refuse management or residential refuse or commercial or industrial refuse recycling services and that the public health, safety, and welfare will be substantially served by the issuance or reissuance of the permit.

14-3-4-2. *Evaluation Criteria.* In making the determination required above, the Public Works Director may consider, among other things, the application, all pertinent information, and whether:

- (1) The applicant/permittee has been convicted of a felony within five (5) years prior to application.
- (2) The applicant/permittee has had a civil judgment entered against him within five (5) years of the date of the application in a case involving allegations of misrepresentation, fraud, dishonesty, or price-fixing where the subject matter involved the rendering of refuse collection, transportation, or recycling services.
- (3) The applicant/permittee has violated or failed to comply with this Section or any sanitation law of this state or any other jurisdiction.
- (4) The applicant/permittee has been delinquent for more than forty-five (45) days in the payment of taxes or fees to the Town or to any unit of government having jurisdiction.
- (5) The applicant/permittee has filed with the Town or any other public entity any document that contains information which is false or misleading.
- (6) The applicant/permittee is unable to pay debts as they fall due in the regular course of business or is otherwise in such financial condition that the applicant or permittee cannot continue in business in a manner that is safe for customers.

14-3-4-3. *Entity Applicants.* In case of a partnership, corporation, or any other group or association, it is sufficient cause for denial or revocation of a permit if any member of such entity, or any officer or director thereof has performed an act or failed to perform an act which would be cause for denying or revoking a permit of an individual applicant for such person.

14-3-4-4. *Permit Term; Scope of Authorization.* Permits issued under this Section shall have a term of twelve (12) months from the date of issuance. The permit shall authorize residential refuse or commercial or industrial refuse management or residential refuse or commercial or industrial refuse recycling services Townwide subject to the permittee's compliance with the permit, all requirements of the relevant sections of this Code, and all requirements of county, state, and federal law.

14-3-4-5. *Customer Containers.* Permittees shall furnish their customers with containers consistent with the permit issued under this Section and necessary and appropriate to maintain a clean and sanitary condition on the customers' premises. Such containers shall display conspicuously the business name of the permittee and telephone number and shall be located so as:

- (1) Not to interfere with vehicular or pedestrian traffic;
- (2) Not to interfere with Town-owned containers; and,
- (3) To conform with all requirements of law.

14-3-4-6. *Collection Hours Near Private Premises.* Permittees shall not remove refuse from any business establishment that is located within five-hundred (500) feet of a private premises between the hours of 7:00 p.m. and 6:00 a.m.

14-3-4-7. *Customer Contract Cancellation Clause.* All contracts for service executed by a permittee under this Section shall contain a clause subjecting the contract to cancellation by the customer in the event the permittee's permit is revoked by the Town.

14-3-4-8. *Reservation of Town Authority; No Vested Rights.* Nothing in this Section limits the authority of the Town Council to determine, by separate ordinance, resolution, contract, franchise, license, permit program, or other lawful action, whether refuse collection, recycling, transportation, or disposal services within the Town should be provided through open-market permitting,

nonexclusive permits, exclusive or nonexclusive franchises, Town-provided service, intergovernmental agreement, contract, or another lawful service model. Unless expressly provided by a written agreement approved by the Town Council, no permit issued under this Section creates a franchise, exclusive right, vested right, property right, or entitlement to renewal.

14-3-4-9. *Annual Recycling Report.* All permittees engaging in recycling shall report annually to the Public Works Director on forms provided stating the amounts and types of refuse collected for recycling during the preceding year.

14-3-5. *Renewal of Permits.* Permits may be renewed annually by the Public Works Director or designee upon application by a permittee and if the Public Works Director or designee makes the findings required by the applicable Sections of this Code. Application for permit renewal shall be submitted by permittees not less than forty-five (45) days prior to the expiration of the current permit and shall be submitted in the same manner as prescribed in this Code.

14-3-6. *Interest in Multiple Permits Prohibited.* No person shall have an interest in more than one permit issued pursuant to the provisions of this Section. For the purposes of this Section, the word “interest” includes ownership or control of five percent or more of any joint venture, partnership, or limited partnership or of the outstanding shares of a corporation.

14-3-7. *Permit Requirements for Annexed Areas.* With respect to any person providing residential refuse or commercial or industrial refuse management or residential refuse or commercial or industrial refuse recycling services in any area at the time of its annexation by the Town, all such persons shall be subject to the requirements of this Section. Within thirty (30) days of the effective date of annexation, persons engaging in residential refuse or commercial or industrial refuse management or residential refuse or commercial or industrial refuse recycling services in the annexed area who wish to continue operating after annexation shall apply to the Public Works Director for a permit pursuant to this Section.

14-3-8. *Transfer of Permits Prohibited.* Permits issued under the provisions of this Section and all other rights or privileges created under this Section shall have no property value to the holder and may not be sold, transferred, or assigned.

14-3-9. *Insurance.* All permittees for residential refuse or commercial or industrial refuse management or recycling services shall secure, maintain, and keep in force throughout the term of the permit insurance coverages as required by state law.

14-3-10. *Revocation of Permit.* The Town may suspend or revoke a permit whenever the permittee violates the provisions of that permit, this Section or any other applicable rule or regulation, or fails to pay all fees when due. Notice of the proposed suspension or revocation shall be delivered personally or by registered mail to the permittee and shall become effective ten (10) calendar days after the receipt of the notice unless the permittee files a notice of appeal pursuant to this Section. If an appeal is timely filed, the permittee may continue collecting, transporting and/or disposing of refuse or other waste until the appeal is final, unless such continuance would cause the Town to violate a federal or state law, regulation or permit or cause or continue a public or environmental nuisance. Failure to file a notice of appeal within ten (10) calendar days of the date of the notice of suspension or revocation shall constitute a full waiver of the right to contest that suspension or revocation. Once a permit has been revoked, the permittee must wait twenty-four (24) months before reapplying for a permit with the Town.

14-3-11. *Appeal from Denial or Revocation- Procedure and Notice.* Any person whose request for a permit is denied or who has received notice of proposed revocation may, within ten (10) calendar days after receipt of notice of such denial or revocation, file in the office of the Public Works Director a written request for a hearing before the Public Works Director. Such request shall contain the name and address of the person, together with a brief statement as to why such denial or proposed revocation should be reversed. The decision

of the Public Works Director may be appealed by the applicant or permittee within seven (7) days after receipt thereof to the Town Manager. The decision of the Town Manager shall be final.

14-3-12. *Dangerous or Hazardous Waste.* No permittee shall collect, cause to be collected, place, or cause to be placed any dangerous or hazardous waste or similar materials from or in any container or from or upon any public or private property except as specifically permitted by the Arizona Department of Environmental Quality or the United States Environmental Protection Agency.

Section 14-4 NUISANCES.

14-4-1. *Definitions.* In this Section unless the context requires otherwise:

“*Abandoned vehicle*” means an unregistered motor vehicle or recreational vehicle left unattended for a period of seventy-two hours on a street or private property, which is inoperable, stripped, unclaimed, scrapped, junked or discarded. This term shall also mean a vehicle being repaired when such repairs take seventy-two (72) hours or more.

“*Abandoned vehicle parts*” means any vehicle part which is inoperable, unclaimed, scrapped, junked, discarded or not used in or on any vehicle within any seven (7) day period.

“*Classic car*” means a vehicle licensed pursuant to A.R.S. Title 28, Chapter 3, Article 2 as a horseless carriage, classic car or historic vehicle.

“*Inoperative motor vehicle*” means a vehicle which cannot be driven upon the public streets for reasons including, but not limited to, being in a state of disrepair, or inoperative due to mechanical disassembly; or physically incapable of operation under its own power.

“*Junked motor vehicle*” means a vehicle that is inoperative, stripped, scrapped, discarded, wrecked, on blocks or similar devices, or has deflated or missing tire(s); or the absence of a license affixed or assigned thereto.

“*Vehicle*” means a self-propelled device in, upon or by which any person or property is or may be transported or drawn upon a public highway or street, excepting devices moved by human power or used exclusively upon stationary rails or tracks.

“*Vehicle parts*” means any parts, components or accessories of a vehicle.

14-4-2. *Abandoned Vehicles.*

14-4-2-1. *Unsheltered Storage Prohibited.* The unsheltered storage of any abandoned vehicle or abandoned vehicle parts for a period of fifteen (15) days or more on any private property within the corporate limits of this Town is hereby declared to be a nuisance and dangerous to the public safety.

14-4-2-2. *Exceptions.*

(1) The provisions of Subsection 14-4-2-1 of this Section shall not apply to the storage of abandoned vehicles or abandoned vehicle parts on the premises of a business enterprise operating in a lawful place and manner when necessary to the operation of such business enterprise or to a storage place or depository for vehicles or vehicle parts maintained in a lawful place and manner. The exceptions contained in this Subsection shall be an affirmative defense to be pled and proved by the defendant in any judicial proceedings under this Section.

- (2) The provisions in Subsection 14-4-2-1 of this Section shall not apply to classic cars while such are maintained or stored on the owner's private property.

14-4-2-3. *Removal.*

- (1) The owner, tenant, lessee, or other occupant of any private property within the corporate limits of the Town upon which storage is prohibited by Subsection 14-4-2-1 of this Section, and the owner of any abandoned, inoperative, or junked motor vehicle, or accumulation of scrapped vehicle parts, involved in such storage, shall be jointly and severally responsible for abating the nuisance.

- (2) Any person who fails, neglects, or refuses to abate such nuisance shall be notified in writing by certified or registered mail or by personal service by the Town Manager or designee to abate the nuisance within fifteen (15) days from the date appearing on such written notice.

14-4-2-4. *Town Abatement After Failure to Comply.* When any person to whom notice as provided in this Subsection has been mailed fails, neglects, or refuses for more than fifteen (15) days from the date appearing on the notice to abate the nuisance, the Town Manager or designee is authorized to remove the abandoned, inoperative, or junked motor vehicle, or the accumulation of scrapped vehicle parts, from the premises and dispose of the same according to law.

14-4-2-5. *Liability for Costs of Removal and Disposal.* The owner, tenant, lessee, or other occupant of any private property from which the Town has removed an abandoned, inoperative, or junked motor vehicle, or the accumulation of scrapped vehicle parts, pursuant to this Section shall be liable for all costs incurred in removing and disposing of such items from the property.

14-4-3. *Offensive Premises.* It is unlawful for any person to suffer, or permit any premises belonging to or occupied by him or her, or any cellar, privy, vault, pool, sewer or private drain therein to become nauseous, foul or offensive to the senses or prejudicial to the public health or comfort.

14-4-4. *Nuisances.*

14-4-4-1. *Nuisances Prohibited.* It is unlawful for any person to maintain or commit a nuisance, or to willfully omit to perform any legal duty relating to the removal of a nuisance, including but not limited to an order of abatement by order of a court of competent jurisdiction.

14-4-4-2. *Specific Prohibitions.* No person shall erect, maintain, use, place, deposit, cause, allow, leave or permit to be or remain in or upon any private lot, building, structure or premises, or in or upon any public right-of-way, street, avenue, alley, park, parkway or other public or private place any condition, thing or act, to the prejudice, danger or annoyance of others, including but not limited to, the following:

- (1) Throwing, depositing, dumping or discharging into or about any ditch within the Town anything injurious to the public health or offensive to the senses.
- (2) No owner, lessee, tenant or other person who keeps or controls any animal shall cause, allow or permit any manure or liquid discharge of such animal to unreasonably accumulate on private property or to be unloaded, left or dumped in or upon any ditch, street, alley, sidewalk, place, vacant lot or public property within the Town.

- (3) Storage of construction materials for a period in excess of fourteen (14) days in whole, broken or discarded condition in unsheltered areas of a yard and in which insects may breed or multiply or which provides harborage for rodents or which constitutes a hazard to the public health and safety.
- (4) No person shall park, or permit to be parked, any motor vehicle for the purpose of sale upon any lot or area within the Town.
- (5) Storage of bottles, glass, cans, pieces of scrap metal, metal articles, paper or other abandoned material or items in unsheltered areas of private property, unless the same is kept in appropriate bins or receptacles approved by the Town Manager, County Health Officer or this Code or any other ordinance of the Town.
- (6) No person shall leave, place or park any abandoned vehicle upon any Town right-of-way, street, alley, parking lot or other Town property.
- (7) No person shall place, deposit or leave in or upon any Town right-of-way, street, alley, gutter, park or other Town building or property any bottles, glass, cans, graffiti, pieces of scrap metal, metal articles, paper or other abandoned material or items, except in proper containers for collection.
- (8) No person shall leave or permit to remain exposed outside on any property, or within any unoccupied or abandoned building, dwelling or other structure or in any place accessible to children, any abandoned, unattended or discarded ice box, refrigerator or other container that has an airtight door or lid, snaplock or other locking device that may not be readily released from the inside, unless such person has first removed such door, lid, snaplock or other locking device from such ice box, refrigerator or container.
- (9) No person shall allow or permit any dangerous, deteriorated, abandoned, partially destroyed or unfinished buildings, addition, appendage, or other structure, or any building in violation of the provisions of the Building Code, or any vacated or abandoned building not securely closed by materials compatible with the color of the building within the Town limits.
- (10) No owner, agent, tenant, or occupant shall allow, cause or permit the placement or storage of debris, construction material (e.g., rock, brick mortar, lumber) or any other material in or on a public street within the Town of San Tan Valley.

14-4-4-3. *Exemptions.*

14-4-4-3-1. The provisions of Subsections 14-4-4-2(3) and 14-4-4-2(10) of this Section shall not apply when a valid building permit exists for the property on which the construction material is located on either the property itself or adjacent to the public right-of-way and the construction material is intended to be incorporated in the project for which the permit is issued. The following placement standards shall be adhered to:

- (1) Sidewalks must be kept clear at all times.
- (2) Material storage utilizing a public street shall not be larger than twenty (20) feet by seven (7) feet in area, parallel to a public sidewalk or edge of pavement. Traffic control devices such as a traffic cone with

reflectors shall be utilized around the material storage and shall not block public travel lanes.

(3) Material shall not block any neighboring driveways.

(4) Materials shall not be placed within thirty (30) feet of a street corner.

(5) Materials shall be removed after seventy-two (72) hours.

(6) Nonetheless, it shall be unlawful to store any such construction materials on any property or adjacent public right-of-way, if the storage presents a demonstrated hazard or risk of hazard to the public health and safety.

14-4-4-3-2. The provisions of Subsection 14-4-4-2(4) of this Section shall not apply to:

(1) The display of one motor vehicle for sale when the motor vehicle is either owned by the resident of the property or is placed there with the express permission of the resident of the property, and is not in either case being sold in connection with an automobile sales business; or

(2) Property appropriately zoned by the Zoning Ordinance which allows such activity.

14-4-4-3-3. The provisions of Subsection 14-4-4-2(5) of this Section shall not apply to a properly licensed business, acting in accordance with the Zoning Ordinance, and conducted as a recycling business, auto-recycling center or other similar operation. Notwithstanding this exemption, it shall nonetheless be unlawful to store any materials in violation of Subsection 14-4-4-2(5) of this Section on any property if the storage presents a demonstrated hazard or risk of hazard to the public health and safety.

14-4-5. *Violators Liable for Costs.*

14-4-5-1. If the owner or occupant of any property within the Town does not remove or abate such public nuisance from such property within a reasonable period after the citation has been served by the Town, a reasonable period being a maximum of fourteen (14) days or less if the interests of public safety and health so necessitate, the Town may, at the expense of the owner or occupant, remove or cause the removal thereof.

14-4-5-2. Any person who places, deposits, leaves or causes a public nuisance in or upon any Town right-of-way, street, alley, park or other Town building or property, shall be liable for all costs incurred by the Town to remove or clean up such nuisance.

14-4-6. *Assessment of Costs.* When the Town has effected removal or disposal pursuant to this Section, the actual cost of such removal shall become an assessment upon the building or property from which such public nuisance is removed, and the record owner of such property shall be liable for the payment of same. If the actual cost of such removal has not been paid within fourteen (14) days of billing by the Town by ordinary mail, such assessment shall be recorded in the office of the county recorder, and from the date of its recording, it shall be a lien on such building or property until paid. Such liens shall be subject and inferior to the lien for general taxes and to all prior recorded mortgages and encumbrances of record.

14-4-7. *Subsequent Assessments.* A prior assessment against the building or property shall not be a bar to a subsequent assessment for such purposes, and any number of liens on the same property may be enforced in the same action.

14-4-8. *Right of Record Owner to Appeal.* The owner of record of such building or property shall have the right to appeal such citation to the Town Council within the time allowed in such citation to remedy the alleged violation. The decision of the Town Council on such appeal shall be final.

ARTICLE 15 - PUBLIC WORKS, RIGHTS-OF-WAY, AND UTILITIES

SECTIONS:

15-1: STREETS AND SIDEWALKS

15-2: CONSTRUCTION IN PUBLIC RIGHTS-OF-WAY

15-3: ENCROACHMENT PERMITS FOR SIDEWALKS

15-4: PUBLIC IMPROVEMENT COST RECOVERY

15-5: FLOODPLAIN MANAGEMENT REGULATIONS

15-6: TRAFFIC SIGNAL CONTRIBUTION REQUIREMENTS

15-7: DUST CONTROL

15-8: SCALLOPED STREET IMPROVEMENTS AND COST RECOVERY

15-9: WATER AND WASTEWATER

15-10: STORM WATER AND DRAINAGE

15-11: CONSTRUCTION HAULING AND RIGHT-OF-WAY PRESERVATION

Section 15-1 STREETS AND SIDEWALKS.

15-1-1. *Definitions.* As used in this Section the following definitions will apply unless otherwise defined in a specific section:

“*Obstructions*” means any unauthorized encroachment or placement upon Town property, that interferes with or impedes upon its free use or passage.

“*Person*” means an individual, firm, association, partnership, joint venture, or corporation.

“*Sidewalk*” means any area or way owned or controlled by the Town and used for purposes of pedestrian traffic, whether or not it is paved/concrete.

“*Street*” means any portion of roadway, highway, alley, thoroughfare, or other property that is open to the public for purposes of vehicular travel. Street includes the associated right-of-way, berm or shoulder, parkway, crosswalk, median, bicycle lane, and any associated roadway or access easement of the Town.

“*Town Property*” means that portion of any property, facility, street, alley, path, lane, multiuse trail, sidewalk, facility, or improvement that is owned, leased, operated, maintained, or managed by the Town, or is otherwise open to the Town for providing Town services.

15-1-2. *Sidewalk Maintenance; Owner or Occupier Responsibility.*

- (1) *Maintenance of Sidewalks, Parkways, and Adjacent Town Property.* All persons owning or occupying land or places of business within the Town shall keep the sidewalk or other Town property fronting or bordering their property, including the area, between the sidewalk and the curb, free of weeds or unsightly or improperly maintained grass. Trees, shrubs, and other landscaping planted in the area between the sidewalk and the curb shall be maintained by the adjacent landowner or occupant in such a way as not to impede, obstruct or interfere with the passage or public

accessibility of any sidewalk or street including, without limitation, the passage of street sweeping and other street cleaning equipment, and/or personnel.

- (2) *Town Authority to Trim or Remove Obstructions.* In the event the owner or occupant does not maintain such trees, shrubs, or landscaping in the manner required by this Section, the Town may cut or trim such trees, shrubs or plant growth, or otherwise take measures necessary to eliminate the impediment, obstruction or interference with the passage on the sidewalk or street.
- (3) *Civil Penalty; Continuing Violations.* In addition to any other penalties prescribed by law, any person found violating this Section after thirty (30) days written notice is subject to a civil penalty of one hundred dollars (\$100) for the first offense and five hundred dollars (\$500) for each subsequent offense. Each day shall be considered a separate offense.

15-1-3. *Obstructions in Sidewalk; Owner or Occupant Responsibility.*

- (1) *Prohibited Obstructions.* No owner or occupant of land shall allow or permit garbage, debris, decomposed granite, landscape materials, trees, shrubs or plant growth to impede, obstruct or interfere with the passage of any public sidewalk; provided however, this Section shall not prohibit the temporary storage of such matters in authorized receptacles for collection, or the passage of sidewalk cleaning and repair equipment and/or personnel, within the Town.
- (2) *Town Authority to Remove or Trim Obstructions.* In the event any owner or occupant of land allows trees, shrubs, or plant growth on that land to impede, obstruct, or interfere with the passage of any sidewalk, including, without limitation, the passage of sidewalk cleaning and repair equipment and/or personnel, the Town may cut or trim such trees, shrubs or plant growth, or otherwise take measures necessary to eliminate the impediment, obstruction, or interference with the passage on the sidewalk.
- (3) *Civil Penalty; Continuing Violations.* In addition to any other penalties prescribed by law, any person found violating this Section after thirty (30) days' written notice is subject to a civil penalty of one hundred dollars (\$100) for the first offense and five hundred dollars (\$500) for each subsequent offense. Each day shall be considered a separate offense.

15-1-4. *Obstructions In Street; Owner or Occupier Responsibility.*

- (1) *Prohibited Obstructions.* No owner or occupant of land shall allow garbage, debris, decomposed granite, landscape materials, trees, shrubs or plant growth to impede, obstruct, or interfere with the passage of any street or alley including, without limitation, the passage of street sweeping and other street cleaning and repair equipment and/or personnel, within the Town or to diminish the visibility of any traffic control device or signal.
- (2) *Town Authority to Remove or Trim Obstructions; Cost Recovery.* In the event any owner or occupant of land allows trees, shrubs, or plant growth on that land to impede, obstruct or interfere with the passage of any street or alley, including without limitation, the passage of street cleaning and repair equipment and/or personnel, the Town may cut or trim such trees, shrubs or plant growth, or otherwise take measures necessary to eliminate the impeding, obstruction, or interference with the passage of the street and may charge the cost of such trimming, cutting, or other measures to the owner of the land.
- (3) *Civil Penalty; Continuing Violations.* In addition to any other penalties prescribed by law, any person found violating this Section after thirty (30) days written notice is subject to a civil penalty of one hundred dollars (\$100) for the first offense and five hundred dollars (\$500) for each subsequent offense. Each day shall be considered a separate offense.

15-1-5. *Open Junk Storage Prohibited.*

- (1) *Prohibited Visible Storage.* No person shall deposit, store or maintain any garbage or junk that is visible from beyond the lot boundaries, except as authorized for collection.
- (2) *Civil Penalty; Continuing Violations.* In addition to any other penalties prescribed by law, any person found violating this Section after thirty (30) days written notice is subject to a civil penalty

of one hundred dollars (\$100) for the first offense and five hundred dollars (\$500) for each subsequent offense. Each day shall be considered a separate offense.

15-1-6. *Depositing, Sweeping, Draining onto Street or Town Property Prohibited.*

- (1) *Prohibited Deposits and Drainage.* No person shall deposit in, sweep upon or permit to drain into any public right-of-way, street, or Town property any garbage, junk, obstruction or similar matter or any hazardous material which is offensive to sight or smell or impedes passage or is detrimental to public health.
- (2) *Civil Penalty; Continuing Violations.* In addition to any other penalties prescribed by law, any person found violating this Section after thirty (30) days written notice is subject to a civil penalty of one hundred dollars (\$100) for the first offense, and five hundred dollars (\$500) for each subsequent offense. Each day shall be considered a separate offense.

Section 15-2 CONSTRUCTION IN PUBLIC RIGHTS-OF-WAY.

15-2-1. *Definitions.* As used in this Section, the following definitions shall apply:

“*Director*” means the director of the public works department.

“*Public right-of-way*” means rights-of-way dedicated to the public for roadway or other public purposes.

“*Town standards*” means ordinances and Codes of the Town, specifications adopted by the Town, and, for wireless communications facilities in the right-of-way, the standard terms and conditions and design standards adopted by the Town.

15-2-2. *Permits Required.* It shall be unlawful for any person or entity to construct, reconstruct, repair, alter, or grade within the public rights-of-way without first obtaining a permit from the director.

15-2-3. *Encroachment Application.* An applicant for a permit shall file with the Town an application showing:

- (1) Name, address and license number of the party doing the work.
- (2) Location of the work area.
- (3) Plans attached to the application showing details of the proposed construction. Such plans shall be prepared and sealed by an engineer registered and licensed in the state, unless the permittee demonstrates to the satisfaction of the Town that the work does not warrant imposing this requirement.
- (4) A traffic control plan as required by this Code.
- (5) Estimated cost of alteration and a complete Certificate of Quantities form for work within the right-of-way.
- (6) For wireless facilities, all information required in the standard terms and conditions for wireless facilities in the right-of-way. Such other information as the Town finds reasonably necessary to determine compliance with Town Codes.

15-2-4. *Timing.* The permit shall include a completion date for the proposed work. The director may extend the permit time for good cause shown.

15-2-5. *Insurance.* Prior to issuance of a permit, the director may require evidence of general liability insurance and automobile liability insurance in an amount established by the director. Such insurance shall name the Town as an additional insured. The director may require a letter of credit in an amount based on the estimated cost of the work to assure completion of the work in compliance with Town standards. The letter of credit shall be in a form approved by the Town Attorney.

15-2-6. *Notice.* After issuance of the permit, permittees shall give the director at least forty-eight (48) hours' notice before commencing any work within a public right-of-way.

15-2-7. *Traffic Control Requirements.* All traffic control shall be in compliance with this Code.

15-2-8. *Prosecution and Completion of the Work.*

15-2-8-1. *Failure to Complete Work; Use of Security.* If the permittee fails to complete the work authorized by the permit within the time period set forth in the permit, or an extended period of time as authorized by the director, the Town may draw on the letter of credit to complete the work.

15-2-8-2. *Final Inspection; Restoration of Right-of-Way.* Upon completion of work authorized by a permit, the permittee shall request a final inspection. The permittee, at the permittee's expense, shall:

- (1) Restore the public and private improvements, including landscaping, in the right-of-way;
- (2) Restore natural features, including vegetation, in the right-of-way;
- (3) Remove any encroachments owned by permit holder (that are not permitted); and,
- (4) Take other actions to return the right-of-way to its public uses.

15-2-8-3. *Stop Work Orders.* If the director determines that work in the right-of-way is being conducted in a manner that is contrary to the provisions of this Section or presents a public health or safety threat, the director is authorized to issue a written stop work order. The stop work order shall state the reason for the order and the conditions under which it may resume. Upon receipt, the permittee shall immediately cease work.

15-2-8-4. *Acceptance; Warranty Period.* Upon acceptance, the director shall issue a letter of acceptance. The warranty period required by the MAG (Maricopa Association of Governments) standards begins on the date the director issues the letter of acceptance.

15-2-8-5. *Damage to Right-of-Way or Public Improvements.* A permittee who damages right-of-way or public improvements in the right-of-way shall reimburse the Town for the expense of repairing the damage.

15-2-8-6. *Indemnification.* Permittees shall indemnify and hold harmless the Town, its officers and employees from and against all liabilities, damages, losses and costs (including reasonable attorney fees and court costs) arising out of the acts or omissions of permittee or other persons employed or used by the permittee in the performance of the work authorized by a permit.

15-2-9. *Fees.*

15-2-9-1. *Payment of Plan Review and Inspection Fees.* Plan review fees and inspection fees as established by the Town Council by resolution shall be paid prior to issuance of a permit. Such fees shall be reasonably related to costs directly incurred in providing services relating to the administration of the permits.

15-2-9-2. *Utility Work for Customer Benefit.* When a utility proposes to perform work in the right-of-way on behalf of or for the benefit of a customer of the utility, the customer shall pay the plan review fees and inspection fees required by Subsection 15-2-9-1 of this Section unless the utility

notifies the Town that it will be responsible for payment of such fees. If the utility does not notify the Town that it will be responsible for the payment of the fees, then prior to commencing work in the right-of-way, the utility shall notify the customer of the amount of plan review and inspection fees associated with the proposed work. After payment of such fees by the customer, the permit shall be issued to the utility, who will be the permittee for purposes of this Section. The utility shall provide a copy of the permit to the utility customer.

15-2-10. *Location and Relocation of Facilities in Public Rights-of-Way.*

15-2-10-1. *General.* If the work to be performed in a public right-of-way involves the installation, construction, erection, replacement or relocation of any facilities, a permit must be obtained from the director. Such permit shall be issued with such conditions as are reasonable and necessary to ensure compliance with the terms and conditions of Town standards. The application shall include all information required in Section 15-2-3. Each permittee is responsible for ensuring that its facilities are installed, constructed and maintained in strict accordance with Town standards; that all required licenses, franchises and other permits are applied for and obtained before any work commences; and that the terms and conditions thereof are strictly followed. Where a facility is used by more than one permittee, each permittee is fully responsible for ensuring that all requirements are satisfied.

15-2-10-2. *Joint Use of Trenches.* In order to minimize degradation of streets, traffic impacts and other interference with the use of public rights-of-way, work shall be coordinated so that to the greatest extent possible, consistent with economic feasibility, joint trenching is utilized. The director shall adopt rules to facilitate joint trenching in the public rights-of-way.

15-2-10-3. *Traffic Safety.* The facilities to be constructed, installed, operated, and maintained by the permittee shall be so located or relocated as to interfere as little as possible with traffic or other authorized uses over, under, or through the public rights-of-way. Those phases of construction relating to traffic control, backfilling, compaction, and paving, as well as the location or relocation of said facilities shall be subject to regulation by the Town Council.

15-2-10-4. *Records.* The permittee shall keep accurate records of the location of all facilities in the public rights-of-way and furnish them to the Town upon request or at such periodic intervals as the Town may require. In order for the Town to regulate users in the public rights-of-way, upon completion of new or relocation construction of underground facilities in the public rights-of-way, the permittee shall provide the Town with the location of the underground and above ground facilities in a format compatible with the current Town mapping format.

15-2-10-5. *Landscaping.* Landscaping, whether in the public rights-of-way or on private property, which is damaged by a permittee shall be restored to its condition as it existed prior to the work. A permittee shall exercise special care when working near established trees or shrubs. If established trees or shrubs die within six (6) months of completion of work by a permittee, it is presumed that the permittee caused such damage if the work performed was in the location of the roots of such tree or shrub.

15-2-10-6. *Town's Facilities.* The installation, use and maintenance of the permittee's facilities within the public rights-of-way authorized herein shall be in such a manner as not to interfere with placement, construction, use, and maintenance of public rights-of-way, street lighting, water pipes, drains, sewers, traffic signal systems, or other utility systems that have been, or may be, installed, maintained, used or authorized by the Town. Upon the Town's request, the permittee's facilities will be relocated at permittee's expense (unless state law expressly requires otherwise). Upon the Town's request, by a time specified by the Town, if the permittee fails to move its facilities, the Town may do so and will bill the permittee the costs therefor and the permittee shall pay those costs within thirty days after its receipt of the invoice therefor. Further, the permittee shall reimburse the

Town any additional cost the Town incurs due to the location or relocation of the permittee's facilities, including all design and construction costs.

15-2-10-7. *Interference.* The permittee shall not install, maintain, or use any of its facilities in such a manner as to damage or interfere with facilities of another located within the public rights-of-way.

15-2-10-8. *Location and Maintenance of Aboveground Facilities.* The location of aboveground facilities, such as boxes, cabinets and similar equipment or appurtenances, requires the approval of the Town prior to installation. The permit shall set forth the location of such aboveground facilities. If the Town Engineer determines that a proposed location would impair traffic visibility or visibility of existing signage or would substantially harm existing landscaping, or that similar conditions exist which would justify a denial of a permit in that location, the permit shall be denied. Aboveground facilities shall be maintained in good condition. If the Town finds any of permittee's aboveground facilities are not maintained in good condition, permittee shall correct such condition within three (3) business days of receiving notice from the Town. Unless waived by the Town Engineer pursuant to this Section, all facilities shall be installed per plans prepared by a registered professional engineer. All plans shall be approved by the Town before the work commences.

15-2-10-9. *Location on Existing Poles.* A permittee may install facilities on existing utility poles or in existing conduit where permission is granted by owner of the utility pole or conduit, and such permission is verified by the Town except where those same poles are scheduled to be replaced with buried facilities. The Town may require the permittee to prove that it has such permission from the owner to use the owner's facilities. No new poles, or longer poles, will be permitted in the public rights-of-way for any new facilities except where otherwise required or permitted by law. If permittee installs facilities on existing poles as provided herein, the permittee shall bury its facilities if such poles are removed and not replaced in kind for any reason. If the permittee makes use of existing conduit of another person, the permittee shall be subject to the provisions of this Section in the use of such conduit in the public rights-of-way. As used herein, a pole installed to replace a damaged pole or to remedy a safety hazard and which is substantially the same size as the pole being replaced shall not be considered to be a new pole.

15-2-10-10. *Insurance, Bonding.* Each permittee must obtain and maintain such insurance, bonding, and security fund requirements as specified by the Town, or if no specific requirements are specified, as are required by the Town for similar facilities. No work shall commence unless these requirements have been satisfied, and the Town may require the permittee to remove or stop work on facilities or require a permittee to cease using the facility, when any insurance, bonding and security fund requirements are not satisfied.

15-2-10-11. *Repairs.* A permit shall be obtained from the director prior to a person removing, relocating, or reconstructing, if necessary, any portion of a person's facilities. Notwithstanding the foregoing, the Town understands and acknowledges there may be instances when a person is required to make repairs, in compliance with federal or state laws, that are of an emergency nature. The permittee will notify the Town prior to such repairs, if practicable, and will obtain the necessary permits in a reasonable time after notification.

15-2-11. *Conflict with Town Projects.*

15-2-11-1. *Identification of Conflict.* If, during the design process of public improvements, the Town discovers a potential conflict with proposed construction, the permittee shall either:

- (1) Locate and, if necessary, expose its facilities in conflict; or
- (2) Use the one-call notification center ("Blue Stake") to locate or expose its facilities. The permittee shall reimburse the Town for the cost resulting from the use of such location service. The Town shall make reasonable efforts to design and construct projects pursuant to this Section so as to avoid relocation expense to the permittee. Permittee shall furnish

the location information in a timely manner, but in no case longer than ten (10) calendar days from the Town's request.

15-2-11-2. *Priority Right.* The Town reserves the prior and superior right to lay, construct, erect, install, use, operate, repair, replace, remove, relocate, re-grade, widen, realign, or maintain any public rights-of-way, aerial, surface, or subsurface improvements, including, but not limited to, traffic control conduits, storm sewers, subways, tunnels, bridges, viaducts, or any other public construction within the public rights-of-way.

15-2-11-3. *Relocation.* When the Town invokes its prior superior right to the public rights-of-way, the permittee shall move its facilities located in the public rights-of-way, at its own cost, to such a location as the Town directs.

15-2-11-4. *Procedures.* If, during the course of the project, the Town determines permittee's facilities are in conflict, the following shall apply:

- (1) Prior to the Town notice to proceed to contractor: The permittee shall, within a reasonable time, but in no event exceeding one month, remove or relocate the conflicting facility. This time period shall begin running upon receipt by the permittee of written notice from the Town. However, if both the Town and permittee agree, the time frame may be extended based on the requirements of the project.
- (2) Subsequent to Town notice to proceed to contractor: The Town and the permittee will immediately begin the coordination necessary to remove or relocate the facility. Actual construction of such removal or relocation is to begin no later than seventy-two (72) hours, if practicable, after written notification from the Town to proceed.

15-2-12. *Damage to Town Rights-of-Way and Facilities.*

15-2-12-1. A permit to work in the public right-of-way which requires excavation of a paved right-of-way shall comply with this Subsection, in addition to other requirements of this Section. If the permittee damages or disturbs the surface or subsurface of any public rights-of-way or adjoining public property, or the public improvement located thereon, therein, or thereunder, the permittee shall promptly, at its own expense, and in a manner acceptable to the Town, restore the surface or subsurface of the public rights-of-way or public property, or repair or replace the public improvement thereon, therein, or thereunder, in as good a condition as before such damage or disturbance. If such restoration, repair or replacement of the surface, subsurface, or any structure located thereon, therein, or thereunder is not completed within a reasonable time, or such repair or replacement does not meet Town standards, the Town shall have the right to perform the necessary restoration, repair, or replacement, either through its own forces, or through a hired contractor, and the occupant agrees to reimburse the Town for its expense in so doing within thirty days after receipt of the invoice therefor.

15-2-12-2. As used in this Subsection:

- (1) A paved right-of-way is considered "new" when it is first constructed, when it is reconstructed or when it is renovated upon completion of construction and acceptance by the Town.
- (2) A right-of-way is considered "reconstructed" when all lanes are completely rebuilt by removing all the pavement and aggregate base course material, re-compacting the subbase and restoring the base material and then completely repaving for a distance approved by the Town Engineer.
- (3) A right-of-way is considered "renovated" when there is a major rehabilitation, including a mill and overlay or other similar improvement work that physically

modifies the surface of the right-of-way prior to applying a new surface or other similar work as determined by the Town Engineer.

- (4) The date of construction, reconstruction or renovation shall be the date such work was accepted by the Town.

15-2-12-3. An application to work in the public right-of-way which includes excavation in a new paved right-of-way shall not be granted until at least two (2) years after completion and acceptance of the construction, reconstruction or renovation of the paved right-of-way unless one of the following applies:

- (1) Emergency which endangers life or property.
- (2) Interruption of essential utility or communications service.
- (3) Work that is mandated by Town, county, state or federal legislation.
- (4) Service for buildings where no other feasible means of providing service exists.

15-2-13. *Pavement Restoration.*

15-2-13-1. If an excavation is permitted pursuant to this Section, the permittee shall restore the paved right-of-way by mill and overlay/inlay, for a minimum of the full width of all lanes impacted by the excavation(s) (outside lane includes to the curb). For arterial streets this shall require extending the restoration a minimum length of fifty (50) feet both directions from the area of the excavation(s) and for collector streets this shall mean extending the restoration a minimum length of twenty-five (25) feet both directions from the area of the excavation(s), all as more specifically directed by the Town Engineer/designee. For excavations smaller than two (2) square feet, the requirement to restore by mill and overlay/inlay shall not apply. All renovations shall comply with the Town's standard details and specifications. The permittee may elect to fully reconstruct the paved right-of-way in accordance with specifications provided by the Town Engineer in lieu of paying the pavement restoration fee.

15-2-13-2. For excavation commencing two (2) years or later after the paved right-of-way but before seven (7) years after a paved right-of-way is new, the permittee may elect to renovate such paved right-of-way by mill and overlay/inlay for a minimum of the full width of all lanes impacted by the excavation(s) (outside lane includes to the curb) and for arterial streets extending a minimum length of fifty (50) feet both directions from the area of the excavation(s) and for collector streets extending a minimum length of twenty-five (25) feet both directions from the area of the excavation(s), all as more specifically directed by the Town Engineer, in lieu of payment of the pavement restoration fee.

15-2-13-3. *Pavement Restoration Fee.* In addition to the other requirements of this Section, a permittee shall pay a pavement restoration fee established by resolution of the Town Council. The pavement restoration fee shall be reviewed annually with the budget for street repair. The pavement restoration fee shall be paid prior to or at the time a permit to work in the public right-of-way is issued. In the event the pavement restoration fee is amended after a permit to work in the public right-of-way is issued, an adjusted fee shall be paid as follows:

- (1) If the original permit was for one (1) square yard through twenty square yards, the pavement restoration fee shall be adjusted pursuant to the new fee schedule if the increase/decrease to the pavement excavation is one square yard or larger.
- (2) If the original permit was for twenty-one (21) square yards through one hundred (100) square yards, the pavement restoration fee shall be adjusted pursuant to the new fee

schedule if the increase/decrease to the pavement excavation is more than five percent (5%) of the original.

- (3) If the original permit was for more than one hundred (100) square yards, the pavement restoration fee shall be adjusted pursuant to the new fee schedule if the increase/decrease to the pavement excavation is more than five square yards.
- (4) Such amended pavement restoration fee shall be applied for and any additional fees shall be paid within one week of the field change or prior to any new permit is issued to permittee.

15-2-14. *Relocation of Facilities.*

15-2-14-1. *General.* The Town shall not bear any cost of relocation of existing facilities, irrespective of the function served, where the Town facilities or other facilities occupying the public rights-of-way under authority of a Town permit, license, or franchise which must be relocated, are already located in the public rights-of-way and the conflict between the permittee's potential facilities and existing facilities can only be resolved expeditiously as determined by the Town by the movement of the existing Town or other approved facilities.

15-2-14-2. *Delay.* If permittee's relocation effort so delays construction of a public project causing the Town to be liable for damages, the permittee shall reimburse the Town for those damages attributable to the delay created by the permittee.

15-2-14-3. *Town Costs.* Except as otherwise provided in a license, franchise, or permit, or by other provision of law, the entire cost of relocation shall be borne by the Town if the permittee is required by the Town to relocate facilities which are located in private easements obtained by the permittee prior to the dedication of the public right-of-way from which facilities must be relocated. These prior rights of the permittee would also be unaffected by any subsequent relocation. "Prior rights" as used in this Subsection means private easement or other legally sufficient rights obtained by the permittee prior to the dedication of the public rights-of-way from which the facilities are requested by the Town to be relocated.

15-2-15. *Rights Reserved to Town.* Without limiting the rights that the Town might otherwise have, the Town hereby expressly reserves the following rights, powers and authorities:

15-2-15-1. To exercise its governmental powers now or hereafter to the full extent that such powers may be vested in or granted to the Town.

15-2-15-2. To determine any question of fact relating to the meaning, terms, obligations, or other aspects of this Section and the instruments issued under this Section.

15-2-15-3. To grant multiple, nonexclusive licenses, franchises, or permits within the Town to other persons.

15-2-16. *Town Police Power; Continuing Jurisdiction.*

15-2-16-1. *Police Power.* The permittee shall at all times be subject to all lawful exercise of the police power by the Town, including any and all ordinances, rules or regulations which the Town has adopted or may adopt, and all laws, rules, regulations, order, and policies of the state and the United States government. Where there is a conflict between the provisions of this Section and other provisions of the Town Code, the stricter requirement shall apply.

15-2-16-2. *Continuing Jurisdiction.* The Town shall have continuing jurisdiction and supervision over any facilities located within or on public rights-of-way. However, it is recognized that the daily

administrative, supervisory, and enforcement responsibilities of the provisions of this Section and any license or franchise shall be delegated and entrusted to the Town Manager or director of public works to interpret, administer, and enforce the provisions of this Section, and to promulgate standards regarding the construction, reconstruction, relocation, maintenance, dismantling, abandonment, or use of the facilities within the public rights-of-way.

15-2-17. *Violation.* From and after the effective date of this Section, it shall be unlawful for any person to occupy the public rights-of-way unless the person is in compliance with the provisions of this Section and any other applicable ordinance, license, franchise or requirement.

Section 15-3 ENCROACHMENT PERMITS FOR SIDEWALKS.

15-3-1. *Definitions.* The following words, terms and phrases, when used in this Section, shall have the following meanings, except where the context clearly indicates a different meaning:

“*Encroachment*” means chairs, tables, railings and similar objects.

“*Encroachment area*” means the area set forth in the encroachment permit where the encroachments may be located.

“*Sidewalk*” means a facility designated for use by pedestrians and bicycles.

15-3-2. *Permit Required.* Encroachments shall only be placed on a sidewalk in compliance with this Section. Encroachment permits shall only be issued for encroachments in an encroachment area adjacent to a business that uses the sidewalk. An application for a permit shall be filed with the Town building department and shall include:

- (1) Name and address of the applicant, and, if applicant is not the property owner, the name and address of owner, the owner’s approval of the application and an agreement for the applicant and owner to be responsible for damages and removal of the encroachment as set forth in this Section.
- (2) Location of the proposed encroachment area.
- (3) Plans attached to the application showing details of the proposed encroachment.
- (4) Such other information as the Town Engineer finds reasonably necessary to determine compliance with Town Codes.

15-3-3. *Fees.* Encroachment permit fees as established by the Town Council by resolution shall be paid prior to issuance of a permit.

15-3-4. *Conditions of Encroachment Permit.* An encroachment permit shall not be issued unless the Town Engineer has determined that it is not practical for the applicant to place the encroachment on the property of the applicant. The issuance of an encroachment permit does not give the permittee a property interest in the encroachment area.

Section 15-4 PUBLIC IMPROVEMENT COST RECOVERY.

15-4-1. *Title.* This Section shall be known as the Public Improvements Cost Recovery Ordinance.

15-4-2. *Purpose and Intent.*

15-4-2-1. This Section is intended to provide for recovery of costs of public improvements from the owners of parcels who specifically benefit from the improvements and who are not subject to any other assessments or special charges for the benefit which they receive from the public improvement. This Section further creates a procedure whereby the party or parties who have advanced the funds for the extension of public improvements may enter into agreements with the

Town to be reimbursed by the Town. The Town Council hereby finds and determines that expansion of land use and development within the Town results in impacts upon public facilities and improvements and necessitates the construction and expansion of new public facilities, improvements, and services, including, but not limited to, arterial and collector streets and bridges; water and sewer facilities; overpasses and underpasses; pedestrian areas and community and neighborhood parks; police and fire services; drainageways; parking facilities; and other Town facilities, improvements, and services (collectively, “public improvements”).

15-4-2-2. The Town Council further finds and determines that it is appropriate and fair to require new development, not current citizens, to bear such proportionate share of the cost of the public improvements the Town determines are reasonably necessitated by and of reasonable benefit to new development.

15-4-2-3. The Town Council further finds and determines it is fair, reasonable, and equitable for the Town to plan for public improvements for the efficient and logical development of land within the Town and to recover at or prior to development the cost of such public improvements from the properties benefited by such improvements.

15-4-2-4. The Town Council additionally finds that new public improvements increase the value of and enhance the development potential of adjacent properties.

15-4-3. *Definitions.* The following definitions shall apply unless the context clearly indicates or requires a different meaning.

“*Benefited party*” means the person or entity creating a demand for or otherwise utilizing public improvements resulting in a special benefit for which the benefited party has not specifically contributed to the costs of providing the public improvements.

“*Costs*” means the actual cost of:

- (1) Land or real property, right-of-way or easement acquisition if allowed by law and approved by the Town;
- (2) Construction of the public improvements as determined by the construction contract price or by the actual costs, such construction to include, but shall not be limited to construction and installation of water pipes, lines, tanks and wells, sanitary, irrigation and storm sewer lines and systems, asphaltic and concrete paving, curb, gutter and sidewalks, street lights, traffic signals, bus bays, drainage structures, bridge structures, public park improvements and public landscaping and public facilities such as police and fire stations, all to the extent allowed by law;
- (3) Inspection, testing and permit fees;
- (4) Engineering and design fees required for preparation of plans and specifications;
- (5) Administrative charges paid to the Town by the developer or owner; and,
- (6) Incidental fees, expenses and charges approved by the Town.

“*Development agreement*” means an agreement between one or more parties and the Town pursuant to A.R.S. § 9-500.05.

“General public benefit” means that portion of the expense of the public improvement which is deemed by the Town to indirectly benefit the entire Town notwithstanding the fact that the public improvement specially benefits the property subject to reimbursement.

“Public improvements” means any publicly dedicated rights-of-way, any street, drainage, water or sewer improvements or facilities or any other improvements of facilities which are financed by bonds, general funds, private development funds, water utility funds or sewer utility funds, or a community facilities district or improvement district and for which reimbursement is requested under this Section.

“Reimbursement amount” means the charge which must be paid to the Town and imposed upon the owner or developer of property which has or will receive the benefit of public improvements benefiting their property.

“Special benefit” means a benefit to a specific parcel of real property from a public improvement based on criteria established by the Town.

“Town” means the Town of San Tan Valley, Arizona.

15-4-4. *Construction of Public Improvements.* Prior to a permit being issued for construction of public improvements for which a reimbursement amount is being requested, the following requirements shall be met:

15-4-4-1. A map, drawing or diagram describing all property which will be benefited by any public improvements to be installed shall be provided to the engineering department and the planning and zoning department.

15-4-4-2. The field engineering, plans and specifications required for the public improvement may be prepared by the party seeking reimbursement or the Town. If prepared by the party seeking reimbursement they must be approved by the Town Engineer or their designee. The engineering costs for preparation of plans and staking of the public improvements only, which are incurred by the party seeking reimbursement, may be included as determined by the Town Engineer or their designee in the agreed construction costs as provided in this Section.

15-4-4-3. For any public improvements which are constructed, the party seeking reimbursement shall cause to be furnished and installed to Town standards and specifications all facilities within the boundary of the designated area of the development.

15-4-4-4. Detailed plans and specifications for public improvements which are extensions to existing public facilities must be approved by the Town Engineer or their designee prior to construction. The costs for preparation of plans and specifications, diagrams, legal descriptions and other information required to comply with this Section shall be assumed by the party seeking reimbursement but are subject to reimbursement under terms of this Section.

15-4-4-5. The project shall be procured, financed, and constructed in accordance with Arizona law, Town Code requirements and as determined by the Town. The burden is on the initial person, whether it be an owner, developer, contractor or other, to prove costs associated with the improvements. The costs shall be formally presented to the Town Council for its approval, modification or rejection. Thereafter the approved costs shall be termed “reimbursement amount.”

15-4-4-6. The Town will perform inspections during the construction of the public improvements and will charge the owner for such inspections. The costs of such inspections may be included in any repayment agreement.

15-4-4-7. Upon acceptance by the Town, ownership of public improvements that meet Town standards shall be vested in the Town.

15-4-5. *Authorization of Reimbursement Agreements.*

15-4-5-1. In conjunction with the planning or development of any property for which a public improvements project will be constructed, the developer or owner paying the costs of the public improvements may request the Town to enter into an agreement to collect reimbursement amounts from the developers and owners of parcels specially benefited by the project.

15-4-5-2. Upon completion of construction of public improvements the cost of which were financed by bonds issued by the Town or a Community Facilities District (CFD), including improvement or assessment bonds or private development funds, the Town may impose upon and collect reimbursement amounts pursuant to the terms of this Section.

15-4-5-3. The Town Council may enter into reimbursement agreements under this Section for the purpose of reimbursing the party or parties paying the cost of the public improvements where the costs for such public improvements exceed the proportionate share of the parties paying for the public improvements. The agreements shall become effective when recorded in the office of the Pinal County recorder.

15-4-5-4. No improvements constructed pursuant to this Section shall be subject to both reimbursement agreements under this Section and assessments pursuant to law.

15-4-6. *Reimbursement Agreements; Terms; Collections, and Costs.*

15-4-6-1. The reimbursement agreement shall designate the parcels and persons who are entitled to reimbursement amounts and shall include a map, drawing or diagram of the properties and respective amounts from which reimbursement amounts may be collected. In the event bonds of the Town, including improvement district, or community facilities district or assessment bonds, have been issued to finance the construction of the public improvements and related facilities, the Town shall receive all reimbursement amounts and apply such amounts to the debt service funds of the applicable bond issue. In the event the Town finances the construction of the public improvements and related facilities through other Town funds, the Town shall receive all reimbursement amounts for such general fund expenditures.

15-4-6-2. The reimbursement agreement shall set forth the total of the reimbursement amount to be paid to the Town, which shall repay such reimbursement amounts to the person or entity entitled thereto, including a community facilities district. The total of the reimbursement amounts shall not exceed that portion of the agreed construction costs of the public improvement allotted to property outside the area of the owner. The reimbursement agreement shall terminate in fifteen (15) years from the effective date of the reimbursement agreement or when the total amount provided for by this Section is repaid, whichever is earlier.

15-4-6-3. The approved construction costs as described in this Section will be used for calculation of all reimbursement amounts.

15-4-6-4. Upon entry into a reimbursement agreement with the Town, the owner shall have the right to connect into the public improvement in consideration for entry into the reimbursement agreement.

15-4-6-5. The field engineering, plans and specifications required for a public improvement shall be prepared by the developer and approved by the engineering department prior to completion of construction. The engineering costs for preparation of plans and staking of the public improvements

on the property which are incurred by the owner may be included as determined by the engineering department as provided in this Section. The Town Engineer, or a designated representative, will perform the inspections during construction.

15-4-6-6. The Town shall have sole and exclusive control of connections to the public improvement. Connections to the public improvement may only be made upon issuance of a written permit from the Town. It shall be unlawful to make a connection to a public improvement without a permit. The unlawful connections may be removed by the Town and the costs of removal assessed to the party making connection.

15-4-6-7. Upon Final Plat or site plan approval (at Town's option) the owners of the benefited property shall pay one hundred percent (100%) of the benefited property's share of the cost of the public improvement to the Town.

15-4-6-8. An annual charge will be assessed pursuant to a procedure adopted by the Town for the administration of each reimbursement agreement. This annual charge shall be the greater of one hundred dollars (\$100) per year or one-half of one percent (0.5%) of the outstanding balance due under the agreement. Any owner may assign the benefits arising out of any reimbursement agreement with the Town. The assignments alone shall not relieve the owner from its duties and obligations under the agreement. The assignment shall require prior written notice to the Town.

15-4-7. *Reimbursement Amounts Payable to Town.*

15-4-7-1. When a public improvement is constructed by the Town or a developer or their contractors to provide service or benefit to a parcel of an owner, which owner or their predecessors in interest did not pay for any of the costs of the public improvement, the Town may impose and collect a reimbursement amount. The reimbursement amount shall be based on the benefited parcel's share of the benefit received as compared to the total cost of the public improvement. The reimbursement amount shall be paid to the Town prior to the issuance of final plat or site plan approval at the Town's option.

15-4-7-2. It shall be unlawful for any person to extend service from a public improvement to his or her property for which a reimbursement amount has been imposed without first paying the reimbursement amount and obtaining a permit issued by the Town.

15-4-7-3. The reimbursement obligation under this Section shall terminate in fifteen (15) years from the effective date of the reimbursement agreement or when the total amount provided for by this Section is repaid, whichever is sooner.

15-4-7-4. The Town shall collect reimbursement amounts for any public improvements provided by the developer or financed by improvement district assessment district bonds, a community facilities district, water utility funds, sewer utility funds, development fee funds and general obligation bond funds which were specifically designated as subject to reimbursement from public improvement reimbursements.

15-4-7-5. To the extent the developer advances funds to construct under this Section which are for the general public benefit, the developer shall receive repayment under the provisions of this Section.

15-4-8. *Notice of Intention to Approve Public Improvements.*

15-4-8-1. After the determination of the Town Engineer or their designee that public health, safety and welfare requires the construction of public improvements prior to the development of the

adjacent or nearby property but for which the adjacent or nearby property will be specially benefited, a resolution of intention to approve the public improvements shall be submitted to the Town Council. The resolution shall include supporting materials which explain the methodology used for determining which property was benefited and the amount or extent of the benefit of the public improvements to those designated benefited properties.

15-4-8-2. Prior to acting on the resolution of intention to order the public improvements, the Town Council shall hold a public hearing. The public hearing shall be for the purpose of receiving comment on whether the proposed public improvements are required for the public health, safety, welfare and convenience. Those owners of real property within the area subject to reimbursement for public improvements shall receive notice in writing of the public hearing and any continued public hearing not less than thirty (30) days prior to the public hearing or continued public hearing. Any notice shall include a copy of any supporting materials which explain the methodology used by the engineering department for determining which property was benefited and the cost or extent of the public improvement to the benefited property. The party requesting the agreement shall pay the cost of providing the information required herein.

15-4-8-3. After the public hearing is concluded, the Town Council shall determine whether the public health, safety and welfare require the public improvements. If the Town Council so determines, then the Town Council shall adopt the resolution of intention to approve the public improvement. The determination shall include a statement that the owners of specially benefited property from the improvements shall be required to reimburse the Town for the benefit received from the public improvement.

15-4-8-4. The resolution of intention to order the public improvement shall contain:

- (1) A description of the public improvement.
- (2) A description of the estimated total cost of the public improvement.
- (3) A general description of the estimated total cost and cost per frontage foot or cost per acre of the proposed public improvement.
- (4) A description of the public improvement project area and a map and list of all owners of real property who will be receiving a special benefit from the construction of the public improvement.
- (5) A determination of that portion of the public improvement which is for general obligation bonds, special assessments or improvement which is for general public benefit and that portion which is for special benefit of the owners.
- (6) A preliminary estimate of the portion of the public improvement which will be financed with general obligation bonds, special assessments, a community facilities district, or improvement district assessments and the portion which will be financed with reimbursements for public improvements.

15-4-8-5. The Town Council's decision on necessity for public improvements shall be final and conclusive.

15-4-9. *Assessment Districts, Improvement Districts; General Obligation Bond Projects; Cost Apportionment.*

15-4-9-1. Upon collection of reimbursement amounts pursuant to any public improvement which is located in a municipal district and financed by assessments, including a community facilities district, such funds shall be deposited with the Finance Director. The funds shall be applied against the outstanding indebtedness for which bonds are to be or have been issued.

15-4-9-2. Reimbursements for improvements may be used in combination with any bond issue, permitted by law; provided, that the bond issue indicates that such reimbursements may be required of benefited property owners. All amounts collected from the reimbursements shall be deposited in the appropriate bond fund from which the public improvement project is financed.

15-4-10. *Alternative Method.* This Section is intended to establish an alternative method for the financing of public improvements for lands that will be reasonably benefited thereby and the provisions hereof shall not be construed to limit the power of the Town to utilize any other lawful method for accomplishing this purpose.

Section 15-5 FLOODPLAIN MANAGEMENT REGULATIONS.

15-5-1. The Town designates the Pinal County Flood Control District as the enforcement authority for all flood plain management activities within the areas of special flood hazard as designated by the Federal Emergency Management Agency, Flood Insurance Rate Maps and for those areas identified by the Pinal County Flood Control District to be areas of special flood concern within the corporate limits of the town. For all other lands not within an area of special flood hazard as designated by the Federal Emergency Management Agency, Flood Insurance Rate Maps or Pinal County Flood Control District, the authority for enforcement of drainage and erosion provisions shall be the Town or other designated agent.

15-5-2. The Town of San Tan Valley, located in Pinal County, has elected NOT to assume floodplain management responsibility as authorized in A.R.S. § 48-3610 and shall be known as District Dependent. San Tan Valley shall appoint a Floodplain Administrator who will be responsible for (1) coordinating with Pinal County Flood Control District staff regarding floodplain management and (2) verifying that the Community's participation in the NFIP is maintained and remains in good standing through adoption and enforcement of this Ordinance.

15-5-3. The San Tan Valley Floodplain Administrator shall also be, at a minimum, responsible for the following:

1. Obtain and maintain current FIS and FIRM(s) applicable to the community;
2. Obtain and maintain a copy of the most current "Pinal County Floodplain Management Ordinance" at the office of the San Tan Valley Clerk;
3. Obtain and maintain evidence of compliance for all applicable development in Special Flood Hazard Areas (SFHAs); and
4. Repeal or modify all existing local ordinances that conflict with this Ordinance.

15-5-4. The Town of San Tan Valley elects NOT to assume the responsibility of floodplain management from the Pinal County Flood Control District as provided for in A.R.S. §§ 48-3609; 3610. The San Tan Valley Town Manager who is designated as the NFIP Floodplain Administrator for the Town, is responsible for coordinating with the Pinal County Flood Control District, and will serve as the community point of contact on NFIP issues for County, State, and Federal officials.

15-5-5. Those public records entitled "Flood Insurance Study for Pinal County and Incorporated Areas" dated November 28, 2025, with accompanying Flood Insurance Rate Maps and all subsequent amendments and/or revisions, copies of which shall be kept on file in the office of the Town Clerk, are hereby adopted by reference as the basis for establishing the SFHAs in the Town of San Tan Valley. The SFHAs documented

in the FIS and FIRMs are the minimum area of applicability of this Ordinance and may be supplemented by studies for other areas as allowed in this Ordinance.

15-5-6. That public record designated as the “Pinal County Floodplain Management Ordinance,” dated May 10, 2019, and all subsequent amendments and/or revisions, copies of which shall be kept on file in the office of the Town Clerk, is hereby adopted as the legal basis for implementing floodplain management in San Tan Valley.

15-5-7. *Abrogation and Greater Restrictions.* This Ordinance is not intended to repeal, abrogate, or impair any existing easements, covenants, or deed restrictions. However, where this ordinance and another ordinance, easement, covenant, or deed restriction conflict or overlap, whichever imposes the more stringent restrictions shall prevail.

15-5-8. *Severability.* If any portion of this Ordinance is determined by a court of competent jurisdiction to be invalid, all remaining portions of this Ordinance shall remain in full force and in effect.

15-5-9. Providing for penalties per Title 8.0 - Violations and Enforcement of the Pinal County Floodplain Management Ordinance.

(Adopted by Ordinance 2026-01, on March 18, 2026)

Section 15-6 TRAFFIC SIGNAL CONTRIBUTION REQUIREMENTS.

15-6-1. *Purpose and Applicability.* The purpose of this Section is to ensure that new development or redevelopment projects pay their proportional share of traffic mitigation improvements necessary to maintain the municipal Level of Service (LOS) and public safety. This ordinance applies to all developments within the Town of San Tan Valley corporate limits or planning areas that are subject to site plan review, subdivision platting, or rezoning.

15-6-2. *Traffic Impact Analysis (TIA) Requirement.* Any development generating traffic which may impact Town Streets shall prepare a Traffic Impact Analysis or Study in accordance with Article 17 of the Town Code.

15-6-3. *Developer Obligations and Proportional Contribution.* If an intersection adjacent to or heavily impacted by the development meets, or is projected within a five (5) year horizon to meet, any MUTCD traffic signal warrants, the developer shall be required to contribute via one of the following methods as determined by the Town Engineer:

15-6-3-1. *Full Installation:* If the traffic signal warrant is triggered solely or primarily (over fifty percent [50%] of the total peak-hour volume) by the proposed development, the developer shall design, permit, and construct the complete traffic signal system at one-hundred percent (100%) of their cost, utilizing ADOT, MAG, and other applicable standard specifications.

15-6-3-2. *Proportional Share Contribution:* If the development contributes significantly to the intersection's traffic volume but does not solely trigger the warrant, the developer shall provide a cash-in-lieu contribution towards the future installation of the traffic signal. The proportional share is calculated as follows: Contribution = (Projected Peak-Hour Trips from Development divided by the Total Warrant Peak-Hour Volume at Intersection) multiplied by the estimated total cost of signal installation.

15-6-4. *Intersection Future-Proofing.* For all new arterial or collector intersections fronting the development where a signal is not yet fully warranted, the developer shall, at their own expense, install the required

underground infrastructure (including conduit, junction boxes, and standard pole foundations) during the half-street or frontage improvements to facilitate future signalization without pavement cutting.

15-6-5. *Dedicated Traffic Signal Fund.*

15-6-5-1. *Restricted Escrow.* All developer cash-in-lieu contributions collected under this Section shall be deposited into the Town's dedicated, restricted Traffic Signal Fund.

15-6-5-2. *Nexus Rule.* Collected funds must be earmarked and expended specifically for the engineering, equipment procurement, or construction of the traffic signal at the designated intersection within a standard ten-year window, in strict compliance with A.R.S. § 9-463.05.

Section 15-7 DUST CONTROL.

15-7-1. No person shall commence any earth-moving operation or dust-generating operation that will disturb one tenth (0.1) of a contiguous acre or greater without meeting the requirements of, obtaining, and submitting to the Town Engineer or designee any and all dust control permits and permits to operate required by Pinal County Air Quality Division. A properly executed Pinal County dust control permit including the dust control plan shall be submitted to the Town Engineer or designee. The Town of San Tan Valley will not issue a construction permit nor will verbal authorization be given to proceed with initial grading and drainage operations until an approved dust control permit with dust control plan have been submitted to the Town.

15-7-2. The provisions of this Section shall not apply to the following:

15-7-2-1. During emergency, life-threatening situations or in conjunction with any officially declared disaster or state of emergency.

15-7-2-2. To operations conducted by essential service utilities to provide electricity, natural gas, oil and gas transmission, cable television, telephone, water, and sewerage during service outages and emergency disruptions.

15-7-2-3. To nonroutine or emergency maintenance of flood control channels and water retention basins.

15-7-2-4. To vehicle test and development facilities and operations if both of the following conditions apply:

- (1) Dust is required to test and validate design integrity, product quality, or commercial acceptance; and
- (2) Such testing is not feasible within enclosed facilities.

Section 15-8 SCALLOPED STREET IMPROVEMENTS AND COST RECOVERY.

15-8-1. *Purpose; Limited Applicability; No Immediate Assessment.*

15-8-1-1. *Purpose.* The purpose of this Section is to preserve a process for addressing "scalloped" or incomplete street improvements where development occurs adjacent to unimproved or partially improved public street rights-of-way, and where street improvements are necessary to protect public safety, provide orderly access, and complete the public street network.

15-8-1-2. *No Immediate Assessment or Town-wide Street Improvement Program.* Nothing in this Section creates an immediate Town-wide street improvement program, imposes an immediate

assessment on property, or requires the Town to construct or improve any street. Any assessment, lien, or cost recovery under this Section may occur only after separate Town Council action and compliance with the notice, hearing, objection, and appeal procedures set forth in this Section and applicable law.

15-8-1-3. *Development-Related Cost Recovery.* This Section is intended to address street improvements associated with development or future development of adjacent property. Except as otherwise approved by the Town Council after notice and hearing, assessments under this Section are intended to be deferred and collected at or before the time of development of the assessed property.

15-8-2. *Definitions.* The following words, terms and phrases, when used in this Section, shall have the following meanings ascribed to them:

“*Cost*” means the actual cost of:

- (1) Construction of the public street improvements as determined by the construction contract price.
- (2) Inspection and permit fees.
- (3) Engineering fees required for the preparation of plans and specifications.
- (4) Other incidental fees required to complete the improvements.

“*Development*” includes construction of residential, commercial or industrial buildings or structures or major additions or alterations to existing structures and includes new buildings or structures on property having existing buildings or structures situated on such property. When such property is zoned for agricultural or single family residential use at the time of assessment, development shall also require a change of use or purpose.

“*Major addition or alteration*” means any addition or alteration to an existing building hereafter made where the addition or alteration increases total floor area of the building by twenty-five percent (25%).

“*Owner*” means the person or legal entity that owns property adjacent to the street right-of-way.

“*Right-of-way*” means land which by deed, conveyance, agreement, easement, dedication, usage or process of law is reserved or dedicated to the general public for street, highway, alley, public utility, pedestrian walkway, bikeway or drainage purposes.

“*Street improvement*” means, but is not limited to, asphaltic concrete surfacing, aggregate base, curb and gutters, sidewalks or valley gutters, storm drainage facilities and irrigation tiling.

“*Streets*” means the full width of the right-of-way of any road, street, highway, alley, lane, or pedestrian walkway, whether or not such road, street, highway, alley, lane, or pedestrian right-of-way has been improved or accepted for maintenance by the Town.

15-8-3. *Exemptions.*

Street improvements otherwise required by this Section shall not be required where the construction, alteration, or addition consists solely of installation or replacement of mechanical equipment.

15-8-4. *Street Improvements Required in Connection with Development.*

15-8-4-1. *Construction at Time of Development.* At the time of development of property within the Town, the proprietor or owner of the property shall construct street improvements within and adjacent to such property.

15-8-4-2. *Responsibility for Costs.* The costs of all street improvements shall be the full responsibility of the proprietor or owner of the property.

15-8-4-3. *Temporary Deferral.* If, in the opinion of the Town Engineer, the installation of off-site improvements would not be feasible from an engineering standpoint at the time of development, the installation of improvements may be temporarily deferred, provided that the owner or proprietor provides a cash bond, irrevocable letter of credit, development agreement, or similar instrument approved by the Town Attorney to secure the cost of the improvements. Estimated costs of the improvements shall be established by the owner or proprietor's engineer and reviewed and approved by the Town Engineer.

15-8-4-4. *Town-Initiated Improvements Before Development.* If the Town Council determines, after notice and hearing as provided in this Section, that street improvements within or adjacent to undeveloped or partially developed property are necessary before development of the property, the Council may authorize the Town to construct or cause construction of the improvements and may defer recovery of eligible costs until the time of development or as otherwise provided in this Section and applicable law.

15-8-5. *Approval of the Owner's Plans.* The owner or proprietor of property intended to be developed shall submit the street improvement plans to the Town for approval. No building permit shall be issued until the street improvement plans have been approved by the Town Engineer. Street improvements shall be constructed in accordance with the plans approved by the Town Engineer and in accordance with the Town's Engineering and Design Standards set forth in Article 19 of this Code and the San Tan Valley Engineering and Design Standards. No certificate of occupancy shall be issued until street improvements are constructed in accordance with the approved plan unless the certificate of occupancy is otherwise approved by the Town Engineer.

15-8-6. *Construction Prior to Development Assessment Policy.* Where the Town Council has determined that certain streets within the Town shall be constructed or improved prior to development of the property adjacent to such streets, the Council may order such streets to be constructed or improved at the Town's expense. Such expense shall be assessed against the adjoining property subject to the following:

15-8-6-1. The assessment of property, if adjacent arterial streets are involved, shall not exceed the cost of improving more than one-half (1/2) of the width or more than one thousand (1,000) lineal feet of such adjacent arterial street, except that if any parcel of land is presently being used for single-family residential use and the width of such does not exceed two hundred (200) lineal feet, such property shall not be assessed greater than one-half (1/2) the cost of the average residential street within the Town.

15-8-6-2. The assessment of property shall not exceed the actual costs incurred by the Town at the time of construction.

15-8-7. *Assessment Procedure.*

15-8-7-1. Determination of improvement's necessity; notice of hearing; contents. The Town Council, at a public hearing, shall determine the necessity of street improvements if the cost thereof is to be assessed against adjacent property. Prior to the public hearing, the Planning and Zoning Commission shall, at a duly noticed public meeting, review the necessity of the street improvements and provide a recommendation to the Council. Notice of the Council hearing shall be given to the owners, and other affected persons who would be assessed for the costs of improvements by certified mail no less than fifteen (15) days prior to the date of the hearing. The notice of hearing shall contain:

- (1) A description of the proposed street improvements.
- (2) The estimated cost of assessment for each affected parcel of property.
- (3) The date, time and place that the Town Council shall consider the necessity of improvement and adoption of a resolution of intention.

Notice shall also be published in a weekly newspaper one (1) time each week for two (2) consecutive weeks, or in a daily newspaper four (4) consecutive times. In addition, notice shall also be conspicuously posted along the line of the proposed improvement at least fifteen (15) days prior to the hearing on necessity of the improvements.

15-8-7-2. *Filing of Objection.* The property owners and any other persons directly interested in the work or in the assessment may, prior to the time fixed for the hearing, file in the office of the Town Clerk a written objection, briefly specifying the grounds for objection.

15-8-7-3. *Hearing.* At the time of public hearing, the Town Council shall hear and pass upon any objections to the proposed improvements, and its decision shall be final and conclusive. It may modify the extent of the proposed improvements and proceed without the necessity for republishing, reposting and remailing new notices. At the conclusion of the hearing, the Town Council may pass its resolution of intention directing that plans, specifications and estimates of the cost and expenses of the proposed improvements be finalized by the Town Engineer, filed with the Town Clerk and filed in the official records of the county recorder, and order that a call for sealed bids be made.

15-8-7-4. *Completion of Improvements; Determination of Costs; Additional Hearing; Notice.* Upon completion of the improvements, the Council shall, by resolution adopted after a public hearing, determine the actual cost of the improvements and the amount, if any, to be assessed against each property adjacent to the street improvement in accordance with this Section. Notice of this public hearing shall be given to the property owner and other affected persons who would be assessed for the costs of improvements by certified mail at least fifteen (15) days before the date of the hearing. The notice shall contain:

- (1) A description of the street improvement; and
- (2) The cost of assessment for each affected parcel of property.

15-8-7-5. *Objections to legality of assessment or other proceedings; filing; Council action.* The property owners and any other persons directly interested in the street improvements or in the assessment who have any objection to the legality of the assessment or to any of the previous proceedings connected therewith or who claim that the work has not been performed according to the contract may, prior to the time fixed for the hearing, file in the office of the Town Clerk a written notice briefly specifying the grounds for objection. At the time fixed for the hearing, or at any time thereafter to which the hearing may be postponed, the Council shall hear and rule upon the objections. The decision of the Council shall be final and conclusive as to all errors, informalities

and irregularities which the Council might have remedied or avoided at any time during the progress of the proceedings.

15-8-7-6. *Right to Appeal.* The determination of necessity by the Council resulting in the assessing of property under this Section may be appealed by any aggrieved party to the Superior Court.

15-8-7-7. *Unpaid Assessments.* The Council's resolution shall provide that any assessments remaining unpaid shall be paid prior to or at the time of the development of the assessed property.

15-8-7-8. *Recording of Assessment; Lien.* A resolution declaring the assessment and describing the properties against which the assessments are imposed shall be recorded in the office of the County Recorder. When so recorded, the amount so assessed shall be a lien upon the properties assessed for ten (10) years thereafter, or until such assessments are paid, whichever first occurs, and such recording shall be noticed to all persons interested in the contents of the record.

15-8-7-9. *Abatement of Assessment; Conditions.* Any assessment made under this Section shall abate if the property has not been developed within ten (10) years of the assessment.

15-8-8. *Right-of-Way.* When it is necessary to improve a full street and sufficient right-of-way is not available, the Town Engineer may obtain the right-of-way upon terms that are just to the property owner and the Town. If the right-of-way is not dedicated at time of construction, the cost to the Town to purchase the right-of-way shall be considered an expense attributable to the street improvements and shall be assessed against the property at the time of development.

15-8-9. *Collecting Unpaid Assessments at Time of Development.* Unless otherwise provided by the Town Council in the assessment resolution or by written agreement approved by the Town, any unpaid assessment imposed under this Section shall be due and payable before issuance of a building permit, final plat approval, certificate of occupancy, or other development approval for the assessed property, as determined by the Town Council or Town Engineer. The Town may collect unpaid assessments by any lawful method available to the Town, including by lien, agreement, condition of development approval, or other remedy authorized by law.

Section 15-9 WATER AND WASTEWATER.

15-9-1. *Water Systems.* All design and construction must meet all applicable Town, private water provider, Maricopa County Environmental Services Department specifications and Arizona Department of Environmental Quality requirements in force at the time of plan renewal and approval. If it is necessary for the Town to apply specifications or requirements not in force at the time of plan review, but necessary to achieve the orderly and proper development of any portion of the public/private water system, the Town reserves the right to enforce such specifications and requirements to insure and protect the public welfare.

15-9-2. *Wastewater and Sewage Systems.* Sewer systems shall be designed in accordance with their respective sewer service provider requirements as well as the Maricopa County Environmental Services, Pinal County Aquifer Protection Division, and/or Arizona Department of Environmental Quality. Plans shall be submitted to their respective jurisdiction for review and approval prior to approval by the Town Engineer.

Section 15-10 STORM WATER AND DRAINAGE.

15-10-1: *Purpose and Intent.* The purpose of this ordinance is to protect the public health, safety, and general welfare of the residents of the Town of San Tan Valley by regulating non-stormwater discharges to the storm drainage system. This ordinance seeks to control the contribution of pollutants to the Municipal Separate Storm Sewer System (MS4) by any user, ensuring compliance with state and federal Clean Water Act mandates.

15-10-2: *Definitions.*

“AZPDES (*Arizona Pollutant Discharge Elimination System*)”: The state program authorized under the Clean Water Act to issue permits for the discharge of pollutants to waters of the United States.

“*Best Management Practices (BMPs)*”: Schedules of activities, prohibitions of practices, general good housekeeping, pollution prevention and educational practices, and maintenance procedures to prevent or reduce the discharge of pollutants directly or indirectly to stormwater.

“*Illicit Discharge*”: Any direct or indirect non-stormwater discharge to the storm drain system, except as explicitly exempted by this ordinance.

“*MS4 (Municipal Separate Storm Sewer System)*”: Publicly-owned facilities by which stormwater is collected and/or conveyed, including roads with drainage systems, municipal streets, gutters, conduits, structural stormwater controls, or washes.

“*Stormwater Pollution Prevention Plan (SWPPP)*”: A document that outlines the strategies, tactics, and structural practices a developer or operator will use to reduce pollution and sediment runoff during construction.

15-10-3. *Illicit Discharge Prohibition.*

15-10-3-1. *Prohibited Discharges.* No person shall throw, drain, discharge, cause, or allow to be discharged into the Town MS4 or any natural wash any materials, including but not limited to pollutants or waters containing any pollutants, other than stormwater.

15-10-3-2. *Exemptions.* The following discharges are exempt from the prohibition provision above, provided they are not identified as a significant source of pollutants to the MS4:

- (1) Water line flushing and potable water source discharges.
- (2) Landscape irrigation and lawn watering runoff.
- (3) Diverted stream flows and rising groundwater.
- (4) Dechlorinated swimming pool discharges (the chlorine level must be below $\leq$ one (1) part per million (1 milligram per liter) and otherwise meet the discharge levels contained in the local amendments to the 2024 International Swimming Pool and Spa Code contained in Article 16 of this Code.
- (5) Air conditioning condensate.
- (6) Discharges from emergency firefighting activities.

15-10-3-3. *Prohibited Connections.* The construction, use, maintenance, or continued existence of illicit connections to the storm drain system is prohibited. This includes any drain or conveyance that allows a non-stormwater discharge (such as sanitary sewer, floor drains, or washing machine wastewater) to enter the MS4.

15-10-4. *Construction Site Stormwater Runoff Control.*

15-10-4-1. *Applicability.* Any operator or owner of a construction project within the Town limits that disturbs one (1) acre or more of land, or is part of a larger common plan of development, must comply with this Section.

15-10-4-2. *Requirements for Approval.*

- (1) Notice of Intent (NOI): The applicant must submit evidence of a valid AZPDES Construction General Permit by filing a Smart NOI with the Arizona Department of Environmental Quality (ADEQ).
- (2) SWPPP Submission: A site-specific Stormwater Pollution Prevention Plan (SWPPP) must be submitted to the Town Development Services Department prior to the issuance of a grading or building permit.
- (3) Erosion and Sediment Controls: Sites must implement appropriate BMPs (e.g., silt fences, stabilized construction entrances, wattles) to minimize sediment tracking onto public roadways and dust generation.

15-10-5. *Post-Construction Stormwater Management.*

15-10-5-1. *Retention and Dry-Up Requirements.* All new commercial, industrial, and residential subdivisions must manage post-construction runoff:

15-10-5-2. *Retention Basins.* Properties must retain the volume of stormwater runoff generated by a 100-year, 2-hour storm event.

15-10-5-3. To prevent vector breeding (mosquitoes) and safety hazards, all stormwater retention basins, tracts, and localized low points must completely drain, percolate, or dry up within thirty-six (36) hours following the end of a rain event.

15-10-5-4. *Maintenance Easements and Agreements.* The property owner or Homeowners Association (HOA) shall be responsible for the continuous, long-term maintenance of all private stormwater structural controls (retention basins, oil/water separators, drywells) to ensure they operate at design capacity.

15-10-6. *Inspections and Compliance Monitoring.*

15-10-6-1. The Town retains the right to enter and inspect any facility or construction site subject to regulation under this ordinance to determine compliance with SWPPP guidelines or investigate a suspected illicit discharge.

15-10-6-2. If an inspector identifies a violation, the Town will issue a written notice requiring corrective action within a designated timeframe (typically twenty-four [24] hours to seven [7] days depending on the severity).

15-10-7. *Enforcement, Violations, and Penalties.*

15-10-7-1. *Violations.* It shall be unlawful for any person to violate any provision or fail to comply with any of the requirements of this ordinance.

15-10-7-2. *Escalating Enforcement Remedies.*

- (1) *Stop Work Orders.* For active construction sites, the Town may suspend all grading, building, or utility work until stormwater deficiencies are resolved.
- (2) *Civil Penalties.* Violations may result in civil citations, carrying fines ranging from two hundred fifty dollars (\$250) up to two thousand five-hundred dollars (\$2,500) per day per violation. Each day a violation continues constitutes a separate offense.

- (3) *Criminal Enforcement.* Intentional, knowing, or reckless illegal dumping of hazardous materials into the MS4 may be prosecuted as a Class 1 misdemeanor.
- (4) *Cost of Abatement.* If the Town is forced to step in to clean up a spill or stabilize an eroding site to protect public infrastructure, the property owner will be billed for all clean-up expenses.

Section 15-11 CONSTRUCTION HAULING AND RIGHT-OF-WAY PRESERVATION.

15-11-1. *Purpose.* The purpose of this Section is to protect public health, safety, and infrastructure by regulating the hauling of earth, aggregate, construction materials, and debris on public streets. Large-scale hauling operations can cause accelerated structural deterioration of pavement, create safety hazards via traffic congestion and material track-out, and impair air quality. This Section ensures municipal oversight over haul routes, traffic control, operations, and accountability for infrastructure damage.

15-11-2. *Definitions.* Used in this Section, the following terms shall have the designated meanings:

"*Hauling Operation*" means the transportation of earth, soil, sand, gravel, stone, concrete, asphalt, building materials, or demolition debris to or from a construction site using commercial vehicles with a Gross Vehicle Weight Rating (GVWR) exceeding twenty-six thousand (26,000) pounds.

"*Large-Scale Construction Project*" means any private or public development project that meets or exceeds the triggers defined in Section 15-11-3 of this Code.

"*Haul Route Plan*" means a detailed map and narrative specifying the exact public streets, intersections, ingress/egress points, and schedules to be utilized during hauling operations.

"*Pavement Degradation Bond*" means a financial assurance provided by the permittee to guarantee the repair of any accelerated damage caused to the public right-of-way by hauling vehicles.

"*Track-Out*" means the deposition of mud, dirt, or debris onto public paved surfaces by the tires or undercarriages of vehicles exiting a construction site.

15-11-3. *Permit Required, Thresholds.*

15-11-3-1. *Permit Mandate.* No person, contractor, or developer shall engage in a hauling operation for a Large-Scale Construction Project within the corporate limits of the Town without first obtaining a Right-of-Way Use Permit from the Town of San Tan Valley.

15-11-3-2. *Triggers for Permit Requirement.* A hauling permit is required if the construction or development activity meets any of the following criteria:

- (1) The project involves the import or export of five hundred (500) cubic yards or more of earth, aggregate, or structural material.
- (2) The project involves the demolition and disposal of structural components exceeding ten thousand (10,000) square feet of gross floor area.
- (3) The hauling operation will generate more than twenty (20) round-trips per day by vehicles exceeding twenty-six thousand (26,000) pounds GVWR for a period exceeding three (3) consecutive days.

15-11-4. *Application Requirements.* To obtain a Right-of-Way Use and Hauling Permit, the applicant must submit a complete application packet to the Town Engineer at least fourteen (14) business days prior to the anticipated start of hauling. The application must include:

- (1) *Approved Haul Route Map*. A clear visual layout illustrating the exact paths from the point of origin to the destination within town limits. Hauling must be restricted to designated municipal arterial and collector streets to the maximum extent practicable. Residential streets shall not be utilized unless no other physical access is available.
- (2) *Traffic Control Plan (TCP)*. A professional TCP designed in accordance with the *Manual on Uniform Traffic Control Devices (MUTCD)* and MAG specifications, detailing any required lane closures, flaggers, temporary signage, or police escorts at high-volume intersections.
- (3) *Dust Control and Track-Out Mitigation Plan*. A copy of the approved County Air Quality Dust Control Permit (Maricopa or Pinal County, as applicable) along with a site-specific plan detailing track-out prevention measures, including gravel track-out pads, wheel-wash stations, and a mandatory street-sweeping schedule.
- (4) *Schedule of Operations*. The anticipated start date, end date, daily operating hours, and estimated total number of truck loads.

15-11-5. *Pavement Preservation and Financial Assurance.*

15-11-5-1. *Financial Security*. For projects exceeding five thousand (5,000) cubic yards of imported/exported material, the applicant shall post a Pavement Degradation Bond or Letter of Credit in an amount determined by the Town Engineer (based on a per-lineal-foot or per-square-yard calculation of the impact route). This security ensures the town can execute repairs if the developer fails to do so.

15-11-5-2. *Post-Construction Restoration*. Within ten (10) business days following the completion of hauling, a post-construction inspection will be performed. If it is determined that the hauling operations caused accelerated raveling, rutting, cracking, or structural failure of the public roadway, the permittee shall be legally required to restore the right-of-way to its baseline condition utilizing standard MAG Uniform Standard Specifications and Town of San Tan Valley Engineering and Design Standards. If repairs are not completed within thirty (30) days of notification, the Town shall cash the security bond to execute the repairs.

15-11-6. *Operations & Restrictions.*

15-11-6-1. *Hours of Operation*. Refer to Section 10-3-7 of the Town Code.

15-11-6-2. *Load Securing*. All hauling vehicles must be tarped or securely covered in compliance with Arizona Revised Statutes (A.R.S. § 28-1098) to prevent material from spilling, blowing, or dropping onto the public right-of-way.

15-11-6-3. *Continuous Clean-up*. The permittee is required to keep all public streets along the haul route free of track-out. If track-out occurs, a mechanical, vacuum-assisted street sweeper must be deployed immediately. Standard "broom-only" sweeping that generates visible dust plumes is strictly prohibited.

15-11-7. *Violations, Enforcement, and Penalties.*

15-11-7-1. *Stop Work Orders*. Any Code enforcement officer or the Town Engineer may issue an immediate "Stop Work Order" on a construction project if hauling is occurring without a valid permit, violating approved hours, or generating hazardous track-out.

15-11-7-2. *Civil Penalties*. Any person or corporation found in violation of this Section shall be subject to a civil penalty of not less than one-thousand dollars (\$1,000) per day, per violation. Each day a violation continues shall constitute a separate, distinct offense.

ARTICLE 16 - BUILDING AND CONSTRUCTION

SECTIONS:

16-1: BUILDING CODE

16-2: UNSAFE STRUCTURES

16-3: MARICOPA ASSOCIATION OF GOVERNMENTS (“MAG”)

16-4: BUILDING OFFICIAL

16-5: CERTIFICATES OF OCCUPANCY

16-6: UTILITY POLES AND WIRES

16-7: [RESERVED]

16-8: RESIDENTIAL SINGLE-LOT GRADING AND DRAINAGE

Section 16-1 BUILDING CODE.

16-1-1. *Short Title.* This Section, together with the code documents, appendices, and local amendments adopted by reference in Section 16-1-3, may be cited as the “San Tan Valley Building Code” or the “Town Building Code.”

16-1-2. *Application.* The San Tan Valley Building Code applies to the construction, alteration, repair, relocation, demolition, occupancy, use, and maintenance of buildings and structures, and to the installation of structures and systems appurtenant thereto, within the Town, except as otherwise provided by state law, regulation, ordinance, this Article, or an applicable code adopted by reference.

16-1-3. *Building Code.* The code documents listed in this Section, together with the appendices identified herein and the local amendments declared public records by Resolution No. 2026-26 and adopted by Ordinance No. 2026-05, are hereby adopted by reference as if fully set out in this Code and shall constitute the San Tan Valley Building Code.

16-1-3-1. *International Building Code (IBC)*, 2024 Edition, as amended, published by the International Code Council, including the following appendices:

- (1) Appendix B – Board of Appeals.
- (2) Appendix I – Patio Covers.
- (3) Appendix J - Grading.

16-1-3-2. *International Residential Code (IRC)*, 2024 Edition, as amended, including the following appendices:

- (1) Appendix AA – Board of Appeals.
- (2) Appendix BB – Tiny Houses.
- (3) Appendix BC – Accessory Dwelling Units (ADU).
- (4) Appendix BD – Home Daycare Occupancy.
- (5) Appendix BF – Patio Covers.
- (6) Appendix BO – Existing Buildings and Structures.

- (7) Appendix CF – Sizing of Water Piping System.
- (8) Appendix NB – Solar Ready Provision.
- (9) Appendix ND – Electrical Energy Storage Provisions.
- (10) Appendix NE – Electric Vehicle Charging Infrastructure.

16-1-3-3. *National Electrical Code* (NEC), 2023 Edition, as amended, published by the National Fire Protection Association.

16-1-3-4. *International Mechanical Code* (IMC), 2024 Edition, as amended, published by the International Code Council, including the following appendices:

- (1) Appendix C – Board of Appeals.

16-1-3-5. *International Plumbing Code* (IPC), 2024 Edition, as amended, published by the International Code Council, including the following appendices:

- (1) Appendix B – Rates of Rainfall for Various Cities.
- (2) Appendix E – Sizing of Water Piping Systems.
- (3) Appendix F – Board of Appeals.

16-1-3-6. *International Fuel Gas Code* (IFGC), 2024 Edition, as amended, published by the International Code Council, including the following appendices:

- (1) Appendix A – Sizing and Capacity Town of Gas Piping.
- (2) Appendix D – Board of Appeals.

16-1-3-7. *International Property Maintenance Code* (IPMC), 2024 Edition, as amended, published by the International Code Council, including the following appendices:

- (1) Appendix A – Boarding Standard.
- (2) Appendix B – Board of Appeals.

16-1-3-8. *International Wildland-Urban Interface Code* (IWUIC), 2024 Edition, as amended, published by the International Code Council, including the following appendices:

- (1) Appendix C – Fire Hazard Severity Form.
- (2) Appendix I – Board of Appeals.

16-1-3-9. *International Existing Building Code* (IEBC), 2024 Edition, as amended, published by the International Code Council, including the following appendices:

- (1) Appendix D – Board of Appeals.

16-1-3-10. *International Swimming Pool and Spa Code* (ISPSC), 2024 Edition, as amended, published by the International Code Council, including the following appendices:

- (1) Appendix A – Board of Appeals.

16-1-3-11. *International Energy Conservation Code* (IECC), 2024 Edition, as amended, published by the International Code Council, including the following appendices:

- (1) Appendix RA – Board of Appeals - Residential.

(2) Appendix CA – Board of Appeals - Commercial.

16-1-3-12. *International Fire Code (IFC)*, 2024 Edition, as amended, published by International Code Council, including the following appendices:

- (1) Appendix A – Board of Appeals.
- (2) Appendix B - Fire Flow Requirements for Buildings.
- (3) Appendix C – Fire Hydrant Locations and Distribution.
- (4) Appendix E – Hazard Categories.
- (5) Appendix F – Hazard Ranking.
- (6) Appendix G – Cryogenic Fluids – Weight and Volume Equivalents.
- (7) Appendix H – Hazardous Materials Management Plan (HMMP) and Hazardous Materials Inventory Statement (HMIS) Instructions.
- (8) Appendix I – Fire Protection Systems – Noncompliant Conditions.
- (9) Appendix K – Construction Requirements in Existing Ambulatory Care Facilities.

16-1-3-13. *ICC A117.1-2017 Accessible and Usable Buildings and Facilities*, 2017 Edition, as amended, published by International Code Council.

16-1-3-14. *Copies on File*. Copies of the code documents, appendices, attachments, and local amendments identified in this Section shall be maintained by the Town Clerk and made available for public reference and inspection as required by A.R.S. § 9-802.

16-1-4. *Rules and Definitions*.

16-1-4-1. *Definitions*. The following words, terms and phrases, when used in this Section, shall have the meanings ascribed to them in this Section, except where the context clearly indicates a different meaning:

“*Administrative authority*” means the San Tan Valley Building Official, or Manager of the Building Safety Department.

“*Board of Appeals*” means the Board of Appeals established by Section 3-2 of this Code, which may determine the suitability of alternative materials and methods of construction, but may not decide administrative matters under the Building Code.

“*Building Codes*” means the documents listed and described in Town Code Section 16-1-3, Subsections 16-1-3-1 through 16-1-3-13.

“*Building Official*” means the functional title of the Manager of the Department of Building Safety, or duly authorized representative, charged with the administration and enforcement of this Code.

“*Commercial*” refers to the use of a building, addition or structure for business, educational, religious, institutional, recreational, industrial, or any other nonresidential purpose.

“*Jurisdiction*” means the Town of San Tan Valley.

“*Noncommercial*” refers to the use of a building, structure or addition for a residential purpose.

"Standard Plans" means plans that are reviewed, approved and intended to be used in construction on a repetitive basis. Standard plans may include options allowing variations or options to the building design that may alter the interior and exterior appearance or add area to the structure.

16-1-4-2. *References.* Unless otherwise specified, references in the code documents adopted in Section 16-1-3 to chapters, sections, subsections, paragraphs, subparagraphs, tables, appendices, or similar internal divisions refer to the corresponding provisions of the applicable code document in which the reference appears.

16-1-4-3. *Conflicts.* In the event of a conflict between a code document adopted by reference in Section 16-1-3 and a local amendment adopted by the Town, the local amendment shall control. In the event of a conflict between a code document adopted by reference in Section 16-1-3 and an express provision of this Article applicable to the same subject matter, the express provision of this Article shall control, unless otherwise required by state law or the applicable adopted code. In the event of a conflict between or among code documents adopted by reference, the Building Official shall apply the provision that is most specifically applicable to the subject matter, unless otherwise required by state law, this Code, or the applicable adopted code. If two or more provisions are equally applicable, the Building Official shall apply the provision that is more restrictive or more protective of public health, safety, and welfare, unless otherwise required by state law, this Code, or the applicable adopted code.

16-1-5. *Building Code Administration.*

16-1-5-1. *Building Official.* The position of Building Official is hereby established. The Building Official may also carry the title of Building Code Administrator, Building Safety Manager, or another functional title approved by the Town Manager. The Building Official shall be responsible for the administration and enforcement of this Section and the San Tan Valley Building Code and shall be appointed by the Town Manager.

16-1-5-2. *Administration by Town Staff, Contractors, or Intergovernmental Agreement.* The Town may administer and enforce this Section and the San Tan Valley Building Code through Town officers, employees, contractors, or other authorized service providers. The Town Council may enter into intergovernmental agreements pursuant to A.R.S. § 11-952 for building safety, plan review, inspection, permitting, enforcement, joint services, cooperation, and resource sharing with other public agencies.

16-1-5-3. *Deputies, Inspectors, and Employees.* The Building Official may recommend the appointment or assignment of deputies, inspectors, permit technicians, plans examiners, and other employees, contractors, or service providers necessary to administer and enforce this Section and the San Tan Valley Building Code, subject to the Town Manager's authority, the Town's personnel rules, the adopted budget, and applicable contracts or intergovernmental agreements.

16-1-5-4. *Records.* The Building Official shall maintain records of applications for permits, permits issued, inspections made, revenue received, reports rendered, and notices or orders issued. The Building Official shall retain records relating to building work for the minimum period required by applicable records retention schedules or for such additional time as the Building Official determines is necessary.

16-1-5-5. *Rules and Administrative Interpretations.* The Building Official may propose rules, policies, procedures, and administrative interpretations necessary to administer and enforce this Section and the San Tan Valley Building Code; to protect the public health, safety, and welfare; and to carry out the intent of this Section. Any rules or regulations requiring formal Town approval shall be approved as required by law or Town policy. No rule, policy, procedure, or administrative interpretation shall waive a technical requirement specifically established by the San Tan Valley Building Code or violate accepted engineering or construction practices involving public safety.

16-1-6. *Compliance Review.* No building permit shall be issued to any person unless a compliance review number has been issued by the San Tan Valley Planning Division to the Building Official. Exceptions to this requirement are permits for mechanical, electrical, plumbing, building, and remodeling that do not involve a change of use or additional area which may affect required setbacks.

16-1-7. *Application for Permit.* The Building Official may require with an application for a building permit whatever data and information is deemed necessary to reasonably determine that the proposed work is in compliance with the requirements of this Code and other pertinent laws and ordinances.

16-1-8. *Penalties.*

16-1-8-1. *Criminal Penalties.* Any person who violates any provision of this Section shall be guilty of a Class 1 misdemeanor. Any person convicted of a Class 1 misdemeanor for violation of this Section may be sentenced to the county jail for a period not to exceed six (6) months and/or fined an amount not to exceed two-thousand five-hundred dollars (\$2,500). Each failure to obtain a required permit clearance, compliance review approval or inspections shall constitute a separate violation of this Section.

16-1-8-2. *Civil Penalties.* Any person who violates any provision of this Section may be subject to a civil penalty, as an alternative method of enforcing this Section pursuant to the general civil penalties found in the San Tan Valley Code and pursuant to A.R.S. §§9-240(28) & (29) and A.R.S. §9-500.21. If a violator does not comply with the civil enforcement action, the Town may file criminal charges. A civil enforcement action is not a prerequisite to filing a criminal charge. The Town Council shall establish a schedule of penalties for violations of this Section. Said penalties shall not exceed the amount of seven-hundred fifty dollars (\$750) for an individual per each civil violation, or ten thousand dollars (\$10,000) for an enterprise per each civil violation. The term "enterprise" shall be defined pursuant to A.R.S. § 13-105. Any person alleged to be subject to a civil penalty for a violation of this Section shall be entitled to an administrative hearing on their liability pursuant to A.R.S. §9-500.21. The administrative hearing shall be before a Town Council appointed Hearing Officer, subject to the rules of procedure for same as adopted by the Town Council and/or as otherwise provided for in A.R.S. §9-500.21.

16-1-8-3. *Other Methods of Enforcement.* The Town Council, the Building Official, or any adjacent or neighboring property owner who shall be especially damaged by the violation of any provision of this Section, may initiate other remedies provided by law, e.g., an injunction, writ of mandamus, abatement or any other appropriate action, proceeding or proceedings to prevent, abate or remove such violation of the ordinance.

16-1-8-4. *Separate Offenses.* Pursuant to the general civil penalties in Article 1, Section 1-11 of this Code, A.R.S. §9-500.21(4) and A.R.S. §9-499(h) any person, firm, or corporation violating this Section shall be deemed guilty of a separate offense for each and every day during which a violation of the provisions of this Section is committed, continued, or permitted.

16-1-9. *Interest on Judgments.* The Town may charge all lawful interest on judgments it may obtain for violations of this Section, including, but not necessarily limited to A.R.S. §44-1201.

16-1-10. *Severability.* If any section, subsection, sentence, clause, phrase, or portion of this Section, or any part of the Subsections 16-1-3-1 through 16-1-3-13, is for any reason held to be invalid or unconstitutional by the decision of any court of competent jurisdiction, such decision shall not affect the validity of the remaining portions thereof.

Section 16-2 UNSAFE STRUCTURES.

16-2-1. *Conditions.* Structures or existing equipment that are or hereafter become unsafe, unsanitary or deficient because of inadequate means of egress facilities, inadequate light and ventilation, or which constitute a fire hazard, or are otherwise dangerous to human life or the public welfare, or that involve illegal

or improper occupancy or inadequate maintenance, shall be deemed an unsafe condition. Unsafe structures shall be demolished and removed or made Code compliant, as the Building Official deems necessary and as provided for in the Town Building Code or other ordinances or regulations of this jurisdiction. A vacant structure that is not secured against entry shall be deemed unsafe.

16-2-2. *Notice.* If an unsafe condition is found, the Building Official shall serve on the owner, agent or person in control of the structure, a written notice that describes the condition deemed unsafe and specifies the required repairs or improvements to be made to abate the unsafe condition, or that requires the unsafe structure to be demolished within a stipulated time. Such notice shall require the person thus notified to declare immediately to the Building Official acceptance or rejection of the terms of the notice.

16-2-2-1. *Method of Service.* Such notice shall be deemed properly served if a copy thereof is:

- (1) Delivered to the owner personally, or;
- (2) Sent by certified or registered mail addressed to the owner at the last known address with the return receipt requested, or;
- (3) Delivered in any other manner as prescribed by local law.

If the certified or registered letter is returned showing that the letter was not delivered, a copy thereof shall be posted in a conspicuous place in or about the structure affected by such notice. Service of such notice in the foregoing manner upon the owner's agent or upon the person responsible for the structure shall constitute service of notice upon the owner.

16-2-3. *Imminent Danger.* When, in the opinion of the Building Official, there is imminent danger of failure or collapse of a building, equipment or system that endangers life, or when any building or part of a building has fallen and life is endangered by the occupation of the building, or when there is actual or potential danger to the building occupants, or those in the proximity of any structure because of explosives, explosive fumes or vapors, or the presence of toxic fumes, gases, or materials, or operation of defective or dangerous equipment, the Building Official is hereby authorized and empowered to order and require the occupants to vacate the premises forthwith. The Building Official shall cause to be posted at each entrance to such structure a notice reading as follows: "This Structure Is Unsafe and Its Occupancy Has Been Prohibited by the Building Official." It shall be unlawful for any person to remove such notice, to enter such structure except for the purpose of securing the structure, making the required repairs, removing the hazardous condition, or of demolishing the same.

16-2-4. *Temporary Safeguards.* Notwithstanding other provisions of the Town Building Code, whenever, in the opinion of the Building Official, there is imminent danger due to an unsafe condition, the Building Official shall order the necessary work to be done, including the boarding up of openings, to render such structure temporarily safe whether or not the legal procedure herein described has been instituted; and shall cause such other action to be taken as deemed necessary to meet such emergency. When necessary for public safety, the Building Official shall work closely with other public safety agencies and may temporarily close structures and order the authority having jurisdiction to close sidewalks, streets, public ways, and places adjacent to unsafe structures, and prohibit the same from being utilized.

16-2-5. *Emergency Repairs.* When a condition of imminent danger exists, the Building Official may employ the necessary labor and materials to perform the required work as expeditiously as possible. In addition to all other remedies available to the Town under the law, equity, statute or Town Code the Town may institute appropriate action against the owner of the premises where the unsafe structure is or was located for the recovery of costs incurred for emergency repairs.

16-2-6. *Records.* The Building Official shall cause a report to be filed on an unsafe condition. The report shall state the occupancy of the structure and the nature of the unsafe condition.

16-2-7. *Restoration.* The structure or equipment determined to be unsafe by the Building Official is permitted to be restored to a Code compliant condition. To the extent that repairs, alterations or additions are

made or a change of occupancy occurs during the restoration of the structure, such repairs, alterations, additions, or change of occupancy shall comply with the requirements of the Town Building Code.

16-2-8. *Hazard Marking System.* The Building Official, in conjunction with other public safety agencies, shall establish a hazard identification marking system to provide personnel responding to a fire or other emergency with a visual identification marking that the property is vacant, abandoned, or unsafe.

Section 16-3 MARICOPA ASSOCIATION OF GOVERNMENTS (“MAG”).

Those certain specifications entitled “MAG Standard Specifications and Uniform Details for Public Works Construction”, sponsored and distributed by the Maricopa Association of Governments (MAG), are hereby adopted and made part of this Code in Article 19.

Section 16-4 BUILDING OFFICIAL.

16-4-1. *General.* The Building Official is hereby authorized and directed to enforce the provisions of the Town Building Code. The Building Official shall have the authority to render interpretations of the Town Building Code and to adopt policies and procedures in order to clarify the application of its provisions. Such interpretations, policies and procedures shall be in compliance with the intent and purpose of the Town Building Code. Such policies and procedures shall not have the effect of waiving requirements specifically provided for in the Town Building Code.

16-4-2. *Applications and Permits.* The Building Official shall receive electronic applications, review electronic construction documents, and issue permits for the erection, alteration, demolition and moving of buildings and structures, inspect the premises for which such permits have been issued, and enforce compliance with the provisions of the Town Building Code and other laws and ordinances of the jurisdiction.

16-4-3. *Notices and Orders.* The Building Official shall issue all necessary notices or orders to ensure compliance with the Town Building Code and other laws and ordinances of the jurisdiction to the prescribed extent of each such reference.

16-4-4. *Inspections.* The Building Official shall make all of the required inspections, or the Building Official shall have the authority to accept electronic reports of inspection by approved agencies or individuals. Electronic reports of such inspections shall be certified by a responsible officer of such approved agency or by the responsible individual. The Building Official is authorized to engage such expert opinion as deemed necessary to report upon unusual technical issues that arise.

16-4-5. *Identification.* The Building Official shall carry proper identification when inspecting structures or premises in the performance of duties under the Town Building Code.

16-4-6. *Right of Entry.* Where it is necessary to make an inspection to enforce the provisions of the Town Building Code, or where the Building Official has reasonable cause to believe that there exists in a structure or upon a premises a condition which is contrary to or in violation of the Town Building Code, and other laws and ordinances of the jurisdiction to the prescribed extent of each such reference, which makes the structure or premises unsafe, dangerous or hazardous, the Building Official is authorized to enter the structure or premises at reasonable times to inspect or to perform the duties imposed by the Town Building Code and other laws and ordinances of the jurisdiction to the prescribed extent of each such reference, provided that if such structure or premises be occupied that credentials be presented to the occupant and entry requested. If such structure or premises is unoccupied, the Building Official shall first make a reasonable effort to locate the owner or other person having charge or control of the structure or premises and request entry. If entry is refused, the Building Official shall have recourse to the remedies provided by law to secure entry.

16-4-7. *Records.* The Building Official shall keep official records of applications received, permits, and certificates issued, fees collected, reports of inspections, and notices and orders issued. Such records shall be retained in the official records for the period required for retention of public records.

16-4-8. *Liability.* The Building Official, member of the Board of Appeals or Town employee charged with the enforcement of the Town Building Code, while acting for the jurisdiction in good faith and without malice in the discharge of the duties required by the Town Building Code or other pertinent law or ordinance, shall not thereby be rendered liable personally and is hereby relieved from personal liability for any damage accruing to persons or property as a result of any act or by reason of an act or omission in the discharge of official duties. Any suit instituted against an officer or employee because of an act performed by that officer or employee in the lawful discharge of duties and under the provisions of the Town Building Code shall be defended by a legal representative of the jurisdiction until the final termination of the proceedings. The Building Official or any subordinate shall not be liable for cost in any action, suit or proceeding that is instituted in pursuance of the provisions of the Town Building Code.

16-4-9. *Approved Materials and Equipment.* Materials, equipment, and devices approved by the Building Official shall be constructed and installed in accordance with such approval.

16-4-10. *Used Materials and Equipment.* The use of used materials which meet the requirements of the Town Building Code for new materials is permitted. Used equipment and devices shall not be reused unless approved by the Building Official.

16-4-11. *Modifications.* Wherever there are practical difficulties involved in carrying out the provisions of the Town Building Code or other pertinent law or ordinance, the Building Official shall have the authority to grant modifications for individual cases, upon application of the owner or owner's representative and appropriate fees paid, provided the Building Official shall first find that special individual reason makes the strict letter of the Town Building Code or other pertinent law or ordinance impractical and the modification is in compliance with the intent and purpose of the Town Building Code and other pertinent law or ordinance and that such modification does not lessen health, accessibility, life and fire safety, or structural requirements. The details of action granting modifications shall be duly recorded.

16-4-12. *Alternative Materials, Design and Methods of Construction and Equipment.* The provisions of the Town Building Code are not intended to prevent the installation of any material or to prohibit any design or method of construction not specifically prescribed by the Town Building Code, provided that any such alternative has been approved and the appropriate fees have been paid. An alternative material, design or method of construction shall be approved where the Building Official finds that the proposed design is satisfactory and complies with the intent of the provisions of the Town Building Code, and that the material, method or work offered is, for the purpose intended, at least the equivalent of that prescribed in the Town Building Code in quality, strength, effectiveness, fire resistance, durability, and safety.

16-4-13. *Research Reports.* Supporting data, where necessary to assist in the approval of materials or assemblies not specifically provided for in the Town Building Code, shall consist of valid research reports from approved sources.

16-4-14. *Tests.* Whenever there is insufficient evidence of compliance with the provisions of the Town Building Code, or evidence that a material or method does not conform to the requirements of the Town Building Code, or in order to substantiate claims for alternative materials or methods, the Building Official shall have the authority to require tests as evidence of compliance to be made at no expense to the jurisdiction. Test methods shall be as specified in the Town Building Code or by other recognized test standards. In the absence of recognized and accepted test methods, the Building Official shall approve the testing procedures. Tests shall be performed by an approved agency. Reports of such tests shall be retained by the Building Official for the period required for retention of public records.

16-4-15. *Occupancy Violations.* When a building, structure, premises or building service equipment regulated by the Town Building Code, the technical Codes, or any other regulation within the jurisdiction is

being used contrary to the provisions of the Town Building Code, or the technical Codes, the Building Official may order such use discontinued by written notice served on any person causing such use to be continued. Such person shall, after receipt of notice, discontinue the use within the time prescribed by the Building Official and make the building, structure, premises, or portion thereof, comply with the requirements of such Codes.

16-4-16. *Authority to Disconnect Utilities.* In case of emergency, the Building Official or authorized representative shall have the authority to disconnect a utility service or energy supplied to the building, structure, premise, or building service equipment therein regulated by the Town Building Code or the technical Codes where necessary to eliminate an immediate hazard to life or property. The Building Official shall whenever possible notify the serving utility, the owner and occupant of the building, structure or building service equipment of the decision to disconnect prior to taking such action, and shall notify such utility, owner and occupant of the building, structure, premise or building service equipment, in writing, of such disconnection immediately thereafter.

Section 16-5 CERTIFICATES OF OCCUPANCY.

16-5-1. *Definitions.* For purposes of this Section, the following terms have the meanings set forth below. Terms not defined in this Section have the meanings set forth elsewhere in this Article or in the San Tan Valley Building Code, as the context requires.

"Letter of Compliance" means a document issued by the Building Official indicating satisfactory compliance of a building or portion of a building, structure, electrical, gas, mechanical or plumbing system. This certificate can apply to various Town ordinances and the approved plans, and does not grant authority to occupy the building, structure or portion thereof prior to the issuance of a Temporary Certificate of Occupancy or a Certificate of Occupancy.

"Certificate of Occupancy" means a document issued by the Building Official upon completion of all required inspections and approval of all requirements associated with the project whether onsite or offsite. It is a control device employed to ensure that a building is not used or inhabited until such time as the building official has deemed it safe to do so.

"Existing Building or Structure" means a building or structure erected prior to the date of adoption of the Code, or one for which a legal Certificate of Occupancy, or Town final approval, if no Certificate of Occupancy is required, has been issued.

"Partial Certificate of Occupancy" means a Certificate that is intended to acknowledge that some of the building features may not be completed even though the building is safe, or that a portion of the building can be safely occupied while work continues in another area. Partial Certificates would be issued only when incidental construction remains, such as site work that is not necessary for the safety of people, whether employees or the general public. A Partial Certificate of Occupancy shall not be issued until the building or structure contains all of the required fire protection systems, sanitary facilities, vehicle parking, and a complete, Code compliant means of egress for the area to be occupied.

"Temporary Certificate of Occupancy" means a Certificate that is intended to acknowledge that some of the building elements may not be completed even though the building or structure is safe to be occupied. Temporary Certificates would be issued only when incidental construction remains to be completed, which is not necessary for the safety of people, whether employees or the general public. A Temporary Certificate of Occupancy shall not be issued until the building or structure contains all of the required fire protection systems, sanitary facilities, vehicle parking, and complete, Code compliant means of egress.

16-5-2. *Authorization Required Before Occupancy or Change of Occupancy.* No building, structure, or premise shall be used, occupied or open to the public, in whole or in part, and no change in the existing

occupancy classification of a building, premise, structure, or portion thereof shall be made until the Building Official has issued a temporary, partial or a full Certificate of Occupancy. Issuance of a Certificate of Occupancy shall not be construed as an approval to violate or cancel the provisions of the "Town Building Code" or other ordinances and laws of the Town.

Section 16-6 UTILITY POLES AND WIRES.

16-6-1. *Definitions.* In this Section unless the context requires otherwise:

"Distribution feeder" means that portion of the distribution system feeding from a distribution substation to a specific load area having a capacity of over three thousand (3,000) Kilovolt-Amperes (KVA).

"Existing utility poles and wires" means such poles and wires and other facilities as are in place and in operation as of the effective date of this Code and including repairs, replacement, relocations on the same alignment, additions, enlargements, betterments, changes or improvements hereinafter made to maintain or increase service capabilities of existing utility poles, wires, service drops and other facilities, but it does not include extensions made to existing distribution lines.

"Transmission line" means an electric line used for the bulk transmission of electricity between generating or receiving points and major substations or delivery points, having a rating of over twelve thousand volts (12,000v).

"Utility poles and wires" means poles and structures, wires, cables, transformers and all other facilities used in or as a part of the distribution or transmission of telephone, telegraph, radio or television communications.

16-6-2. *Permit for Erection; Exceptions.* After the effective date of this Code, no new utility poles and wires shall be erected in the Town above the surface of the ground unless a permit is first secured therefor from the Town Manager or designee; except that the following construction may be installed without such a permit:

- (1) Temporary service facilities, such as facilities to furnish emergency service during an outage, facilities to provide service to construction sites, or other service of a limited duration, such as to a fair, carnival, outdoor exhibit or other function where the facilities will be installed for a temporary period only.
- (2) Pad-mounted transformers or pull boxes, service terminals, pedestal-type telephone terminals, phone terminals, telephone splice closures, or similar on-the-ground facilities normally used with and as a part of an electric distribution, telephone, telegraph or television system, or on-the-ground facilities attached to existing overhead facilities which are used for the purpose of connecting an underground system with the existing facilities.
- (3) Transmission lines and distribution feeder lines, together with related switch yards, substations and related equipment. Service drops from existing overhead lines to new single-family residential customers, except when underground service is required by this Article, the Town Building Code, or another applicable provision of this Code.

16-6-3. *Procedure for Obtaining Permit; Denial and Appeal.* Any person seeking a special permit for erection of any new utility poles and wires within the Town boundaries and above the surface of the ground shall first make application therefor to the Town Manager, or designee, which application shall be approved or denied in writing. In the event the application is denied, the applicant may appeal the decision of the Town Manager, or designee, by presenting the applicant's objections in writing to the Council with a copy to the Town Manager, or designee, within ten (10) days of the Town Manager's or designee's denial. The Town Manager, or designee, may grant the permit within five (5) days or shall submit the appeal together with a

written report of recommendations to the Council within twenty (20) days of the date of receipt of the appeal. The Council may hear arguments and shall decide the matter.

16-6-4. *Standards for Issuance of Permits.* A special permit for erection of new utility poles and wires may be granted only in the event the applicant makes an affirmative showing that the public's general health, safety and welfare and that of adjacent property owners will not be impaired, endangered or jeopardized by the proposed erection. In deciding such matter, the following factors shall be considered:

- (1) The location and height of such poles and wires and their relation to present or potential future roads.
- (2) The crossing of such lines over much traveled highways or streets; the proximity of such lines to schools, churches or other places where people congregate.
- (3) The probability of extensive flying in the area where such poles and wires are proposed to be located and the proximity to existing or proposed airfields.
- (4) Fire or other accident hazards from the presence of such poles and wires and the effect, if any, of same upon the effectiveness of firefighting equipment.
- (5) The aesthetics involved.
- (6) The future conditions that may be reasonably anticipated in the area in view of a normal course of development.
- (7) The practicality and feasibility of underground installations of such facilities with due regard for the comparative costs between underground and overground installations; but a mere showing that an underground installation shall cost more than an overground installation shall not in itself necessarily require issuance of a permit.

Section 16-7 [RESERVED]

Section 16-8 RESIDENTIAL SINGLE-LOT GRADING AND DRAINAGE.

16-8-1. *Purpose and Applicability.*

16-8-1-1. *Purpose.* The purpose of this Section is to protect public health, safety, and property by regulating grading, clearing, drainage, and earthwork on individual residential parcels to reduce the risk of localized flooding, erosion, drainage obstruction, and damage to adjacent properties or public rights-of-way.

16-8-1-2. *Applicability.* This Section applies to single-family residential lots, custom home sites, infill lots, and accessory dwelling structures within the Town.

16-8-2. *Definitions.*

"*Single-Lot Grading Plan*" means a scaled technical drawing of an individual residential lot depicting existing and proposed ground elevations, structures, property lines, and exact stormwater flow paths.

"*Finished Floor Elevation (FFE)*" means the certified structural height of the lowest habitable floor of a residential building.

"*Grading*" means any excavating, filling, clearing, grubbing, leveling, or moving of earth, soil, or rock materials.

"*Historic Flow (Natural Drainage)*" means the natural path, velocity, and volume of stormwater runoff as it existed across the natural terrain prior to any human-made alterations.

16-8-3. *Grading Plan Required for Building Permit.*

16-8-3-1. *Mandatory Submittal.* No building permit for a new primary residential dwelling, an accessory structure exceeding eight-hundred (800) square feet, or a building expansion that changes the footprint of the property shall be issued until a Single-Lot Grading and Drainage Plan has been reviewed and approved by the Town Engineer.

16-8-3-2. *Grading Plan Requirements.* The applicant's submitted Single Lot Grading Plan must clearly indicate:

- (1) *Property Boundaries & Setbacks.* Clearly defined property lines and structure envelopes.
- (2) *Elevation Data.* Proposed Finished Floor Elevation (FFE) which must be a minimum of twelve (12) inches above the highest adjacent natural grade within ten (10) feet of the building footprint or top of the street curb.
- (3) *Drainage Flow Arrows.* Indication of exactly where rain water will flow across the lot, proving it drains away from the residential foundation at a minimum five-percent (5%) slope for the first ten (10) feet.

16-8-4. *Exemptions.* A formal grading permit is not required for standard backyard landscaping, provided the work meets all of the following criteria:

- (1) The total volume of material moved is less than fifteen (15) cubic yards.
- (2) The maximum depth of any permanent excavation (cut) does not exceed two (2) feet, and the maximum height of any placement of soil (fill) does not exceed one (1) foot.
- (3) The work does not alter, block, or redirect historic drainage paths or impact adjacent properties.

16-8-5. *Drainage Protection Standards and Prohibitions.*

16-8-5-1. *Maintenance of Historic Flow.* Stormwater runoff must enter and depart a residential parcel in substantially the same location, manner, and velocity as it did under pre-development conditions.

16-8-5-2. *Absolute Prohibitions.*

16-8-5-2-1. *No Downstream Damming.* No property owner shall install a block wall, fence, landscape berm, or decorative fill dirt that blocks or retards an upstream neighbor's historic drainage runoff.

16-8-5-2-2. *No Upstream Concentrated Dumping.* No property owner shall alter their land to concentrate sheet-flow water into a high-velocity stream and dump it directly onto a neighboring property line.

16-8-5-2-3. *Wash Preservation.* Natural watercourses, desert washes, and designated drainage easements shall remain entirely free of obstructions, structural footings, and unpermitted retaining walls. All natural drainage patterns shall be maintained; watercourse shall enter and exit properties in the same location and with the same flow characteristics.

16-8-6. *Violations, Enforcement, and Penalties.*

16-8-6-1. *Grading and Building Without a Permit.* Any person who commences grading or site clearing prior to obtaining an approved grading and building permit shall be issued an immediate Stop Work Order. All construction activity on the lot shall instantly cease. A double-fee penalty shall be assessed to reinstate the permit application process.

16-8-6-2. *Illegal Drainage Alteration.* If an inspector, Code Enforcement Officer, or Town Engineer determines that unpermitted grading or wall construction has altered a natural drainage

path or caused water to pond onto a neighboring property, the Town shall issue a Notice of Violation and Order to Restore.

16-8-6-3. *Penalties.*

16-8-6-3-1. *Civil Penalties.* Failure to comply with a Stop Work Order or an Order to Restore within fourteen (14) calendar days shall constitute a civil Code violation, carrying a mandatory fine of not less than five-hundred dollars (\$500) but not more than two thousand five-hundred dollars (\$2,500) per day for each day the violation remains uncorrected.

16-8-6-3-2. *Town Abatement.* If an illegal grading operation creates an immediate hazard to a public roadway or an adjacent structure during a monsoon/storm event, the Town reserves the right to enter the property, execute emergency drainage mitigation, and place a priority lien against the property title to recover one-hundred percent (100%) of the equipment and labor costs.

ARTICLE 17 - ZONING ORDINANCE

[RESERVED] – *This Article is reserved for the Town of San Tan Valley Zoning Ordinance, which may be adopted separately and incorporated into this Code.*

ARTICLE 18 – SUBDIVISION AND LAND DIVISION ORDINANCE

SECTIONS:

- 18-1: TITLE, PURPOSE AND INTENT
- 18-2: ADMINISTRATION
- 18-3: PLATTING PROCEDURES AND REQUIREMENTS
- 18-4: SUBDIVISION DESIGN STANDARDS AND PRINCIPLES
- 18-5: SUBDIVISION LOT PLATTING
- 18-6: EASEMENT PLANNING
- 18-7: STREET NAMING
- 18-8: DRAINAGE
- 18-9: SANITARY SEWAGE DISPOSAL
- 18-10: WATER SYSTEM
- 18-11: STREET LIGHTS
- 18-12: PUBLIC UTILITIES
- 18-13: IMPROVEMENT REQUIREMENTS
- 18-14: FINANCIAL ASSURANCES AND OBLIGATIONS OF THE SUBDIVIDER
- 18-15: CONSTRUCTION AND INSPECTION
- 18-16: SUBDIVISION IMPROVEMENT ACCEPTANCE
- 18-17: MINOR LAND DIVISIONS
- 18-18: MODIFICATIONS TO MINOR LAND DIVISIONS
- 18-19: VIOLATIONS AND APPEALS
- 18-20: PROPOSITION 207 WAIVER FOR PLATTING AND LAND DIVISION APPLICATIONS
- 18-21: STREET NAMING AND ADDRESSING REQUIREMENTS

Section 18-1 TITLE, PURPOSE AND INTENT.

18-1-1. *Short Title.* This title shall be known as the "Subdivision Ordinance for the Town of San Tan Valley" or the "Subdivision Ordinance".

18-1-2. *Purpose and Intent.*

18-1-2-1. The purpose of this Subdivision Ordinance is to provide for the orderly growth and harmonious development of the Town of San Tan Valley; to ensure adequate vehicular, pedestrian, and equestrian traffic circulation through coordinated street systems with relation to major thoroughfares, adjoining subdivisions, and public facilities; to achieve individual property lots of

reasonable utility and livability; to secure adequate provisions for water supply, drainage, flood protection, sanitary sewerage, and other health and safety requirements; to ensure consideration for adequate sites for schools, recreation areas, and other public facilities; to promote the conveyance of land by accurate legal description; and to provide practical procedures for the achievement of this purpose.

18-1-2-2. In the interpretation and application of this Subdivision Ordinance, it is intended that a common ground of understanding and a sound and equitable working relationship exist between the public and private interests and to this end, the independent and mutual objectives of the public and private interests can be achieved in the subdivision of land.

18-1-3. *Design Standards and Procedures Manual.* The companion Town of San Tan Valley Engineering and Design Standards, which sets forth the engineering design standards and standard construction details necessary for successful implementation of this Subdivision Ordinance, is referenced by Town Code, Article 19 and shall be incorporated herein as a part of this Subdivision Ordinance. The Town Engineer is also hereby empowered to update the Town of San Tan Valley Engineering and Design Standards as needed, without further action of the Town Council.

Section 18-2 ADMINISTRATION.

18-2-1. Responsibility.

18-2-1-1. The Community Development Director or their designee is hereby authorized to receive, process and otherwise act upon applications for preliminary or final subdivision plats, in accordance with this Subdivision Ordinance.

18-2-1-2. The Community Development Director shall have final jurisdiction over all matters pertaining to the implementation of this Subdivision Ordinance, except as noted otherwise.

18-2-1-3. All applications for action under this Subdivision Ordinance shall be filed initially with the Community Development Department for processing in accordance with this Subdivision Ordinance.

18-2-2. Application.

18-2-2-1. Where this Subdivision Ordinance imposes a greater restriction upon land utilization, land improvement or development, and land use than is imposed by existing provisions of law, ordinance, contract or deed, this Subdivision Ordinance shall control.

18-2-2-2. This Subdivision Ordinance shall apply to all subdivisions of land within the Boundaries of the Town of San Tan Valley.

18-2-3. *Filing Fees.* The subdivider shall, at the time of filing, pay to the Town the subdivision application fees outlined in the Town's fee schedule established by the Town Council.

18-2-4. *Prohibition of Circumvention.* No person, firm, corporation or legal entity shall sell, offer to sell, or divide any lot, piece, or parcel of land which constitutes a subdivision or part thereof, as defined herein, or in the Arizona State Revised Statutes, without first having recorded a plat thereof in accordance with this Subdivision Ordinance. The Town shall not issue any construction and/or building permit for work on any parcel in violation of this Subdivision Ordinance.

18-2-5. Modifications.

18-2-5-1. Where, in the opinion of the Town Council, upon recommendation by the Community Development Director, or Town Engineer, there exists extraordinary conditions of topography, land ownership or adjacent development, or other circumstances not provided for in this Subdivision Ordinance, the Council may modify these provisions in such a manner and to such extent as it may deem appropriate to the public interest.

18-2-5-2. In the case of a plan and program for a Master Planned Community (MPC), or a Planned Community District (PCD), the Council may modify this Subdivision Ordinance in such manner as appears necessary and desirable to provide adequate space and improvements for public facilities, traffic and pedestrian circulation, recreation, light, air, and other service needs of the development when fully developed and populated and may require stipulations to assure conformance with the achievement of the approved plan.

18-2-5-3. In modifying the standards or requirements of this Subdivision Ordinance, as outlined above, the Town Council may make such additional requirements as appear necessary, in its judgment, to secure substantially the objectives of the standards or requirements so modified.

Section 18-3 PLATTING PROCEDURES AND REQUIREMENTS.

18-3-1. *Outline of Procedures and Requirements.* The preparation, submittal, review, and approval of all subdivision plats located inside the limits of the Town shall proceed through the following progressive stages, further described in Sections 18-3-2 through 18-3-6 (inclusive): Stage 1 – Pre-Application meeting, Stage 2 – Preliminary Plat application, Stage 3 – Preliminary Plat approval, Stage 4 – Final Plat and improvement plan approval, stage 5 – Recordation of plat. This procedure may be modified by the Town of San Tan Valley Community Development Director or Town Engineer based on unique or extraordinary circumstances.

18-3-2. *Stage 1 – Pre-Application Meeting.* This stage affords the subdivider the opportunity to obtain preliminary advice and assistance and informally provides a cursory review of the proposed subdivision with the appropriate departments prior to the expense of a Preliminary Plat preparation. It also affords the Town the opportunity to give preliminary guidance at a time when potential land development points of conflict can be most easily resolved, subsequent relations improved, official action simplified, and undue expense and delay saved by the subdivider. The Pre-Application meeting is required for all new subdivision applications unless waived by the Town of San Tan Valley Community Development Director or Town Engineer.

18-3-2-1. *Actions by the subdivider.* The subdivider shall request a meeting together with the community development department, public works staff, and engineering division and submit the required copies of a “Conceptual Plan” to the community development department prior to the pre-application meeting. The “Conceptual Plan” shall be professionally drawn to include, at a minimum, the following items: location map, drawing scale and north arrow, location of all adjacent public arterials and collector streets, acreage and land uses of all parcels, preliminary lot arrangement, preliminary proposal for street design and improvements, including proposed driveway locations and/or cross access easements, table of land use data (gross and net acres, percent of total acreage in each land use, underlying town zoning, proposed zoning, and tentative lot sizes), existing public and/or private water and sewer lines and services, and a concept proposal regarding water supply and sewage disposal.

18-3-2-2. *Actions by the Town.*

18-3-2-2-1. The Town shall discuss the proposal with the subdivider in general terms and provide advice on procedural steps, preliminary design and improvement standards, and

general platting requirements. Depending on the scope of the proposed development, the Town shall distribute the copies of the “Conceptual Plan” to the following agencies: Epcor, Town of Queen Creek Utilities Department, Pinal County, Town of Queen Creek, Maricopa or Pinal County Environmental Services Division, Maricopa or Pinal County Transportation Division, Maricopa or Pinal County Flood Control District, Rural Metro Fire Department, and/or the appropriate public school district(s).

18-3-2-2-2. The Town shall check the existing zoning of the proposed development and advise the subdivider if a zoning change or a General Plan Amendment is necessary or desirable; Review the proposal and its relationship to adjacent land uses and the General Plan’s goals and objectives; Determine the amount and type of parks, open space, and other public open space requirements for the area as determined by the Town of San Tan Valley General Plan; Determine what space needs shall be reserved or set aside with any special requirements for such site. Review for preliminary compliance with these Subdivision Ordinance regulations and any other applicable regulations; Determine if the size or the complexity of the proposed development would warrant the preparation of either a Master Planned Community (MPC), or a Planned Community District (PCD). If either an MPC or a PCD is required, such applications shall be processed prior to, or concurrent with, subsequent consideration of a Preliminary Plat. If a General Plan amendment is required such amendment must be obtained prior to additional processing of the application.

18-3-2-2-3. The Town will review the relationship of the property to existing major streets, utility systems and adjacent land uses, and give general/preliminary guidance on other design, planning and engineering issues.

18-3-2-2-4. The Town will provide the applicant with the necessary Town application forms, review the submittal requirements, review the neighborhood meeting requirement, and discuss tentative timetables for the project.

18-3-3. *Stage 2 – Preliminary Plat application.* The preliminary plat stage of land subdivision includes detailed planning, submittal, review, and approval of the Preliminary Plat. This stage is intended to resolve all major issues pertinent to the land development according to the Town’s policies, standards and requirements. To avoid delay in processing the application, the subdivider shall provide the Town with all information essential, as determined by the Town, regarding the character and general acceptability of the proposed development.

18-3-3-1. *Submittal Requirements.* The following information is required as part of the preliminary plat submittal and shall be shown graphically on the plans, by notes on the plans, or by supporting documentation supplied as part of the plan submittal, and may comprise several sheets showing various elements of required data. All mapped data for the same plat shall be drawn at the same standard engineering scale, adjusted to produce an overall drawing measuring 24" x 36" and in conformance with requirements contained in this Ordinance and by the Town Engineer and other reviewing agencies.

18-3-3-1-1. The required copies/sets of the proposed Preliminary Plat and other required supporting data prepared in accordance with requirements set forth in this Section shall be filed with the Town. Submission shall include fees as required in Section 18-2-3 of this Ordinance. Copies of the Preliminary Plat shall be reproduced in the form of blue line or black line prints on a white background.

18-3-3-1-2. If the proposed Preliminary Plat is within and/or part of an approved MPC or an approved PCD, copies of the approved site plan, typical floor plans and elevations, shall also be submitted as supporting documentation.

18-3-3-1-3. All subdivision submittals shall provide "Identification and Descriptive Data", "Existing Conditions Data", "Proposed Utility Methods" and "Environmental Assessment Report" information by graphic representation or note. The submittal shall be checked by the Town for completeness and assigned a case number; if incomplete as to those requirements set forth in this Section, the submittal shall be rejected and the subdivider notified within twenty (20) days of the date the application was received. It is the applicant's responsibility to be sure their submittal is complete.

18-3-3-1-4. If the developer is planning to plat the proposed development in phases, it must be so indicated on the preliminary plat when submitted for subdivision review. If the developer later decides to phase the development, it will be necessary to re-submit the new proposed phasing plan for a second review and approval.

18-3-3-1-5. A Preliminary Drainage Report. The Drainage Report shall contain the following information:

- (1) Delineation of the boundaries of on-site and off-site drainage areas.
- (2) Drainage pattern of all existing and proposed streets and building sites. Label by number the drainage concentration points and where inlets/outlets are to be located.
- (3) The Q-10 and Q-100 flow volumes at each critical concentration point. Justify all drainage runoff factors (C-factors) used in the computations for washes, channels and streets.
- (4) Runoff flows from adjacent properties onto the property in question must be described in detail. Drainage area, calculated peak flows, velocity and other pertinent runoff data must be presented for all concentration points, channels and washes. The runoff from areas outside the development may be realigned through the new development.
- (5) The retention volume required, and provided. Indicate the method for draining basins in thirty-six (36) hours, and who is responsible for maintenance.
- (6) The location of all drainage easements and tracts.
- (7) The pre and post development hydrology maps.

18-3-3-1-6. Final Drainage Report. In some instances, a Final Drainage Report may be required by the Town Engineer as part of the preliminary plat application due to the specific characteristics of the site.

18-3-3-1-7. A table containing statistics pertaining to the proposed development to include, but is not limited to, lot count, density, total acreage, percentage open space, acreage of right-of-way dedication, tract count, et cetera.

18-3-3-1-8. A Preliminary Landscape Plan for all off-site, open space, trails, transition area, and retention area landscaping. This preliminary plan should include cross-section and plant palette.

18-3-3-1-9. Subdivision fencing detail; depicting the type of fencing being proposed; including elevations, and general locations.

18-3-3-1-10. Conceptual “Residential Design Guidelines” or “Commercial Design Guidelines” which both narratively and graphically describe the character, site planning, architecture and landscaping that can be expected from the development.

18-3-3-1-11. Documentation that a site records check for potential cultural resources has been conducted in conjunction with the State Historic Preservation Office.

18-3-3-1-12. A Geotechnical Report, which shall also include an evaluation for the presence of subsidence fissures, if required by the Town Engineer, due to the presence of possible fissures in the area under review.

18-3-3-1-13. The preliminary water and sewer report (i.e., basis for design report)

18-3-3-1-14. A Traffic Impact Analysis (TIA) report and/or other traffic reports, as required by the Town Engineer due to the volume of traffic or other traffic related issues generated by the proposed project.

18-3-3-2. *Identification and Descriptive Data:*

18-3-3-2-1. The proposed name of the subdivision shall be clearly indicated and include the location by Section, Township and Range with reference by dimension and bearing to two (2) section or 1/4 section corners. Basis of bearings must be stated on the Preliminary Plat.

18-3-3-2-2. Name, address, phone number, and seal of an Arizona registered professional engineer or surveyor preparing the Preliminary Plat.

18-3-3-2-3. Name, address, and phone number of developer/subdivider, as well as the name, address and phone number of the property owner, if different than the developer/subdivider.

18-3-3-2-4. Scale, north point (pointing up or to the right), and date of preparation including any subsequent revision dates.

18-3-3-2-5. Location map which shall show the relationship of the proposed subdivision to arterial and collector streets.

18-3-3-2-6. A surveyed boundary, including basis of bearings, benchmarks, distances, lengths and total size of the proposed subdivision.

18-3-3-3. *Existing Conditions Data:*

18-3-3-3-1. Topography by contours and “spot elevations” on Maricopa or Pinal County datum and related to USC&GS survey datum shown on the same map as the proposed subdivision layout. Contour intervals shall be one (1) foot and shall be shown extending a minimum of fifty (50) feet from the external boundaries of the proposed development so to adequately reflect the character and drainage of the land.

18-3-3-3-2. Location of fences, existing structures, wells, streams, canals, irrigation materials, private ditches (open or covered), washes, lakes, fissures or other water features and characteristics that could have a bearing on the review.

18-3-3-3. Location, and direction of surface drainage flow, and extent of areas subject to flooding or storm runoff must be defined, whether such inundation is frequent, periodic, or occasional. The FEMA designated one-hundred (100) year floodplain limits shall also be shown, if they are shown on the current "FIRM" maps.

18-3-3-4. Location, widths and names of all private and public streets, utility rights-of-way of public record which may exist around the perimeter of the site boundaries, through or across the site. Show any permanent structures that are to remain, including water wells, irrigation ditches, and public or private utility lines (water, sewer, power poles) and cross access easements within, adjacent to or extending from the proposed development.

18-3-3-5. Show all driveways, streets and median openings along the entire site frontage or within three-hundred fifty (350) feet of any proposed driveway or street intersection on the opposite side of the perimeter streets.

18-3-3-6. Name, Book, and Page numbers of any recorded subdivision adjacent to or having common boundaries with the proposed development.

18-3-3-7. The existing base zone of the subject and adjacent parcel(s), the zoning case number, if any, and the case number of any approved MPC or approved PCD of which the proposed development is a part of if applicable.

18-3-3-8. The gross acreage of the subject parcel(s). Do not include previously dedicated rights-of-way in this figure.

18-3-3-9. Boundaries and dimensions of the parcel(s) to be subdivided shall be fully dimensioned.

18-3-3-10. The engineers' calculations for each tributary area of the runoff for ten (10) year and one-hundred (100) year frequency storms. These values are to be indicated along the boundary of the parcel for all points of drainage entering and exiting the property.

18-3-3-11. Show the location, type and recording data for all existing on-site easements and cross access easements or other prior dedications.

18-3-4. *Proposed Conditions Data:*

18-3-4-1. Subdivision street layout including: street design cross-sections, preliminary curve data, curve lengths, proposed street names based on existing projected alignments wherever possible, proposed Vehicular Non-Access Easements (VNAEs) and pedestrian connections to adjoining developments.

18-3-4-2. Typical lot dimensions (scaled), dimensions of all corner lots, lots on curvilinear sections of streets, and all lots where the number of sides exceed four (4). Each lot shall be numbered individually and the total number of lots or dwelling units provided. Where plats will consist of a number of units/phases, utilizing the same subdivision name, the lot numbering shall be consecutive through the total number of lots or units.

18-3-4-3. Designation of all land to be dedicated or reserved for open space, parks, drainage tracts, schools, well sites, or other public or private use with use indicated.

18-3-3-4-4. If multiple uses are planned (multiple residential, commercial, industrial, or office) such areas shall be clearly designated together with existing zoning classification and status of zoning change, if any.

18-3-3-4-5. Show minimum setback lines. Where there are lots with more than four (4) sides or whose shape may be considered atypical, show all setbacks.

18-3-3-4-6. Proposed storm water disposal system, preliminary calculations, layout of proposed drainage system and the direction of proposed street drainage. If retention or detention basins are used for active open space, calculations for those areas above the two (2) year – six (6) hour storm event are also required. The Town Engineer may also require a proposal to provide for the retention of storm water generated on the property, depending on the characteristics of the site.

Facilities for retention of storm water shall comply with the requirements of the Town of San Tan Valley Design and Engineering Standards. If deemed necessary by the Town Engineer due to the characteristics of the site, the drainage report shall be completed to the standards as outlined in the Final Drainage Report Checklist.

18-3-3-4-7. Compliance with the rules and requirements established by the Arizona Department of Environmental Quality (ADEQ) and the Pinal County Aquifer Protection Division relating to the provision of domestic water supply and sanitary sewerage disposal.

18-3-3-4-8. Delineation the transition area(s) and open space areas.

18-3-3-4-9. Show the location of any proposed cross access easements.

18-3-3-5. Proposed Utility Methods:

18-3-3-5-1. Sewage Disposal - A statement regarding the type of facilities proposed shall appear on the preliminary plat. Also show the preliminary sewer layout indicating line sizes and manhole and cleanout locations.

18-3-3-5-2. Water Supply - A statement as to the water supply for the development shall appear on Preliminary Plat accompanied by a 100-Year Certificate of Assured Water Supply issued by the Director of Water Resources. The preliminary layout of the water system shall be shown, indicating fire hydrants, valves, meter vaults, water line sizes and locations.

18-3-3-5-3. Electric Supply - A statement as to the electric supply for the development shall appear on the preliminary plat. Any necessary easements or potential pole relocations and any existing or proposed sixty-nine kilovolt (69kv) lines, or larger, shall be shown on the Preliminary Plat.

18-3-3-5-4. Gas Supply - A statement as to the gas supply for the development shall appear on the preliminary plat. Any necessary easements shall be shown on the preliminary plat.

18-3-3-5-5. Telephone Service - A statement as to the telephone service for the development shall appear on the Preliminary Plat. Any necessary easements shall be shown on the preliminary plat.

18-3-3-5-6. Garbage Service - A statement as to the garbage service for the development shall appear on the Preliminary Plat.

18-3-3-5-7. Cable Television - If applicable, a statement as to the cable television service for the development shall appear on the Preliminary Plat.

18-3-3-5-8. Internet/Telecom Service - A statement as to the internet/telecom service for the development shall appear on the Preliminary Plat. Any necessary easements shall be shown on the Preliminary Plat.

18-3-3-6. *Environmental Assessment Data:* The purpose of the Environmental Site Assessment is to provide a written and graphic analysis of the environmental characteristics of the site so that the Town can evaluate the future use of the site. A Phase One Environmental Report shall be submitted by the applicant to identify any hazardous waste site within the proposed subdivision. Environmental site assessments are required for all preliminary plat applications. This study shall include written reports and maps that provide the information outlined below:

18-3-3-6-1. *The Phase One Environmental Report shall:*

- (1) Describe the site and identify uses or activities which might indicate the presence of disposed hazardous substances;
- (2) Include a review of readily available information, including but not limited to, engineering, regulatory, and historical records of the site, interviews with the current and any past owners of the site, present and past tenants and neighbors;
- (3) Include a review of the regional geology and hydrology of the site and the site's vicinity, including, but not limited to, available records for groundwater contamination both up/and down gradient from the site, obtainable reports of compliance violations and/or containment discharges in the site's vicinity;
- (4) Location of any known environmentally adverse conditions within one mile of the property, including earth fissures; and,
- (5) Reference the data, records and source of information.

18-3-3-6-2. *The Applicant's Consultant shall:*

- (1) Manually-observe the site surface closely for evidence of potential contamination such as soil stabilizing, discarded chemical containers, vegetative distress;
- (2) Interview the tenants on or adjacent to the site with respect to their use of hazardous substances on the site;
- (3) Investigate the registration status of any existing underground storage tanks or drywells on or adjacent to the site;
- (4) Identify any adverse environmental impacts; and,
- (5) Research of the site and public records and reports to identify and locate any geological subsidence fissures located on, or within one mile of, the site.

18-3-4. *Stage 3 – Preliminary Plat Approval.* The preliminary plat approval stage involves the re-submission of the preliminary plat to address review comments created during the preliminary plat application process. Included in this stage is the review of the resubmitted plans, reports, and required studies and acceptance of the Preliminary Plat. The subdivider shall provide the Town with all information essential to determine the character and general acceptability of the proposed development. The following submittal requirements pertain only to conventional plats for which rezoning is/was not a condition of approval.

Consult with the community development department for the submittal requirements, time requirements and rezoning procedures for those subdivisions involving rezoning, PCD, MPC, and other land use exceptions.

18-3-4-1. *Preliminary Plat Review:*

18-3-4-1-1. *Zoning.* The subdivision shall be designed to meet the specific requirements for the zoning district within which it is located. However, in the event that rezoning is necessary for the preliminary plat to conform to the Zoning District regulations, or if a MPC or PCD approval is sought, said action shall be initiated concurrently with the preliminary plat by the property owner or authorized agent. In any event, any such zoning amendment required in relation to the Preliminary Plat shall have been adopted prior to a preliminary plat approval.

18-3-4-1-2. *Planning.* The subdivision shall be designed to comply with the Design Principles of this Ordinance and the goals and objectives of the Town of San Tan Valley General Plan. In the event that an amendment to the General Plan is necessary for the preliminary plat to conform to the specific land use, circulation, or open space elements, said amendment(s) required in relation to the preliminary plat shall have been adopted prior to a preliminary plat approval.

18-3-4-1-3. *Utilities and Services.* As a prerequisite of preliminary plat approval by the Town, the subdivider shall have reviewed tentative concepts and possible requirements with the County Health Department, the Town Engineer, the Queen Creek Water Company, Epcor, or private water company servicing the development, Salt River Project, U.S. West Communications, the cable television company(s) servicing the development, Southwest Gas and Rural Metro Fire Company for general approval of the preliminary plat design.

18-3-4-2. *Preliminary Plat Approval:*

18-3-4-2-1. The Community Development Director shall consider the preliminary plat and recommended conditions, if satisfied that all objectives have been met, the Community Development Director may approve the Preliminary Plat.

18-3-4-2-2. If the Community Development Director finds that all of the objectives and requirements of this Ordinance have not been met, the Community Development Director may recommend revisions to the Preliminary Plat or deny the Preliminary Plat request. Resubmittals due to revisions, for the same parcel or any part thereof, shall follow the resubmittal procedure.

18-3-4-2-3. If the plat is generally acceptable, but requires minor revisions, the Community Development Director may conditionally approve the Preliminary Plat and the required revisions noted in the preliminary plat approval letter. At the direction of the Community Development Director, the plat may be approved subject to the revisions in accordance with the stated conditions.

18-3-4-2-4. If all or certain identified and significant objectives and requirements of this Ordinance or General Plan have not been met, the Community Development Director will have grounds to deny the preliminary plat.

18-3-4-3. *Significance of Preliminary Approval.* Preliminary plat approval constitutes authorization for the subdivider to submit the final plat and the improvement plans and specifications for the proposed project. Preliminary approval is based on the following terms:

18-3-4-3-1. *Subject to the Basic Approval.* The basic conditions under which preliminary approval of the preliminary plat is granted will not be substantially changed prior to the expiration date.

18-3-4-3-2 *Two (2) Year Approval with Extension.* Approval of a preliminary plat is valid for a period of two years from the date of Community Development Director approval. A request can be made for a single, two (2) year extension of the original preliminary plat approval. An extension of the preliminary plat approval may be granted by the Community Development Director upon receipt of a letter from the subdivider stating the reason for an extension prior to the expiration date. Requests for extensions are predicated on the plat continuing to meet current Town development standards, payment of a continuance fee and the submission of an updated assurance of construction. Should the requested extension not be approved by the Community Development Director, the applicant may appeal this determination to the Town Council.

18-3-4-3-3 *No Authority to Record.* Preliminary approval, in itself, does not assure final acceptance of streets for dedication nor continuation of existing zoning requirements for the development or its environs nor constitute authorization to record the plat.

18-3-5. *Stage 4 – Final Plat and Improvement Plan Approval.* This stage includes the final design of the subdivision, engineering of the public improvements, and submittal by the subdivider of the final plat, final reports, and plans for all of the required subdivision improvements, to the Town, the County Departments, and the utility companies for approval; including the submittal of the final plat for review and action by the Town. A final plat application shall not be accepted for review or approval if the associated preliminary plat governing the land proposed for subdivision has expired. The final plat must remain consistent with a valid and active preliminary plat approval, and expiration of the preliminary plat shall render any subsequent final plat submittal void unless a new preliminary plat approval has been obtained in accordance with the requirements of this Ordinance.

18-3-5-1. Submittal Requirements

18-3-5-1-1. Final Plat Preparation

18-3-5-1-1-1. The final plat shall be presented in accordance with requirements set forth in this Section, and shall substantially conform to the approved preliminary plat and applicable zoning stipulations.

18-3-5-1-1-2. The subdivider shall file with the Town full size (24"x36") blue or black line copies of the final plat along with copies of the approved MPC or PCD (if applicable) for review by the Town, together with a letter of transmittal, indicating "Pre-Final Review Requested" the Town shall review the plat for substantial conformity to the approved preliminary plat and refer copies of the pre-final submittal to the reviewing agencies who shall make known their recommendations in writing.

18-3-5-1-1-3. The subdivider shall file with the Town full size "mylars" (4 mil thickness), full size blue or black line copies, one 8 1/2"x11" copy thereof, of the final plat. The final plat shall be drawn in black ink on polyester "mylar",

measuring exactly 24" x 36" with a left hand margin of 2 inches and be drawn to an accurate engineering scale from an accurate survey. The applicant shall also submit a computerized drawing of the final plat in a file format required by the Town of San Tan Valley.

18-3-5-1-2. *Improvement Plans.* Improvement plans, reports and other documents, shall be prepared and submitted in accordance with the procedures and standards established within the Town of San Tan Valley Engineering and Design Standards and Section 18-3-4 of this Ordinance. If the submittal is complete, the Town shall distribute sets of the plans to the appropriate reviewing departments, agencies and utility companies who shall make known their recommendations in writing.

18-3-5-1-3. *Deed Restrictions.* The subdivision covenants, conditions and restrictions (CC&R's) shall be submitted to the Town for review as part of the final plat and improvement plan submittal package. These CC&R's shall include provisions to govern the disbanding of the Home Owners Association (HOA) and the method of assurance that the proposed streets, landscaping, storm drainage facilities and other assets of the Association will be maintained in perpetuity.

18-3-5-1-4. *Title Report.* The subdivider shall, at the time of filing the application(s) for the final plat and improvement plans, submit an American Land Title Association (A.L.T.A.) Title Report completed within the previous sixty (60) days, certifying that the applicant has title for all of the land being subdivided.

18-3-5-1-5. *Filing Fees.* The subdivider shall, at the time of filing the application(s) for the final plat and improvement plans, pay the Town the final plat application fee, improvement plan review fee, and the recordation fee, in accordance with Section 18-2-3 of this Ordinance, which are established by the Town Council.

18-3-5-2. *Identification Data.* The following identification data shall be required as a part of the final plat submittal.

- (1) A title which includes the name of the subdivision and its location by number of Section, Township, Range, and County.
- (2) Name, address and seal of the Arizona-Registered Land Surveyor preparing the final plat.
- (3) Scale, north arrow, and date of final plat preparation.
- (4) The name, address and telephone number of the property owner.
- (5) Name, address and seal of the Arizona registered civil engineer responsible for the engineering of the proposed subdivision.

18-3-5-3. *Survey Data.* The following survey data shall be required as a part of the final plat submittal.

18-3-5-3-1. The corners of the plat shall be located on the monument lines of abutting streets; boundaries of the parcel(s) to be subdivided fully balanced and closed, showing all bearings and distances, determined by an accurate survey in the field. The surveyor of record shall also provide a copy of the computer closure, properly stamped and signed showing registration number. All dimensions shall be expressed in feet and decimals thereof.

18-3-5-3-2. Any excepted parcel(s) within or surrounded by the plat boundaries shall be noted as "Not a Part of This Subdivision" and show all bearings and distances of the excepted parcel as determined by an accurate survey in the field. All dimensions shall be expressed in feet and decimals thereof.

18-3-5-3-3. Location and description of cardinal points to which all dimensions, angles, bearings and similar data on the plat shall be referenced. Each of two separate corners of the subdivision traverse shall be tied by course and distance to separate section corners or quarter-section corners. All subdivision survey data including boundary bearings and distances and lot closure and area calculations shall be submitted to the Town by an Arizona registered Land Surveyor.

18-3-5-3-4. Location of all physical encroachments upon the boundaries of the tract.

18-3-5-3-5. Total subdivision gross acres, benchmark information and basis of bearing information.

18-3-5-3-6. Total number of lots, tracts and parcels, and the size, in square feet, of each lot, tract or parcel. The size of lots, tracts or parcels greater than ten acres in size may be expressed in acres.

18-3-5-4. *Descriptive Data.* The following descriptive data shall be required as part of all final plat submittals.

18-3-5-4-1. Names, centerlines, right-of-way lines, courses, length and width of all public streets, alleys, pedestrian ways, and utility easements; radii, point of tangency, curve lengths, and central angles of all curvilinear streets, and alleys, radii of all rounded street line intersections.

18-3-5-4-2. All drainage easements and/or tracts shall be shown on all residential plats. No structure shall be allowed in these easements that will obstruct drainage. All major drainage ways shall be dedicated drainage easements, right-of-way or tracts as determined by the Town Engineer. Commercial and industrial plats which provide self-contained and privately owned underground drainage systems and structures shall be required to provide private drainage easements within their sites. Public drainage easements shall be required for all retention basins which accept drainage from a public street. Any channel or wash within a residential or commercial project site that has a Q100 storm event flow of 100 CFS or greater shall be contained within a drainage easement designated as a tract.

18-3-5-4-3. All lots shall be numbered by consecutive numbers throughout the plat. All "tracts" and "parcels" shall be designated, lettered, or named and clearly dimensioned; parcels which are not part of the subdivision shall be so designated. Ownership and maintenance responsibility for common open space areas and tracts shall be indicated on the plat.

18-3-5-4-4. Location, dimensions, bearings, radii, arcs, and central angles of all sites to be dedicated to the public with the use clearly indicated.

18-3-5-4-5. Location of all adjoining subdivisions with name, date, book, and page number of recordation noted, or if unrecorded, so noted.

18-3-5-4-6. Any proposed private deed restrictions to be imposed upon the plat or any part or parts thereof pertaining to the intended use of the land, and to be recognized by the Town, shall be noted on the plat.

18-3-5-4-7. All existing private easements within, on, or over the plat shall be indicated, dimensioned, and noted as to their use. The location and widths of all easements for right-of-way provided for public services, utilities, or drainage, and any limitations of the easements.

18-3-5-4-7-1. The following notation shall be placed on all final plats that provide drainage easements: "No structure of any kind shall be constructed, nor any vegetation be planted or allowed to grow within on or over any drainage easement, which would obstruct or divert the flow of storm water. The Town may, if it so desires, construct and/or maintain drainage facilities on or under the land of the easement".

18-3-5-5. *Dedication and Acknowledgement.*

18-3-5-5-1. *Dedication.* There shall be required as part of the final plat submittal a statement of dedication of all streets, alleys, drainage ways and drainage detention/retention basins, pedestrian/bicycle ways, equestrian trails and easements, and other easements for public use, including sanitation, utility, fire and other emergency related vehicles, executed by the person or persons holding title of record, by persons holding titles as vendees under land contract, by the spouse(s) of said parties, lien holders and all other parties having an interest in the property . If lands dedicated are liened, the lien holder shall also sign the plat. Dedication shall include a written location by Section, Township and Range, of the tract. If the plat contains private streets, a public easement shall be reserved which shall include the right to install and maintain utilities in any approved private street, including refuse collection, fire and other emergency services.

18-3-5-5-2. *Acknowledgement of Dedication.* Execution of dedication shall be acknowledged and certified by a Notary Public.

18-3-5-6. Final Plat Approval:

18-3-5-6-1. The Town Engineer may approve improvement plans, final plats, maps of dedication, right-of-way abandonments, public easements, all related engineering documents and reports and other information upon completion and conformance with all applicable Codes, ordinances, and conditions of approval.

18-3-5-6-2. The Engineering Division shall retain the recording copy until the Town Engineer certifies that the improvement plans have been approved; a computer closure of the plat has been received; the Engineer's estimated cost of said improvements have been approved by the Town Engineer; the subdivision improvement construction assurances are in the form and amount to the satisfaction of the Town Community Development Director and that any drainage or other restrictive covenants have been signed, notarized and received from the subdivider.

18-3-5-6-3. Upon receipt of the recording fees the Town shall then cause the final plat to be recorded in the Office of the County Recorder of Pinal County.

18-3-5-6-4. Approval of subdivision improvement plans by the Town Engineer shall expire one (1) year from the date of approval unless a right-of-way encroachment permit has been issued, substantial construction activity has commenced, or an extension of said permit has been granted by the Town. Upon expiration, the developer shall resubmit the improvement plans to the Town for review and re-approval prior to commencement of construction activities. As part of the re-approval process, the Town Engineer may require revisions to the plans to ensure compliance with current Town standards, specifications, policies, and applicable regulations in effect at the time of re-submittal. No right-of-way encroachment permit or other construction-related permit shall be issued for any project with expired improvement plans until such plans have been resubmitted and reapproved by the Town.

18-3-5-7. *Required Certification, Signatures, and Notes.* Multiple notations are required to appear on a final plat. The notations that are standard on every final plat include, but are not limited to the following:

18-3-5-7-1. Assurance Statement as Follows:

Assurance Statement:

Assurance in the form of a cash, performance or subdivision bond or irrevocable letter of credit in an amount of “\$ _____” has been deposited with the Town Engineer to guarantee construction of the required subdivision improvements.

18-3-5-7-2. Conveyance and Dedication Statement as Follows:

Conveyance and Dedication:

Know all men by these presents that (owner's name), as owner, have subdivided (or re-subdivided) under the name of (name of subdivision), Section, Township and Range) of the Gila and Salt River Base and Meridian, Pinal County, Arizona as shown platted hereon, and hereby publishes this plat as and for the plat of said (subdivision name), and hereby declares that said plat sets forth the location and gives the dimensions of all lots, easements, tracts and streets constituting the same, and that each lot, tract and street shall be known by the number, letter and name given each respectively, and that (owner's name), as owner, hereby dedicates to the public for use as such the streets and hereby grants to the public the drainage and public utility easements as shown on said plat. In witness (owner's name), as owner, has hereunto caused its name to be signed and the same to be attested by the signature of (owner or designated signatory and title)

By: _____ Date:
Owner's Name and Title

18-3-5-7-3. Notary Acknowledgment Statement as Follows:

Notary Acknowledgment:

State of Arizona)

County of Maricopa/Pinal)

On this, the _____ day of _____, (year), before me the undersigned (title) personally appeared _____ (Name) who acknowledges that he/she executed the foregoing instrument for the purposes contained therein.

In witness whereof I hereunto set my hand and official seal

Notary Public

My Commission Expires:

18-3-5-7-4. Town Approval Signatures Blocks as Follows:

Town Approvals:

This plat was approved as to form by the Town Engineer and the Town Community Development Director.

By: _____ date: _____
Town Engineer

By: _____ date: _____
Community Development Director

18-3-5-7-5. Surveyor's Certification

Surveyor's Certification:

This is to certify the survey and subdivision premises described and platted hereon were made under my direction during the month of _____, (year) that the plat is correct and accurate, that the monuments shown hereon have been located or established as described and lot corners shall be permanently set.

(Surveyor's name and registration number) (Stamp)

(Surveyor's address)

18-3-5-7-6. Certificate of Assured Water Supply as follows for all plats. This requirement may be waived by the Town Engineer for commercial plats based on site specific conditions or other information related to the project.

Assured Water Supply:

The Arizona Department of Water Resources has granted a Certificate of Assured Water Supply, DWR File No. _____

18-3-5-7-7. Deed Restriction Information as Follows:

Covenants, Codes and Restrictions for (name of subdivision) San Tan Valley, Arizona are recorded in (document recording number) , (county name) County Records.

18-3-6. *Replats*

18-3-6-1. Any plat involving either of the following two (2) conditions shall be processed in accordance with Section 18-3-5 of this Ordinance as provided in Section 18-3-2 of this Ordinance.

18-3-6-1-1. Dedication of land for a public street or any off-site public improvements. Dedications shall comply with all procedures set forth in Section 18-3-5-5 of this Ordinance.

18-3-6-1-2. Abandonment of a street, alley or public utility easement or other recorded easement in a previously recorded subdivision. Replatting of the affected area, if required, shall be processed concurrently with the abandonment and recorded immediately subsequent to the recordation of the abandonment.

18-3-6-2. The merger of two lots through the use of a lot tie or lot combination shall comply with the requirements and procedures set forth in this Section, as well as the applicable sections of the Town of San Tan Valley Zoning Code and the Town of San Tan Valley Engineering and Design Standards.

18-3-6-3. Division of a single lot into two separate parcels, shall comply with the requirements set forth in this Code and shall be processed as a “minor land division”.

18-3-6-4. The Community Development Director, Town Engineer, or their designee may approve replats, minor land divisions, lot ties, lot line adjustments and all related engineering documents and reports and other information upon completion and conformance with all applicable Codes, ordinances, and conditions of approval.

18-3-7. *Abandonment of a Recorded Plat & Right-of-way Abandonment.*

18-3-7-1. The abandonment of all or part of a recorded subdivision approved pursuant to the laws of the State of Arizona may be initiated by written petition to the Community Development Director. The petition shall be signed by all owners of real property in said subdivision requesting abandonment of all streets, alleys and easements within said subdivision and giving the legal description and recording information thereof.

18-3-7-2. Applications for the abandonment of a recorded subdivision are filed with the Town and referred for recommendation to the appropriate Town staff and utility companies. After Town Engineer approval of the abandonment of any streets, alleys and easements within the subdivision, and after Town Council approval of the abandonment resolution for the recorded subdivision, and after the abandonment resolutions are recorded with the County Recorder's Office, the subdivision is removed from the official maps.

18-3-7-3. Abandonment of public right-of-way and public use easements may be initiated by submission of a right-of-way or easement abandonment application signed by all property owners adjacent to, or whose land includes, the public way or easement proposed for abandonment to the Town Engineer. The Town Engineer will consult with appropriate Town and utility company staff to evaluate the effect of the abandonment on present and future transit and utility systems planned for the area. After Town Engineer approval of the abandonment of any street, alley or other public right-of-way or public use easement, the abandonment resolution shall be recorded with the County Recorder's Office, and the right-of-way or use easement abandoned.

18-3-8. *Condominium Developments.*

18-3-8-1. The application requirements, processing and approval regulations contained within Arizona Revised Statutes § 33-1219 shall apply to all condominium developments.

18-3-8-2. Condominium subdivisions shall also comply with the provisions of this Ordinance and The Town of San Tan Valley Zoning Ordinance. The location of all buildings shown on the plat and the manner in which the land is to be divided in conveying the condominium shall be clearly defined and a plat completed as would be done for any other subdivision of property.

18-3-8-3. In order for the condominium subdivision application to be considered complete, the applicant shall provide to the Town any plans, specifications, reports and/or analysis needed to show that the proposed condominium subdivision is in compliance with this Ordinance and The Town of San Tan Valley Zoning Ordinance, including but not limited to grading plans, site plans, floor plans, elevations, and landscape plans, drainage reports and traffic impact analyses.

Section 18-4 SUBDIVISION DESIGN STANDARDS AND PRINCIPLES.

18-4-1. *Purpose and Design Principles.*

18-4-1-1. The purpose of the Subdivision Ordinance is to create functional, attractive developments, minimize adverse impacts on the community, and to ensure that future subdivisions will conform to the community's expectations. To accommodate this purpose, all subdivision plats shall conform to the following standards which are designed to result in a well-planned community.

18-4-1-2. The Design Standard Section of the Subdivision Ordinance is to provide the development community with a consistent set of standards to guide the physical development and the visual quality of the community. The standards stem from six main design principles which are policy statements and the basis for the design standards.

18-4-1-3. *Design Principles:*

- (1) To reflect, maintain, and enhance the friendly small town rural characteristics of San Tan Valley and its surroundings.
- (2) To create a distinctive, high-quality environment.
- (3) To encourage the design of sustainable development
- (4) To provide the public utility infrastructure needed to accommodate new neighborhoods and structures with the utility systems required to accommodate the needs of their future occupants
- (5) To promote connectivity of people, neighborhoods, community facilities and services, and the open space network of the community via the equestrian, bicycle, and pedestrian trail system.
- (6) To encourage traditional neighborhoods and residential developments that vary in density, lot sizes, housing type, architectural style, and provide open space.
- (7) To provide and maintain a functional and efficient traffic circulation system.

18-4-2. *General Requirements.*

18-4-2-1. Every subdivision shall conform to the goals, objectives, and policies of the Town of San Tan Valley General Plan, the Town of San Tan Valley Zoning Ordinance, other ordinances and regulations of the town, and to the *Arizona Revised Statutes*. In the event two (2) or more requirements conflict, the most restrictive requirement shall apply.

18-4-2-2. Where the area proposed for development contains all or part of a park, a school, flood control facility, or other public site, as shown on the General Plan or as recommended by the Town Council, such site shall be reserved for acquisition by the appropriate agency within a specified period of time as prescribed in A.R.S. §9-463.01 (D) and (E). An agreement should be reached

between the subdivider and the appropriate public agency regarding time, method, and cost of such acquisition. Dedication of such sites by the developer may be considered by the Town.

18-4-2-3. Every subdivision and new development shall also meet the adequate public facilities requirements of the Town as described in the Town of San Tan Valley Zoning Ordinance. All new subdivisions at the time of rezoning shall be subject to the terms and conditions of this Section.

18-4-3. *Subdivision Site Design Standards.*

18-4-3-1. General requirements. Every residential, commercial and industrial subdivision shall reflect:

18-4-3-1-1. The development takes into consideration the General Plan and any area specific plans approved for the site, as well as the other regulations controlling the development of the subject land.

18-4-3-1-2. The development of the site shall be based, among other criteria, on an environmental site assessment. To the maximum extent practicable development and other disturbance activities shall be located: 1) To preserve the natural features of the site (such as significant vegetation and rock outcroppings), 2) To avoid areas of environmental sensitivity (such as slopes in excess of thirty percent [30%]), 3) To avoid undisturbed wash channels and to minimize disturbances and alterations of the natural features; and 4) To avoid disturbing significant native vegetation.

18-4-3-1-3. The following specific areas shall be preserved as undeveloped open space, to the extent consistent with the reasonable utilization of land, and in accordance with applicable state and local regulations: 1) Land in a floodplain, as defined by state and local regulations, and; 2) Habitat of endangered wildlife, as identified on federal and state lists, and; 3) Land areas that have been identified to include subsidence fissures.

18-4-3-1-4. The development shall be designed to: 1) Avoid adversely affecting ground water and aquifer recharge; 2) Limit cut and fill grading; 3) Avoid unnecessary impervious cover; 4) Prevent flooding; 5) Provide adequate access to lots and sites; 6) Mitigate adverse effects of noise, traffic, drainage and utilities on neighboring properties; and 7) Conform to the Storm Water Pollution Protection Plan.

18-4-3-2. *Residential Subdivision General Requirements.*

18-4-3-2-1. Regardless of the density of the individual developments, single family residential subdivisions, and condominium or multi-family subdivisions may be required to provide open space, provide transition areas, provide landscaping, and provide physical connections to adjacent neighborhoods and to the community open space network and trail system.

18-4-3-2-2. Those portions of the community open space network and/or trail system adjacent to, or within, the area proposed for development shall be incorporated by that development. Construction of these open spaces and/or trails shall be the responsibility of the subdivider/developer and shall be part of the subdivision improvements. These trails shall be part of a "tract" and maintained by a Homeowners/Property Owners Association.

18-4-3-2-3. The development, through the Planned Community District (PCD) process as described in The Town of San Tan Valley Zoning Ordinance, upon the requisite findings, may vary lot areas and dimensions, yards, and setbacks from the standards specified in the

zoning district(s), in effect over the area considered for subdivision provided that such variations are approved by the Town Council prior to or in conjunction with the preliminary plat approval for the subdivision.

18-4-3-2-4. Landscaped areas shall be maintained between rear and side street lot lines which adjoin Arterial and Major Collector rights-of-way to a depth equal to the streetside yard setback required by the zoning district of the subdivision, or thirty (30) feet, whichever is greater.

18-4-3-3. *Commercial and Industrial Subdivisions.* Commercial and industrial subdivisions shall be designed according to the same principles governing the design of residential developments; namely, buildings shall be located according to topography; factors such as drainage, traffic, noise, odor, and surrounding land uses considered in siting buildings; sufficient access shall be provided; adverse impacts buffered; with open space and landscaping provided.

18-4-4. *Open Space.* Requirements for open space shall be in accordance with the zoning district as described in the Town of San Tan Valley Zoning Ordinance or as described in the approved Planned Community District (PCD) or Master Planned Community (MPC).

18-4-5. *Access Requirements.*

18-4-5-1. Every lot shall have frontage onto a fully-improved, publicly- dedicated and accepted right-of-way that meets the Town of San Tan Valley street standards as shown in the Town of San Tan Valley Engineering and Design Standards. Private streets that meet Town of San Tan Valley street standards may also provide adequate frontage for access.

18-4-5-2. Rural and Estate subdivisions shall, where possible, front onto and take access from collector and local streets. Where arterial access is required to accommodate new subdivisions, the need for frontage roads will be evaluated by the Town Engineer and the Town Traffic Engineer.

18-4-5-3. Suburban and Urban type developments shall be designed to either: Provide lots that front to local streets; or utilize a frontage road and provide lots that face and take access from the frontage road.

18-4-5-4. Pathways, which include pedestrian, bicycle and equestrian ways, or access to schools, playgrounds, shopping centers, transportation and other community facilities shall have a minimum right-of-way width of twenty (20) feet for circulation. Pedestrian ways may be used for utility purposes.

18-4-5-5. For Suburban and Urban developments a non-buildable parcel, easement or additional right-of-way equal to the street side setback of the Zoning District, or thirty (30) feet, whichever is greater, shall be platted between any street side or rear-yard property line of any developable lot and the right-of-way line of any Major Collector or Arterial Street.

18-4-5-6. Commercial and industrial lots which are developed and platted as part of a Planned Community District (PCD) which designates and incorporates private driveways or roadways as tracts on the subdivision plat and in the project Covenants, Conditions and Restrictions (CC&R's) will be deemed to have access to a public right-of-way.

18-4-5-7. *Number of Access Points.* A minimum of two (2) permanent access points shall be provided for ingress and egress from the subdivision to existing public roads. These two (2) points of access cannot be onto the same roadway such that the proposed subdivision would still only have one way in and one way out for lot owners and emergency services. The purpose of this standard is

to provide an alternate means to access the subdivision to promote safety, improve traffic flow & distribution, support future development & growth, and to provision for future roadway maintenance needs. This requirement shall apply for the subdivisions as a whole as well as for each unit, parcel, or phase of the development.

18-4-5-7-1. *Waivers.* Where circumstances exist that this requirement would create a hardship due to circumstances beyond the control of the landowner/developer, or where the subdivision has fifty (50) lots or less, a waiver process with the Town Engineer may be initiated. In consideration of the waiver request, the land owner/developer/applicant must evaluate all options for secondary access and make a concerted effort to obtain land rights and/or approvals to effectuate this. Approval of adequate access by the Town Engineer shall be a condition of approval of the plat. Any decision of the Town Engineer with regard to access points as described in this Section may be appealed to the Town Council.

18-4-6. *Street Location and Arrangement.*

18-4-6-1. The road system shall be designed to permit the safe, efficient, and orderly movement of traffic and pedestrians; meet, but not exceed the needs of present and future population served; have a simple and logical pattern with a minimum number of cul- de-sacs; respect natural features and topography, and; present an attractive streetscape.

18-4-6-2. In residential subdivisions, the road system shall be designed to serve the needs of the neighborhood, discourage local street use by through traffic, and provide connectivity to adjacent developments and unsubdivided land as appropriate.

18-4-6-3. The development of roadways built to Arterial or Major Collector street standards shall be required where needed as recommended by the Town Engineer.

18-4-6-4. Street layout shall provide for the continuation of such streets as the General Plan or Town Engineer may designate. Local streets shall be designed to discourage their use by through traffic, although connectivity may be required for pedestrian access.

18-4-6-5. Where a proposed subdivision abuts or contains an existing or proposed Arterial or Major Collector right-of-way, non-buildable landscaped parcels or tracts equaling at least the depth of the minimum street side-yard setback of the base Zoning District, or thirty (30) feet, whichever is greater, shall be platted with non-vehicular access easements along the Arterial or Major Collector right-of-way.

18-4-6-6. Streets shall be so arranged in relation to existing topography as to produce desirable lots of maximum utility, streets of reasonable gradient, and the facilitation of adequate drainage.

18-4-6-7. Where private streets are proposed, such streets shall be constructed to Town public street specifications and shall be placed into specific "street tracts" of land. Statements shall be contained on the plat and in the Deed Restrictions, the Homeowners Association By-laws and the Covenants, Conditions and Restrictions (CCR's) that those streets are declared private subject to an easement authorizing use by emergency and public service vehicles, and remain the permanent responsibility of the Homeowners Association (HOA). If at any time the streets are proposed to be dedicated to, and accepted by the Town, the streets must first have been designed and constructed to standards specified by the Town for public streets, and demonstrate they have been maintained to the current public street maintenance standards, as determined by the Public Works Director.

18-4-5-8. Alleys may be required in commercial and industrial subdivisions as approved by the Town Council. Where needed, they shall have a twenty-four (24) foot minimum width.

18-4-7. *Street Design.*

18-4-7-1. Design of Streets: The design of streets shall conform to standards established by this Ordinance and the Town of San Tan Valley Engineering and Design Standards.

18-4-7-2. Private Streets: Private streets shall conform to above stated design standards unless otherwise approved by the Town Council. Private streets shall be placed within their own parcel or tract of land and shall be maintained by the Home Owner's Association (HOA) or Condominium Association.

18-4-7-3. Cul-de-sac Streets: Cul-de-sac streets shall be constructed as specified in the Town of San Tan Valley Engineering and Design Standards. The Town Engineer may recommend an equally functional design for vehicular turning and backing areas where extreme conditions justify. The maximum length of cul-de-sac streets shall be five-hundred (500) feet or twenty (20) homes and one-thousand (1,000) feet or forty (40) homes if all homes are fire sprinkled, as measured from the intersection of right-of-way lines to the extreme depth of the turning circle along the street centerline. An exception may be made where topography justifies but shall not be made merely because the subdivision has restrictive boundary dimensions, wherein provision should be made for extension of street pattern to the adjoining unplatted parcel and a temporary turnaround installed.

18-4-7-4. Dead-end Streets: Dead-end streets will not be approved except in locations recommended by the Town Engineering Manager as necessary to future development of adjacent lands. In these cases, a temporary cul-de-sac or vehicle turn around must be provided as described in the Town of San Tan Valley Engineering and Design Standards.

18-4-7-5. Private Access and Driveways: Access from private property to any dedicated street shall be constructed in accordance with permits issued by the Town. The width of driveway at the property line shall be a minimum of twelve (12) feet and a maximum of forty (40) feet. The width will depend on the access to be served i.e., residential or commercial/industrial uses. Minimum driveway spacing shall be as defined in the Town of San Tan Valley Engineering and Design Standards. Exceptions to this requirement may be approved by the Town Engineer based on unusual site constraints.

18-4-7-6. *Street Intersections.*

18-4-7-6-1. Streets intersecting an arterial or collector street shall not vary from ninety (90) degrees by more than ten (10) degrees. Intersections of all other streets shall not vary from ninety (90) degrees by more than fifteen (15) degrees.

18-4-7-6-2. Local streets intersecting collector shall have a tangent section of centerline at least one-hundred fifty (150) feet in length measured from the right-of-way line of the major street, except that no such tangent is required when local street curve has a centerline radius greater than four-hundred (400) feet with the center located on the major street right-of-way line. Where topographic conditions make necessary other treatment to secure the best overall design and vehicular sight visibility, these standards may be varied by the Town Engineer.

18-4-7-6-3. Street intersections with more than four legs are not allowed.

18-4-7-6-4. Street jogs with centerline offsets less than one hundred and ten (110) feet shall not be allowed.

18-4-7-6-5. Minimum intersection spacing shall be as defined in the Town of San Tan Valley Engineering and Design Standards

18-4-7-6-6. A thirty-three (33) foot by thirty-three (33) foot triangle shall be provided at each property line corner of the intersection involving two collector streets, two arterial streets or arterial and collector streets. A twenty-five (25) foot by twenty-five (25) foot triangle shall be provided at each property line corner of the intersection of two local streets and local streets to collector or arterial street.

18-4-7-6-7. All street intersections shall be designed to meet the minimum sight distance visibility requirement standards for horizontal curvature, vertical curvature and other obstructions as defined in the current edition of the American Association of State Highway and Transportation Officials (AASHTO) manual.

18-4-7-6-8. No berms, walls, monuments, signs or landscaping over twenty-four (24) inches in height as measured from the top of the curb, shall be permitted within the intersection sight triangle, or stopping distance area, as defined in the Current Edition of A Policy on Geometric Design of Highways and Streets, published by the American Association of State Highway and Transportation Officials (AASHTO).

18-4-7-6-9. Exceptions to these requirements may be approved by the Town Engineer based on terrain or other site-specific conditions.

18-4-7-7. Street Pavement and Structural Design.

18-4-7-7-1. The traveled way of all streets shall be surfaced with asphaltic concrete. The placing of asphaltic concrete shall be accomplished under generally accepted construction techniques provided in Section 321 of the MAG Standard and as shown in the Town of San Tan Valley Engineering and Design Standards. Alternative pavement standards may be approved by the Town Engineer, based on specific site conditions.

18-4-7-7-2. The thickness of base and surface treatment for all streets shall be based on soil analysis and pavement thickness design as recommended by the developer's geotechnical engineers soils report and as provided in the Town of San Tan Valley Engineering and Design Standards, whichever is most structurally competent.

18-4-7-7-3. All developments shall submit a soils report and pavement recommendation prepared by an Arizona Registered Geotechnical Engineer. The pavement report will recommend at least two alternative structural sections for each street and driveway classification. Additional asphalt may be substituted for untreated base at a ratio recommended by the Geotechnical Engineer.

18-4-7-8. *Landscaping.* Landscaping shall be installed as specified in the Town of San Tan Valley Zoning Ordinance. The placement of landscape materials and street design shall be coordinated to ensure placement of landscaping, berms, walls and other features do not obstruct sight line distances as defined in other Sections of this Code, and do not obstruct visibility of traffic control devices.

18-4-7-9. Pedestrian Circulation Systems.

18-4-7-9-1. Sidewalks shall be required on both sides of all streets located in residential commercial and industrial zoning districts.

18-4-7-9-2. Sidewalk Standards: Meandering walkways may be required by the Town Engineer to coordinate with adjacent improvements. Meanders should maintain a one (1) foot minimum distance from the property line or the back of the sidewalk easement, and should be curbside at all intersections, and at all industrial, commercial and multi-family driveways. The unobstructed sidewalk widths shall be as shown in the Town of San Tan Valley Engineering and Design Standards for the type of street required.

18-4-7-9-3. Sidewalks shall be developed in the following manner: Sidewalks shall be required to be located on both sides of all urban arterial and collector streets, regardless of their location, zoning or the number of lots on the street.

18-4-7-9-4. Sidewalks to complete existing or planned pedestrian linkages, or sidewalks leading to a significant pedestrian generator, shall be required to be located in accordance with an adopted pedestrian sidewalk or trail plan.

18-4-7-9-5. Sidewalks may be located outside of the road right-of-way and within an easement.

18-4-7-9-6. Exceptions to these sidewalk standards may be approved by the Town Engineering Manager if the circumstances of the specific application are such that sidewalks are either not required or their use modified based on topography, adjacent existing or planned land uses or other site specific conditions.

Section 18-5 SUBDIVISION LOT PLATTING.

18-5-1. Conventional single-family residential lots shall not have a width-to-depth ratio greater than one to three. Lot dimensions for single family residential lots which are part of a “cluster” development or Planned Area Development (PAD) will be determined at the time of project approval.

18-5-2. All residential, commercial and industrial lots must be developable without the need of a variance, waiver or further discretionary approvals from the Town. Prior to plat approval the Town may require additional documentation, including but not limited to engineered concept plans, for lots with questionable developability.

18-5-3. Corner residential lots shall generally be designed larger to accommodate the increased setback requirements of the Zoning Ordinance.

18-5-4. Residential side lot lines shall be substantially at right angles or radial to street lines, except where other treatment may be justified in the opinion of the Town Engineering Manager, based on site specific conditions.

18-5-5 Residential lots extending through the block and having frontage on two parallel streets which are both local streets or one of which is a local street and the other is a collector street shall not be permitted; except where approved by the Town Engineer based on site specific conditions.

18-5-6. Where steep topography (exceeding fifteen percent [15%] in grade), unusual soil conditions, drainage problems, abrupt changes in land use or traffic safety based on sight and visibility or inadequacy of public facilities that would not allow a lot to be buildable without a variance or waiver, the Community Development Director or Town Engineer may deny the creation of the lot.

18-5-7. Individual residential lots on curvilinear streets shall have rear lot lines consisting of a series of straight lines with the points of deflection occurring at the junction of side and rear lot lines, unless otherwise approved by the Town Engineer.

Section 18-6 EASEMENT PLANNING.

18-6-1. Easements will be required for all private utilities outside of the street right-of-way and shall be placed along lot lines as required by the utility companies and as directed by the Town Engineer.

18-6-2. Where a stream, wash or important surface drainage course abuts or crosses a development, dedication of a drainage easement of a width sufficient to permit widening, deepening, relocating, or protecting and maintaining said water course shall be required. Drainage easement width shall be approved by the Town Engineer, and where appropriate, the Maricopa or Pinal County Flood Control District based upon the hydrological analysis of a one-hundred (100) year frequency storm.

18-6-3. All drainage channels, washes, or ditches which convey a one-hundred (100) year frequency storm flow volume exceeding a flow rate of one hundred (100) cubic feet per second shall be designated as Tracts with drainage easements. When it is determined by the Town Engineer that the topographic conditions and wash alignments on the parcel will result in extraordinary development constraints, a drainage easement may be accepted, without a Tract designation.

18-6-4. All storm water retention basins shall be designated as drainage easements.

18-6-5. Vehicular cross-access easements shall be required where deemed necessary by the Town Engineer and Town Traffic Engineer to accommodate lot planning issues, minimize driveway locations and provide vehicular accessibility to adjacent properties.

18-6-6. Sidewalk easements of a minimum of five (5) feet in width shall be required when the proposed sidewalk is not contained within the public right-of-way. The final sidewalk easement width will be determined by the Town Engineer.

Section 18-7 STREET NAMING.

18-7-1. *Compliance with Street Naming and Addressing Requirements.* All proposed public and private street names, street types, street suffixes, street name changes, addressing, and related matters for subdivisions, minor land divisions, plats, development applications, and public or private streets shall comply with Section 18-21, Street Naming and Addressing Requirements, and any applicable Town Engineering and Design Standards.

18-7-2. *Approval Required Before Final Plat.* Proposed public and private street names and street types shall be reviewed and approved in accordance with Section 18-21 before approval of a final plat, minor land division map, or other applicable development approval requiring street naming.

Section 18-8 DRAINAGE.

18-8-1. Proper and adequate provision shall be made for disposal of storm water. This shall apply equally to grading of private properties and to public streets. Existing major water courses shall be maintained as drainage ways. Drainage systems shall meet the requirements of the Drainage Design Manual as referenced in the Town of San Tan Valley Engineering and Design Standards and in Article 17 of the Town of San Tan Valley Town Code.

18-8-2. Post development flows cannot exceed pre-development flows in peak runoff, volume, or velocity and may not concentrate sheet flows without downstream off-site control.

18-8-3. If drywells are necessary, they shall be spaced as far apart as possible and only the de-rated percolation capacity can be used in calculating the required number of drywells to be utilized (as specified in the Town of San Tan Valley Engineering and Design Standards. In addition, a private maintenance plan shall be prepared that provides for routine inspection and maintenance to the approval of the Town Engineering Manager.

18-8-4. All retention basins shall be designed and constructed such that the total volume of retained runoff from the 100-year design storm event will be fully evacuated within a maximum duration of thirty-six (36) hours following the cessation of a rainfall event.

18-8-4-1. Failure to ensure that a retention basin is de-watered within this mandated thirty-six (36) hour timeframe shall constitute a violation of the Town Code. In the event of such a violation, the property owner may be required, at their own expense, to repair, retrofit, or otherwise mitigate the drainage deficiency through approved soil amendments or engineered sub-surface enhancements to bring the facility into full compliance.

Section 18-9 SANITARY SEWAGE DISPOSAL.

18-9-1. Subdivisions within the Town boundaries shall provide a wastewater solution and install sewer collection lines for all dwelling units within the subdivision. If there is no sewer main available at the time of preliminary plat approval, a sewer system shall be designed and plans shall be submitted for review with the final plat submittal.

18-9-2. Sewer systems shall be designed in accordance with their respective sewer service provider requirements as well as the Maricopa County Environmental Services, the Pinal County Aquifer Protection Division, and the Arizona Department of Environmental Quality. Plans shall be submitted to their respective jurisdiction for review and approval prior to approval by the Town Engineer.

18-9-3. Sewer lines shall be approved by the Town Engineer and by Maricopa County Environmental Services and/or the Arizona Department of Environmental Quality for Pinal County.

18-9-4. Service stubs to platted lots within the subdivision for underground utilities shall be placed behind the right-of-way line or two (2) feet behind the public utility easement, whichever is greater.

18-9-5. Sanitary sewer lines shall be extended to the boundaries of the plat to provide service connections to abutting unsubdivided land.

18-9-6. Every developable lot shall have a separate sewer service lateral, except those lots on an approved septic system.

18-9-7. A sewer collection and treatment system shall be required for all subdivisions unless the San Tan Valley Town Council approves a waiver request from the developer. A waiver to allow on-site wastewater treatment facilities (i.e., septic systems) may be approved if, at a minimum, all of the following conditions are met:

18-9-7-1. No sewer collection system or sewer collection infrastructure exists within one (1) mile of the proposed project site, and;

18-9-7-2. Calculations are provided that demonstrate that the total number of lots within the subdivision does not exceed the total number of acres contained within the boundaries of the subdivision; or If the total number of lots within the subdivision exceeds the total number of acres contained within the boundaries of the subdivision then an alternative septic system that reduces the nitrogen loading requirement according to AAC R-18-9-E23 (i.e., nitrogen reducing system) is

required, and provided that approval for the use of this method of sewer treatment and disposal is obtained from the Arizona Department of Environmental Quality.

18-9-7-3. The subdivision is not in any sewer district area or mentioned on a Certificate of Need and Necessity (CNN) of a municipal sanitary sewer provider.

18-9-7-4. No lots within the subdivision would be rendered undevelopable due to the reservation of land needed to install, operate, and maintain the onsite waste water treatment system.

18-9-7-5. The alternate or onsite waste water treatment system is for residential uses only.

18-9-8. *Septic Systems.* If approved by waiver, septic tanks shall be approved by Maricopa County Environmental Services, Pinal County Aquifer Protection Division, and/or the Arizona Department for Environmental Quality.

Section 18-10 WATER SYSTEM.

18-10-1. Each lot or building unit shall be supplied with potable water in sufficient volume and pressure for domestic use and fire protection purposes. Design and construction of any and all facilities relating to the supply, storage, transmission, treatment and distribution of potable water within or outside of any subdivision must meet with the written approval of the Town Engineer, water provider and Fire Department.

18-10-2. All design and construction must meet all applicable Town, private water provider and Maricopa County Environmental Services Department or the Arizona Department of Environmental Quality specifications and requirements in force at the time of plan renewal and approval. If it is necessary for the Town to apply specifications or requirements not in force at the time of plan review, but necessary to achieve the orderly and proper development of any portion of the public/private water system, the Town reserves the right to enforce such specifications and requirements to insure and protect the public welfare.

18-10-3. The developer of a subdivision may be required by the Town of San Tan Valley to supply to the public/private water system an amount of potable water from new sources and an amount of new water storage facilities to offset the demand on the existing or planned public/private water system imposed by owners of property or building units within the subdivision.

18-10-4. The Town assumes no liability for providing water to any proposed or actual subdivision.

18-10-5. Water specifications and requirements relating to fire protection are established by the private water companies and the public/private Fire Department. At a minimum fire protection must be provided in accordance with the currently adopted Uniform Fire Code.

18-10-6. *Line Sizing.* Minimum size lines for water lines shall be four (4) inches without hydrants and six (6) inches with hydrants. Minimum eight (8) inch lines shall be required on dead-end hydrant lines longer than three-hundred (300) feet.

18-10-7. *Valves.* There shall be a minimum of three valves at crosses, two (2) valves at tees and one (1) valve at each fire hydrant tee. Shutdown valving shall be arranged such that no more than four (4) valves are required to make a shutdown in any section of waterline. No more than thirty (30) homes nor two (2) fire hydrants shall be out of service during a water line shutdown.

18-10-8. *Service Water Lines.*

18-10-8-1. Minimum service tap, service pipe and meter shall be three-quarter ($\frac{3}{4}$) inches and shall serve only one property. A minimum one (1) inch service tap, pipe and meter servicing a single

property shall be required on cul-de-sacs in excess of five-hundred (500) feet in length, for fire sprinkled residences and for all thirty-five thousand (35,000) square foot lots or larger.

18-10-8-2. Service stubs to platted lots within the subdivision for underground utilities shall be placed behind the right-of-way line or two (2) feet behind the public utility easement, whichever is greater.

18-10-9. *Fire Hydrants.* Maximum spacing for fire hydrants shall be five-hundred (500) feet in single family residential areas and three-hundred (300) feet in all other residential, commercial and industrial areas. Fire hydrants shall be required along arterial and major collector roadway frontages at a minimum spacing of six-hundred sixty (660) feet, located alternately on each side of the road.

18-10-10. Water distribution lines shall be extended to the boundaries of the plat to provide service connections to abutting unsubdivided land.

Section 18-11 STREET LIGHTS.

18-11-1. *Purpose.* The purpose of the Town's lighting standards is to promote public safety, walkability, economic vitality, neighborhood livability, and community activity during evening hours. The Town recognizes that appropriately illuminated streets, sidewalks, parks, trails, public spaces, neighborhoods, and commercial areas contribute to safety, visibility, quality of life, and a strong sense of community. Lighting shall provide adequate visibility for motorists, pedestrians, cyclists, residents, businesses, and emergency responders while minimizing unreasonable glare, light trespass, and unnecessary skyglow.

18-11-2. *Fixture Standards; Required Street Lighting Locations.* Fixture type, height, lumen output, color temperature, shielding, placement, and other applicable lighting standards shall meet the specific criteria established by the Town of San Tan Valley Engineering and Design Standards. Street lights shall be installed at all entrances to a neighborhood, along arterial roadways adjacent to the subdivision, all internal streets within the subdivision, and at other locations specified by the Town Engineer. Determinations of the need for lighting will also be coordinated with town crime prevention programs and other community needs as required by the Community Development Director.

18-11-3. *LED Luminaires; Color Temperature.* All public and private street lighting within the subdivision shall utilize energy-efficient LED luminaires. Street lighting fixtures shall have a maximum correlated color temperature (CCT) of three-thousand Kelvin (3000K) to reduce blue-light emissions, minimize glare, and preserve night sky conditions while maintaining adequate roadway illumination and public safety. For street lighting on arterial roadways, the color temperature is preferred to be four-thousand Kelvin (4000K) but shall not exceed five-thousand Kelvin (5000K) in high traffic areas. In environmentally sensitive or low-density residential areas a maximum color temperature of two thousand seven hundred Kelvin (2700K) may be required.

18-11-4. *Shielding; Light Trespass; Skyglow.* All street lighting fixtures shall be fully shielded, full-cutoff luminaires designed and installed so that no light is emitted above the horizontal plane of the fixture. Lighting shall be directed downward onto the roadway and pedestrian areas only, minimizing light trespass onto adjacent properties and reducing skyglow.

18-11-5. *Street Light Ownership and Maintenance.* Maintenance and ownership of Street Lights shall be accomplished by one of the following methods:

18-11-5-1. *Street Light Improvement District.* A Street Light Improvement District (SLID) may be formed for residential subdivisions to own, operate, and maintain the street lights in a designated

area. SLIDs may be required by the Community Development Director or Town Engineer as needed in commercial or industrial projects.

18-11-5-2. *Homeowners' Association.* A Homeowner's Association (HOA) may be tasked with ownership, maintenance, and operation of the street lights within a subdivision. If such means is contemplated for street lighting, the Conditions, Covenants, and Restrictions (CC&Rs) shall include terms and conditions to ensure the maintenance of street lighting in perpetuity.

Section 18-12 PUBLIC UTILITIES.

18-12-1. With the exception of regional transmission facilities, all existing and new utility and telephone lines, electric utility distribution feeders, cable television lines, and all other communication and utility lines adjacent to or within new residential, commercial, or industrial subdivisions or other areas to be developed within the Town shall be installed underground at the time of development of the property as part of the required off-site and on-site improvements. The developer of the property shall be responsible for the costs of the underground construction in accordance with the underground policy of the serving utility.

18-12-2. When as a result of the subdivision development, it is necessary to relocate, renew or expand existing facilities within or adjacent to the platted area, the subdivider shall make the necessary arrangements with the serving utility for these installations to be placed underground. The subdivider shall arrange with the serving utility for, and be responsible for, the cost of underground service lines to approved street light locations.

18-12-3. Service stubs to platted lots within the subdivision for underground utilities shall be placed to the right-of-way line or the public utility easement whichever is greater.

18-12-4. Underground utilities shall be extended to the boundaries of the plat to provide service connections to abutting unsubdivided land.

18-12-5. A minimum eight-foot (8 ft.) wide public utility easement (PUE) shall be dedicated adjacent to all public rights-of-way dedicated with the final plat unless otherwise approved by the Town Engineer. The public utility easement shall be provided for the installation, maintenance, repair, replacement, and operation of public and private utilities, including but not limited to water, sewer, electric, gas, cable, and telecommunications facilities. The easement shall remain clear of permanent structures or other obstructions that may interfere with utility access or operations.

Section 18-13 IMPROVEMENT REQUIREMENTS.

18-13-1. *Purpose.* It is the purpose of this Section to define the responsibility of the subdivider in the planning, construction and financing of improvements; and to establish procedures for review and approval of these improvements.

18-13-2. *General Requirements.*

18-13-2-1. *Responsibility.* The subdivider shall be responsible for all costs, including review fees, for the installation of the improvements as a stipulation of zoning, preliminary plat, or site plan review and at least but not limited to the following improvements: 1) Public/Private Sewers, 2) Public/Private Water Supply Systems, 3) Grading/ Drainage/Storm Drains, 4) Streets/Private Access Ways, 5). Alleys (where applicable and approved), 6) Utilities, 7) Street Lights, 8) Monuments, 9) Landscaping, and 10) Traffic Signals.

18-13-2-2. *Streets and Public Easements.* All streets and public easements within the boundary lines of the subdivision shall be improved to cross-sections, grades, and standards outlined in the

Town of San Tan Valley Engineering and Design Standards, or as approved by the Town Engineer. Where there are existing streets adjacent to the subdivision, subdivision streets shall be improved to the intercepting paving line of such existing streets, or to a matching line determined by the Town Engineer; transition paving shall be installed as required by the Town Engineer. When a subdivision includes a major street which is not paved or where there is no paved street between the subdivision and a paved major or collector street, an interim paved two lane street at least twenty-four (24) feet wide with approved pavement transitional tapers shall be constructed to a standard approved by the Town Engineer for the major street, collector or local street right-of-way to the nearest paved major or collector street. When an interim access road is required, temporary paving shall be installed in compliance with the pavement recommendations from a geotechnical report. Such an interim road shall have sufficient culverts and drainage facilities to allow a twenty-five (25) year frequency storm to pass under the road section and a one-hundred (100) year frequency storm to pass over the road section at a depth not to exceed six (6) inches of water. Dead-end streets extending two-hundred (200) feet or more and dead-end interim access roads shall be graded and surfaced with a temporary fifty (50) foot radius turning circle at the road terminus.

18-13-2-3. *Utilities.* The subdivider shall be responsible to make the necessary arrangements with each of the serving utility companies involved for the installation of the underground facilities. Letters of verification from serving utility companies indicating that the appropriate arrangements have been made shall be submitted to the Town Engineering Manager at the time the final subdivision plat is submitted for approval.

18-13-2-4. *Monuments.* Permanent monuments shall be installed in accordance with current Town standards at all corners, angle points, and points of curve; at all street intersections, and at all corners, angle points and points of curve of all conservation easements. After all improvements have been installed, a Registered Land Surveyor shall check the locations of the monuments and certify their accuracy.

18-13-2-4-1. Iron pipes shall be set at all lot corners, angle points and points of curve for each lot within the subdivision within one year of final plat approval and prior to any lot sales. Permanent brass caps in concrete monuments shall be set for all subdivision points which are located in the public rights of way. These are to be placed according to MAG standards.

18-13-2-4-2. Blue Reflective Markers shall be placed on the road surface across from each fire hydrant and valve in accordance with the Town of San Tan Valley Engineering and Design Standards.

18-13-3. *Submittal Requirements*

18-13-3-1. *General Requirements.*

18-13-3-1-1. It shall be the responsibility of the subdivider to have a Registered Professional Engineer prepare a complete set of engineering plans and reports for construction of all required improvements and a Registered Landscaped Architect prepare a complete set of landscape plans. Such plans shall be based on the approved preliminary plat and be prepared in conjunction with the final plat and in accordance with all applicable Town, County or State standards.

18-13-3-1-2. All Improvement plans submitted to the Town of San Tan Valley for approval must be submitted on 24"x 36" sheets of blue or blackline paper prints. The scales chosen

for plans shall be such that existing features, proposed construction and any other information to be provided will be depicted in a clear, uncluttered, understandable manner. Water system, sewer system and street paving improvements should be drawn at a horizontal scale of one (1) inch equals twenty (20), thirty (30), or forty (40) feet and a vertical scale of one (1) inch equals two (2) feet, unless the Town Engineering Manager approves the use of another scale. Plans for other purposes may require the use of a larger or smaller scale.

18-13-3-1-3. Water improvement plans shall be submitted on a separate set of plans, but shall also show on the paving plans for reference. Sewer improvement plans shall also be submitted on a separate set of plans, but must also be shown on the paving plans for reference.

18-13-3-2. *Improvement Plan Requirements.*

18-13-3-2-1. The following materials shall be submitted as an initial submittal with final plat. In addition to the items below the required Plan Review fees shall be paid at the time of the second plan submittal. 1) Improvement Plan Review Fee, 2) Final Plat Review Fee, 3) The Final Plat, 4) The Water Improvement Plans, 5) The Sewer Improvement Plans, 6) The Paving, Grading, and Drainage Improvement Plans, 7) The Landscape Improvement Plans, 8) The Drainage Report, 9) The Geotechnical Report, 10) The Traffic Report, and 11) The Boundary Closure Report. The Final Plat should be in final form showing all information including dedication statement, ratifications, and signature blocks.

18-13-3-2-2. Subsequent submittals will require that the redline check prints be submitted in addition to the number of sets outlined in the transmittal sheet requirements.

18-13-3-2-3. Final submittal requirements are as follows:

- (1) All Improvement Plans and Landscape Plans.
- (2) The required copies of the Final Plat (Mylar).
- (3) Title Report (current to the date of Final Plat Recordation).
- (4) Assurance of Construction.
- (5) Utility Companies Clearance Letters.
- (6) Copies of approved engineering reports.
- (7) Electronic copies in PDF format of the approved improvements and final plat.

18-13-3-2-4. Submittal requirements for recordation of the plat include the recording fee and mylar submittals.

18-13-3-3. *Landscaping Plan Requirements - Final Landscape Plan.* Shall be prepared by a Registered Arizona Landscape Architect and show the name of the developer and the project engineer on the Plan. The Plan shall be submitted along with the final plat and improvement plan submittal and shall at a minimum contain the following:

18-13-3-3-1. *Final Irrigation Plans.* Locate all main irrigation lines, controllers and major valves outside of the right-of-way and public utility easement.

18-13-3-3-2. *Plant Location.* Call out the location of all proposed species and inorganic ground covers, sidewalks, paths, curbing, fencing, walls, benches, ramadas, fountains, and waterways. For fencing and walls, provide a final graphic representation as to what is intended relative to the fencing and wall themes.

18-13-3-3. *Right-of-Way Landscaping Is Required.* The entire area of the right-of-way, between street property line and back of curb (B.O.C.) and/or pavement except for approved driveways, walkways and bike paths, shall be landscaped.

18-13-3-4. *Plant Species.* Call out all proposed plant species and inorganic ground covers in a list on the landscape plan.

18-13-3-5. *Plant Sizes.* Call out the various sizes of all proposed plant and inorganic ground covers in a list on the landscape plan.

18-13-3-6. *Plant Quantities.* Call out the exact quantities for each species of plants and inorganic ground cover per each size. Indicate the total number of trees, shrubs, and ground cover plants proposed. For trees and shrubs, specify the quantity that are of different sizes.

18-13-3-7. *Paths, Trails, and Sidewalks.* Call out the material types, width and depth of the trail surfacing of all proposed trails and walks.

18-13-3-8. *Walls/Fencing.* Call out the type and location where all common wall/fencing (perimeter subdivision) and entry monumentation is proposed. Indicate exact material types for all fencing and walls and entry monumentation proposed. A separate 24" X 36" wall/fence sheet is preferred and shall be submitted along with the improvement plan submittal. Walls, fences and any other structures over two (2) feet in height shall not be located within the vehicular sight line triangles, right-of-way or any easements.

18-13-3-9. Identify existing lots, streets, fences, walls, wells, or other features as may be applicable.

18-13-3-4. *Report Submittal Requirements.*

18-13-3-4-1. *Final Drainage Report.* Three copies of a final drainage report shall be submitted as a part of the improvement plan submittal for all developments. For projects where additional Flood Control District Agency review is required, additional two (or more) copies may be required, as determined by the Town Engineering Manager. The report shall be a complete report and not an addendum to the preliminary drainage report. The format shall be as previously described and also include all items listed in the Town of San Tan Valley Final Drainage Report Checklist and the Town of San Tan Valley Design Standards and Procedures Manual.

18-13-3-4-2. *Water Report.* The required copies of the final water report shall be submitted with the final plat. This report shall include the following items.

18-13-3-4-2-1. Additional water improvements needed for new source, storage, transmission and distribution.

18-13-3-4-2-2. Location and size of the closest existing water line. Static residual pressures and location shall also be taken at all "nodes", fire hydrants, and connection points of different size water main lines.

18-13-3-4-2-3. The location of all existing fire hydrants within 1000 feet of the proposed subdivision and the number and location of all proposed fire hydrants.

18-13-3-4-2-4. Line size and flow calculations for each use classification.

18-13-3-4-3. *Geotechnical Report.* The required copies of a geotechnical report shall be submitted which identifies any special geotechnical hazards, and develops recommendations to mitigate these potential hazards with regard to the grading, foundations, pavement design and other construction proposed. The report shall address, at a minimum, the following items:

18-13-3-4-3-1. The geotechnical hazards portion of the report shall consider at a minimum; earth fissures, expansive soils, soil creep, landsliding, and groundwater.

18-13-3-4-3-2. The grading and foundations portion of the report shall include data regarding the distribution and engineering characteristics of the various soil materials; data about groundwater levels; an opinion regarding the geotechnical feasibility of the development as planned; recommendations about any needed mitigation measures for geotechnical hazards, grading criteria, cut and fill slope design criteria, foundation design criteria and any other pertinent information.

18-13-3-4-3-3. The pavement design portion of the report shall include data regarding the distribution of various subgrade materials and the testing method used to determine soil classifications and characteristics. The design procedure and all assumptions used to determine the pavement section shall be presented. The selected design procedure shall not result in a lesser pavement section than the minimum allowed in the Town of San Tan Valley Engineering and Design Standards.

18-13-3-4-4. *Traffic Studies.* All traffic study information shall be prepared by a Professional Engineer registered in the State of Arizona and having adequate experience in the regular practice of transportation engineering. All letters and reports submitted with regard to traffic analysis shall be sealed by the Engineer responsible for their preparation.

18-13-3-4-4-1. The required copies of a traffic impact analysis shall be provided with the preliminary plat submittal. Each copy shall be a complete, bound reproduction of the original report prepared by the Engineer, with all figures and appendices presented in the same manner and scale as the scaled original.

18-13-3-4-4-2. All trip generation analyses shall be calculated based on the latest edition of the *Trip Generation* report published by the Institute of Transportation Engineers, unless an alternative method has been approved in advance by the Town Engineer or Town Traffic Engineer.

18-13-3-4-4-3. All Traffic Reports shall conform to the Town of San Tan Valley Traffic Impact Analysis and Procedures Manual and be of sufficient detail to adequately describe the required improvements necessary due to the impacts caused by the development of the proposed subdivision.

18-13-4. *Improvement Plan Review Process.*

18-13-4-1. Copies of plans shall be submitted to the Town and shall be distributed by the Town to the appropriate agencies.

18-13-4-2. The Town staff will review and comment on the submittal for accuracy, completeness, compliance with the preliminary plat and/or site plan and all stipulations made by town staff, the Planning Commission, and/or Town Council, and the requirements by other agencies, as well as conformance with all Town Codes.

18-13-4-3. All improvement plans, reports and other documentation will be returned to the Engineer and Landscape Architect of record for corrections, additions and revisions.

18-13-4-4. Prior to the recording of the plat the following items must be submitted before final plat approval:

- (1) A signature block of approval of engineering plans signed by the Town Engineer.
- (2) A certification that an Agreement, if required, between the Town and subdivider has been executed.
- (3) A letter of agreement between the serving utilities and the developer.
- (4) Required assurances for construction (such as a performance bond, cash, or irrevocable letter of credit), sewer buy-in fees, cash in lieu of construction, or any type of shared cost participation fee.
- (5) Developer cost participation agreements and fees.
- (6) A certificate of assured water supply
- (7) All other easements, maps of dedication, warranty deeds and other legal documents which need to be recorded.
- (8) If the engineering plans have not been approved within ninety (90) days, the Development Services Director or designee may require that the Final Plat be resubmitted.

18-13-5. *Deferred Improvements.*

18-13-5-1. Subdivisions of five (5) or Less Parcels: The frontage improvements may be deferred when deemed appropriate by the Town Engineer. Deferral will be allowed when the Town Engineer finds that construction is impractical due to physical constraints, timing of future adjacent improvements or the surrounding neighborhood is absent similar improvements. When improvements are deferred, the subdivider shall pay cash in lieu for the future installation of all improvements as determined by the Town. This shall not relieve the owner from any other specific requirements of the Subdivision Final Plat or this Subdivision Ordinance.

18-13-5-2. *Remainders.* Where remainders are made part of a Subdivision Final Plat, the subdivider may enter into an agreement, per a recommendation by the Town Engineer, with the Town to construct improvements within, and along exterior boundaries of the remainder parcel at a future date and prior to the issuance of a permit or other entitlement for development of a remainder parcel. The improvements shall be at the subdivider's expense. In the absence of an agreement, the Town may require completion of the construction improvements within a reasonable specified time following approval of the Subdivision Final Plat upon a finding that completion of the improvements is necessary for the health and safety of the public or the required construction is a mandatory prerequisite to the orderly development of the area.

18-13-5-3. The Town may permit the deferral of certain roadway or transportation-related improvements otherwise required as part of a subdivision development when such deferral is determined to be in the best interest of the Town. In lieu of constructing the required improvements at the time of development, the developer may be required to provide a cash-in-lieu contribution in an amount approved by the Town Engineer and certified by the Engineer for the development.

Deferral may be considered appropriate when the required improvements are anticipated to be incorporated into an imminent Town Capital Improvement Program (CIP) project, when phased or coordinated construction would provide greater public benefit or efficiency, or when the Town Engineer determines that immediate construction would be impractical, premature, or otherwise contrary to sound engineering, operational, or planning practices. Approval of any deferral request shall be at the sole discretion of the Town and may be subject to conditions necessary to protect the public health, safety, and welfare.

Section 18-14 FINANCIAL ASSURANCES AND OBLIGATIONS OF THE SUBDIVIDER.

18-14-1. *Agreement by the Subdivider.*

18-14-1-1. The subdivision improvements in an approved development may be constructed in practical increments in accordance with a Town approved Phasing Plan subject to provisions for satisfactory drainage, traffic, circulation, utilities, landscaping and other elements of the total development plan.

18-14-1-2. The improvements shall be constructed in accordance with plans approved by the Town and shall be completed within an agreed specific time period.

18-14-1-3. The subdivider shall give adequate Assurance for Construction for each phase in accordance with this Ordinance and to the satisfaction of the Town Engineer and Town Attorney.

18-14-1-4. Once a construction permit has been issued for improvements under the Assurance of Construction, work shall proceed without interruption until the improvements are accepted by the Town.

18-14-1-5. Any construction activity shown on approved plans that has been discontinued for a period of one-hundred eighty (180) days, or not completed by the subdivider in accordance with an agreed upon time period, may be completed by the Town. The construction cost for completion of the project will be recovered from the subdivider via the financial assurance.

18-14-1-6. When in the opinion of the Town it is in the best interest of the Town to delay installation of the required development improvements to coincide with adjacent work, the Town may require payment of the estimated cost of said improvements in-lieu of construction by the developer. The timing of this payment will be specified by the Town.

18-14-2. *Assurances of Construction.*

18-14-2-1. The Town Council shall require that the applicant provide cash, a performance bond from a corporate surety licensed to do business as a surety in Arizona, or an irrevocable letter of credit, at the time of application for final subdivision approval in the amount sufficient to secure to the Town the satisfactory construction, installation, and dedication of the required improvements. The amount of the financial guarantee shall be one hundred thirty percent (130%) percent of the total cost of all materials, labor, and ancillary costs necessary to complete the subdivision, which also includes a thirty percent (30%) contingency cost.

18-14-2-2. Such financial guarantee shall comply with all statutory requirements and shall be satisfactory to the Town Engineer and the Town Attorney as to form, sufficiency, and manner of execution, as set forth in this Ordinance. The entire length of time during which the required improvements must be completed shall be incorporated into the financial guarantee, and the financial guarantee document shall be automatically extended on an annual basis until such improvements are formally accepted by the Town Engineer. The Town shall require that ten percent

(10%) of the total cost of off-site improvements be retained by the Town for a period of one (1) year from the Date of Acceptance of said improvements by the Town.

18-14-3. *Partial Release of Financial Assurances.*

18-14-3-1. The Town Engineer may, but is not required to, authorize partial releases of financial assurances at logical stages of construction when the corresponding subdivision improvements have been completed, inspected, and constructed to the satisfaction of the Town Engineer. Partial releases may be considered only after a minimum of twenty percent (20%) of the required improvements have been completed and shall not exceed eighty percent (80%) of the total financial assurance amount prior to final completion and acceptance of all required improvements.

18-14-3-2. The amount of any partial release shall be determined by the Town Engineer based on the value of completed work, remaining construction obligations, and the need to ensure adequate security for completion of all outstanding improvements and warranty obligations.

Section 18-15 CONSTRUCTION AND INSPECTION.

18-15-1. All improvements whether public or private shall be constructed to the latest Uniform Standard Specifications for Public Works Construction as written and promulgated by the Maricopa Association of Governments (MAG) and/or the latest standards, details and specifications adopted by the Town.

18-15-2. All improvements shall be constructed with the inspection and approval of the Town. All construction shall require a Town right-of-way encroachment permit. Construction shall not begin until a permit has been issued for such construction, and if work has been discontinued for any reason, it shall not be resumed until after notifying the Town.

18-15-3. Utilities must be installed either in public dedicated rights-of-way or public utility easements or easements dedicated specifically by the land owner for such usage and maintenance.

18-15-4. All underground utilities to be installed in streets, public utility easements, and public access ways, shall be constructed prior to the surfacing of such street or private access way.

18-15-5. The developer shall provide for an Arizona Registered Engineer to be present on the site for sufficient time to assess compliance with the plans and specifications for each element of construction.

18-15-6. The Town shall be notified forty-eight (48) hours prior to any construction on the project site.

18-15-7. The Town shall be notified upon completion of all underground utilities within the street rights-of-way and prior to any street preparation work. Interim as-built plans of the utilities and all passing tests results shall be submitted for review. Upon review and approval of the supplied information, the developer may proceed with the installation of street improvements.

18-15-8. The developer's engineer shall request that Town personnel perform inspections of the subgrade base prior to placement of the overlaying materials. In addition, the Town inspectors will perform periodic inspections throughout the course of the construction. These inspections or approvals do not signify that the Town has accepted any of the improvements for maintenance.

18-15-9. The developer's engineer shall submit weekly progress reports to the Town throughout the construction. The weekly progress reports shall include the results of all tests taken during the week.

18-15-10. Testing during the construction phase of the project shall be done as required by the Town.

18-15-11. No work shall be undertaken in the public right-of-way without first submitting for review and approval a Temporary Traffic Control Plan and obtaining an Encroachment Permit from the Town.

18-15-12. All required traffic control devices, street name signs and pavement markings shall be in place prior to opening a street to public use. Paved streets not yet open to public use shall be barricaded and signed "construction access only".

Section 18-16 SUBDIVISION IMPROVEMENT ACCEPTANCE.

18-16-1. *General.* Upon completion of all subdivision improvements and installation of monumentation, a final inspection shall be performed by the Town Engineer or their designee.

18-16-2. *Final Inspection.* At completion of the project, a final inspection shall be requested with the Town. At the time of request for the final inspection, one set of as-built drawings in electronic PDF format shall be submitted, a final engineering report, and a (1) one-year construction assurance warranty to the Town. The as-built drawings shall be certified and contain the following statement:

"I certify that the construction inspection and "as-built" plan preparation were performed by me or under my direct control and supervision. The construction details as shown on the as-builts are accurate and complete to the best of my knowledge and belief."

Arizona Registered Engineer/Surveyor

Date and Seal

18-16-3. *Final Construction Report.* A final construction report shall be submitted upon completion of the project. The final construction report shall be compiled by the developers' engineer and shall include the following:

18-16-3-1. A brief statement of the testing on the project and a statement as to whether the observations and tests indicate that the various materials in place comply with the plans and specifications.

18-16-3-2. A summary of all field density tests and compaction tests on trench backfill, on street subgrade and base material and on any fill material.

18-16-3-3. Asphalt and pavement mix design and all results of marshall, gradation, and asphalt content and compaction tests

18-16-3-4. All concrete mix designs and all test results on air content, slump, unit weight, compressive strength at seven (7) and twenty-eight (28) days;

18-16-3-5. All line pressure, bacteria and manhole test information.

18-16-3-6. Any other tests or information that may be required as a part of the specifications or that may add to the integrity of the report.

18-16-4. *Procedure.* The following procedure will be followed for final acceptance of the improvements:

18-16-4-1. Town personnel shall make a final inspection of all public improvements in the project. The developer will be notified of any items that are not in conformance with the Town specifications, and shall bring the items into conformance.

18-16-4-2. The as-built plans and final report will be reviewed by Town assigned personnel. Any additional information needed will be noted and the plans will be returned to the developer for revision and resubmittal.

18-16-4-3. *Pavement Finishing Fee.* Upon completion of the roadway improvements but prior to acceptance of the streets by the Town, the Subdivider/Developer shall pay a Pavement Finishing Fee of three dollars and fifty cents (\$3.50) per square yard of asphalt pavement laid out and constructed. This fee may be updated from time to time by Ordinance or Resolution of the Town Council and is intended to cover the cost of applying a post-construction finishing sealant, such as a slurry seal, to the subdivision streets after the end of the warranty period.

18-16-4-5. When the public improvements have passed the final inspection, the "as- built" plans and final report have been stamped and approved, the pavement finishing fee has been paid, and the one year construction warranty has been provided, the Town Engineer shall accept the public improvements for maintenance.

18-16-5. *One (1) Year Warranty Period on Public Improvements.*

18-16-5-1. The warranty period begins on the day the Town Engineer approves and accepts the public improvements and ends one (1) year later. During the warranty period the developer is responsible for repair work of any of the public improvements. The Town assigned personnel will periodically inspect the public improvements and will notify the developer of the necessary repair work. The developer is responsible for having the repair work completed prior to the end of the warranty period.

18-16-5-2. If the developer fails to make the necessary repairs or corrective actions within the time specified by the Town after written notice, the Town may, but is not obligated to, undertake such repairs or corrective work utilizing the ten percent (10%) maintenance guarantee retained or provided for such purpose. The Town may draw upon the financial assurance in an amount necessary to cover the cost of labor, materials, engineering, inspection, administrative expenses, and any other costs associated with completing the required repairs and restoring the improvements to Town standards.

18-16-5-3. Town personnel shall conduct a one-year warranty walkthrough inspection of all subdivision improvements no later than two (2) weeks prior to the expiration of the warranty period. The purpose of the walkthrough shall be to identify any defects, failures, settlement, deterioration, or other deficiencies in the constructed improvements requiring repair or corrective action prior to release of the warranty financial assurance. The developer or their authorized representative may be required to attend the walk through inspection.

18-16-5-4. Upon completion of the warranty period and successful repair of any necessary warranty items the remainder of the assurances retained by the Town will be released.

Section 18-17 MINOR LAND DIVISIONS.

18-17-1. *General Requirements.*

18-17-1-1. *Authority and Applicability.* This Section is adopted pursuant to the Town's authority under A.R.S. §§ 9-463 and 9-463.01, including the authority of a municipality to regulate land splits within its corporate limits, and is intended to establish local procedures and standards for the review and approval of minor land divisions as provided in this Section.

18-17-1-2. For the purpose of this Section, a minor land division shall constitute the following acts, and shall be subject to the provisions of this Section:

18-17-1-2-1. The division of improved or unimproved land or lands for the purpose of financing, sale or lease, whether immediate or future, into two (2) or three (3) lots, tracts, or parcels of land, and when a new street is not involved.

18-17-1-2-2. The division of improved or unimproved land or lands for the purpose of financing, sale, or lease, whether immediate or future, into more than two (2) parts, and when the boundaries of such property have been fixed by a recorded plat.

18-17-1-2. The preparation, submittal, review, and approval of all minor land divisions located within the Town shall proceed through the following progressive stages, except when otherwise provided herein:

18-17-1-2-1. Pre-application conference with the Community Development Director or their designee.

18-17-1-2-2. Submittal of the minor land division application and map by the subdivider and reviewed through the Community Development Director.

18-17-1-2-3. Approval of the application by the Community Development Director.

18-17-1-2-4. Recordation of the approved minor land division.

18-17-2. *Pre-Application Conference.* The pre-application conference stage of minor land division review is an investigatory period preceding the preparation and submittal of the minor land division application by the subdivider. The subdivider shall initially present the subdivider's proposal to the Community Development Director who shall advise the subdivider of specific public objectives, standards, and regulations related to the property and the procedure for minor land division review.

18-17-3. *Minor Land Division Design Standards and Requirements.* Except where expressly modified or permitted by the Community Development Director, all minor land divisions shall be in general conformity with the lot, street, block, alley, and easement design standards and requirements specified for subdivisions in this Section. All lots created by a minor land division shall conform to existing zoning and the Town General Plan.

18-17-4. *Minimum Required Minor Land Division Improvements.*

18-17-4-1. Except where otherwise provided in this Section, it shall be the responsibility and duty of the subdivider to improve or agree to improve all streets, pedestrian ways, alleys, and easements in the minor land division and adjacent thereto required to service the minor land division, and such other improvements as specified for subdivisions in this Section. No permanent improvement work shall be commenced until improvement plans and profiles have been approved by the Community Development Director. Improvements shall be installed to the permanent line and grade to the satisfaction of the Town Engineer and in accordance with the Town of San Tan Valley Engineering and Design Standards.

18-17-4-2. Minor land division improvements shall not be required as a condition of approval for minor land divisions in the following situations:

18-17-4-2-1. When the division is to allow construction of a single-family dwelling and the project determines that less than fifty (50) percent of the half-street right-of-way for the

side of the block on which the property is located would be improved as a result of such condition; or

18-17-4-2-2. In any case when the Community Development Director determines that the improvement of the abutting all street or the installation of the other normally required improvements would be impractical because of considerations such as, but not limited to: type and extent of existing street improvements; inability to establish a proper street grade or alignment; physical barriers such as excessive grade of terrain or washes, ditches, canals, buildings or other structures; or other special circumstances where, in the opinion of the Community Development Direct, the immediate installation of the improvements is not deemed necessary to protect the public health, safety and general welfare, and that the waiver of the improvement requirements would not impair the purpose and intent of this Section.

18-17-4-2-3. The Community Development Director may require as a condition for the waiver of the required minor land division improvements, the execution of an acceptable form of assurance to the Town of San Tan Valley attesting that the owner(s), their heirs, successors, or assigns agree that they will participate in the cost of the improvements abutting their property at a later date whenever it is deemed necessary by the Town based upon future development in the immediate area.

18-17-5. Minor Land Division Applications.

18-17-5-1. Application Submittal: The subdivider shall submit the following materials to the project manager for review:

- (1) Three (3) copies of the minor land division map reproduced in the form of blue or black line prints on a white background.
- (2) A completed minor land division application form.
- (3) A nonrefundable minor land division application filing fee to compensate the Town for the costs of examining and processing the minor land division application and subsequent field inspections. The required fee for minor land division applications shall be in the amount established by resolution of the Town Council or pursuant to San Tan Valley Town Code.
- (4) All submittals shall be checked by the project manager for completeness. If incomplete as to the requirements set forth in this Section, the submittal may be rejected and returned to the applicant for revision and resubmittal.

18-17-5-2. Application Requirements.

18-17-5-2-1. All minor land divisions shall be designed to comply with the requirements of the specific zoning district within which it is located.

18-17-5-2-2. No lot or parcel shall be divided in such a way that any division of such lot or parcel shall contain more dwelling units than are permitted by the zoning regulations for which district such lot is situated.

18-17-5-2-3. Any information required as part of the minor land division submittal shall be shown graphically, or by note on plans, or by letter, or by combination thereof, and may comprise several sheets showing various elements of the required data.

18-17-5-2-4. All minor land division maps shall contain the following information:

- (1) Notation of the map as "A minor land division map for (subdividers name)."
- (2) Location by quarter-section, section, township, and range.
- (3) Legal description of the property involved.
- (4) Name, address, and phone number of subdivider.
- (5) Scale, north point, and dates of preparation and revisions.
- (6) Existing street dedications, utility easements, and lot lines of all adjacent properties must be indicated by subdivision name and Pinal County Recorder's Office Book and Page number; unsubdivided land must be identified as such.
- (7) Name, address, registration number, and seal of the registered land surveyor preparing the map.
- (8) Boundaries of the tract to be divided fully balanced and closed showing all bearings and distances determined by an accurate survey in the field. All dimensions shall be expressed in feet and decimals thereof.
- (9) Location and description of cardinal points of primary interest to which all dimensions, angles, bearings, and similar data on the map shall be referenced. One (1) corner of the minor land division map shall be tied by course and distance to a survey monument approved by the Town engineer.
- (10) All existing and proposed drainage structures and natural drainage features, if required by the project manager.
- (11) All existing irrigation structures on the property to be divided.
- (12) Location and dimensions of all lots within the minor land division map. All sides of the proposed lots shall be identified by bearings and distances.
- (13) All lots shall be identified by number or letter.
- (14) Proposed street dedications and public utility easements shall be identified by course, length, and width.
- (15) Certification by a registered land surveyor preparing the map that the map is correct and accurate, and that the monuments described in it have been located as described.
- (16) Certification of map approval by the land development engineer, community development group.

18-17-5-3. *Application Approval.*

18-17-5-3-1. The subdivider shall submit all of the documents, information, data, and other requirements for minor land division application approval to the project manager and shall furnish any additional information and materials relevant to the application that the Community Development Director reasonably believes is necessary in order to understand the subject matter of the application and to ensure compliance with the requirements of this Section. Compliance shall be determined by the Community Development Director.

18-17-5-3-2. The procedures for approval, modification, or disapproval of minor land division applications shall be as follows:

18-17-5-3-2-1. The Community Development Director shall approve or disapprove applications for minor land divisions pursuant to the provisions of this Section.

18-17-5-3-2-2. Approval:

18-17-5-3-2-2-1. If the Community Development Director approves the minor land division application, the land development engineer shall transcribe a certificate of approval upon the map, first making sure that: 1) all conditions of approval have been complied with; 2) the other required certifications have been duly signed; and 3) that any instruments for required street right-of-way dedications have been prepared, executed, and duly recorded.

18-17-5-3-2-2-2. After Community Development Director approval of the minor land division, certification of approval by the land development engineer, the applicant shall pay to the Town the fee charged by the Pinal County Recorder for the recordation of the map, and the Town shall then promptly record the map with the Pinal County Recorder.

18-17-5-3-2-3. *Modification.* If the Community Development Director finds that the minor land division application requires further modification, the application shall be returned to the subdivider for necessary modification. Such modification(s) must be completed within thirty (30) calendar days of the return to the subdivider or will require a new submittal.

18-17-5-3-2-4. *Denial.*

- (1) If the Community Development Director disapproves of the minor land division application, the subdivider will be furnished a letter stating the reasons for the denial. The application may be refiled if suitable revisions can be made to resolve the conflicts noted by the Community Development Director as originally proposed without additional fee if refiled within thirty (30) calendar days of Community Development Director action.
- (2) An applicant may appeal a final action by the Community Development Director to the Town Council pursuant to Section 18-19 of this Section.

18-17-6. Engineering Plans for Minor Land Divisions.

18-17-6-1. If improvements are required for minor land divisions pursuant to Section 18-17-4 herein, the applicant shall be responsible for the preparation of a complete set of engineering plans, prepared by an Arizona registered civil engineer, satisfactory to the Town Engineer for the construction of the required improvements. The plans shall be prepared in conjunction with the minor land division map.

18-17-6-2. The minor land division map shall not be recorded until all engineering plans for the recorded improvements have been approved by the Town Engineer.

18-17-7. *Assurance For the Construction of Minor Land Division Improvements.* If improvements are required for the minor land division pursuant to Section 18-17-4 herein, no building permit for any lot created will be issued until such improvements are completed and the work accepted by the Town Engineer. Required improvements may be waived by the Community Development Director if the subdivider provides

improvement assurance as outlined in Section 18-17-4-2-3 or if all such required improvements have been completed and paid for, as determined by the Town Engineer.

Section 18-18 MODIFICATIONS TO MINOR LAND DIVISIONS.

18-18-1. Modifications to requirements of Section.

18-18-1-1. Where, in the opinion of the Town Council, there exists extraordinary conditions of topography, land ownership, or adjacent development, or other circumstances not provided for in these regulations, the Council may modify the provisions of this Section in such manner and to such extent as it may deem appropriate to the public interest. The burden of proof for Council determination of a modification rests with the subdivider.

18-18-1-2. In modifying the standards or requirements of these provisions, as outlined above, the Council may make such additional requirements as appear necessary, in its judgment, to secure substantially the objectives of the standards or requirements so modified.

Section 18-19 VIOLATIONS AND APPEALS.

18-19-1. Violations and Penalties.

18-19-1-1. It shall be a Class 1 misdemeanor to record or attempt to record a subdivision plat or minor land division map with the Pinal County Recorder if such plat or map includes any land within the Town of San Tan Valley and such plat or map has not been given approval by the San Tan Valley Town Council or community development group or the necessary certifications and signatures of approval have not been obtained as provided for by this Section.

18-19-1-2. It shall be a Class 1 misdemeanor to attempt to achieve a minor land division or to achieve a minor land division or to attempt to establish a subdivision or to establish a subdivision of any land within the Town of San Tan Valley without first having obtained the approval of the Community Development Director, Town Engineer, and/or San Tan Valley Town Council as provided for by this Section.

18-19-2. *Appeal Procedure.* The following procedure of appeal shall be utilized by all parties authorized to appeal decisions reached by an officer, employee, department, board, or commission of the Town, except the Town Council, concerning the subdivision and division of land within the Town of San Tan Valley.

18-19-2-1. An appeal may be made by such person by filing within fifteen (15) days of said decision, with the Community Development Department, a notice of appeal, on a form provided by the Community Development Department, specifying the grounds for the appeal.

18-19-2-2. An appeal filing fee in the amount established by Town Council resolution or pursuant to San Tan Valley Town Code will be required at time of filing except for appeals filed by a Town Council member or the Town Manager. Such notice of appeal and all papers constituting the record in the action shall be transmitted forthwith through the Town clerk to the Town Council.

18-19-2-3. The Town Council shall act upon the appeal within sixty (60) calendar days of the date upon which the appeal was filed. Appeals shall be considered by the Town Council at a public hearing with formal notification.

Section 18-20 PROPOSITION 207 WAIVER FOR PLATTING AND LAND DIVISION APPLICATIONS.

18-20-1. *Purpose and requirement.* To protect the public health, safety, and welfare of the Town and its taxpayers from claims arising under the Private Property Rights Protection Act (A.R.S. § 12-1134), a fully

executed and notarized *Waiver of Claims for Diminution in Value* shall be required from the fee title property owner as a condition of review and approval for any subdivision application. This includes, but is not limited to, applications for a Preliminary Plat, Preliminary Plat Amendment, Final Plat, or Minor Land Division.

18-20-2. *Scope of Waiver.* The required waiver shall be on a form approved by the Town Attorney and shall completely release and waive any and all claims for monetary compensation or diminution in value against the Town, its officers, and employees, that may arise from the application of the Town's Zoning Ordinance, the Subdivision Ordinance, the San Tan Valley Engineering and Design Standards, or any specific conditions or stipulations attached to the approval of a Plat.

18-20-3. *Administrative Completeness.* The submission of the executed and notarized waiver is a requirement for an application to be deemed administratively complete. No subdivision plat application shall be accepted for formal staff review, until such waiver has been successfully filed with the Town.

18-20-4. *Recordation and Validity.* Upon final approval of the subdivision plat, the Town shall record the executed waiver in the Office of the County Recorder. The waiver shall run with the land and shall be legally binding upon all subsequent property owners, developers, heirs, successors, and assigns. If the subdivision application is formally denied or completely withdrawn by the applicant prior to plat recordation, the executed waiver shall automatically become null and void.

Section 18-21 STREET NAMING AND ADDRESSING REQUIREMENTS.

18-21-1. General Provisions

18-21-1-1. *Purpose.* This Section is to provide for the uniform assignment of property numbers on residences, public buildings, and businesses along public and private streets or roads; to provide for the naming and renaming of streets or roads; and to provide addressing for emergency services responding to 911 calls.

18-21-1-2. *Intent.* The Town of San Tan Valley is experiencing rapid development, making it essential to establish uniform street naming and addressing guidelines. These procedures guide a consistent system to assist emergency personnel and the public in locating addresses, ensure the process complements the development of the Town of San Tan Valley, clearly identify a north-south/east-west reference point, and assist the postal service.

18-21-1-3. *Authority.* The Community Development Director or designee is authorized to assign addresses within the Town, typically during the subdivision, land division, development review, or building permit process. The Town shall maintain the street address database and may change existing addresses to conform to this Section. Address changes affecting ten (10) or more addresses require Town Council approval.

18-21-1-4. *Appeals.* Any person aggrieved by a decision of the Community Development Director or designee under this Section may seek review by the Town Council. A written request for appeal shall be placed on the agenda for the next available Town Council meeting, and the Town Council shall make a decision within sixty (60) days after the appeal is filed.

18-21-1-5. *Definitions.* An address is a unique alphanumeric descriptor identifying a property location within the Town of San Tan Valley. Public rights-of-way are streets dedicated for perpetual public use and maintained by the Town of San Tan Valley, the County, the State, or the United States Government.

18-21-2. *Street Naming.*

18-21-2-1. *General Requirements:*

18-21-2-1-1. All proposed street names and street types shall be approved by the Community Development Director or designee before final plat approval, minor land division approval, or building permit issuance, as applicable.

18-21-2-1-2. Once used, a street name may not be used on another non-contiguous street within the subdivision or Planned Community District.

18-21-2-1-3. Streets that change alignment by one-hundred fifty (150) feet or change direction by ninety (90) degrees must assume a new name (except for circles and loops).

18-21-2-1-4. Approved suffixes for the Town of San Tan Valley include: Avenue, Boulevard, Circle, Court, Drive, Lane, Loop, Parkway, Place, Road, Street, Trail, and Way.

18-21-2-2. *Alignments.* Street names for arterial, major collector, section-line, and half-section-line roadways shall be assigned based on existing alignments within the Town of San Tan Valley Planning Area or up to one (1) mile outside its boundaries and, where applicable, shall be consistent with the Maricopa County and Pinal County street naming and addressing systems and Town standards. Mile and half-mile streets remain fixed.

18-21-2-3. *Assignment Rules.* Proposed names should reflect geographical, historical, or cultural aspects of the Town. Names may also be themed to reflect the unique character of a proposed development. Names must be easy to read and pronounce, limited to twenty-two (22) characters, and not duplicate similarly pronounced names. Emergency service objections will result in an immediate denial of a proposed name.

18-21-2-4. *Cul-de-sacs.* A cul-de-sac existing at the end of a right-of-way assumes the name of that street and is identified as a Court. If it is less than one-hundred (100) feet in length, it retains the name of the adjoining street.

18-21-2-5. *Unacceptable Street Names.* Unacceptable street names include but are not necessarily limited to:

- (1) Numerical names (1st, 2nd, etc.);
- (2) Letters of the alphabet (A, B, C, etc.);
- (3) Copyrighted and trademark names;
- (4) Famous names;
- (5) Complicated words;
- (6) Unconventional spellings;
- (7) Duplicates particularly within the same postal delivery or emergency response area;
- (8) Street names pronounced similarly;
- (9) Names with more than twenty-two (22) letters and spaces including the suffix abbreviation within the full address format;

- (10) Names that could be deemed offensive based on community standards; and,
- (11) Directional name or street suffix cannot be used in the street name.

18-21-2-6. *Complete Name.* A complete name shall consist of no more than four (4) words, including the appropriate prefix directional name and any suffix.

18-21-2-7. *Name Duplication.* Similar sounding names are considered to be duplications regardless of spelling. No duplication of names for new roadways is permitted within the projected service area of the U.S. Postal Service or of local public agencies such as fire and police departments.

18-21-3. *Addressing Guidelines.*

18-21-3-1. *General Assignment.* The Community Development Director or designee shall assign all situs addresses for the Town of San Tan Valley. Odd numbers are assigned on the east and south sides of the street, while even numbers are assigned on the north and west sides.

18-21-3-2. *Grid Systems.* For the portion of San Tan Valley located in Maricopa County, addressing is based on the Maricopa County system (originating at Central Avenue and Washington Street). The portion of San Tan Valley located in Pinal County, is based on the Pinal County system (originating at Eleven Mile Corner Road and State Route 287).

18-21-3-3. *Multi-Family & Commercial.* Apartments and Condominiums with one main entrance receive one situs address with consecutive sub-structure suffixes (e.g., Suite 101). Commercial centers/malls assign a separate frontage number to each structure or pad.

18-21-3-4. *Accessory Dwelling Units (ADUs).* All ADUs shall bear the same address of the parent parcel except that the address shall contain a unit number which separately identifies the building from the primary structure.

18-21-4. *Posting of Addresses.*

18-21-4-1. *Placement.* Addresses must be permanently mounted on the street facing side of the building. The address must remain unobstructed, readable from the street, and must be a color, shade, or material that contrasts with their background. On a corner lot, the address must face the street named in the address.

18-21-4-2. *Sizing Guidelines.*

18-21-4-2-1. Single-Family Dwellings: Minimum four (4) inches in height.

18-21-4-2-2. Commercial/Multi-Family Dwellings: Monument signs must be a minimum of six (6) inches high. Individual building numbers must be displayed on two (2) sides at a minimum of twelve (12) inches high. Suite numbers must be a minimum of three (3) inches high.

18-21-5. *Amendment Procedures.*

18-21-5-1. *Policy.* It is the intent of the Town of San Tan Valley to maintain accurate and concise street naming records. Procedures are only amended to correct errors or change existing names.

18-21-5-2. *Street Name Changes.* The San Tan Valley Town Council may initiate a name change by resolution, triggering a public hearing and written notice to affected citizens. Residents may also formally petition the Town of San Tan Valley to change their street name by filing a formal request with the Town Council. Any street name change requests must be approved by the United States Postal Service and E911 system.

18-21-5-3. *Address Number Changes.* Address number changes may be requested by the property owner through an application submitted to the Community Development Director or designee.

ARTICLE 19 – ENGINEERING AND DESIGN STANDARDS

SECTIONS:

19-1: PURPOSE, INTENT, AND AUTHORITY

19-2: APPLICABILITY

19-3: ENGINEERING AND DESIGN STANDARDS

Section 19-1 PURPOSE, INTENT, AND AUTHORITY.

19-1-1. *Purpose and Intent.* The Town of San Tan Valley is responsible for the planning, design, construction, operation, and maintenance of public infrastructure systems, including streets, traffic control devices, culverts, bridges, storm drainage systems, and other related public improvements. As such, it is necessary to establish consistent and uniform engineering design standards to ensure that public infrastructure is designed and constructed in a safe, efficient, durable, and cost-effective manner. The adoption of standardized engineering criteria promotes public safety, protects public investment, and ensures compatibility and coordination among public and private development projects.

19-1-2. *Town Engineer Authority.*

19-1-2-1. The Town Engineer is authorized to interpret, implement, and administer these standards contained herein to ensure compliance and to address unique or site-specific conditions. Furthermore, the Town Engineer is authorized to approve or deny engineering documents, improvement plans, and technical reports for improvements and infrastructure within the area of applicability as described in this Code.

19-1-2-2. The Town Engineer is hereby authorized and empowered to make changes to the Town of San Tan Valley Engineering and Design Standards (“Standards”), without approval by the Town Council. Such changes may include updates to the Standards to reflect changes in technology, best practices, or referenced publications or may include issuing supplemental technical guidelines (“Town Engineer Technical Bulletin”) and/or standard details (“Town Standard Details”).

19-1-3. *Conflicts.* In the event of a conflict between these Standards and other Town Codes or ordinances, the more stringent requirement shall apply, as determined by the Town Engineer. Any decision of the Town Engineer may be appealed to the Town Council.

Section 19-2 APPLICABILITY.

19-2-1. The provisions set forth in these Standards shall govern all public infrastructure projects undertaken by the Town, as well as any private development projects slated for Town dedication or maintenance. Additionally, these requirements apply to all work performed within public or Town-owned rights-of-way, including public utility and drainage easements.

19-2-2. If any section, subsection, sentence, clause, or phrase of this Article is for any reason held to be invalid, such decision shall not affect the validity of the remaining portions.

Section 19-3 ENGINEERING AND DESIGN STANDARDS.

19-3-1. *San Tan Valley Engineering and Design Standards*. The Town hereby adopts the San Tan Valley Engineering and Design Standards, consisting of the manuals, standards, specifications, drawings, supplements, appendices, and modifications identified in this Section, as the official standards governing the design and construction of public infrastructure within the Town. The documents identified in this Section, as declared public records by Resolution No. 2026-26 and adopted by Ordinance No. 2026-05, are adopted by reference as if fully set out in this Code:

19-3-1-1. “Uniform Standard Specifications and Details for Public Works Construction,” published, sponsored, and distributed by the Maricopa Association of Governments, together with applicable appendices.

19-3-1-2. “Manual on Uniform Traffic Control Devices,” 11th Edition, dated December 19, 2023, together with the January 2026 Arizona Supplement and applicable appendices.

19-3-1-3. “Pinal County Access Management Manual,” February 2017, together with applicable appendices.

19-3-1-4. “Maricopa County Department of Transportation Pavement Marking Manual,” June 2025, together with applicable appendices.

19-3-1-5. “San Tan Valley Traffic Impact Analysis Guidelines & Procedures Manual,” together with applicable appendices.

19-3-1-6. “Pinal County Subdivision & Infrastructure Design Manual,” 2024 Edition, together with applicable appendices.

19-3-1-7. “San Tan Valley 2026 Modification to the 2024 Edition of the Pinal County Subdivision & Infrastructure Design Manual,” together with applicable appendices.

19-3-1-8. “Arizona Department of Transportation Traffic Signals and Lighting Standard Drawings,” together with applicable appendices.

19-3-1-9. “City of Phoenix Traffic Barricade Manual,” 9th Edition, 2017, together with applicable appendices.

19-3-1-10. “City of Mesa Standard Details, M-1700 Series Dry Utilities,” December 2025, together with applicable appendices.

19-3-1-11. “Maricopa County Drainage Policies and Standards Manual,” August 2018, together with applicable appendices.

19-3-1-12. “Maricopa County Drainage Design Manual: Hydrology,” July 2023, together with applicable appendices.

19-3-1-13. “Maricopa County Drainage Design Manual: Hydraulics,” December 2018, together with applicable appendices.

19-3-1. *Copies on File*. Copies of the documents identified in this Section shall be maintained by the Town Clerk and made available for public reference and inspection as required by A.R.S. § 9-802.